

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

TRACY BRAITHWAITE et al., Plaintiffs, and KASHAN ROBINSON et al., Appellants, v GREENHOUSE et al., Defendants, and JOHN BAKHSHI, Respondent. (And Another Action.)

Submitted October 5, 2020; decided November 24, 2020

Reported below, 184 AD3d 522.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

In the Matter of DAVID A. BURR, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION et al., Respondents.

Submitted September 28, 2020; decided November 24, 2020

Reported below, 185 AD3d 1361.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from the Supreme Court orders denying motions for reconsideration, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

CARLOS JULE, Appellant, v ORSECK LAW OFFICES, PLLC, et al., Respondents.

Submitted October 5, 2020; decided November 24, 2020

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]).

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted October 26, 2020; decided November 24, 2020

Motion for reargument of motion for leave to appeal denied [*see* 35 NY3d 1060 (2020)]. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HILLARY BEST, Appellant.

Submitted October 5, 2020; decided November 24, 2020

Reported below, 179 AD3d 1088.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no civil appeal lies from the order entered in this criminal action (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCOS CORREA, Appellant.

Submitted August 31, 2020; decided November 24, 2020

Reported below, 68 Misc 3d 126(A), 2020 NY Slip Op 50840(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

G. STEVEN REINGOLD, Respondent, v BARBARA BOWINS, Appellant.

Submitted October 13, 2020; decided November 24, 2020

Reported below, 180 AD3d 722.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of YON RENEE WOODSON AWOONOR RENNER, Appellant, v ERNEST AWOONOR RENNER, Respondent. (And Other Proceedings.)

Submitted October 19, 2020; decided November 24, 2020

Reported below, 2020 NY Slip Op 64467(U).

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 1057 (2020)].

ROMAN CATHOLIC DIOCESE OF ALBANY et al., Appellants, v MARIA T. VULLO, as Superintendent of Financial Services, et al., Respondents, et al., Defendants. (And Another Related Action.)

Submitted August 17, 2020; decided November 24, 2020

Reported below, 185 AD3d 11.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

Chief Judge DiFIORE and Judges RIVERA, STEIN, GARCIA, WILSON and FEINMAN concur. Judge FAHEY dissents and votes to retain the appeal.

CHARLENE SMOOT, Respondent, v RITE AID et al., Appellants, et al., Defendants. (And Third-Party Actions.)

Submitted October 19, 2020; decided November 24, 2020

Reported below, 185 AD3d 411.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of YU CHAN LI, Appellant, v NEW YORK CITY LANDMARKS PRESERVATION COMMISSION, Respondent.

Submitted September 14, 2020; decided November 24, 2020

Reported below, 2020 NY Slip Op 69844(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2020 through November 30, 2020)

People v Anonymous	1st Dept: 186 AD3d 1164 (NY)	denied 11/24/20 (Stein, J.)
People v Avery	App Term, 1st Dept: 68 Misc 3d 135(A) (NY)	denied 11/12/20 (Rivera, J.)
People v Bowers	App Div, 3d Dept: 2020 NY Slip Op 67279(U) (Rensselaer)	dismissed 11/18/20 (Rivera, J.)
People v Brown	4th Dept: 186 AD3d 1105 (Monroe)	denied 11/2/20 (Stein, J.)
People v Brunson	3d Dept: 185 AD3d 1300 (Otsego)	denied 11/12/20 (Rivera, J.)
People v Bush	2d Dept: 185 AD3d 1048 (Kings)	granted 11/9/20 (Rivera, J.)
People v Bushey	3d Dept: 186 AD3d 1835 (St. Lawrence)	denied 11/30/20 (Wilson, J.)
People v Cariello	2d Dept: 186 AD3d 726 (Suffolk)	denied 11/5/20 (Fahey, J.)
People v Castro	App Term, 1st Dept: 67 Misc 3d 144(A) (NY)	denied 11/19/20 (Stein, J.)
People v Cedeno	App Term, 2d Dept, 9th & 10th Jud Dists: 68 Misc 3d 129(A) (Westchester)	denied 11/5/20 (Fahey, J.)
People v Cobian	2d Dept: 186 AD3d 851 (Suffolk)	denied 11/5/20 (Fahey, J.)
People v Connell	2d Dept: 185 AD3d 1048 (Kings)	denied 11/19/20 (Stein, J.)
People v Daniels	App Div, 2d Dept: 2020 NY Slip Op 70976(U) (Kings)	dismissed 11/6/20 (DiFiore, Ch. J.)
People v Dawkins	App Term, 1st Dept: 68 Misc 3d 135(A) (NY)	denied 11/18/20 (Feinman, J.)
People v De La Cruz	App Term, 1st Dept: 68 Misc 3d 134(A) (NY)	denied 11/18/20 (Garcia, J.)
People v Della-Tacoma	1st Dept: 187 AD3d 479 (NY)	denied 11/30/20 (Garcia, J.)
People v Dolan	4th Dept: 187 AD3d 1572 (Livingston)	denied 11/30/20 (Rivera, J.)
People v Drame	1st Dept: 185 AD3d 455 (NY)	denied 11/5/20 (Fahey, J.)
People v Eduardo S.	2d Dept: 186 AD3d 1265 (Queens)	denied 11/5/20 (Fahey, J.)
People v Edwards	2d Dept: 186 AD3d 1242 (Kings)	denied 11/5/20 (Fahey, J.)

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People v Enriquez	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 127(A) (Suffolk)	denied 11/30/20 (DiFiore, Ch. J.)
People v Figuereroa	2d Dept: 187 AD3d 934 (Kings)	denied 11/30/20 (DiFiore, Ch. J.)
People v Figueroa	App Term, 2d Dept, 9th & 10th Jud Dists: 68 Misc 3d 133(A) (Suffolk)	denied 11/5/20 (Fahey, J.)
People v Forrest	2d Dept: 186 AD3d 1395 (Nassau)	denied 11/17/20 (Feinman, J.)
People v Francis	2d Dept: 186 AD3d 504 (Queens)	denied 11/30/20 (Wilson, J.)
People v Gonzalez	1st Dept: 185 AD3d 425 (Bronx)	denied 11/30/20 (Stein, J.)
People v Graham	3d Dept: 185 AD3d 1221 (Albany)	denied 11/5/20 (Fahey, J.)
People v Grasso	2d Dept: 180 AD3d 705 (Richmond)	denied 11/5/20 (Fahey, J.)
People v Graziano	2d Dept: 186 AD3d 853 (Suffolk)	denied 11/12/20 (Garcia, J.)
People v Hampton	2d Dept: 186 AD3d 855 (Kings)	denied 11/29/20 (Wilson, J.)
People v Harlee	4th Dept: 187 AD3d 1586 (Wayne)	denied 11/17/20 (Feinman, J.)
People v Harvey	2d Dept: 186 AD3d 622 (Orange)	denied 11/19/20 (Stein, J.)
People v Hedrington	2d Dept: 186 AD3d 1245 (Kings)	denied 11/18/20 (Rivera, J.)
People v Henry	2d Dept: 183 AD3d 607 (Kings)	denied reconsideration 11/5/20 (Fahey, J.)
People v Hernandez	2d Dept: 186 AD3d 1246 (Kings)	denied 11/30/20 (Rivera, J.)
People v Hopkins	App Term, 1st Dept: 69 Misc 3d 129(A) (NY)	denied 11/30/20 (Rivera, J.)
People v Houston	App Term, 1st Dept: 69 Misc 3d 131(A) (NY)	denied 11/17/20 (Feinman, J.)
People v Iglesias	2d Dept: 187 AD3d 785 (Nassau)	denied 11/19/20 (Feinman, J.)
People v Jackson	1st Dept: 187 AD3d 446 (NY)	denied 11/19/20 (Feinman, J.)
People v Janvier	2d Dept: 186 AD3d 1247 (Kings)	denied 11/18/20 (Garcia, J.)
People v Jean	1st Dept: 186 AD3d 1175 (NY)	denied 11/30/20 (Wilson, J.)
People v Johnson (Aaron)	1st Dept: 187 AD3d 444 (NY)	denied 11/30/20 (DiFiore, Ch. J.)
People v Johnson (Natalie)	4th Dept: 184 AD3d 1102 (Monroe)	denied 11/18/20 (Feinman, J.)
People v Johnson (Raymond)	1st Dept: 186 AD3d 1172 (Bronx)	denied 11/13/20 (DiFiore, Ch. J.)

People v Jones	2d Dept: 186 AD3d 856 (Orange)	denied 11/2/20 (Garcia, J.)
People v Kaja	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 68 Misc 3d 130(A) (Richmond)	denied 11/5/20 (Fahey, J.)
People v Kelly	App Div, 2d Dept: 2020 NY Slip Op 71418(U) (Kings)	dismissed 11/30/20 (Rivera, J.)
People v Labossiere	App Div, 2d Dept: 2020 NY Slip Op 70402(U) (Nassau)	dismissed 11/22/20 (Wilson, J.)
People v Lawrence (Michael)	1st Dept: 186 AD3d 1168 (NY)	denied 11/30/20 (Garcia, J.)
People v Lawrence (Richard)	App Div, 3d Dept: 2020 NY Slip Op 71117(U) (Broome)	denied 11/5/20 (Fahey, J.)
People v Lifrieri	2d Dept: 181 AD3d 715 (Kings)	denied 11/19/20 (Stein, J.)
People v McCall	4th Dept: 187 AD3d 1682 (Ontario)	denied 11/19/20 (Feinman, J.)
People v McPhail	App Div, 4th Dept: 2020 NY Slip Op 71713(U) (Monroe)	dismissed 11/30/20 (Garcia, J.)
People v Mikulski	County Ct, 8/27/20 (Wyoming)	denied 11/18/20 (Feinman, J.)
People v Miller (Lonnie)	2d Dept: 186 AD3d 1717 (Queens)	denied 11/30/20 (Stein, J.)
People v Miller (Lonnie)	2d Dept: 186 AD3d 1719 (Queens)	denied 11/30/20 (Stein, J.)
People v Mirabella	4th Dept: 187 AD3d 1589 (Monroe)	dismissed 11/17/20 (Feinman, J.)
People v Mirandalopez	2d Dept: 181 AD3d 824 (Dutchess)	denied 11/19/20 (DiFiore, Ch. J.)
People v Muhammad	4th Dept: 181 AD3d 1182 (Monroe)	denied 11/19/20 (Stein, J.)
People v Mungin	2d Dept: 184 AD3d 877 (Kings)	denied 11/12/20 (Rivera, J.)
People v Murray	2d Dept: 186 AD3d 624 (Westchester)	denied 11/30/20 (Wilson, J.)
People v Narvaez	1st Dept: 187 AD3d 418 (NY)	denied 11/24/20 (DiFiore, Ch. J.)
People v Newton (Dwight)	4th Dept: 173 AD3d 1680 (Jefferson)	denied 11/18/20 (Feinman, J.) (Appeal No. 1)
People v Newton (Dwight)	4th Dept: 173 AD3d 1680 (Jefferson)	denied 11/18/20 (Feinman, J.) (Appeal No. 2)
People v O'Brien	2d Dept: 186 AD3d 1406 (Suffolk)	denied 11/10/20 (Rivera, J.)
People v Ochoa	1st Dept: 182 AD3d 410 (Bronx)	denied 11/16/20 (Stein, J.)
People v October	3d Dept: 187 AD3d 1247 (Broome)	denied 11/13/20 (DiFiore, Ch. J.)

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People v Pagan	1st Dept: 187 AD3d 481 (NY)	denied 11/30/20 (Rivera, J.)
People v Payne	App Div, 2d Dept: 2020 NY Slip Op 71583(U) (Nassau)	dismissed 11/30/20 (Stein, J.)
People v Person	2d Dept: 186 AD3d 869 (Queens)	denied 11/30/20 (Wilson, J.)
People v Petion	2d Dept: 186 AD3d 1410 (Nassau)	denied 11/19/20 (Feinman, J.)
People v Petrino	2d Dept: 180 AD3d 705 (Richmond)	denied 11/5/20 (Fahey, J.)
People v Philips	2d Dept: 182 AD3d 611 (Queens)	denied 11/19/20 (Stein, J.)
People v Pierre	1st Dept: 185 AD3d 485 (NY)	denied 11/30/20 (Rivera, J.)
People v Pinckney	2d Dept: 186 AD3d 507 (Dutchess)	denied 11/12/20 (Wilson, J.)
People v Player	App Div, 2d Dept: 2020 NY Slip Op 67973(U) (Suffolk)	dismissed 11/12/20 (Wilson, J.)
People v Porto	App Term, 1st Dept: 68 Misc 3d 135(A) (NY)	denied 11/30/20 (DiFiore, Ch. J.)
People v Railin	1st Dept: 186 AD3d 1174 (NY)	denied 11/29/20 (Wilson, J.)
People v Reynolds	2d Dept: 186 AD3d 1535 (Queens)	denied 11/12/20 (Rivera, J.)
People v Riley	4th Dept: 182 AD3d 998 (Wyoming)	denied reconsideration 11/29/20 (Wilson, J.)
People v Rivera (Danny)	App Term, 1st Dept: 67 Misc 3d 140(A) (Bronx)	denied 11/2/20 (Stein, J.)
People v Rivera (Marcos)	2d Dept: 181 AD3d 825 (Queens)	denied 11/16/20 (Stein, J.)
People v Robinson (Demort)	2d Dept: 184 AD3d 779 (Kings)	denied 11/30/20 (Garcia, J.)
People v Robinson (Ronald)	App Div, 4th Dept, 7/16/20 (Erie)	dismissed 11/4/20 (Feinman, J.)
People v Rogers	4th Dept: 186 AD3d 1046 (Monroe)	denied 11/12/20 (Rivera, J.)
People v Rolling	2d Dept: 186 AD3d 1264 (Dutchess)	denied 11/19/20 (Stein, J.)
People v Santini	2d Dept: 180 AD3d 705 (Richmond)	denied 11/5/20 (Fahey, J.)
People v Savinetti	2d Dept: 186 AD3d 1268 (Nassau)	denied 11/30/20 (Wilson, J.)
People v Sepulveda	2d Dept: 186 AD3d 1537 (Westchester)	denied 11/24/20 (Feinman, J.)
People v Shakyra H.	2d Dept: 183 AD3d 638 (Kings)	denied 11/12/20 (Rivera, J.)
People v Sharpe	2d Dept: 185 AD3d 965 (Suffolk)	denied 11/17/20 (DiFiore, Ch. J.)

People v Shear	2d Dept: 186 AD3d 1537 (Suffolk)	denied 11/18/20 (Garcia, J.)
People v Similien	2d Dept: 186 AD3d 871 (Suffolk)	denied 11/2/20 (Feinman, J.)
People v Tarte	App Div, 2d Dept: 2020 NY Slip Op 72673(U) (Kings)	dismissed 11/30/20 (Rivera, J.)
People v Thompson	4th Dept: 187 AD3d 1574 (Monroe)	denied 11/19/20 (DiFiore, Ch. J.)
People v Torres	1st Dept: 186 AD3d 1164 (NY)	denied 11/30/20 (Garcia, J.)
People v Valdiviezo	2d Dept: 186 AD3d 628 (Kings)	denied 11/19/20 (Garcia, J.)
People v Valenzuela	1st Dept: 183 AD3d 440 (NY)	denied 11/12/20 (Stein, J.)
People v Vintimilla	1st Dept: 187 AD3d 413 (NY)	denied 11/17/20 (Feinman, J.)
People v Weather	4th Dept: 182 AD3d 1043 (Oneida)	denied 11/24/20 (Stein, J.)
People v Williams (Robert)	1st Dept: 186 AD3d 1173 (NY)	denied 11/18/20 (Garcia, J.)
People v Williams (Tramayer)	1st Dept: 184 AD3d 442 (NY)	denied 11/12/20 (Stein, J.)
People v Wingate	2d Dept: 184 AD3d 738 (Queens)	denied reconsideration 11/12/20 (Garcia, J.)
People v Young	App Div, 3d Dept: 2020 NY Slip Op 71112(U) (Albany)	denied 11/30/20 (Rivera, J.)
People v Zanders	4th Dept: 187 AD3d 1579 (Monroe)	denied 11/17/20 (Feinman, J.)

In the Matter of ALBERT JAMES G., JR. COALITION FOR HISPANIC
FAMILY SERVICES et al., Respondents; SHANTEEK A.C., Ap-
pellant.

Submitted October 19, 2020; decided December 15, 2020

Reported below, 176 AD3d 1206.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for poor person relief dismissed as academic.

ALEXANDRA R. et al., Appellants, v ERIC J. KRONE, Respondent,
et al., Defendants. (Appeal No. 1.)

Decided December 15, 2020

Reported below, 186 AD3d 981.

Appeals dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (*see* CPLR 5601 [a]).

In the Matter of ANNALISA G. et al., and Another, Children Alleged to be Abandoned. TAMARA A.H., Appellant; SAINT DOMINIC'S FAMILY SERVICES, Respondent.

Submitted November 16, 2020; decided December 15, 2020

Reported below, 187 AD3d 466.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

Judge FEINMAN taking no part.

In the Matter of BONNIE AA., Respondent, v KIYA DD. et al., Respondents, and REGGIE BB., Appellant.

Submitted November 2, 2020; decided December 15, 2020

Reported below, 186 AD3d 1784.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed so much of the Family Court order as dismissed appellant's petition to enforce a prior Family Court order, dismissed upon the ground that such portion of the order does not finally determine the proceedings within the meaning of the Constitution; motion for leave to appeal otherwise denied.

COLLATERAL LOANBROKERS ASSOCIATION OF NEW YORK, INC., et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Decided December 15, 2020

Reported below, 148 AD3d 133.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge FEINMAN taking no part.

DITECH FINANCIAL, LLC, Formerly Known as GREEN TREE SERVICING LLC, Appellant, v SANTHANA KUMAR NATARAJA NAIDU, Respondent, et al., Defendants.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 175 AD3d 1387.

Motion by New York State Foreclosure Defense Bar for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

DITECH FINANCIAL, LLC, Formerly Known as GREEN TREE SERVICING LLC, Appellant, v SANTHANA KUMAR NATARAJA NAIDU, Respondent, et al., Defendants.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 175 AD3d 1387.

Motion by United Jewish Organizations of Williamsburg, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

DITECH FINANCIAL, LLC, Formerly Known as GREEN TREE SERVICING LLC, Appellant, v SANTHANA KUMAR NATARAJA NAIDU, Respondent, et al., Defendants.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 175 AD3d 1387.

Motion by Adam Plotch for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

DANNY DONOHUE, as President of the Civil Service Employees Association, Inc., Local 1000, AFSCME, AFL-CIO, et al., Appellants, v ANDREW M. CUOMO, in His Official Capacity as Governor of the State of New York, et al., Respondents, et al., Defendants.

Decided December 15, 2020

See 980 F3d 53.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of the Court of Appeals, accepted and the issues presented are to be considered after briefing and argument.

Concur: Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN.

Chief Judge DiFIORE taking no part.

FREEDOM MORTGAGE CORPORATION, Appellant, v HERSCHEL ENGEL, Respondent, et al., Defendants.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 163 AD3d 631.

Motion by New York Mortgage Bankers Association et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

FREEDOM MORTGAGE CORPORATION, Appellant, v HERSCHEL ENGEL, Respondent, et al., Defendants.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 163 AD3d 631.

Motion by New York State Foreclosure Defense Bar for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

FREEDOM MORTGAGE CORPORATION, Appellant, v HERSCHEL ENGEL, Respondent, et al., Defendants.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 163 AD3d 631.

Motion by USFN-America's Mortgage Banking Attorneys for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

FREEDOM MORTGAGE CORPORATION, Appellant, v HERSCHEL ENGEL, Respondent, et al., Defendants.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 163 AD3d 631.

Motion by United Jewish Organizations of Williamsburg, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

STACY GREENE, as Administratrix of the Estate of GRETA DEVERE GREENE, Deceased, et al., Appellants, v ESPLANADE VENTURE PARTNERSHIP et al., Respondents, et al., Defendant.

Submitted November 30, 2020; decided December 15, 2020

Reported below, 172 AD3d 1013.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. One copy of the brief must be filed and the brief submitted in digital format within seven days.

IGNIS DEVELOPMENT, INC., Appellant, v LONG ISLAND COLLEGE HOSPITAL et al., Respondents. LONG ISLAND COLLEGE HOSPITAL, Third-Party Respondent, v STANLY NY ENTERPRISES, INC., et al., Third-Party Appellants.

Decided December 15, 2020

Reported below, 2020 NY Slip Op 71554(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of AIMEE KERR, Appellant, v DENNIS KERR, Respondent.

Submitted November 9, 2020; decided December 15, 2020

Reported below, 187 AD3d 1593.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of DAVID RAMIREZ ALVARADO NAHUM, Appellant, v NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES et al., Respondents.

Submitted August 24, 2020; decided December 15, 2020

Reported below, 185 AD3d 827.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of DAVID RAMIREZ ALVARADO NAHUM, Appellant, v NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES, et al., Respondents.

Submitted October 5, 2020; decided December 15, 2020

Reported below, 185 AD3d 827.

Motion by Patricia Weiss, Esq. for leave to appear amicus curiae on the appeal herein granted and the brief is accepted as filed.

In the Matter of NEW BRUNSWICK THEOLOGICAL SEMINARY, Respondent, v VICTORIA ANNE VAN DYKE, Appellant.

Decided December 15, 2020

Reported below, 184 AD3d 176.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEFFERY BUSH, Appellant.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 185 AD3d 1048.

Motion for assignment of counsel granted and Janet E. Sabel, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DRURY DUVAL, Appellant.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 179 AD3d 62.

Motion by New York State Association of Criminal Defense Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUANIECE S. TAYLOR, Appellant.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 185 AD3d 724.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

PROTECT THE ADIRONDACKS! INC., Respondent-Appellant, v NEW YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVATION et al., Appellants-Respondents.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 175 AD3d 24.

Motion by Sierra Club for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of UBALDO ROMERO, Appellant, v KAREN F. AGNIFILO et al., Respondents.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. UBALDO ROMERO, Appellant, v ROBERT MORGENTHAU, Respondent.

Submitted October 26, 2020; decided December 15, 2020

Reported below, 2020 NY Slip Op 63185(U).

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 1080 (2020)].

STEPHEN PHILLIP ROMINE, Appellant, v JAMES P. LAURITO et al., Respondents.

Decided December 15, 2020

Reported below, 2020 NY Slip Op 72163(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

JOSIAH SCHUTT, Respondent, v MARK D. BOOKHAGEN et al., Appellants.

Decided December 15, 2020

Reported below, 186 AD3d 1027.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v KERRY K., Appellant.

Decided December 15, 2020

Reported below, 188 AD3d 30.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v MARCELLO A., Appellant.

Decided December 15, 2020

Reported below, 180 AD3d 786.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

JUAN VARGAS, Respondent, v DEUTSCHE BANK NATIONAL TRUST COMPANY, Appellant.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 168 AD3d 630.

Motion by New York State Foreclosure Defense Bar for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JUAN VARGAS, Respondent, v DEUTSCHE BANK NATIONAL TRUST COMPANY, Appellant.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 168 AD3d 630.

Motion by United Jewish Organizations of Williamsburg, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JUAN VARGAS, Respondent, v DEUTSCHE BANK NATIONAL TRUST COMPANY, Appellant.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 168 AD3d 630.

Motion by Adam Plotch for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

WELLS FARGO BANK, N.A., Appellant, v DONNA FERRATO, Respondent, and THE SIMON & MILLS BUILDING CONDOMINIUM BOARD et al., Defendants.

WELLS FARGO BANK, N.A., Appellant, v DONNA FERRATO, Respondent, and CAPITAL ONE BANK (USA) N.A. et al., Defendants.

Submitted December 7, 2020; decided December 15, 2020

Reported below, 183 AD3d 529.

Motion by New York State Foreclosure Defense Bar for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted September 8, 2020; decided December 17, 2020

Reported below, 178 AD3d 823.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted September 8, 2020; decided December 17, 2020

Reported below, 178 AD3d 823.

Motion by Rite Aid Corporation for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted September 14, 2020; decided December 17, 2020

Reported below, 178 AD3d 823.

Motion by International Council of Shopping Centers, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the memorandum of law is accepted as filed.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted September 21, 2020; decided December 17, 2020

Reported below, 178 AD3d 823.

Motion by J.C. Penney Company Inc. et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted October 5, 2020; decided December 17, 2020

Reported below, 178 AD3d 823.

Motion by Stop & Shop Supermarket Company, LLC for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of DIET DRUG LITIGATION.

CLARA APPEL-HOLE et al., Appellants, v WYETH-AYERST LABORATORIES et al., Defendants, and PAUL J. NAPOLI et al., Respondents.

Submitted September 28, 2020; decided December 17, 2020

Reported below, 180 AD3d 483.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

In the Matter of WILLIAM H. HOFFAY et al., Appellants, v TOWN OF SAND LAKE et al., Respondents.

Submitted October 5, 2020; decided December 17, 2020

Reported below, 185 AD3d 1306.

Motion to dismiss appeal as untimely denied. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

JOHNATHAN JOHNSON, Appellant, v HAROLD GRAHAM et al., Respondents.

Submitted September 8, 2020; decided December 17, 2020

Reported below, 2020 NY Slip Op 70029(U).

Motion for leave to appeal dismissed upon the ground that it does not lie.

FELIX A. ONYENWE, Respondent, v DENNIS PETER HAMERNICK, Appellant.

Submitted September 21, 2020; decided December 17, 2020

Reported below, 185 AD3d 1044.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KAMELIA K. POPPE, Appellant, v WILLIAM F. POPPE, Respondent.

Submitted October 13, 2020; decided December 17, 2020

Reported below, 183 AD3d 503.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine an action or proceeding within the meaning of the Constitution.

ELIZABETH PRENDERGAST, Respondent, v MARIA SWIENCICKY, Appellant, et al., Defendant.

Submitted September 28, 2020; decided December 17, 2020

Reported below, 183 AD3d 945.

Motion for leave to appeal denied. Motion to disqualify counsel denied.

In the Matter of ROBERT REED, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, et al., Respondents.

Submitted October 5, 2020; decided December 17, 2020

Reported below, 175 AD3d 1700.

Motion for reargument of motion for leave to appeal denied.

Judge STEIN taking no part.

THOMAS TORNATORE, Respondent, v JEAN COHEN, D.C., Defendant. ALLIED PROFESSIONALS INSURANCE COMPANY, Appellant.

Submitted September 14, 2020; decided December 17, 2020

Reported below, 185 AD3d 1394.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GIOVANNI WHITE, Appellant, v STATE OF NEW YORK, Respondent.

Submitted September 28, 2020; decided December 17, 2020

Reported below, 2020 NY Slip Op 64688(U); 2020 NY Slip Op 66834(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

[159 NE3d 1120, 135 NYS3d 353]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
ROBINSON, Appellant.

Decided December 22, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 9, 2019. The Appellate Division affirmed a sentence of the Supreme Court, Queens County (Gia L. Morris, J.), imposed following defendant's conviction, upon his plea of guilty, of robbery in the third degree.

People v Robinson, 176 AD3d 876, appeal dismissed.

HEADNOTE

Crimes — Appeal — Dismissal — Mootness

In a criminal prosecution, defendant's appeal from the Appellate Division order affirming the sentence imposed following his conviction was dismissed, where the issues presented on appeal had become moot.

APPEARANCES OF COUNSEL

Paul Skip Laisure, Appellate Advocates, New York City (*Samuel R. Feldman* of counsel), for appellant.

Melinda Katz, District Attorney, Kew Gardens (*Danielle S. Fenn* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed upon the ground that the issues presented have become moot.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[160 NE3d 687, 136 NYS3d 219]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL EDWARDS, Appellant.

Decided November 24, 2020

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered April 30, 2020. The Appellate Division (1) modified, on the law, an order of the Supreme Court, Schenectady County (Kathleen B. Hogan, J.), which had partially granted defendant's motion to dismiss the indictment to the extent of dismissing counts 1 and 2 of the indictment; (2) denied defendant's motion to that extent; and (3) reinstated counts 1 and 2 of the indictment. The modification consisted of reversing so much of the order as partially granted defendant's motion. The Appellate Division affirmed the order as modified.

People v Edwards, 182 AD3d 929, affirmed.

HEADNOTE

Crimes — Assault — Depraved Indifference — Sufficiency of Evidence

The evidence presented to the grand jury was legally sufficient to demonstrate that defendant acted with depraved indifference when, in order to evade the police, defendant, who was legally intoxicated, fled down a local road with two passengers at a speed of at least 119 miles per hour—more than three times the speed limit. Defendant then abruptly swerved across the lanes of oncoming traffic into a parking lot and crashed into a wall. Viewing this evidence, the grand jury could rationally have found that defendant recklessly engaged in conduct that created a grave risk of death to his passengers, with an utter disregard for whether any harm came to them. That other, innocent inferences could possibly be drawn from the evidence presented to the grand jury was irrelevant to the sufficiency inquiry as the grand jury could rationally have drawn the guilty inference.

APPEARANCES OF COUNSEL

Law Offices of Danielle Neroni, Albany (*Angela Kelley* of counsel), for appellant.

Robert M. Carney, District Attorney, Schenectady (*Peter H. Willis* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The evidence presented to the grand jury was legally sufficient to demonstrate that defendant acted with depraved

indifference to human life (*see* Penal Law § 120.10 [3]). “To dismiss an indictment on the basis of insufficient evidence before a Grand Jury, a reviewing court must consider ‘whether the evidence viewed in the light most favorable to the People, if unexplained and uncontradicted, would warrant conviction by a petit jury’ ” (*People v Bello*, 92 NY2d 523, 525 [1998], quoting *People v Jennings*, 69 NY2d 103, 114 [1986]; *see People v Grant*, 17 NY3d 613, 616 [2011]). Depraved indifference means “‘an utter disregard for the value of human life—a willingness to act not because one intends harm, but because one simply doesn’t care whether grievous harm results or not’ ” (*People v Wilson*, 32 NY3d 1, 6 [2018], quoting *People v Feingold*, 7 NY3d 288, 296 [2006]; *see People v Heidgen*, 22 NY3d 259, 274 [2013]). A determination that a defendant acted depravedly indifferent is a “highly fact-specific” inquiry (*Heidgen*, 22 NY3d at 276).

There was evidence before the grand jury that, in order to evade the police, defendant, who was legally intoxicated, fled down a local road with two passengers at a speed of at least 119 miles per hour—more than three times the speed limit. Defendant then abruptly swerved across the lanes of oncoming traffic into a parking lot and crashed into a wall. Viewing the evidence in the light most favorable to the People, the grand jury could rationally have found that defendant “recklessly engaged in conduct that created a grave risk of death to [his passengers], with an utter disregard for whether any harm came to th[em]” (*Heidgen*, 22 NY3d at 278). “That other, innocent inferences could possibly be drawn from [the evidence presented to the grand jury] is irrelevant to the sufficiency inquiry” where, as here, “‘the Grand Jury could rationally have drawn the guilty inference’ ” (*Bello*, 92 NY2d at 526, quoting *People v Deegan*, 69 NY2d 976, 979 [1987]).

WILSON J. (dissenting). Mr. Edwards, intoxicated from a night of bar hopping, crashed his car after fleeing from a police officer at incredibly high speed, severely injuring his two passengers. It is undisputed that the evidence presented to the grand jury was sufficient to support a multitude of felony charges against him. Supreme Court concluded that the evidence was insufficient to warrant a charge of depraved indifference assault, and struck those counts from the indictment. Those counts cannot survive unless Mr. Edwards’ conduct reflects “wickedness, evil or inhumanity, as manifested by brutal, heinous and despicable acts” (*People v Suarez*, 6 NY3d

202, 214 [2005]). Under our precedents, the conduct alleged does not meet that standard.

As recounted by the Appellate Division, the facts presented to the grand jury—viewed in the light most favorable to the People—are as follows: Mr. Edwards, accompanied by two friends, spent an evening patronizing bars. Intoxicated and with his friends as passengers, he drove through the streets of Rotterdam at nearly double the speed limit: 68 miles per hour in a 35 miles-per-hour zone. When an officer attempted to stop him by activating the police car's lights and siren, Mr. Edwards accelerated, fleeing at a speed that reached 119 miles per hour. The officer pursued Mr. Edwards briefly but discontinued pursuit pursuant to departmental policy. Mr. Edwards made a sharp turn into a grocery store parking lot—a shortcut to another street—where his car slammed into a concrete divider, severely injuring his two passengers. Crash data recovered from the vehicle showed that for the five seconds prior to the crash, Mr. Edwards was pressing the brake. At the time of the collision, the car was traveling 60 miles per hour.

Mr. Edwards was arrested and arraigned on an 11-count indictment. For the injuries to the two passengers, Mr. Edwards was charged with two counts of assault in the first degree (a class B felony), aggravated vehicular assault (a class C felony), assault in the second degree (a class D felony), vehicular assault in the second degree (a class E felony), as well as reckless driving, driving while intoxicated (both misdemeanors), and speeding (a traffic infraction). Supreme Court dismissed 2 of the 11 counts (first-degree assault) for lack of legally sufficient evidence demonstrating that Mr. Edwards possessed the requisite mens rea: depraved indifference to human life. The People appealed the dismissal, and the Appellate Division, in a split decision, ordered the reinstatement of the dismissed charges (*People v Edwards*, 182 AD3d 929 [3d Dept 2020]). Justice Lynch, dissenting, agreed with Supreme Court and concluded that the undisputed evidence of Mr. Edwards' deceleration prior to the crash demonstrated his "conscious avoidance of risk" which Justice Lynch noted is "the antithesis of a complete disregard for the safety of others" (*id.* at 931-932 [Lynch, J., dissenting], quoting *People v Maldonado*, 24 NY3d 48, 54 [2014]).

Unquestionably, Mr. Edwards' inebriated flight from the officer was reckless and dangerous. But recklessness and dangerousness are insufficient to meet the very high bar required for

depraved indifference to human life, as defined by the legislature in its carefully crafted design for vehicular assaults. The indictment contains two counts each of second-degree assault and vehicular assault and one count of aggravated vehicular assault, which are class D, E, and C felonies, respectively. Those charges fit the facts presented to the grand jury; the counts for depraved indifference assault do not.

To support the charges of first-degree assault for the concededly unintentional vehicular assault at issue here, the People were required to introduce evidence of criminal culpability that goes far beyond recklessness (*see Suarez*, 6 NY3d at 214 [2005]) ["Circumstances evincing a depraved indifference to human life are not established by recklessness coupled only with actions that carry *even an inevitable risk of death*" (internal quotation marks and brackets omitted and emphasis added)]).

"Reflecting wickedness, evil or inhumanity, as manifested by brutal, heinous and despicable acts, depraved indifference is embodied in conduct that is 'so wanton, so deficient in a moral sense of concern, so devoid of regard of the life or lives of others, and so blameworthy' as to render the actor as culpable as one whose conscious objective is to kill" (*id.*, quoting *People v Russell*, 91 NY2d 280, 287 [1998]).

Only in rare circumstances will a defendant's "grave[] culpability" (*People v Poplis*, 30 NY2d 85, 88 [1972]) satisfy the depraved indifference standard (*see People v Maldonado*, 24 NY3d 48, 50 [2014] [noting "the *narrow* category of cases wherein the facts evince a defendant's utter disregard for human life" (emphasis added)]). Mr. Edwards' alleged conduct, taken in the light most favorable to the People, comes nowhere near the level of egregious conduct required to render him as culpable as an intentional killer. In *People v Jernatowski* (238 NY 188 [1924]), we upheld the conviction of a man who fired indiscriminately into a house knowing that people resided within, killing one woman. Although there was "no specific intent to kill," we concluded that the jury was "amply justified" in convicting the defendant of murder because firing into the house was both "imminently dangerous" and "evinced a wicked and depraved mind regardless of human life" (*id.* at 192-193).

More recently, in *People v Wilson* (32 NY3d 1 [2018]), we upheld a jury's finding of depraved indifference assault after the defendant tortured his girlfriend for months. The evidence at

trial showed that the victim had “suffered black eyes, an infected cigarette burn, ‘cauliflower ear,’ broken ribs, a collapsed lung, several broken vertebrae in her neck and back, a fractured orbital bone, a broken nose, a dislocated shoulder, a shattered breastbone, multiple lacerations, and bruises all over her body” (*id.* at 5). The defendant’s friend heard the victim moaning in the background of a phone call and told the defendant to seek medical help for her; he did not (*id.* at 4). After this “prolonged period of torture” (*id.* at 10), the victim lapsed into a coma. Two clergymen, observing her condition, called 911 over the defendant’s objections; the victim’s life was saved only by the emergency care of the hospital staff. On appeal, we noted that the defendant’s conduct over the two-month period prior to the victim’s hospitalization exhibited both an intent to abuse and the kind of “inhuman cruelty” contemplated by a depraved indifference to the victim’s life (*id.* at 7, quoting *Suarez*, 6 NY3d at 216).

In addition to the cases above, we have noted that “quintessential” examples of depraved indifference include: “[1] opening the lion’s cage at the zoo; [2] placing a time bomb in a public place; [3] poisoning a well from which people are accustomed to draw water; [4] opening a drawbridge as a train is about to pass over it and [5] dropping stones from an overpass onto a busy highway” (*Suarez*, 6 NY3d at 214 [2005]).

As our case law demonstrates, we have carefully guarded the line between criminal behavior that is reckless and criminal behavior that shows depravity and indifference towards human life, particularly in the context of vehicle crashes. In *People v Heidgen* (22 NY3d 259 [2013]), we cautioned that “intoxicated driving cases that present circumstances evincing a depraved indifference to human life are likely to be few and far between” (*id.* at 267). *Heidgen* was just such an exceptional case. Mr. Heidgen “engage[d] in what amounts to a high speed game of chicken” (*id.* at 277), driving for miles on the wrong side of the road while “appear[ing] to follow, or track, the headlights of oncoming vehicles” (*id.*). In *Taylor and McPherson*, decided the same day as *Heidgen*, the defendants likewise drove for miles in the wrong direction on the highway, one without ever applying his brakes or attempting to avoid other vehicles until a fatal crash.

In contrast, one year later in *Maldonado*, we held that the evidence was legally insufficient to support a conviction for depraved indifference homicide because the defendant sought

to mitigate the consequences of his reckless driving by “actively attempt[ing] to avoid hitting other vehicles” (24 NY3d 48, 53 [2014]). In *Maldonado*, we rejected the People’s contention that the context of a high speed police chase transmuted Mr. Maldonado’s reckless driving into that of a depraved and indifferent murderer, stating:

“[b]y its nature, a high-speed chase endangers pedestrians and other drivers and carries the potential for grave injuries and fatalities. Defendants who take part in high-speed chases violate accepted rules of the road and drive in what is generally considered a reckless manner. Yet, not every vehicular police chase resulting in death will take place under circumstances evincing the defendant’s depraved indifference” (*id.* at 57-58).

Today’s decision is not consistent with the line drawn by *Heidgen* and *Maldonado* or with our larger body of law concerning depraved indifference in non-vehicular cases. The decision confuses drunken recklessness causing disaster with depraved indifference (*see Suarez*, 6 NY3d at 214 [“Circumstances evincing a depraved indifference to human life are not established by recklessness coupled only with actions that carry even an inevitable risk of death” (internal quotation marks and brackets omitted)]; *see also Poplis*, 30 NY2d at 87-88 [noting that depraved indifference requires “something more serious than mere recklessness alone which has had an incidental tragic result” and upholding the jury’s findings based on “repeated physical violence of defendant to the child and ultimately her death”]).

Mr. Edwards’ actions bear little resemblance to Mr. Maldonado’s and even less to Mr. Heidgen’s. Viewing the facts in the light most favorable to the People, they establish only that Mr. Edwards accelerated to a very high speed in an effort to evade police pursuit, traveled for less than a minute at that speed, decelerated rapidly, attempted to make a sharp turn into a parking lot when one of his passengers reported seeing a police car, and careened into a retaining wall at a speed of 60 mph. There is no evidence that he drove through an area with other vehicles on the road or an area that, at the time, had pedestrians in his path. In *Maldonado*, we firmly rejected the People’s argument that a reckless driver who flees the police at high speed necessarily becomes indifferent to human life (*see Maldonado*, 24 NY3d at 57-58). The facts of this case provide no reason to change our mind.

Moreover, depraved indifference is not just a common-law heritage; it must be read in the context of the legislature's treatment of assaults in general, and vehicular assaults in particular. The Penal Law sets out a graduated system of punishment that assigns different levels of criminal culpability to different crimes. In *People v Valencia* (14 NY3d 927 [2010]), another intoxicated vehicular assault case, we gave proper deference to the legislature's chosen scheme by holding that the evidence there was sufficient to sustain the charges for vehicular assault (Penal Law § 120.03 [1]), and assault in the second degree (Penal Law § 120.05 [4]), but not for depraved indifference. Even though the intoxicated defendant drove at high speed at night for miles in the wrong direction, and notwithstanding attempts by oncoming drivers to "warn him of the danger he was creating" (*id.* at 928 [Grafteo, J., concurring]), we held that there was "insufficient evidence to . . . establish that [Mr. Valencia] acted with the culpable mental state of depraved indifference" (*id.* at 927-928).

The crime in *Valencia* occurred before the legislature's latest enactment of yet another vehicle-related crime: aggravated vehicular assault (Penal Law § 120.04-a). Created in 2007, partially in response to our Court's evolving depraved indifference jurisprudence (*see Valencia*, 14 NY3d at 930 [Grafteo, J., concurring] [describing the legislative history of the enactment]), aggravated vehicular assault is a class C felony, punishable by up to 15 years in prison. It requires the People to show, among other conditions, that the defendant caused serious injury to a person while driving recklessly, with intoxication as a condition that satisfies the statute, elevating what otherwise would be a class D felony (punishable by up to seven years in prison) to a class C felony.

Thus, the legislature has expressly thought about the situation here and the inadequacy of the preexisting D-felony vehicular assault for persons whose conduct is like Mr. Edwards', and created a crime with an enhanced penalty. Had the legislature believed that circumstances like these constituted depraved indifference (warranting a sentence of up to 25 years in prison), it would not have enacted Penal Law § 120.04-a.

When prosecutors ignore the legislature's carefully drawn taxonomy and charge a defendant with the full sweep of the Penal Law, it is incumbent upon the courts to intervene to effectuate the legislature's intent (*see* CPL 210.20 [1] [b] [direct-

ing superior courts to dismiss charges lacking legally sufficient evidence]). Supreme Court undertook that task with care and diligence, reviewing the full evidence before the grand jury and concluding, correctly, that the evidence here—of a turn gone wrong during a police chase—is woefully insufficient to demonstrate Mr. Edwards’ depravity and indifference to human life.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Feinman concur; Judge Wilson dissents in an opinion.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[160 NE3d 693, 136 NYS3d 225]

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent, v
ROSS R. CALIGURI, Also Known as ROSS CALIGURI, Appellant, et al., Defendants.

Argued November 17, 2020; decided December 17, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of foreclosure and sale of the Supreme Court, Suffolk County (John H. Rouse, J.), entered February 25, 2019. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 16, 2019. The Appellate Division order, insofar as brought up for review, had affirmed so much of an order of that Supreme Court as had (1) granted those branches of plaintiff’s motion which were for summary judgment on the complaint and for an order of reference; and (2) denied defendant’s cross motion for summary judgment dismissing the complaint or to compel certain discovery.

JPMorgan Chase Bank, N.A. v Caliguri, 168 AD3d 819, affirmed.

HEADNOTES

Mortgages — Foreclosure — Standing

1. In a mortgage foreclosure action, plaintiff satisfied its burden to demonstrate its standing to foreclose through evidence that it possessed the note when it commenced the action, including a copy of the original note endorsed in blank, and other supporting material, including an affidavit of possession based on an employee’s review of plaintiff’s business records. In response, defendant failed to raise any factual issue as to plaintiff’s standing or the

authenticity of the note. Under the circumstances, Supreme Court did not err in denying defendant's request for inspection of the original note.

Mortgages — Foreclosure — Standing — Request to Inspect Original Note

2. There is no per se rule in a mortgage foreclosure action requiring the court to grant a request for inspection of the original note prior to awarding summary judgment. To the extent that cases have held or suggested otherwise, they should not be followed (*see e.g. JP Morgan Chase Bank, N.A. v Hill*, 133 AD3d 1057, 1058-1059 [3d Dept 2015]).

APPEARANCES OF COUNSEL

Jeffrey Herzberg, P.C., Hauppauge (*Jeffrey Herzberg* of counsel), for appellant.

Wilmer Cutler Pickering Hale and Dorr LLP, New York City (*Alan E. Schoenfeld* and *Ryan M. Chabot* of counsel), and *McCalla Raymer Leibert Pierce, LLC*, New York City (*Richard P. Haber* and *Brian P. Scibetta* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment appealed from and so much of the Appellate Division order reviewed should be affirmed, with costs.

[1] In this mortgage foreclosure action, defendant raised the affirmative defense of standing in his answer. Accordingly, to be entitled to summary judgment dismissing that defense, plaintiff bore the burden to demonstrate, as a matter of law, that it had standing to foreclose. There is no "checklist" of required proof to establish standing. Here, plaintiff satisfied its burden through evidence that it possessed the note when it commenced this action, including a copy of the original note endorsed in blank, and other supporting material, including an affidavit of possession based on an employee's review of plaintiff's business records (*see Aurora Loan Servs., LLC v Taylor*, 25 NY3d 355, 361 [2015]). In response, defendant failed to raise any factual issue as to plaintiff's standing or the authenticity of the note.

[2] Under these circumstances, Supreme Court did not err in denying defendant's request for inspection of the original note. Contrary to defendant's contention, there is no per se rule requiring the court to grant a request for inspection of the original note prior to awarding summary judgment to a plaintiff in a mortgage foreclosure action (*see id.* at 362). To the extent that cases have held or suggested otherwise, they should not be followed (*see e.g. JP Morgan Chase Bank, N.A. v Hill*, 133 AD3d 1057, 1058-1059 [3d Dept 2015]).

Defendant's remaining contentions are without merit.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

Judgment appealed from and so much of the Appellate Division order reviewed affirmed, with costs, in a memorandum.

ALPHA PHI ALPHA SENIOR CITIZENS CENTER, INC., Appellant, v
ZETA ZETA LAMBDA COMPANY, INC., et al., Defendants/Cross
Claim Defendants-Respondents. KENYATTA ANDREWS, Cross
Claim Plaintiff-Appellant.

Submitted October 5, 2020; decided December 22, 2020

Reported below, 180 AD3d 630.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of ROBERT J. COYLE, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted November 16, 2020; decided December 22, 2020

Reported below, 181 AD3d 1142.

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 916 (2020)].

In the Matter of JESSICA DELGRANGE, Respondent, v THE REAL-
REAL, INC., Appellant, et al., Respondent.

Submitted October 19, 2020; decided December 22, 2020

Reported below, 182 AD3d 421.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ALVIN FULTON, Appellant, v A. TURNER, as
Medical Records Clerk, et al., Respondents.

Submitted November 2, 2020; decided December 22, 2020

Reported below, 2020 NY Slip Op 71765(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v DAVID A. GABAY, et al., Respondents, et al., Defendants.

NELLA MANKO, Appellant, v DAVID A. GABAY, et al., Respondents.

Decided December 22, 2020

Reported below, 2020 NY Slip Op 69217(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge DiFIORE taking no part.

NELLA MANKO, Appellant, v LENOX HILL ANESTHESIOLOGY, PLLC, et al., Respondents.

Decided December 22, 2020

Reported below, 2020 NY Slip Op 69762(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge DiFIORE taking no part.

In the Matter of the Claim of MIKHAIL PINKHASOV, Appellant, v AUTO ONE INSURANCE et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted November 2, 2020; decided December 22, 2020

Reported below, 2020 NY Slip Op 72782(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

R&R CAPITAL LLC, et al., Respondents, v LINDA MERRITT, Also
Known as LYN MERRITT, Appellant.

Submitted October 26, 2020; decided December 22, 2020

Reported below, 2019 NY Slip Op 80278(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Cross motion for the imposition of sanctions denied.

MONTE STEPHENS, Appellant, v ISABELLA GERIATRIC CENTER,
INC., et al., Respondents.

Submitted October 26, 2020; decided December 22, 2020

Reported below, 178 AD3d 478.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [see 35 NY3d 914 (2020)].

[160 NE3d 1266, 136 NYS3d 819]

In the Matter of ROLAND GREEN, Respondent, v DARWIN LA-
CLAIR, as Superintendent of Franklin Correctional Facility,
Appellant.

Decided November 23, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 23, 2020. The Appellate Division modified, on the law, a judgment of the Supreme Court, Franklin County (S. Peter Feldstein, J.; op 2018 NY Slip Op 31952[U]), which had (1) converted an application for a writ of habeas corpus, in a proceeding pursuant to CPLR article 70, into a proceeding pursuant to CPLR article 78; and (2) dismissed the petition. The modification consisted of reversing so much of the judgment as had dismissed that part of the petition as sought to annul the determination of the Board of Parole which found that petitioner was subject to the school grounds restriction set forth in Executive Law § 259-c (14). The

Appellate Division granted the petition to that extent, and affirmed the judgment as modified.

Matter of Green v Laclair, 182 AD3d 877, affirmed.

HEADNOTE

Crimes — Sex Offenders — Sexual Assault Reform Act — School Grounds Restriction

In a CPLR article 78 proceeding, the Appellate Division order granting the petition to the extent of annulling the determination of the Board of Parole which found that petitioner was subject to the school grounds restriction set forth in Executive Law § 259-c (14) was affirmed.

APPEARANCES OF COUNSEL

Letitia James, Attorney General, Albany (*Brian D. Ginsberg, Barbara D. Underwood* and *Andrea Oser* of counsel), for appellant.

Karen L. Murtagh, Prisoners' Legal Services of New York, Plattsburgh (*Michael E. Cassidy* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs (*see People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32 [2020] [decided today]).

Concur: Judges RIVERA, STEIN, GARCIA, WILSON and FEINMAN. Chief Judge DiFIORE and Judge FAHEY dissent for reasons stated in the dissenting opinion in *People ex rel. Negron v Superintendent, Woodbourne Corr. Facility* (36 NY3d 32 [2020, Fahey, J., dissenting] [decided today]).

ADAR BAYS, LLC, Respondent, v GENESYS ID, INC., Formerly Known as RX SALES, INC., Appellant.

Submitted December 28, 2020; decided January 7, 2021

See 962 F3d 86.

Motion by Power Up Lending Group, Ltd. for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THOMAS CASO, Appellant, v MIRANDA SAMBURSKY SLONE SKLARIN VERVENIOTIS LLP et al., Respondents, et al., Defendants.

Submitted October 13, 2020; decided January 7, 2021

Reported below, 180 AD3d 611.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GULF COAST BANK & TRUST CO., as Assignee of Tennessee Commerce Bank, Respondent, v VIRGIL RESORT FUNDING GROUP, INC., et al., Defendants, and KEVIN WALSH, Appellant.

Submitted November 2, 2020; decided January 7, 2021

Reported below, 180 AD3d 1297.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution and thus does not constitute a final judgment within the meaning of CPLR 5602 (a) (1) (ii), and upon the further ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

THOMAS KEHOE, JR., et al., Respondents, v 61 BROADWAY OWNER LLC et al., Respondents. 61 BROADWAY OWNER LLC et al., Third-Party Plaintiffs-Respondents, v P.S. MARCATO ELEVATOR COMPANY, INC., Third-Party Defendant-Appellant, and CEMD ELEVATOR CORP., Third-Party Defendant-Respondent.

Submitted November 2, 2020; decided January 7, 2021

Reported below, 186 AD3d 1143.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THOMAS KEHOE, JR., et al., Respondents, v 61 BROADWAY OWNER LLC, Appellant, et al., Defendants. 61 BROADWAY OWNER LLC, Third-Party Plaintiff-Appellant, et al., Third-Party Plaintiffs, v P.S. MARCATO ELEVATOR COMPANY, INC., et al., Third-Party Defendants-Respondents.

Submitted November 16, 2020; decided January 7, 2021

Reported below, 186 AD3d 1143.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of AARON LOWN, Appellant, v ANTHONY J. ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, et al., Respondents.

Submitted October 13, 2020; decided January 7, 2021

Reported below, 183 AD3d 1246.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

In the Matter of PEOPLE CARE INCORPORATED, Doing Business as ASSISTED CARE, Respondent, v CITY OF NEW YORK HUMAN RESOURCES ADMINISTRATION et al., Appellants.

Submitted January 4, 2021; decided January 7, 2021

Reported below, 175 AD3d 134.

Motion by New York State Department of Health for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN WAKEFIELD, Appellant.

Submitted December 14, 2020; decided January 7, 2021

Reported below, 175 AD3d 158.

Motion for assignment of counsel granted and Matthew C. Hug, Esq., care of Hug Law, PLLC, 21 Everett Road Extension, Albany, NY 12205 assigned as counsel to the appellant on the appeal herein.

In the Matter of STEPHANIE Q., Respondent, v WALTER R., Appellant.

Submitted November 9, 2020; decided January 7, 2021

Reported below, 2020 NY Slip Op 69910(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

U-TREND NEW YORK INVESTMENT L.P., Respondent, v US SUITE LLC et al., Defendants, and AURA INVESTMENTS LTD., Appellant. (And Another Action.)

Submitted October 13, 2020; decided January 7, 2021

Reported below, 186 AD3d 438.

Motion for leave to appeal dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was untimely (*see* Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]).

JUAN VARGAS, Respondent, v DEUTSCHE BANK NATIONAL TRUST COMPANY, Appellant.

Submitted December 21, 2020; decided January 7, 2021

Reported below, 168 AD3d 630.

Motion by Norma Vitolo for leave to file a brief amicus curiae on the appeal herein denied.

EDWARD BARAN, Individually and Derivatively as Shareholder of NEW YORK BUILDERS OF STAIRS, INC., Respondent, v STANISLAW MECHEL, Individually and as Shareholder of NEW YORK BUILDERS OF STAIRS, INC., Appellant. (Matter No. 1.)

EDWARD BARAN, Respondent, v STANISLAW MECHEL, Appellant. (Matter No. 2.)

Submitted September 8, 2020; decided January 12, 2021

Reported below, 181 AD3d 770; 2020 NY Slip Op 68758(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action or proceeding within the meaning of the Constitution.

TOBIAS BERMUDEZ CHAVEZ et al., Respondents, v OCCIDENTAL CHEMICAL CORPORATION, Individually and as Successor to OCCIDENTAL CHEMICAL COMPANY and Others, Appellant.

Submitted December 7, 2020; decided January 12, 2021

See 933 F3d 186.

Motion for reargument denied [*see* 35 NY3d 492 (2020)].

In the Matter of STANLEY DAVIS, Appellant, v GREAT AMERICAN E&S INSURANCE COMPANY et al., Respondents.

Submitted November 23, 2020; decided January 12, 2021

Reported below, 184 AD3d 782.

Motion for reconsideration of this Court's September 10, 2020 dismissal order denied [*see* 35 NY3d 1077 (2020)]. Motion for leave to appeal denied.

In the Matter of DREAM F. and Others, Children Alleged to be Neglected. PHILLYSTINA R., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES et al., Respondents.

Submitted November 2, 2020; decided January 12, 2021

Reported below, 187 AD3d 555.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

TINA KNAPP, Plaintiff, and MICHAEL KNAPP, Appellant, v FINGER LAKES NY, INC., Doing Business as DIVERSIFIED CONTRACTING COMPANY, et al., Respondents.

Submitted November 16, 2020; decided January 12, 2021

Reported below, 184 AD3d 335.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARC LEFFLER, Respondent, v JOEL M. KOTICK, Appellant.

Submitted November 30, 2020; decided January 12, 2021

Reported below, 187 AD3d 543.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Cross motion for the imposition of sanctions denied.

ELLEN OXMAN, Appellant, v JOHN CRAIG OXMAN, Respondent.

Submitted November 9, 2020; decided January 12, 2021

Reported below, 184 AD3d 404.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SEAN E. TAPP, Appellant, v STATE OF NEW YORK, Respondent.

Submitted November 23, 2020; decided January 12, 2021

Reported below, 2020 NY Slip Op 69688(U).

Motion to vacate this Court's October 27, 2020 dismissal order granted [*see* 35 NY3d 1110 (2020)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

[161 NE3d 476, 137 NYS3d 288]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SERGIO DEL ROSARIO, Appellant.

Argued November 18, 2020; decided December 22, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 6, 2019. The Appellate Division affirmed an order of the Supreme Court, Westchester County (Susan Cacace, J.), which had, after a hearing, designated defendant a risk level three sex offender and a sexually violent offender pursuant to Correction Law article 6-C.

People v Del Rosario, 170 AD3d 759, affirmed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act — Upward Departure from Presumptive Risk Level

The Appellate Division did not abuse its discretion in sustaining the upward departure from defendant sex offender's presumptive risk level based on the People's proof that defendant raped the victim in order to take revenge upon someone other than the victim, a risk factor not adequately captured by the Sex Offender Registration Act: Risk Assessment Guidelines and Commentary.

APPEARANCES OF COUNSEL

Clare J. Degnan, *The Legal Aid Society of Westchester County*, White Plains (*Debra A. Cassidy* and *Salvatore A. Gaetani* of counsel), for appellant.

Anthony A. Scarpino, Jr., *District Attorney*, White Plains (*Christine DiSalvo*, *Steven A. Bender* and *William C. Milaccio* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs. Under the circumstances presented here, we reject the People’s argument that defendant’s appeal is rendered moot by his deportation (*see People v Perez*, 33 NY3d 1008 [2019]). On the merits, we conclude that it was not an abuse of discretion for the Appellate Division to sustain the upward departure based on the People’s proof that defendant raped the victim in order to take revenge upon someone other than the victim—a risk factor not adequately captured by the Sex Offender Registration Act: Risk Assessment Guidelines and Commentary.

Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur; Chief Judge DiFIORE taking no part.

Order affirmed, without costs, in a memorandum.

[162 NE3d 101, 137 NYS3d 812]

LAURA DiLORENZO, Appellant, v WINDERMERE OWNERS LLC et al., Respondents.

Argued October 14, 2020; decided November 19, 2020

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 13, 2019. The Appellate Division, with two Justices dissenting, (1) reversed, on the law and the facts, a judgment of the Supreme Court, New York County (Lucy Billings, J.), entered after a nonjury trial, which had awarded judgment in favor of plaintiff against defendants, jointly and severally, for \$234,307.01; (2) vacated the judgment; (3) dismissed the complaint; and (4) dismissed the appeal from an order of that Supreme Court (op 2017 NY Slip Op 33090[U] [2017]) as subsumed in the appeal from the judgment. The Supreme Court order had (1) directed entry of the judgment in plaintiff’s favor; (2) ordered defendant Windermere Owners LLC to provide plaintiff a rent-stabilized lease with a monthly rent of \$1,591.25; and (3) severed plaintiff’s claims for attorney’s fees.

DiLorenzo v Windermere Owners LLC, 174 AD3d 102, reversed.

HEADNOTE**Landlord and Tenant — Rent Regulation — Individual Apartment Improvements — Useful Life**

The Appellate Division order reversing the judgment in plaintiff tenant's favor based on Supreme Court's finding that defendants failed to meet their burden to prove that the improvements made to plaintiff's apartment immediately prior to her tenancy satisfied the useful life requirement set forth in Rent Stabilization Code (9 NYCRR) § 2522.4 (a) (11) and Rent Stabilization Law of 1969 (Administrative Code of City of NY) § 26-511 (c) (13), justifying a rent increase sufficient to exempt plaintiff's apartment from rent stabilization pursuant to the luxury decontrol provision found in former Administrative Code of City of NY § 26-504.2, was reversed. To the extent the Appellate Division's contrary conclusion was based upon new factual findings, the trial court's findings more nearly comported with the weight of the evidence.

APPEARANCES OF COUNSEL

Marc Bogatin, New York City, for appellant.

Rosenberg Feldman Smith, LLP, Tarrytown (*Richard B. Feldman* of counsel), and *Cullen & Associates, P.C.*, New York City (*Kevin D. Cullen* of counsel), for respondents.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, and the case remitted to the Appellate Division for consideration of issues raised but not determined on the appeal to that Court.

Plaintiff limits her appeal to whether defendants met their burden to prove that improvements made to her apartment immediately prior to her tenancy satisfied the useful life requirement set forth in Rent Stabilization Code (9 NYCRR) § 2522.4 (a) (11) and Rent Stabilization Law of 1969 (Administrative Code of City of NY) § 26-511 (c) (13), justifying a rent increase sufficient to exempt plaintiff's apartment from rent stabilization pursuant to the luxury decontrol provision found in former Administrative Code of City of NY § 26-504.2.*

Because plaintiff expressly raised the useful life issue in her pretrial memorandum, it was not waived. Supreme Court found that defendants failed to meet their burden to prove that the improvements in question satisfied the useful life requirement. To the extent the Appellate Division's contrary conclusion was

* Plaintiff does not challenge the Appellate Division's conclusion that defendants substantiated more than \$78,000 of improvements to the apartment.

based upon new factual findings, we conclude that the trial court's findings "more nearly comport with the weight of the evidence" (*Dryden Mut. Ins. Co. v Goessl*, 27 NY3d 1050, 1052 [2016], quoting *Oelsner v State of New York*, 66 NY2d 636, 637 [1985]; see also CPLR 5501 [b]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order reversed, with costs, and case remitted to the Appellate Division, First Department, for consideration of issues raised but not determined on the appeal to that Court, in a memorandum.

[162 NE3d 101, 137 NYS3d 812]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ZAQUAN
WALLEY, Respondent.

Decided December 22, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 31, 2019. The Appellate Division (1) reversed, on the law, a judgment of the Schenectady County Court (Matthew J. Sypniewski, J.) which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree (two counts); (2) dismissed the superior court information; and (3) remitted the matter to the Schenectady County Court for further proceedings.

People v Walley, 176 AD3d 1513, reversed.

HEADNOTE

Crimes — Indictment — Validity of Waiver — Failure to Include Time of Crime Charged

An omission from the indictment waiver form of non-elemental factual information that is not necessary for a jurisdictionally-sound indictment is forfeited by a guilty plea and must be raised in the trial court. Defendant's waiver of indictment form was not defective for failure to include the approximate time of the crime charged as the time of incident is not an element of second-degree criminal possession of a weapon (Penal Law § 265.03 [2]), and defendant was on notice of the crime charged.

APPEARANCES OF COUNSEL

Robert M. Carney, District Attorney, Schenectady (*Peter H. Willis* of counsel), for appellant.

Hug Law PLLC, Albany (*Matthew C. Hug* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that Court for consideration of facts and issues raised but not determined on the appeal to that Court.

The People appeal from an order of the Appellate Division, which unanimously reversed, on the law, a judgment of County Court, convicting defendant Zaquan Walley upon a plea of guilty of second-degree criminal possession of a weapon. The Appellate Division dismissed the superior court information and remitted the matter to County Court for further proceedings, holding that the waiver of indictment form was defective for failure to include the approximate time of the crime charged.

Shortly after the Appellate Division rendered its decision, we held in *People v Lang* (34 NY3d 545, 567 [2019]) that any “omission from the indictment waiver form of non-elemental factual information that is not necessary for a jurisdictionally-sound indictment is . . . forfeited by a guilty plea” and “must be raised in the trial court” (*id.* at 569, quoting *People v Milton*, 21 NY3d 133, 137 n [2013]). The time of incident is not an element of second-degree criminal possession of a weapon (Penal Law § 265.03 [2]), and defendant was on notice of the crime charged. Therefore, *Lang* controls. Accordingly, we reverse the Appellate Division order and remit. Defendant’s additional arguments in support of an affirmance, which were raised, but not reached by the Appellate Division, should be considered by that Court in the first instance upon remittal.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Third Department, for consideration of facts and issues raised but not determined on the appeal to that Court.

APPEALS WITHDRAWN AND DISCONTINUED

(December 1, 2020 through December 31, 2020)

Patrick S., Matter of, v State of New York	2d Dept:188 AD3d 699	12/14/20
People v Morales	2d Dept: 176 AD3d 1235	12/23/20

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2020 through December 31, 2020)

People v Adams	2d Dept: 186 AD3d 842 (Queens)	denied 12/17/20 (Rivera, J.)
People v Adyl K.	2d Dept: 187 AD3d 1208 (Kings)	denied 12/24/20 (DiFiore, Ch. J.)
People v Albergottie	1st Dept: 187 AD3d 680 (Bronx)	denied 12/24/20 (DiFiore, Ch. J.)
People v Alisuarez	2d Dept: 186 AD3d 1391 (Queens)	denied 12/4/20 (Feinman, J.)
People v Anonymous	1st Dept: 187 AD3d 512 (NY)	denied 12/10/20 (Garcia, J.)
People v Anthony C.	2d Dept: 187 AD3d 932 (Queens)	denied 12/9/20 (Wilson, J.)
People v Aponte	App Div, 1st Dept: 2018 NY Slip Op 74342(U) (Bronx)	denied 12/28/20 (DiFiore, Ch. J.)
People v Appau-Kwarteng	App Term, 1st Dept: 69 Misc 3d 130(A) (NY)	denied 12/31/20 (Feinman, J.)
People v Arnoat	1st Dept: 187 AD3d 419 (NY)	denied 12/2/20 (Rivera, J.)
People v Arnold	1st Dept: 184 AD3d 524 (NY)	denied 12/15/20 (Stein, J.)
People v Aroix	4th Dept: 185 AD3d 1430 (Erie)	denied 12/20/20 (Wilson, J.)
People v Arroyo	App Term, 1st Dept: 69 Misc 3d 130(A) (NY)	denied 12/8/20 (Fahey, J.)
People v Ash	App Div, 2d Dept: 2020 NY Slip Op 73708(U) (Kings)	dismissed 12/30/20 (Garcia, J.)
People v Baez	1st Dept: 187 AD3d 610 (NY)	denied 12/30/20 (Garcia, J.)
People v Ballard	County Ct, 8/25/20 (Ulster)	denied 12/10/20 (Garcia, J.)
People v Barnett	3d Dept: 186 AD3d 1837 (Warren)	denied 12/8/20 (Fahey, J.)
People v Barnette	2d Dept: 186 AD3d 1703 (Kings)	denied 12/30/20 (Garcia, J.)
People v Benshitrit	2d Dept: 185 AD3d 1046 (Kings)	denied 12/30/20 (Stein, J.)
People v Bentley	2d Dept: 186 AD3d 844 (Orange)	denied 12/20/20 (Wilson, J.)

People v Blond	App Div, 3d Dept: 2020 NY Slip Op 69646(U) (Schenectady)	denied reconsideration 12/28/20 (Fahey, J.)
People v Blunt	4th Dept: 187 AD3d 1646 (Monroe)	denied 12/31/20 (Feinman, J.)
People v Bobzien	County Ct, 10/30/20 (Genesee)	denied 12/31/20 (Feinman, J.)
People v Booth	County Ct, 9/21/20 (Jefferson)	denied 12/31/20 (Fahey, J.)
People v Boursiquot ¹	2d Dept: 186 AD3d 1704 (Rockland)	denied 11/19/20 (DiFiore, Ch. J.)
People v Bowser	1st Dept: 187 AD3d 682 (NY)	denied 12/20/20 (Wilson, J.)
People v Boyde (Johnny)	4th Dept: 187 AD3d 1565 (Onondaga)	denied 12/10/20 (Garcia, J.)
People v Boyde (Johnny)	4th Dept: 169 AD3d 1445 (Onondaga)	denied 12/30/20 (Garcia, J.) (Appeal No. 2)
People v Braverman	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 68 Misc 3d 128(A) (NY)	denied 12/10/20 (Rivera, J.)
People v Brooks	2d Dept: 187 AD3d 931 (Suffolk)	denied 12/10/20 (Rivera, J.)
People v Brown (Brian)	App Div, 3d Dept: 2020 NY Slip Op 71470(U) (Sullivan)	dismissed 12/8/20 (Stein, J.)
People v Brown (Eugene)	4th Dept: 187 AD3d 1604 (Monroe)	denied 12/10/20 (Garcia, J.)
People v Brown (Timothy)	2d Dept: 187 AD3d 1035 (Kings)	denied 12/29/20 (Wilson, J.)
People v Brown (Tommy) ²	4th Dept: 169 AD3d 1488 (Seneca)	denied reconsideration 11/19/20 (DiFiore, Ch. J.)
People v Burnett (Deborah)	3d Dept: 186 AD3d 1837 (Warren)	denied 12/8/20 (Fahey, J.)
People v Burnett (Debra)	3d Dept: 186 AD3d 1837 (Warren)	denied 12/8/20 (Fahey, J.)
People v Bussey	2d Dept: 186 AD3d 618 (Nassau)	denied 12/9/20 (Fahey, J.)
People v "C"	4th Dept: 187 AD3d 1604 (Erie)	denied 12/28/20 (DiFiore, Ch. J.)
People v Cagan	2d Dept: 185 AD3d 836 (Queens)	denied 12/30/20 (Wilson, J.)
People v Cahill	4th Dept: 187 AD3d 1604 (Onondaga)	denied 12/18/20 (Feinman, J.)
People v Carpenter	4th Dept: 187 AD3d 1556 (Genesee)	denied 12/15/20 (Stein, J.)
People v Castillo (Anthony)	1st Dept: 187 AD3d 549 (NY)	denied 12/16/20 (Fahey, J.)

1. Omitted from November 2020 list.

2. Omitted from November 2020 list.

MEMORANDA

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People v Castillo (Felix)	1st Dept: 187 AD3d 447 (Bronx)	denied 12/9/20 (Fahey, J.)
People v Castro-Ubiles	4th Dept: 187 AD3d 1598 (Monroe)	denied 12/30/20 (Garcia, J.)
People v Cataldo	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 132(A) (Westchester)	denied 12/16/20 (Fahey, J.)
People v Catlett	App Div, 1st Dept: 2020 NY Slip Op 70579(U) (NY)	denied 12/30/20 (Garcia, J.)
People v Cato	4th Dept: 187 AD3d 1604 (Ontario)	denied 12/31/20 (Feinman, J.) (Appeal Nos. 1 and 2)
People v Cerasaro	2d Dept: 179 AD3d 832 (Dutchess)	denied 12/7/20 (Rivera, J.)
People v Christopher S.	1st Dept: 187 AD3d 518 (Bronx)	denied 12/9/20 (Fahey, J.)
People v Collier	1st Dept: 187 AD3d 416 (NY)	denied 12/15/20 (Stein, J.)
People v Colon	2d Dept: 187 AD3d 780 (Kings)	denied 12/4/20 (Rivera, J.)
People v Cox	App Term, 1st Dept: 69 Misc 3d 131(A) (NY)	denied 12/10/20 (Rivera, J.)
People v Cromie	4th Dept: 187 AD3d 1659 (Onondaga)	denied 12/30/20 (Stein, J.)
People v Cruz (Anthony)	2d Dept: 186 AD3d 1393 (Kings)	denied 12/10/20 (Garcia, J.)
People v Cruz (Eduardo)	2d Dept: 187 AD3d 932 (Nassau)	denied 12/30/20 (Garcia, J.)
People v Cruz (Jaime)	App Term, 1st Dept: 69 Misc 3d 131(A) (NY)	denied 12/10/20 (Garcia, J.)
People v Cubero	App Term, 1st Dept: 69 Misc 3d 131(A) (NY)	denied 12/23/20 (DiFiore, Ch. J.)
People v Cuppuccino	App Div, 3d Dept: 2020 NY Slip Op 72780(U) (Washington)	dismissed 12/9/20 (Fahey, J.)
People v Dalton	1st Dept: 187 AD3d 646 (NY)	denied 12/21/20 (Stein, J.)
People v Dasher (Bernard)	4th Dept: 187 AD3d 1604 (Monroe)	denied 12/10/20 (Garcia, J.)
People v Dasher (William)	4th Dept: 187 AD3d 1604 (Monroe)	denied 12/10/20 (Garcia, J.)
People v Davis	4th Dept: 186 AD3d 1073 (Monroe)	denied 12/8/20 (Fahey, J.) (Appeal No. 2)
People v Degree	2d Dept: 186 AD3d 501 (Westchester)	denied 12/8/20 (Wilson, J.)
People v Deowasarran	2d Dept: 186 AD3d 1710 (Suffolk)	denied 12/20/20 (Wilson, J.)

People v DeSabato	App Term, 2d Dept, 9th & 10th Jud Dists: 68 Misc 3d 133(A) (Suffolk)	denied ³ 12/8/20 (Fahey, J.)
People v Diaz	App Term, 1st Dept: 69 Misc 3d 132(A) (NY)	denied 12/30/20 (Garcia, J.)
People v Donald	2d Dept: 187 AD3d 1204 (Kings)	denied 12/24/20 (DiFiore, Ch. J.)
People v Duwe	2d Dept: 187 AD3d 1042 (Nassau)	denied 12/30/20 (Garcia, J.)
People v Edwards (Alfred)	2d Dept: 187 AD3d 1205 (Kings)	denied 12/29/20 (Wilson, J.)
People v Edwards (Shaquan)	2d Dept: 187 AD3d 1042 (Kings)	denied 12/16/20 (Fahey, J.)
People v Ellis	1st Dept: 187 AD3d 513 (NY)	denied 12/10/20 (Rivera, J.)
People v Esposito	2d Dept: 187 AD3d 781 (Richmond)	denied 12/30/20 (Garcia, J.)
People v Etah	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 132(A) (Nassau)	denied 12/31/20 (DiFiore, Ch. J.)
People v Fabian	App Term, 1st Dept: 69 Misc 3d 130(A) (NY)	denied 12/7/20 (Rivera, J.)
People v Faraone	2d Dept: 186 AD3d 1394 (Suffolk)	denied 12/4/20 (Rivera, J.)
People v Foy	2d Dept: 187 AD3d 782 (Kings)	denied 12/24/20 (DiFiore, Ch. J.)
People v Garcia	1st Dept: 187 AD3d 420 (NY)	denied 12/8/20 (Wilson, J.)
People v George	2d Dept: 186 AD3d 728 (Kings)	denied 12/2/20 (Rivera, J.)
People v Germain	App Div, 2d Dept: 2020 NY Slip Op 72758(U) (Suffolk)	dismissed 12/30/20 (Stein, J.)
People v Gibson	1st Dept: 186 AD3d 419 (NY)	denied 12/16/20 (Fahey, J.)
People v Glover	2d Dept: 186 AD3d 621 (Kings)	denied 12/11/20 (Stein, J.)
People v Gonzalez	1st Dept: 187 AD3d 589 (Bronx)	denied 12/31/20 (Fahey, J.)
People v Gottwald	App Term, 1st Dept: 68 Misc 3d 134(A) (NY)	denied 12/9/20 (Fahey, J.)
People v Gunn	4th Dept: 185 AD3d 1479 (Onondaga)	denied 12/30/20 (Garcia, J.)
People v Habberfield (Sharry)	4th Dept: 187 AD3d 1672 (Livingston)	denied 12/28/20 (DiFiore, Ch. J.) (Appeal No. 2)

3. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Iverson* (63 Misc 3d 163[A], 2019 NY Slip Op 50930[U] [App Term, 2d Dept, 9th & 10th Jud Dists 2019], *lv granted* 34 NY3d 981 [2019]) and *People v Cucceraldo* (64 Misc 3d 30 [App Term, 2d Dept, 9th & 10th Jud Dists 2019], *lv granted* 34 NY3d 979 [2019]).

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People v Habberfield (Sharry)	4th Dept: 187 AD3d 1673 (Livingston)	denied 12/28/20 (DiFiore, Ch. J.) (Appeal No. 1)
People v Harley	1st Dept: 187 AD3d 549 (Bronx)	denied 12/24/20 (DiFiore, Ch. J.)
People v Harris (Alonzo)	App Term, 1st Dept: 69 Misc 3d 130(A) (NY)	denied 12/30/20 (Garcia, J.)
People v Harris (Joseph)	2d Dept: 187 AD3d 1207 (Suffolk)	denied 12/28/20 (Fahey, J.)
People v Harris (Robert)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 128(A) (Richmond)	denied 12/31/20 (Feinman, J.)
People v Hasquins	1st Dept: 184 AD3d 529 (NY)	denied 12/8/20 (Fahey, J.)
People v Hernandez (Gabriel)	2d Dept: 184 AD3d 758 (Kings)	denied 12/11/20 (Stein, J.)
People v Hernandez (Jose)	1st Dept: 187 AD3d 584 (Bronx)	denied 12/28/20 (Fahey, J.)
People v Hilts	3d Dept: 187 AD3d 1408 (Schenectady)	denied 12/16/20 (Fahey, J.)
People v Horn	4th Dept: 186 AD3d 1117 (Steuben)	denied 12/30/20 (Stein, J.)
People v Huggins	1st Dept: 187 AD3d 484 (NY)	denied 12/28/20 (DiFiore, Ch. J.)
People v Hughes	App Div, 3d Dept: 2020 NY Slip Op 73144(U) (Albany)	dismissed 12/31/20 (Fahey, J.)
People v Jahiem	3d Dept: 187 AD3d 1408 (Schenectady)	denied 12/16/20 (Fahey, J.)
People v Jean-Baptiste	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 128(A) (Queens)	denied 12/23/20 (Fahey, J.)
People v Jimenez	2d Dept: 187 AD3d 1047 (Kings)	denied 12/30/20 (Stein, J.)
People v Johnson	1st Dept: 186 AD3d 1168 (NY)	denied 12/28/20 (DiFiore, Ch. J.)
People v Jones	1st Dept: 187 AD3d 612 (NY)	denied 12/9/20 (Fahey, J.)
People v Karim	1st Dept: 185 AD3d 464 (NY)	denied 12/8/20 (Stein, J.)
People v Kassebaum	2d Dept: 187 AD3d 786 (Queens)	denied 12/30/20 (Garcia, J.)
People v Kelsey	App Div, 3d Dept: 2020 NY Slip Op 61403(U) (St. Lawrence)	denied 12/28/20 (Fahey, J.)
People v Kinard	2d Dept: 187 AD3d 936 (Kings)	denied 12/31/20 (Feinman, J.)
People v Kinchoy	3d Dept: 186 AD3d 1838 (Broome)	denied 12/10/20 (Garcia, J.)
People v King	App Div, 1st Dept: 2020 NY Slip Op 61744(U) (Bronx)	denied 12/30/20 (Garcia, J.)
People v Koenigsberg	1st Dept: 187 AD3d 672 (NY)	denied 12/30/20 (Stein, J.)

People v Krivak	2d Dept: 186 AD3d 1712 (Putnam)	denied 12/20/20 (Wilson, J.)
People v Lloyd	2d Dept: 185 AD3d 1057 (Kings)	denied 12/24/20 (DiFiore, Ch. J.)
People v Lotin	2d Dept: 187 AD3d 937 (Kings)	denied 12/10/20 (Garcia, J.)
People v Lumpkin	2d Dept: 187 AD3d 1055 (Kings)	denied 12/21/20 (Stein, J.)
People v Martinez (Richard)	2d Dept: 188 AD3d 723 (Queens)	denied 12/31/20 (Feinman, J.)
People v Martinez (Sabas)	2d Dept: 186 AD3d 1530 (Suffolk)	denied 12/15/20 (Stein, J.)
People v Martinez-Severino	1st Dept: 184 AD3d 407 (NY)	denied 12/9/20 (Fahey, J.)
People v May	3d Dept: 188 AD3d 1309 (Broome)	denied 12/31/20 (Feinman, J.)
People v McCray	App Div, 1st Dept: 2020 NY Slip Op 61637(U) (Bronx)	denied 12/4/20 (Rivera, J.)
People v McDaniel	2d Dept: 187 AD3d 1058 (Kings)	denied 12/30/20 (Garcia, J.)
People v McKinnon	2d Dept: 186 AD3d 1533 (Queens)	denied 12/31/20 (Feinman, J.)
People v Mills	App Div, 4th Dept, 9/24/20 (Erie)	dismissed 12/4/20 (DiFiore, Ch. J.)
People v Moore	1st Dept: 187 AD3d 445 (NY)	denied 12/21/20 (Stein, J.)
People v Moreno	1st Dept: 187 AD3d 449 (NY)	denied 12/30/20 (Garcia, J.)
People v Morris	1st Dept: 187 AD3d 514 (NY)	denied 12/31/20 (DiFiore, Ch. J.)
People v Mujica	2d Dept: 186 AD3d 1404 (Kings)	denied 12/20/20 (Wilson, J.)
People v Murray	4th Dept: 185 AD3d 1507 (Monroe)	denied 12/15/20 (Stein, J.)
People v Neo W.	2d Dept: 187 AD3d 1071 (Kings)	denied 12/29/20 (Wilson, J.)
People v Nesmith	4th Dept: 187 AD3d 1604 (Monroe)	denied 12/10/20 (Garcia, J.)
People v Nieves	2d Dept: 186 AD3d 1260 (Kings)	denied 12/9/20 (Fahey, J.)
People v Nivol	2d Dept: 187 AD3d 1059 (Queens)	denied 12/16/20 (Fahey, J.)
People v Norberto	2d Dept: 188 AD3d 924 (Rockland)	denied 12/31/20 (Fahey, J.)
People v Omerovic	4th Dept: 187 AD3d 1571 (Oneida)	denied 12/28/20 (DiFiore, Ch. J.)
People v Parks	1st Dept: 187 AD3d 644 (NY)	denied 12/23/20 (DiFiore, Ch. J.)
People v Parrish	2d Dept: 179 AD3d 841 (Suffolk)	denied 12/30/20 (Stein, J.)

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People v Patterson	4th Dept: 187 AD3d 1604 (Monroe)	denied 12/29/20 (Wilson, J.)
People v Pellew	2d Dept: 187 AD3d 1060 (Kings)	denied 12/24/20 (DiFiore, Ch. J.)
People v Perez (Jose)	1st Dept: 187 AD3d 518 (NY)	denied 12/8/20 (DiFiore, Ch. J.)
People v Perez (Miguel)	App Term, 1st Dept: 69 Misc 3d 131(A) (NY)	denied 12/18/20 (Feinman, J.)
People v Perry (Anthony)	County Ct, 9/28/20 (Erie)	denied 12/30/20 (Stein, J.)
People v Perry (Kevin)	2d Dept: 187 AD3d 796 (Kings)	denied 12/18/20 (Feinman, J.)
People v Poole	4th Dept: 185 AD3d 1529 (Orleans)	denied 12/15/20 (Stein, J.)
People v Powell	2d Dept: 187 AD3d 1062 (Kings)	denied 12/16/20 (Fahey, J.)
People v Pratt	4th Dept: 186 AD3d 1055 (Onondaga)	denied 12/10/20 (DiFiore, Ch. J.)
People v Pugmire	1st Dept: 187 AD3d 449 (NY)	denied 12/23/20 (Fahey, J.)
People v Purnell	3d Dept: 186 AD3d 1834 (St. Lawrence)	denied 12/10/20 (Garcia, J.)
People v Ramirez	App Term, 1st Dept: 69 Misc 3d 129(A) (NY)	denied 12/20/20 (Wilson, J.)
People v Ramos	1st Dept: 187 AD3d 646 (NY)	denied 12/30/20 (Garcia, J.)
People v Reeves	1st Dept: 187 AD3d 412 (Bronx)	denied 12/9/20 (Fahey, J.)
People v Reyes	1st Dept: 187 AD3d 479 (NY)	denied 12/11/20 (Stein, J.)
People v Richards (Kennedy)	2d Dept: 186 AD3d 1411 (Orange)	denied 12/15/20 (Stein, J.)
People v Richards (Michael)	2d Dept: 186 AD3d 1264 (Suffolk)	denied 12/8/20 (Fahey, J.)
People v Richards (Tony)	2d Dept: 186 AD3d 1720 (Queens)	denied 12/16/20 (Fahey, J.)
People v Riddick	App Div, 3d Dept: 2020 NY Slip Op 72158(U) (Broome)	denied 12/16/20 (Fahey, J.)
People v Rivera	2d Dept: 186 AD3d 1723 (Kings)	denied 12/8/20 (Fahey, J.)
People v Rodriguez (Juan)	3d Dept: 185 AD3d 1233 (Rensselaer)	denied 12/15/20 (Stein, J.)
People v Rogers	1st Dept: 187 AD3d 607 (NY)	denied 12/30/20 (Garcia, J.)
People v Romero	2d Dept: 186 AD3d 870 (Kings)	denied 12/24/20 (DiFiore, Ch. J.)
People v Rondon	App Term, 1st Dept: 69 Misc 3d 131(A) (NY)	denied 12/4/20 (Rivera, J.)
People v Salters	4th Dept: 187 AD3d 1677 (Monroe)	denied 12/10/20 (Garcia, J.)

People v Sanchez	2d Dept: 186 AD3d 626 (Queens)	denied 12/9/20 (Fahey, J.)
People v Scarver	4th Dept: 187 AD3d 1604 (Erie)	denied 12/28/20 (DiFiore, Ch. J.)
People v Schafer	4th Dept: 185 AD3d 1479 (Niagara)	denied 12/15/20 (Stein, J.)
People v Shulterbrandt	1st Dept: 187 AD3d 448 (Bronx)	denied 12/31/20 (Feinman, J.)
People v Silvestre	1st Dept: 187 AD3d 552 (Bronx)	denied 12/15/20 (Stein, J.)
People v Singleton	2d Dept: 186 AD3d 1412 (Nassau)	denied 12/21/20 (Stein, J.)
People v Smith (Derek)	1st Dept: 187 AD3d 518 (Bronx)	denied 12/9/20 (Fahey, J.)
People v Smith (Dillon)	App Term, 1st Dept: 69 Misc 3d 129(A) (NY)	denied 12/30/20 (Wilson, J.)
People v Smith (Katrell)	2d Dept: 186 AD3d 1269 (Kings)	denied 12/15/20 (Stein, J.)
People v Smith (Keith)	App Term, 1st Dept: 69 Misc 3d 132(A) (Bronx)	denied 12/31/20 (Fahey, J.)
People v Smith (Lydell)	2d Dept: 186 AD3d 873 (Suffolk)	denied 12/20/20 (Wilson, J.)
People v Smith (Sentell)	1st Dept: 187 AD3d 553 (NY)	denied 12/31/20 (Fahey, J.)
People v Smith (Thomas)	1st Dept: 187 AD3d 614 (Bronx)	denied 12/7/20 (DiFiore, Ch. J.)
People v Somers (Deshaun)	4th Dept: 186 AD3d 1111 (Onondaga)	denied 12/11/20 (Stein, J.) (Appeal No. 1)
People v Somers (Deshaun)	4th Dept: 186 AD3d 1112 (Onondaga)	denied 12/11/20 (Stein, J.) (Appeal No. 2)
People v Spagnola	2d Dept: 187 AD3d 797 (Orange)	denied 12/18/20 (Feinman, J.)
People v Sulker	App Term, 1st Dept: 69 Misc 3d 135(A) (NY)	denied 12/30/20 (Garcia, J.)
People v Swift	4th Dept: 185 AD3d 1442 (Onondaga)	denied 12/8/20 (Stein, J.)
People v Sylvester	2d Dept: 187 AD3d 798 (Kings)	denied 12/10/20 (Garcia, J.)
People v Tall	1st Dept: 187 AD3d 586 (NY)	denied 12/16/20 (Fahey, J.)
People v Tatum	2d Dept: 187 AD3d 949 (Suffolk)	denied 12/7/20 (DiFiore, Ch. J.)
People v Thomas (James)	2d Dept: 187 AD3d 949 (Kings)	denied 12/29/20 (Wilson, J.)
People v Thomas (Michael)	2d Dept: 181 AD3d 831 (Queens)	denied 12/29/20 (Wilson, J.)
People v Thomas (Tony)	2d Dept: 187 AD3d 1069 (Kings)	denied 12/18/20 (Feinman, J.)

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People v Todarello	2d Dept: 185 AD3d 970 (Suffolk)	denied 12/8/20 (Wilson, J.)
People v Torres	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 128(A) (Kings)	denied 12/8/20 (Fahey, J.)
People v Tucker	App Div, 3d Dept: 2020 NY Slip Op 69075(U) (Schenectady)	dismissed 12/6/20 (Wilson, J.)
People v Turner (Debbie)	3d Dept: 186 AD3d 1837 (Warren)	denied 12/8/20 (Fahey, J.)
People v Turner (Dionel)	2d Dept: 187 AD3d 951 (Kings)	denied 12/30/20 (Garcia, J.)
People v Velez	1st Dept: 186 AD3d 1172 (NY)	denied 12/20/20 (Wilson, J.)
People v Vickers	4th Dept: 186 AD3d 1070 (Genesee)	denied 12/11/20 (Stein, J.)
People v Watson	App Term, 1st Dept: 69 Misc 3d 134(A) (NY)	denied 12/31/20 (Fahey, J.)
People v Westbrooks	County Ct, 9/10/20 (Monroe)	denied 12/18/20 (Feinman, J.)
People v White	3d Dept: 185 AD3d 1355 (Saratoga)	denied 12/9/20 (Fahey, J.)
People v Whitfield	2d Dept: 186 AD3d 1414 (Queens)	denied 12/18/20 (Feinman, J.)
People v Whittemore	4th Dept: 185 AD3d 1528 (Monroe)	denied 12/11/20 (Stein, J.)
People v Wilson	App Term, 1st Dept: 69 Misc 3d 134(A) (Bronx)	denied 12/31/20 (Feinman, J.)
People v Wood	App Div, 3d Dept: 2020 NY Slip Op 69013(U) (Washington)	dismissed 12/6/20 (Wilson, J.)
People v Zuniga	1st Dept: 187 AD3d 519 (NY)	denied 12/31/20 (Feinman, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(December 1, 2020 through December 31, 2020)

People v Guevara	1st Dept: 189 AD3d 455 (NY)	granted 12/23/20 (Gesmer, J.)
People v Rodriguez (Luis)	2d Dept: 187 AD3d 1063 (Queens)	granted 12/28/20 (Rivera, J.)
People v Romualdo	2d Dept: 188 AD3d 928 (Suffolk)	granted 12/9/20 (Roman, J.)

* Includes only applications that were granted.

[163 NE3d 1, 139 NYS3d 70]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ROBIN
PENA, Respondent.

Argued September 9, 2020; decided November 19, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered October 29, 2018. The Appellate Term order, insofar as appealed from, affirmed an order of the Criminal Court of the City of New York, Bronx County (Linda Poust Lopez, J.), which had adopted the findings of fact and conclusions of law made by a judicial hearing officer and granted defendant's suppression motion.

People v Pena, 61 Misc 3d 134(A), 2018 NY Slip Op 51499(U), reversed.

HEADNOTE**Crimes — Unlawful Search and Seizure — Suppression Motion**

In a criminal prosecution, the courts below erred as a matter of law in granting defendant's suppression motion.

APPEARANCES OF COUNSEL

Darcel D. Clark, District Attorney, Bronx (*Paul A. Andersen*, *Nancy D. Killian* and *Peter D. Coddington* of counsel), for appellant.

The Bronx Defenders, Bronx (*Morgan Everhart*, *Ilona Coleman* and *Ruth Hamilton* of counsel), for respondent.

OPINION OF THE COURT

Order insofar as appealed from reversed, defendant's motion to suppress denied and case remitted to Criminal Court of the City of New York, Bronx County, for further proceedings on the accusatory instrument. The courts below erred as a matter of law in granting defendant's suppression motion.

MEMORANDUM (concurring). The order of the Appellate Term, insofar as appealed from, should be reversed, defendant's motion to suppress denied, and the case remitted to Criminal Court for further proceedings on the accusatory instrument.

A police officer stopped defendant's car because of a nonfunctioning center brake light. Defendant, who exhibited signs of

intoxication, was given—and failed—a portable breathalyzer test. Defendant was arrested and charged with operating a motor vehicle while impaired (Vehicle and Traffic Law § 1192 [1]) and two counts of operating a motor vehicle while intoxicated (Vehicle and Traffic Law § 1192 [2], [3]).

Defendant moved to suppress the evidence obtained as a result of the stop, asserting that the officer lacked probable cause to justify the seizure because, defendant argued, “operat[ing] a vehicle that has a non-illuminated middle brake light” is not a violation of the Vehicle and Traffic Law. At the suppression hearing, relying on the United States Supreme Court’s opinion in *Heien v North Carolina* (574 US 54 [2014]), the People argued that the officer’s belief that defendant was violating the law was “a reasonable mistake in this situation,” rendering the stop permissible under the Fourth Amendment. The Judicial Hearing Officer determined that there was no ambiguity in the Vehicle and Traffic Law, and concluded that it was not “objectively reasonable for the officer in this case to mistakenly believe that a non-functioning middle brake light is a violation of the vehicle and traffic law.” The suppression court adopted the Judicial Hearing Officer’s findings of fact and legal conclusions in full and granted defendant’s motion.

On appeal, the People raised only one substantive issue: “whether the officer’s action in stopping defendant’s car because of a defective middle brake light was an objectively reasonable mistake of law” (appellant’s brief at 11 in *People v Pena*, 61 Misc 3d 134[A], 2018 NY Slip Op 51499[U] [App Term, 1st Dept 2018]). The Appellate Term affirmed, concluding that the officer’s interpretation was “not an objectively reasonable mistake of law” because Vehicle and Traffic Law § 375 (40) (b) is unambiguous, and a defective middle brake light does not violate the statute (*Pena*, 2018 NY Slip Op 51499[U], *1). A Judge of this Court granted the People leave to appeal (33 NY3d 1034 [2019]).

The sole issue on appeal is whether the officer’s belief that defendant violated the Vehicle and Traffic Law by operating a vehicle with a nonfunctioning center stop light was objectively reasonable (see *People v Guthrie*, 25 NY3d 130, 134, 136 [2015] [“the relevant question before us is . . . whether (the officer’s) belief that a traffic violation had occurred was objectively reasonable”]; see also *Heien*, 574 US at 59, 61). The “ultimate touchstone of the Fourth Amendment is reasonableness” (*Riley v California*, 573 US 373, 381 [2014] [internal quotation marks

omitted]). As the Supreme Court explained in *Heien*, “[t]o be reasonable is not to be perfect, and so the Fourth Amendment allows for some mistakes on the part of government officials, giving them ‘fair leeway for enforcing the law in the community’s protection’” (574 US at 60-61, quoting *Brinegar v United States*, 338 US 160, 176 [1949]). Accordingly, even assuming that a stop is premised upon a mistake of law, the stop may nonetheless be lawful where the officer’s purported mistake was objectively reasonable (*id.* at 61; *People v Guthrie*, 25 NY3d 130, 136 [2015]).

We conclude that the officer’s interpretation of the Vehicle and Traffic Law was objectively reasonable. Vehicle and Traffic Law § 375 (40) (b) mandates that motor vehicles manufactured after a certain date be “equipped with at least two stop lamps, one on each side, each of which shall display a red to amber light visible at least five hundred feet from the rear of the vehicle when the brake of such vehicle is applied.” Vehicle and Traffic Law § 376 (1) (a) prohibits, in relevant part, (1) operating a vehicle “during the period from one-half hour after sunset to one-half hour before sunrise, unless such vehicle is equipped with lamps of a type approved by the commissioner which are lighted and in good working condition”; and (2) operating a vehicle at any time “unless such vehicle is equipped with signaling devices and reflectors of a type approved by the commissioner which are in good working condition.” Vehicle and Traffic Law § 375 (19), in turn, prohibits the operation of a motor vehicle on highways or streets if the vehicle “is defectively equipped and lighted.” Taken together, these provisions could reasonably be read to require that all lamps and signaling devices be in good working condition, and that all equipment and lighting be non-defective, regardless of whether a vehicle is actually required to be equipped with those lamps, signaling devices, equipment, or lights. Even assuming the officer was in fact mistaken on the law, it was nevertheless objectively reasonable to conclude that defendant’s nonfunctioning center brake light violated the Vehicle and Traffic Law.* Because any error of law by the officer was reasonable, there was probable

* Our colleagues’ divergent views on whether a nonfunctioning center brake light violates the Vehicle and Traffic Law confirm that reasonable minds may differ on the proper interpretation of the law (*compare* Feinman, J., concurring op at 983 [“operating a vehicle with a nonfunctioning center stop lamp violates the Vehicle and Traffic Law”], *with* Wilson, J., dissenting op at 991 [“The Vehicle and Traffic Law requires that only two brake lights, one on each side of the vehicle, must light up when the brake is applied”]).

cause justifying the stop (*see Guthrie*, 25 NY3d at 140; *Heien*, 574 US at 68; *see also People v Hinshaw*, 35 NY3d 427, 430-431 [2020]).

FEINMAN, J. (concurring). The Vehicle and Traffic Law required the center stop lamp on defendant's 2003 Dodge Caravan to be functioning. Therefore, as defendant's center stop lamp was not functioning, the officer, having probable cause to believe that the driver was committing a traffic violation, made no mistake of law in stopping his vehicle.

Vehicle and Traffic Law § 375 (19) makes it unlawful to operate a motor vehicle on any public highway unless the motor vehicle is "equipped and lighted" as provided by sections 375 and 376, and it prohibits the operation on a public highway of a motor vehicle "which is not so equipped and lighted or which is defectively equipped and lighted." Vehicle and Traffic Law § 376 (1) (b) specifically and unambiguously authorizes the Commissioner of Motor Vehicles to "promulgate rules and regulations with respect to lamps, reflectors and signaling devices, their number[,] type, design, construction, location, attachment and use on vehicles being driven, operated or parked on any public highway or street in this state." The legislature set parameters for this delegated authority by providing that, in promulgating such rules and regulations, the Commissioner "shall be guided" by the requirements of rules and regulations promulgated by the United States Department of Transportation. Section 376 (3), in turn, mandates that "[a]ll lights, signals and reflectors shall be of a type and design approved by the commissioner" of motor vehicles. Finally, Vehicle and Traffic Law § 376-a indicates that the police are authorized to take action and a complaint may be issued, based on a violation of section 375 or 376 "relating to required equipment" (*see id.* § 376-a [1], [3]-[4]).

In its statutory delegation of authority to the Commissioner to promulgate regulations in accordance with national safety standards, the Vehicle and Traffic Law thus provides the basis for the enforcement of the Commissioner's regulations concerning the lighting equipment specifically enumerated in the statute, namely, lamps, reflectors, and signaling devices. The legislature established the policy and gave the Commissioner this extraordinary authority so that New York traffic laws concerning lamps, reflectors, and signaling devices could readily conform to and remain consistent with the federal requirements (*see* Mem of St Dept of Motor Vehicles, Bill Jacket, L

1971, ch 620 at 5, 1971 McKinney's Session Laws of NY at 2458; Mem of NY Dept of Transportation, Bill Jacket, L 1971, ch 620 at 7 [stating that the bill will allow conformity with national standards "without having to go through the legislative procedure each time the continually-changing Federal regulations are changed"]; Letter from NY St Thruway Authority, May 20, 1971, Bill Jacket, L 1971, ch 620 at 8 ["(T)his assignment was given to the Commissioner, rather than the Legislature, to permit immediate conformance with Federal requirements, thereby ensuring enforcement"]; *see also* L 1977, ch 592 [providing the Commissioner the same authority with respect to both commercial and noncommercial vehicles]; Sponsor's Mem at 2-3, Bill Jacket, L 1977, ch 592, 1977 McKinney's Session Laws of NY at 2377 [recognizing that "(v)ehicles of the same size, regardless of their use, constitute the same hazard on the highway and should be lit in the same manner" and stating that the bill thus "permits flexibility to conform lighting requirements for vehicles to Federal standards which are not in existence and which may be promulgated in the future"]. The legislature, in creating this regulatory scheme, recognized that federal regulations and standards on this subject are preemptive of State law (*see* 49 USC § 30103; *see also Drattel v Toyota Motor Corp.*, 92 NY2d 35, 40-41 [1998], *abrogated by Geier v American Honda Motor Co.*, 529 US 861 [2000] [discussing the text and purpose of the National Traffic and Motor Vehicle Safety Act]), and thus sought to eliminate conflicts between the Vehicle and Traffic Law and federal Department of Transportation standards (*see e.g.* Sponsor's Mem at 2, Bill Jacket, L 1977, ch 592, 1977 McKinney's Session Laws of NY at 2377 ["Consistency in this area should result in better enforcement of lighting requirements"]).

Since 1986, the National Highway Traffic Safety Administration has required new vehicles to have high-mounted stop lamps on the vertical centerline (*see* 49 CFR 571.108). New York's Department of Motor Vehicles regulations are consistent with that requirement. The regulations provide that "1987 and newer passenger cars must be equipped with a high-mounted stop lamp on the vertical centerline, except those with custom as the make of the vehicle" (15 NYCRR 79.21 [e] [6] [internal quotation marks omitted]). Additionally, the regulations instruct that an inspector should reject the vehicle if the center stop lamp "does not function when [the] brake is applied" (*id.*).

Accordingly, a nonfunctioning center stop lamp is not “of a type and design approved by the commissioner” (Vehicle and Traffic Law § 376 [3]), and operating a vehicle with a nonfunctioning center stop lamp violates the Vehicle and Traffic Law (*see id.* § 375 [19]).

That Vehicle and Traffic Law § 375 (40) requires “at least two” stop lamps, “one on each side” does not negate this conclusion. Section 376 (4) specifies that, while “existing provisions” regarding the use of lamps continue to apply, they do not apply if they are “irreconcilably inconsistent” with section 376 or the regulations promulgated thereunder. To the extent the regulations requiring the third stop lamp are not mirrored in section 375’s mandate for “at least two” stop lamps, the Commissioner’s regulations as to the necessary lighting equipment on the vehicle still govern. Indeed, the statute’s regulatory scheme does not allow for the unreasonable interpretation that the existence of section 375 (40) cancels the mandate for more modern safety features, such as the lighting equipment required by the Commissioner pursuant to section 376, in lockstep with the national safety standards.

Further, the Commissioner’s regulations pertaining to “equipment” (15 NYCRR 43.4, 43.5 [requiring vehicles less than 80 inches in width to be equipped with two red stop lamps, one on each side of the vertical centerline]) are incompatible with the regulations regarding the mandated equipment to pass yearly safety inspections allowing a vehicle to be operated on a public highway (15 NYCRR 79.21 [e] [6]) and, in fact, have not been amended since 1980. As a result, the Commissioner’s regulations for inspection standards—which, in line with the authority granted by Vehicle and Traffic Law § 376 (1) (b), are guided by the requirements of the United States Department of Transportation—set the minimum lamp equipment for vehicles. This interpretation is consistent with the legislative intent of enforcing lighting requirements matching the national safety standards (*see e.g.* Sponsor’s Mem at 2, Bill Jacket, L 1977, ch 592, 1977 McKinney’s Session Laws of NY at 2377; Mem of St Dept of Motor Vehicles, Bill Jacket, L 1971, ch 620 at 5-6, 1971 McKinney’s Session Laws of NY at 2458; Mem of NY Dept of Transportation, Bill Jacket, L 1971, ch 620 at 7-8) and promotes highway safety by encouraging driving with properly equipped vehicles (*e.g.* National Highway Traffic Safety Administration, *The Long-Term Effectiveness of Center High Mounted Stop Lamps in Passenger Cars and Light Trucks*,

DOT HS 808 696 NHTSA Technical Report at vi [Mar. 1998], available at <https://crashstats.nhtsa.dot.gov/Api/Public/ViewPublication/808696> [accessed Nov. 17, 2020] [finding that, “in the long term, passenger car CHMSL (center high mounted stop lamps) reduce rear impacts by 4.3 percent” and “CHMSL will continue to be a highly cost-effective safety device”]).

Given that defendant’s center stop lamp was not functioning, the vehicle stop was lawful because the officer had probable cause to believe that the driver was committing a traffic violation (see *People v Hinshaw*, 35 NY3d 427, 430-431 [2020]), and defendant’s motion to suppress should have been denied.

WILSON, J. (dissenting). When Robin Pena was pulled over by a police officer, his two side brake lights were working properly; his center brake light was not. Because “an automobile stop ‘is a seizure implicating constitutional limitations’” (*People v Hinshaw*, 35 NY3d 427, 430 [2020], quoting *People v Spencer*, 84 NY2d 749, 752 [1995]), in order to decide whether the stop of Mr. Pena’s vehicle ran afoul of the Fourth Amendment, we must determine whether the legislature has authorized officers to stop vehicles solely because a center brake light is not working.

Judge Rivera and I conclude that the Vehicle and Traffic Law does not authorize stopping a vehicle solely because its center brake light does not work. Our concurring colleagues reach the opposite conclusion. The plurality, however, cannot or will not say whether an officer may stop a vehicle because of a faulty center brake light. Instead, the plurality offers a superficially appealing answer to explain its silence on what the law means: because two Judges say two lights are required, two Judges say three lights are required and three Judges say nothing, the statute sure is unclear, so the officer’s view must be an objectively reasonable mistake if so many Judges have so much difficulty interpreting the statute. That superficial answer shirks our fundamental duty to construe statutes and cavalierly treats the underlying Fourth Amendment rights.

My disagreement with the concurrence is of the garden-variety nature: we have both tried to interpret a statute and come to opposite conclusions. My disagreement with the plurality is much different. By refusing to say what the Vehicle and Traffic Law permits, the plurality does not merely lead the Court to the wrong result in this case. Far more important, its approach—validating police conduct as a potential “mistake” of law without saying whether the conduct was in fact a mistake

of law—licenses future police conduct that may, for all the plurality knows, constitute an unlawful abridgement of the Fourth Amendment rights of motorists. The plurality also abdicates our most fundamental roles: serving as the definitive statutory interpreter for the State of New York, and guarding the constitutional rights of those within our borders.

I.

A.

Judges are “selected by society to give meaning to what the legislature has done” (Felix Frankfurter, *Some Reflections on the Reading of Statutes*, 47 Colum L Rev 527, 529 [1947]; cf. Alexander Hamilton, Federalist No. 78 [1788] [as to statutes, “it is the province of the courts to liquidate and fix their meaning and operation”]). The job of the highest court in New York State—or in any state—when faced with a question of statutory interpretation is to interpret the statute. Sometimes, the legislature is not entirely clear in drafting statutes, or two portions of a statute say two different things, or the literal reading of a statute does not make a whole lot of sense. Resolving those sorts of issues is the bread and butter of appellate courts. Here, the lower courts held that driving with a nonworking center brake light is not a traffic violation under the Vehicle and Traffic Law provision governing brake lights, section 375 (40) (b). Our concurring colleagues reached a different conclusion, reading the Vehicle and Traffic Law, together with Department of Motor Vehicles (DMV) regulations, to prohibit driving with a broken center brake light. For the reasons set forth in part II, I agree with the lower courts’ reading of the Vehicle and Traffic Law.

The plurality, however, refuses to say which interpretation of the Vehicle and Traffic Law is correct. It holds that “the officer’s interpretation of the Vehicle and Traffic Law was objectively reasonable” (plurality mem at 980), without deciding whether the officer’s interpretation is what the legislature set out as the law. The plurality’s dodge is to conclude that because the statutory scheme says different things about a variety of vehicle lights at different places in the code, it is objectively reasonable for officers to stop vehicles with a nonfunctional center brake light, even if the legislature intended otherwise. That result is no different than if the plurality had decided, as the concurrence does, that the legislature made it a traffic

infraction to operate a vehicle unless all three brake lights were working—except that the plurality refuses to reach any conclusion about what the legislature meant.

The plurality does not explain its refusal to state whether the officer's interpretation of the Vehicle and Traffic Law was a mistake of law, but cites authorities establishing that an officer's objectively reasonable mistake of law can provide probable cause to stop a vehicle: our decision in *People v Guthrie* (25 NY3d 130 [2015]), and the U.S. Supreme Court's decision in *Heien v North Carolina* (574 US 54 [2014]). In *Guthrie*, we held that an officer had probable cause to stop the defendant based on the officer's "reasonable belief that defendant failed to stop at a valid stop sign" in violation of the Vehicle and Traffic Law, though in fact the stop sign was not properly registered as required by the Vehicle and Traffic Law (25 NY3d at 140). We first determined the stop was based on a mistake of law because the driver did not commit a stop sign infraction (which the People conceded), and then turned to the question of whether the mistake was objectively reasonable (*id.* at 133-134). That is the way in which we should proceed here: first, is it a violation of the Vehicle and Traffic Law to drive with a defective center brake light? If it is, then, as the concurrence states, no mistake-of-law analysis is required: the stop was lawful. If it is not, we then turn to the question of the reasonableness of the mistake of law, as we did in *Guthrie*.

Heien held that an investigatory stop based on a reasonable mistake of law does not violate the Fourth Amendment, affirming the North Carolina Supreme Court's ruling that an officer who believed the state vehicle code required two working brake lights made a reasonable mistake of law (574 US at 68). In *Heien*, the North Carolina Supreme Court "assume[d]" for purposes of its decision that the intermediate appellate court "correctly held that [North Carolina's] General Statutes require only one brake light" because the State did not appeal the latter court's decision about what the statute required (*State v Heien*, 366 NC 271, 275, 737 SE2d 351, 354 [2012]). For both procedural and jurisprudential reasons, then, the U.S. Supreme Court did not independently decide what the North Carolina statute required. The Supreme Court's reasons for refraining from deciding what a North Carolina statute meant are lacking here. No court other than ours has the power to determine conclusively how the statutes of New York are construed. Courts lacking that power and duty—whether a New York

State trial court or a federal appellate court—may often have good reason to avoid construing a New York statute. We do not.¹

Moreover, skipping past the question of whether the legislature meant to authorize stopping vehicles with two, but not three, working brake lights leads to a result wholly inconsistent with the Fourth Amendment and New York’s Constitution. Consistent with mistake-of-law jurisprudence and our judicial responsibility, to determine whether an officer’s stop was lawful we must decide, first, whether the basis for the stop was a mistake of law at all, and second, only if we find the stop was based on a mistake of law, whether the officer’s mistake of law was objectively reasonable. By deciding first what the law requires, and then, if an officer has misinterpreted it, whether the mistake was objectively reasonable, courts do not leave future actors—whether officers or civilians—in doubt as to what the law requires, so that no future violations of that law will be excusable as mistakes. Instead, if we approve potentially illegal vehicle stops on the basis of mistake-of-law jurisprudence *without determining whether a mistake of law actually occurred*, we prospectively sanction countless potential constitutional violations.²

The plurality’s evasion of the threshold question leaves the reader, unavoidably, to conclude either that the plurality does not know what the Vehicle and Traffic Law prohibits or that it

1. The plurality maintains that “[t]he sole issue on appeal is whether the officer’s belief that defendant violated the Vehicle and Traffic Law by operating a vehicle with a nonfunctioning center stop light was objectively reasonable” (plurality mem at 979), eliding the question framed by the People: “whether the officer’s action in stopping defendant’s car because of a defective middle brake light was an objectively reasonable mistake of law” (appellant’s brief in *People v Pena*, 61 Misc 3d 134[A], 2018 NY Slip Op 51499[U] [App Term, 1st Dept 2018]). The issue of whether the officer was in fact *mistaken* that a nonfunctioning center brake light constitutes a traffic infraction—the question briefed by the parties at every level of this litigation—presents a pure question of statutory interpretation.

2. In the context of qualified immunity doctrine, the U.S. Supreme Court has recognized the importance of clarifying the law for reasons that are persuasive here. For example, in *Camreta v Greene* (563 US 692 [2011]), the Court recognized that the usual policy of conferring immunity without deciding a plaintiff’s constitutional claim sometimes “threatens to leave standards of official conduct permanently in limbo. . . . [T]he moment of decision does not arrive. Courts fail to clarify uncertain questions, fail to address novel claims, fail to give guidance to officials about how to comply with legal requirements” (*id.* at 706 [citations omitted]).

does but is not willing to say.³ Neither is palatable. First, however troublesome, “questions of statutory interpretation, especially when arising in the first instance in judicial proceedings, are for the courts to resolve” (*NLRB v Hearst Publications, Inc.*, 322 US 111, 130-131 [1944], *overruled in part, on other grounds, by Nationwide Mut. Ins. Co. v Darden*, 503 US 318 [1992]). Second, if the statute is so unclear as to defy judicial interpretation, we would have to strike it as unconstitutionally vague (*see People v Shack*, 86 NY2d 529, 538 [1995] [“Whether a statute is unconstitutionally vague is measured by whether it provides notice to ‘a person of ordinary intelligence . . . that his contemplated conduct is forbidden by the statute’ ”], quoting *United States v Harriss*, 347 US 612, 617 [1954]).

Knowing what the Vehicle and Traffic Law prohibits but refusing to construe it invites chaos.⁴ If the plurality believes that the Vehicle and Traffic Law does not in fact contain a traffic infraction for driving with a nonfunctional center brake light, but it was reasonable for Officer Thomas to believe otherwise, then the plurality should say so. The result in Mr.

3. If our colleagues in the plurality cast a vote one way or the other, the statute’s meaning would be conclusively determined, one way or the other. That is, if the plurality would vote unanimously for two or three lights, or if it would split 2-1 in either direction, any of those results would produce a majority as to whether the Vehicle and Traffic Law authorizes stopping a car solely because of a nonworking center brake light.

4. Query whether, after our Court’s decision today, a police officer’s decision to pull someone over for a defective middle brake light will remain reasonable going forward. Perhaps it will, because a plurality of the Court has said the statute is sufficiently ambiguous that officers could reasonably conclude that all three brake lights must work, and two concurring Judges would hold that the statute requires all three brake lights to work, though neither of those positions has the force of law. The Appellate Term held that only two must function, and that decision is controlling on trial courts in the First Department, and entitled to deference in lower courts of other departments, until we resolve the interpretation of the statute (*see People v Pestana*, 195 Misc 2d 833, 839 [Crim Ct, NY County 2003] [Criminal Court does not “deem itself bound by a decision of the Appellate Term of another judicial department, even if only to the extent that it does not conflict with the law as stated by the courts that directly bind it,” but such a decision is “entitled to great deference”]). If we decline to interpret the statute, and other departments construe the statute contrary to the Appellate Term’s interpretation, I fear we may have a patchwork of outcomes, where stopping a vehicle with a nonfunctioning center brake light is a reasonable mistake of law in some parts of the state, but not in others (*see Mountain View Coach Lines v Storms*, 102 AD2d 663, 665 [2d Dept 1984] [stating that the Appellate Division “should accept the decisions of sister departments as persuasive, (but is) free to reach a contrary result”]).

Pena's case would be the same, but the Court would make clear that, in the future, vehicle stops of cars with both side brake lights working will not be excused as reasonable mistakes of law, thus preserving constitutional rights the legislature has not deemed worthy of impinging. If, on the other hand, the plurality agrees with our concurring colleagues that the Vehicle and Traffic Law specifies an infraction for driving with a center brake light out, then it should so hold, advising officers and motorists alike that a nonworking center brake light is an infraction justifying a vehicle stop. No resort to mistake-of-law doctrine—which is meant to be reserved for cases where an error of law has been determined to have occurred—would be needed. Under either scenario, the legislature would have no need to act if we correctly determined its intent.

Beyond the simple proposition that we should do our job and construe the Vehicle and Traffic Law, doing so would provide much-needed guidance both to law enforcement officers and members of the public. Here, the question of statewide importance is not whether the stop of Mr. Pena's vehicle was reasonable, but whether anyone who drives with a broken middle brake light violates New York law.⁵ Supplying a clear answer—either way—would disable police officers from making any “reasonable” mistake in the future and allow drivers to conform their conduct to the law. Fundamentally, do we want officers to know the law and enforce it, or to enforce mistakes of law?

B.

When our Court refuses to decide what infractions the Vehicle and Traffic Law contains, or when we extend the universe of traffic infractions beyond those created by statute, we both fail to effectuate the legislature's intent and fail to establish the constitutional limits of one of the most frequent and pervasive exercises of the State's police power: the vehicle stop

5. The National Highway Traffic Safety Administration has since 1986 required new cars to be manufactured with center high-mounted stop lamps (49 CFR 571.108; *see also* 15 NYCRR 79.21 [e] [6] [incorporating the federal mandate]). The median life of a passenger car in the U.S. is about 11 years, which suggests that only a tiny fraction of the nearly 10 million passenger cars registered in New York lacks a center brake light (*see* Bureau of Transportation Statistics, *Average Age of Automobiles and Trucks in Operation in the United States*, available at <https://www.bts.gov/content/average-age-automobiles-and-trucks-operation-united-states> [last accessed Sept. 25, 2020]; *Vehicle Registrations in Force* [2018], available at <https://dmv.ny.gov/statistic/2018reginforce-web.pdf> [last accessed Sept. 25, 2020]).

(see Elizabeth Davis et al., *Contacts Between the Police and the Public*, 2015 at 4 [Oct. 2018], available at <https://www.bjs.gov/content/pub/pdf/cpp15.pdf> [last accessed Oct. 23, 2020] [over 19 million drivers experienced a police stop in the U.S. in 2015]; Charles R. Epp et al., *Pulled Over: How Police Stops Define Race and Citizenship* at 2 [2014] [each year about 12% of all drivers are stopped by the police, and the share of racial minority drivers stopped is about double]). Those limits matter. An accumulating body of research demonstrates not only the frequency with which traffic stops escalate to tragic consequences (see Rivera, J., dissenting op at 997-998), but also the extent to which traffic stops reproduce racial disparities (see Emma Pierson et al., *A Large-Scale Analysis of Racial Disparities in Police Stops Across the United States*, *Nature Human Behaviour* [2020], available at <http://web.stanford.edu/csimoiu/doc/traffic-stops.pdf> [last accessed Oct. 23, 2020] [study of 95 million traffic stops finding Black drivers were more likely to be stopped, ticketed, searched, and arrested than white drivers, and that Hispanic drivers, when stopped, were more likely to be ticketed, searched, and arrested than white drivers]; Robert E. Worden et al., *Traffic Stops by Suffolk County Police* at 7, 48 [Sept. 2020], available at <https://suffolkcountyny.gov/Portals/0/formsdocs/police%20reform/Traffic%20Stops%20by%20Suffolk%20County%20Police%2010.19.2020.pdf> [last accessed Oct. 23, 2020] [study of over 130,000 traffic stops by Suffolk police finding that, compared to white drivers, Black and Hispanic drivers were more likely to be stopped for equipment violations, Black drivers were over three times more likely to be subjected to physical force, and Hispanic drivers were 16% more likely to be searched and 16% more likely to be arrested]; Charles R. Epp et al., *Pulled Over: How Police Stops Define Race and Citizenship* 143 [2014] [interview-based studies tracking the long-term harms of police stops have found that, “(a)mong African Americans, the more stops the driver has experienced over his or her lifetime, the less they trust the police”]). Enlarging police discretion to stop automobiles on the ground that the stop is an excusable mistake, without determining what the legislature intended, is fraught with untoward consequences.

Our concurring colleagues conclude that the DMV, with power delegated from the legislature, has determined that officers are authorized to stop vehicles solely because a center brake light bulb has burned out. Judge Rivera and I do not.

But the approach of both the concurrence and the dissent is to state what the law is, so that no future Fourth Amendment violations involving center brake light failures would be excused as mistakes of law. The plurality, instead, grants unfettered discretion to police officers to stop vehicles for a center brake light failure, deeming it unnecessary to determine what the legislature has directed.

II.

To determine whether the stop was lawful, we must decide what the Vehicle and Traffic Law requires. The Vehicle and Traffic Law requires that only two brake lights, one on each side of the vehicle, must light up when the brake is applied while a vehicle is being driven on a public road. Vehicle and Traffic Law § 375 (40) (b), the provision specifically governing brake lights, or “stop lamps,” provides:

“[e]very motor vehicle, except a motorcycle, operated or driven upon the public highways of the state, if manufactured on or after January first, nineteen hundred fifty-two, shall be equipped with at least two stop lamps, one on each side, each of which shall display a red to amber light visible at least five hundred feet from the rear of the vehicle when the brake of such vehicle is applied.”

As the courts below correctly observed, the plain text requires that only (i.e., “at least”) “two stop lamps, one on each side,” light when the vehicle is “operated or driven upon the public highways of the state” and “when the brake of such vehicle is applied.” Mr. Pena did not violate Vehicle and Traffic Law § 375 (40) (b) because both his left and right brake lights were working.

The plain language of Vehicle and Traffic Law § 375 (40) (b) is not muddled by Vehicle and Traffic Law § 376 (1) (a). Section 376 (1) (a) does not govern brake lights, or “stop lamps,” as the Vehicle and Traffic Law refers to them. Rather, Vehicle and Traffic Law § 376 (1) (a) prescribes the “lamps” that must be continuously “lighted and in good working condition” “during the period from one-half hour after sunset to one-half hour before sunrise,” namely, headlights and taillights. Because it regulates lamps that must be “lighted” throughout the night—and only at night—Vehicle and Traffic Law § 376 (1) (a) cannot reasonably be interpreted to apply to brake lights, which necessarily only light when the driver applies the brake, and of

course must function during the day as well as at night.⁶ Moreover, even if one were to accept the view that Vehicle and Traffic Law § 376 (1) (a) applies to brake lights, the text requires only that a vehicle have “lamps” in working condition; unlike Vehicle and Traffic Law § 375 (40) (b), it does not specify the number of lamps that must work.⁷

Finally, to the extent that equipment regulations promulgated by the Commissioner of the DMV bear on the meaning of the Vehicle and Traffic Law’s equipment provisions, those regulations are consistent with the text of the Vehicle and Traffic Law, requiring only two functioning brake lights, on either side of the vehicle. Where (as the plurality claims) a statute is ambiguous, courts may “giv[e] appropriate weight to the judgment of those whose special duty is to administer the questioned statute” (*Hearst Publications*, 322 US at 131; see also *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451, 459 [1980] [when a question is one of pure statutory construction, an administrative agency’s interpretive regulations are entitled to some modest weight, unless they “run() counter to the clear wording of a statutory provision”]).⁸ Vehicle and Traffic Law § 376 (1) (b) empowers the Commissioner “to promulgate rules

6. Vehicle and Traffic Law § 376 (1) (a) also prohibits operating a vehicle at any time “unless such vehicle is equipped with signaling devices and reflectors of a type approved by the commissioner which are in good working condition.” The People argue that any brake light could be considered a “signaling device,” and therefore driving with a defective middle brake light would violate Vehicle and Traffic Law § 376 (1) (a). However, nothing in the Vehicle and Traffic Law provisions (or even DMV regulations) that expressly govern brake lights indicates that they are to be considered a type of “signaling device,” and the Vehicle and Traffic Law nowhere defines “signaling device” to include brake lights. The Vehicle and Traffic Law does not define “signaling device” at all, but DMV regulations refer separately to “stop lamps,” “tail lamps,” and “directional signals” or “turn-signal lamps” (see 15 NYCRR 79.21 [e]; 43.4). In addition, the People argue that ambiguity derives from Vehicle and Traffic Law § 375 (19), which requires that vehicles be “equipped and lighted as provided by this section and by section three hundred seventy-six.” Again, though, Vehicle and Traffic Law § 375 (19) does not alter the plain requirement of section 375 (40) (b) that “two stop lamps, one on each side,” must light when the brake is applied.

7. Thus the language of Vehicle and Traffic Law § 376 (1) (a) is quite different from the language of the North Carolina statute in *Heien*, which required that “all originally equipped rear lamps” be functional (574 US at 59 [emphasis added], quoting NC Gen Stat Ann § 20-129 [d]). The U.S. Supreme Court relied in part on that language to find that the officer made a reasonable mistake of law in stopping the defendant for a defective brake light (*id.* at 68-69).

8. The concurrence does not claim Vehicle and Traffic Law § 375 (40) (b) is ambiguous. Instead, the concurrence takes an unusual and unprecedented

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and regulations with respect to lamps.” The DMV’s regulation on “required lighting” provides, as to “stop lamps,” that there be “2 red” (15 NYCRR 43.4). Mr. Pena complied with that requirement. To be sure, the DMV’s regulation on inspections, which are required by article 5 of the Vehicle and Traffic Law, provides that a vehicle will fail inspection if it is “[n]ot equipped with a high-mounted stop lamp on the vertical centerline” or if the center light “does not function when brake is applied” (15 NYCRR 79.21 [e] [6]). However, an officer does not have probable cause to stop a vehicle based on observing a maintenance issue that could cause the vehicle to fail its annual inspection when the issue does not itself constitute a violation of the Vehicle and Traffic Law.⁹

Relying largely on DMV regulations governing safety inspections, the concurrence concludes that driving with a non-lighting center brake light is a Vehicle and Traffic Law violation and thus the officer “made no mistake of law in stopping [Mr. Pena’s] vehicle” (concurring op at 981). There are two fatal problems with the concurrence’s approach. First, Vehicle and Traffic Law § 376-a grants police officers the power to issue a summons only for a “violation of any provision of section three hundred seventy-five, three hundred seventy-six or three hundred eighty-one” of the Vehicle and Traffic Law—not for violations of the DMV’s regulations. The fact that Vehicle and Traffic Law § 376 (1) (b) authorizes the Commissioner to promulgate regulations does not transform a violation of a regulation into a violation of the Vehicle and Traffic Law.

route. It admits that the plain words of a statutory provision, Vehicle and Traffic Law § 375 (40) (b), require “at least” two functioning brake lights, one on each side, but then disregards the clear statutory language by pointing to two DMV regulations that the concurrence itself identifies as “incompatible” with each other as to the number of working brake lights required. The concurrence then disregards as obsolete the DMV’s two-light regulation, though it remains a regulation in force, and uses the remaining regulation to override the statute.

9. Vehicle and Traffic Law § 375 (40) (b) requires drivers to maintain two functioning brake lights, “one on each side,” at all times, but the Vehicle and Traffic Law does not otherwise provide that it is unlawful for a vehicle’s lights to fall out of compliance with maintenance inspection standards in between required inspections. Therefore, observing a maintenance issue that would cause a vehicle to fail inspection does not, on its own, provide probable cause to believe the driver violated the Vehicle and Traffic Law. The record does not indicate, and the People do not allege, that the officer observed on Mr. Pena’s car an invalid inspection sticker in violation of Vehicle and Traffic Law § 306.

Second, the concurrence conflates a set of requirements for the equipment and inspection of vehicles, on the one hand, with the set of offenses that provide a lawful basis for the police to stop a vehicle, on the other.¹⁰ The question before our Court is not whether Mr. Pena's vehicle was manufactured with the requisite number of brake lights (it was), nor whether the defective brake light that the officer observed could cause Mr. Pena's vehicle to fail an inspection based on DMV regulations (it could); the question is whether operating a vehicle with a nonfunctioning center brake light is a violation of the Vehicle and Traffic Law as defined by the legislature (it is not).

As the concurrence notes, the legislature has empowered the DMV Commissioner to promulgate regulations with the aim of "conform[ing] vehicle lighting regulations to Federal requirements" (Sponsor's Mem at 1, 3, Bill Jacket, L 1977, ch 592, 1977 McKinney's Session Laws of NY at 2376, 2377).¹¹ The Commissioner has promulgated inspection regulations to that end, including the aforementioned requirement that vehicles manufactured since 1987 must be "equipped" with a center brake light, which must function in order to pass inspection (15 NYCRR 79.21 [e] [6]). However, the legislature has not amended Vehicle and Traffic Law § 375 (40) (b) to require drivers operating a vehicle on a public road to have a functioning

10. The legislature has clearly established that the standards for what equipment must be present on a car and in working order, on the one hand, and what equipment deficiencies authorize an officer to stop a moving vehicle, on the other, are different. For example, section 375 (35) (c) provides that "[n]o person shall operate a motor vehicle or a trailer on a public highway if such vehicle is equipped with tires that do not meet the standards established by the commissioner pursuant to paragraph (a) of this subdivision." Section 375 (40) (b) does not similarly define a traffic infraction by express reference to DMV standards.

11. The concurrence's references to legislation enacted in 1971 are inapt; unlike the 1977 bill, the 1971 bill dealt solely with the Vehicle and Traffic Law's lighting requirements for "commercial vehicles and non-commercial trailers," not passenger vehicles (Mem of St Dept of Motor Vehicles, Bill Jacket, L 1971, ch 620 at 5, 1971 McKinney's Session Laws of NY at 2458). In any event, as the concurrence notes, federal law preempts state law with regard to "motor vehicle safety standard[s]" (49 USC § 30103), defined as "a minimum standard for motor vehicle or motor vehicle equipment performance" (49 USC § 30102 [a] [10]). Clear from both the 1971 and 1977 legislative history is that because federal standards governing automobile equipment would displace any conflicting state standards, the legislature tasked DMV with continuously conforming New York's requirements to federal standards to avoid legislative action each time a federal safety standard changed. Although federal regulations establish equipment standards, federal automobile equipment standards do not determine what any state legislature will decide warrants stopping a vehicle.

center brake light, and thus the statute does not empower officers to stop a vehicle solely for a defective center brake light.

Contrary to the concurrence's view, then, the statutory mandate of "at least two" brake lights (Vehicle and Traffic Law § 375 [40] [b]) is not "irreconcilably inconsistent" with DMV regulations promulgated under section 376 (Vehicle and Traffic Law § 376 [4]). The regulations prescribe the lights with which vehicles must be equipped and which lights must work to pass inspection; the statute sets out how many lights must work when a driver operates a vehicle on public roads. However, by suggesting that DMV regulations "govern" to the extent they appear to conflict with the relevant statute (concurring op at 983), the concurrence proposes a novel and dangerous theory that by authorizing the DMV to promulgate safety equipment regulations in harmony with federal regulations, the DMV is empowered to modify the legislature's own statute determining when officers have probable cause to stop a vehicle.

The correct result here is to hold that the stop was not supported by probable cause because the legislature has not authorized the stop of a vehicle with two working brake lights, one on each side, and that the officer's error was not objectively reasonable. A tolerable, though incorrect, result would be to hold that the stop was based on a mistake of law but the mistake was reasonable; another tolerable though incorrect result would be the position of the concurrence. The only incorrect and intolerable position is that held by the plurality—that the Court of Appeals is not going to say whether the stop here was or was not authorized by the legislature, but instead is a mistake worth repeating.

RIVERA, J. (dissenting). The prosecution appeals from the Appellate Term's order affirming the suppression of all evidence stemming from an illegal traffic stop of defendant Robin Pena's vehicle. Rather than address head on what the Vehicle and Traffic Law requires, three members of the Court engage in a mistake of law analysis without first identifying whether the officer actually misunderstood the law. Two other members of the Court concur with the plurality in reversing the Appellate Term's decision, but on the grounds that the Vehicle and Traffic Law—as read through the lens of the Department of Motor Vehicles' safety inspection regulations—requires three working brake lights. I cannot join either opinion as both are wrong on the law.

I fully join Judge Wilson's dissent that the Court should resolve the Vehicle and Traffic Law question presented in this appeal before embarking on a mistake of law analysis (Wilson, J., dissenting op at 985-989). The plurality's failure to say what the Vehicle and Traffic Law means leaves motorists, law enforcement officers, and judges wondering what the law requires. This outcome does nothing to promote the law's development or ensure the safety of the public (*id.* at 989-991).

I agree with Judge Wilson's analysis of the statutory provisions at issue in this appeal. The Vehicle and Traffic Law required that defendant's vehicle be equipped with two functioning brake lights, one on the left and one on the right (*id.* at 991-995). No more, no less. While a motor vehicle may fail the annual safety inspection because of a nonfunctioning middle brake light, that fact does not provide grounds for a Fourth Amendment seizure (*id.*). Therefore, the courts below properly concluded that the officer had no probable cause to stop defendant.

Even if I agreed with the plurality that certain provisions of the Vehicle and Traffic Law inject ambiguity into the analysis and suggest that a vehicle's middle brake lights, no matter the number, must be in good working condition, I would still affirm. First, as I explained in my dissent in *People v Guthrie* (25 NY3d 130, 148-149 [2015]), under New York's Constitution, an officer's mistake provides no basis to deny a defendant's motion to suppress evidence recovered during an illegal seizure. An ambiguous law is not a sufficient justification to relax our constitutional protections.

Second, *Guthrie* is *sui generis*. The case involved an officer who stopped the defendant for running through what turned out to be an invalid stop sign (*id.* at 132). The officer did not know the registration status of every stop sign in the Village Code, and so mistakenly believed that the sign was valid and therefore stopped the defendant for her apparent violation of the Vehicle and Traffic Law. That is a markedly different case from the instant appeal, where the officer mistakenly believed that defendant's vehicle was not adequately equipped under the Vehicle and Traffic Law based on a misunderstanding of the Vehicle and Traffic Law's requirements. It is one thing to admit evidence against a defendant collected during an illegal stop based on an officer's failure to confirm in advance that a stop sign was properly registered under local law; it is quite another to excuse an officer from knowing whether the Vehicle

and Traffic Law requires two or three operating brake lights. The rule adopted in *Guthrie* as applied to the facts of that case might seem socially acceptable—after all, the motorist ran a stop sign that was identical to any other, which, in most situations, would be illegal. But extending *Guthrie*’s rule to the circumstances presented here encourages illegal stops—it makes a bad rule worse. As I have previously explained,

“[w]e should not excuse an error about the basic foundation of an officer’s power, or discourage better comprehension of it. Moreover, if, as the majority concludes, we cannot depend on an officer charged with enforcement powers to know the law, we place in question the integrity of our criminal justice system. That strikes me as an unacceptable outcome of the majority’s approach” (*id.* at 148).

Now, under the plurality’s new, expanded mistake of law rule, a court may suppress only that evidence gathered during a stop that the officer knows to be invalid. But why incentivize mistaken, unlawful stops? Instead, why not reject a rule that increases the opportunity for potentially dangerous and life-threatening encounters between armed officers and innocent motorists? It is now well understood that law enforcement interactions with the public can escalate unnecessarily with dire consequences. According to a study released by the Department of Justice’s Bureau of Justice Statistics in 2013, 6% of a sample of drivers “pulled over in traffic stops experienced some type of force used against them, from shouting and cursing, to verbal threats of force or other action, to physical force, including hitting, handcuffing, and pointing a gun” (Lynn Langton & Matthew Durose, U.S. Department of Justice, Office of Justice Programs, Bureau of Justice Statistics Special Report, *Police Behavior during Traffic and Street Stops, 2011* at 10 [NCJ 242937 Sept. 2013; rev Oct. 27, 2016], available at <https://www.bjs.gov/content/pub/pdf/pbtss11.pdf> [last accessed Nov. 2, 2020]). In 2015, more than 100 people were shot and killed by police after traffic stops (Wesley Lowery, *A disproportionate number of black victims in fatal traffic stops*, Wash Post, Dec. 24, 2015, available at <https://www.washingtonpost.com/national/a-disproportionate-number-of-black-victims-in-fatal-traffic-stops/2015/12/24/c29717e2-a344-11e5-9c4e-be37f66848bb>

* The exclusionary rule, at its core, is a method of deterrence (*People v Payton*, 51 NY2d 169, 175 [1980]). It protects not only the rights of the accused but, through its operation in criminal cases, yours and mine as well.

_story.html; *see also* Allegra M. McLeod, *Police Violence, Constitutional Complicity, and Another Vantage*, 2016 Sup Ct Rev 157, 162 [2016] [“Increased exposure to (traffic) stops increases the risk that encounters will escalate to the sort of violence that led to (Philando) Castile’s death”]; Abby Ohlheiser & Abby Phillip, *‘I will light you up!’: Texas officer threatened Sandra Bland with Taser during traffic stop*, Wash Post, July 22, 2015, available at <https://www.washingtonpost.com/news/morning-mix/wp/2015/07/21/much-too-early-to-call-jail-cell-hanging-death-of-sandra-bland-suicide-da-says/> [detailing how Sandra Bland, who died in police custody, was threatened and assaulted after an officer stopped her for a minor traffic violation]).

If we are going to adopt a *per se* rule, we should choose one that minimizes illegal stops by requiring suppression in every case where the officer acts without authority under the law. That would further public safety by incentivizing officers to know the laws that they are obligated to enforce and ensure that motorists who comply with the rules of the road do not have to fear being pulled over for no good reason.

Chief Judge DiFIORE and Judges STEIN, FAHEY, GARCIA and FEINMAN concur, Judges STEIN, FAHEY and GARCIA in a concurring memorandum and Chief Judge DiFIORE and Judge FEINMAN in a separate concurring opinion by Judge FEINMAN; Judge WILSON dissents in an opinion, in which Judge RIVERA concurs in part in a separate dissenting opinion.

[163 NE3d 49, 139 NYS3d 118]

US BANK NATIONAL ASSOCIATION, as Trustee for DEUTSCHE ALT-A SECURITIES MORTGAGE LOAN TRUST, SERIES 2007-2 MORTGAGE PASS-THROUGH CERTIFICATES, Respondent, v KENYATTA NELSON et al., Appellants, et al., Defendants.

Argued November 17, 2020; decided December 17, 2020

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered January 23, 2019. The Appellate Division affirmed an order of the Supreme Court, Kings County (Noach Dear, J.), which had (1) granted plaintiff’s motion for a judgment of foreclosure and sale, and (2) denied the cross mo-

tion of defendants Kenyatta Nelson and Safiya Nelson pursuant to CPLR 3211 (a) and RPAPL 1303 to dismiss the complaint insofar as asserted against them. The following question was certified by the Appellate Division: “Was the opinion and order of this Court dated January 23, 2019, properly made?”

US Bank N.A. v Nelson, 169 AD3d 110, affirmed.

HEADNOTE

Parties — Standing — Waiver of Objections

In an action to foreclose a mortgage, defendant mortgagors failed to raise standing in their answers or in pre-answer motions as required by CPLR 3211 (e) and accordingly, under the law in effect at the time of the orders appealed from, the defense was waived. Under the circumstances, Supreme Court did not err in granting plaintiff’s motions for summary judgment and for a judgment of foreclosure and sale.

APPEARANCES OF COUNSEL

Gallet Dreyer & Berkey, LLP, New York City (*Jared B. Foley* and *David T. Azrin* of counsel), for appellants.

Hogan Lovells US LLP, Washington, D.C. (*Katherine Wellington*, *Chava Brandriss* and *Matthew J. Higgins* of counsel) and New York City (*Allison J. Schoenthal* of counsel), for respondent.

Yolande I. Nicholson, P.C., Brooklyn (*Yolande I. Nicholson* of counsel), and *Petroff Amshen LLP*, Brooklyn (*Serge F. Petroff* of counsel), for New York Foreclosure Defense Bar, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

We conclude that, under the circumstances of this case, Supreme Court did not err in granting plaintiff’s motions for summary judgment and for a judgment of foreclosure and sale. Defendants failed to raise standing in their answers or in pre-answer motions as required by CPLR 3211 (e) and accordingly, under the law in effect at the time of the orders appealed from, the defense was waived (*see Matter of Fossella v Dinkins*, 66 NY2d 162, 167 [1985]). Defendants’ argument that ownership is an essential element of a foreclosure action, raised for the first time in support of their motion for reargument at the Appellate Division, is unpreserved for our review. We do not reach the issue of whether RPAPL 1302-a, enacted while this appeal was pending, affords defendants an opportunity to raise stand-

ing at this stage of the litigation. Defendants are free to apply to the trial court for any relief that may be available to them under that statute.

WILSON, J. (concurring). The dispute here, which has roiled the lower courts, arises from a simple misnomer. Whether a plaintiff is a party to a contract—and therefore can sue for breach of contract—is not a question of “standing.” New York law suggests that true standing must be pleaded as an affirmative defense. But whether a plaintiff is a party to a contract and, therefore, can sue for breach, is not a question of standing—it is an essential element of a plaintiff’s claim, which must be pleaded affirmatively in a complaint. A promissory note is a contract. A suit to recover on a note or to foreclose on a mortgage securing that note is a contract action. Installment notes secured by a mortgage—which are what people commonly use to buy homes and other real property, and what is at issue here—have existed for centuries. It is only recently that the New York courts have used the term “standing” to refer to whether the plaintiff in a foreclosure action is a party to the contract (or other person with the right to enforce the contract).¹ The dispute and confusion as to whether the borrower must plead “lack of standing” as an affirmative defense arises purely from the misuse of the word “standing” to relate to the question of whether the plaintiff is the holder of the note.

Recognizing that borrowers have been saddled by this terminological mishap, the legislature stepped in, first in 2013, and again in 2019. In 2013, the legislature required that a plaintiff suing to foreclose on a home mortgage must “includ[e] the mortgage, security agreement and note or bond underlying the mortgage executed by defendant and all instruments of as-

1. NY UCC 3-301 and 1-201 (21) provide that a holder is entitled to enforce a negotiable instrument, which can include: (i) the person in possession of the negotiable instrument that is payable either to bearer or to an identified person that is the person in possession, (ii) the person in possession of a negotiable tangible document of title if the goods are deliverable either to bearer or to the order of the person in possession, or (iii) the person in control of a negotiable electronic document of title (*see also* American Law Institute & National Conference of Commissioners on Uniform State Laws, Report of the Permanent Editorial Board for the Uniform Commercial Code: Application of the Uniform Commercial Code to Selected Issues Relating to Mortgage Notes at 4-7 [Nov. 14, 2011]). For simplicity’s sake, I will refer to all persons legally able to enforce a negotiable instrument as “holders” or “owners.”

signment” (CPLR 3012-b [a]).² Last December, the legislature, addressing the forfeitures caused by the courts’ misuse of “standing,” directed that the so-called issue of “standing” in foreclosure actions related to a home loan may be raised at any time prior to the entry of a judgment of foreclosure (RPAPL 1302-a, as added by L 2019, ch 739, § 1 [eff Dec. 23, 2019]). The legislature further directed that the legislation apply immediately, which would include this case. In truth, the legislation is unnecessary, because a plaintiff suing to foreclose on a mortgage or to sue on a promissory note has the affirmative obligation to plead (and prove, if put at issue) that it is the holder of the note forming the basis of the suit.

Here, US Bank’s complaint properly alleged that it was the holder of the note executed by the Nelsons. (The foreclosure action predated CPLR 3012-b’s enactment, so US Bank was not obligated to provide the required documentation when it commenced the foreclosure action.) The Nelsons, whose loan originated with a completely different and unrelated lender, appropriately answered that they lacked knowledge or information as to whether US Bank was the holder of the note under which they were obligated. Under ordinary rules of civil procedure, that answer put US Bank on notice that it would have to prove that it held the note.³

2. The legislation enacting CPLR 3012-b was “introduced at the request of the Chief Judge of the State and the Attorney General” to ensure that before commencing a residential foreclosure action, plaintiff’s counsel “must be assured that the plaintiff . . . holds the instrument of indebtedness in the action” and “must attach to the [complaint or attorney’s] certificate copies of the relevant instruments of indebtedness and any instruments of modification, extension, consolidation and assignment” (Senate Introducer’s Mem, Bill Jacket, L 2013, ch 306 at 11). The Office of Court Administration explained that the legislation was “an appropriate public policy response to the crisis in foreclosure cases” because it would ensure that “all of the instruments of indebtedness underpinning these actions, and all instruments of assignment, if any, are in place at the commencement of the action” (Mem of NY St Unified Ct System, Bill Jacket L 2013, ch 306 at 24, 2013 McKinney’s Session Laws of NY at 2123). The requirements contained in CPLR 3012-b mirror the traditional requirement of “presentment” for the payment of negotiable instruments (Uniform Commercial Code [2002] § 3-501 [b] [2] [i], ULA UCC § 3-501 [b] [2] [i] [2019]; NY UCC 3-505).

3. The Nelsons fully preserved the question of whether their answer was sufficient to put US Bank’s ownership of the note at issue. Supreme Court’s order of December 15, 2015, from which the Nelsons appealed, states: “If Defendant’s [sic] answer were deemed to raise an issue of standing, the Court’s grant of summary judgment resolved that issue. If the issue was not raised by the answer, then the standing defense was waived.” In the Nelsons’ request

(n. cont’d)

I concur in the result here for a reason unrelated to the standing fiasco: in moving for summary judgment, US Bank tendered evidence that it was the holder of the note. The Nelsons did not offer any contrary proof or any argument that the proof was deficient. Accordingly, Supreme Court properly granted summary judgment in favor of US Bank.

I.

Both appellants and respondents frame the pivotal issue in terms of what they refer to as “standing,” by which they mean whether the Nelsons’ denial of US Bank’s assertion that it is the holder of their note was sufficient to put at issue whether US Bank was the holder of the note on which it sued at the time it sued. The actual doctrine of standing has nothing to do with this case—or with any foreclosure action.

Standing comes in two flavors: constitutional and prudential. The former is derived from the Case or Controversy Clause of article III, § 2 of the United States Constitution, and has three elements: injury in fact, causation and redressability (*Lujan v Defenders of Wildlife*, 504 US 555, 560-561 [1992]). The United States Supreme Court has defined injury in fact as “an invasion of a legally protected interest which is (a) concrete and particularized . . . and (b) ‘actual or imminent, not “conjectural” or “hypothetical” ’ ” (*id.* at 560, quoting *Whitmore v Arkansas*, 495 US 149, 155 [1990]). The New York Constitution

for Appellate Division intervention form, they identified the second issue on appeal as: “defendants sufficiently put plaintiff’s lack of standing at issue in their Verified Answers and it was incumbent on the Court to verify whether plaintiff had standing to commence this action.” They repeated that issue in their CPLR 5531 statement in the Appellate Division and in the questions presented in their opening brief to that Court. The Appellate Division’s opening paragraph identified the issue for decision as: “whether, in a mortgage foreclosure action in which the complaint alleges that the plaintiff is the owner and holder of the note and mortgage, the mere denial of that allegation in the answer, without more, is sufficient to assert that the plaintiff lacks standing, thereby preserving that issue for adjudication” (169 AD3d 110, 112 [2019]). That issue, which I discuss at length, is therefore fully preserved. By denying knowledge or information that US Bank had “standing” to sue, the Nelsons directly put at issue whether US Bank was the holder of their note. The purportedly unpreserved question—whether “ownership is an essential element of a foreclosure action” (majority mem at 999)—has been settled for centuries. Tarring the Nelsons for not stating that settled proposition is sophistry: they clearly put at issue whether US Bank held their note.

contains no case or controversy requirement; hence, federal constitutional standing doctrine is of little or no relevance.⁴

In contrast, prudential standing is “not derived from Article III and ‘not exhaustively’ defined” (*Lexmark Int’l, Inc. v Static Control Components, Inc.*, 572 US 118, 126 [2014], quoting *Elk Grove Unified School Dist. v Newdow*, 542 US 1, 12 [2004]; see also 33 Charles Alan Wright et al., *Federal Practice & Procedure—Judicial Review of Administrative Action* § 8343 [Oct. 2020 update]). Though not bound by federal doctrine on prudential standing, our Court has adopted the prudential requirement that “a party must show that the in-fact injury of which it complains . . . falls within the ‘zone of interests,’ or concerns, sought to be promoted or protected by the statutory provision under which the agency has acted” (*Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761, 773 [1991]).⁵

Standing comes into play when parties aim to enforce public—as opposed to private—rights.⁶ The doctrine emerged in response to a growing administrative state and the increasing use of litigation to “enforce public, primarily constitutional values” (William A. Fletcher, *The Structure of Standing*, 98 Yale LJ 221, 225 [1988]). At the height of the *Lochner* era, certain judges, particularly Justice Brandeis, sought to limit judicial intervention in the legislative process and protect Progressive Era legislation from attack (Cass R. Sunstein, *Standing and the Privatization of Public Law*, 88 Colum L Rev 1432, 1437-1438 [1988]; Cass R. Sunstein, *What’s Standing After Lujan? Of Citizen Suits, “Injuries,” and Article III*, 91 Mich L Rev 163, 179 [1992]; see also Daniel E. Ho & Erica L. Ross, *Did Liberal Justices Invent the Standing Doctrine? An Empirical Study of the Evolution of Standing*, 62 Stan L Rev 591 [2010]).

4. Note that state courts are not bound to adhere to federal standing requirements (see e.g. *ASARCO Inc. v Kadish*, 490 US 605, 617 [1989] [“We have recognized often that the constraints of Article III do not apply to state courts, and accordingly the state courts are not bound by the limitations of a case or controversy or other federal rules of justiciability even when they address issues of federal law, as when they are called upon to interpret the Constitution or . . . a federal statute”]; see also Brian A. Stern, *An Argument against Imposing the Federal “Case or Controversy” Requirement on State Courts*, 69 NYU L Rev 77 [1994]).

5. There is a hint in *Society of Plastics* that New York separation of powers concepts might animate a New York doctrine of constitutional standing—an intriguing question not relevant here (77 NY2d at 772-773).

6. Public rights are those “held collectively by the community,” while private rights are those “held by individuals” (F. Andrew Hessick, *Standing, Injury in Fact, and Private Rights*, 93 Cornell L Rev 275, 279-280 [2008]).

In a series of taxpayer standing cases, the U.S. Supreme Court drew on the law of equity, namely the requirement that plaintiffs assert an interest or right that a court of equity could enforce, to reject constitutional challenges to legislation (Steven L. Winter, *The Metaphor of Standing and the Problem of Self-Governance*, 40 Stan L Rev 1371, 1422, 1441-1449 [1988]). Although the term “standing” was employed in the nineteenth century as shorthand for that question, it was not explicitly linked to the case or controversy requirement until Justice Frankfurter’s concurring opinion in *Coleman v Miller* (307 US 433 [1939]) (Winter at 1422, 1449).⁷

The rise of impact litigation at midcentury brought standing back to the forefront of the Supreme Court’s jurisprudence (see generally Abram Chayes, *Public Law Litigation and the Burger Court*, 96 Harv L Rev 4 [1982]).⁸ The major standing cases since the 1960s generally involve private individuals or organizations challenging government policies and practices (see e.g. *Flast v Cohen*, 392 US 83 [1968]; *Schlesinger v Reservists Comm. to Stop the War*, 418 US 208 [1974]; *Los Angeles v Lyons*, 461 US 95 [1983]; *Allen v Wright*, 468 US 737 [1984]; *Clapper v Amnesty Int’l USA*, 568 US 398 [2013]).⁹ Like their predecessors, more recent jurists have expressed concern these suits transformed judges into legislators and violated the separation of powers, a process described by Justice Scalia as the “overjudicialization of the processes of self-governance” (Antonin Scalia, *The Doctrine of Standing as an Essential Element of the Separation of Powers*, 17 Suffolk U L Rev 881, 881 [1983]). The judicial power, they argued, should be restricted to resolving disputes that were “traditionally amenable to, and resolved by, the judicial process” (*Vermont Agency of Natural Resources v United States ex rel. Stevens*, 529 US 765, 774 [2000]). In accordance with that view, the U.S. Supreme Court

7. But see Ann Woolhandler & Caleb Nelson, *Does History Defeat Standing Doctrine?*, 102 Mich L Rev 689 (2004) (arguing that American courts developed an active law of standing in the eighteenth and nineteenth centuries with constitutional dimensions that is consistent with the modern doctrine).

8. Indeed, more than half of the cases considering the doctrine in the Court’s history have been decided since 1985 (Sunstein, *What’s Standing After Lujan? Of Citizen Suits, “Injuries,” and Article III*, 91 Mich L Rev at 169).

9. Separate lines of cases address the standing of legislative actors to sue state agencies (see *INS v Chadha*, 462 US 919 [1983]; *Raines v Byrd*, 521 US 811 [1997]; *Arizona State Legislature v Arizona Independent Redistricting Comm’n*, 576 US 787 [2015]), and states to sue the federal government (see e.g. *Massachusetts v EPA*, 549 US 497 [2007]).

has significantly limited who can bring suit to challenge government action and what kind of relief they can seek (*see e.g. Lujan*, 504 US at 565 [reasoning that profession of an intent to travel to observe endangered species in the future does not support a finding of “actual or imminent” injury sufficient to establish standing]; *Clapper*, 568 US at 415-417 [rejecting argument that human rights activists’ “costly and burdensome measures” to avoid government surveillance constitute an ongoing injury]).

Our decisional law on standing treats it as a prudential issue focused on the enforcement of public rights—typically, whether a plaintiff has suffered some injury and “is arguably within the zone of interest to be protected by the statute” or regulation (*Matter of Dairylea Coop. v Walkley*, 38 NY2d 6, 9 [1975]; *see also Matter of Acevedo v New York State Dept. of Motor Vehs.*, 29 NY3d 202 [2017] [holding plaintiffs had standing to challenge DMV regulation]; *Matter of Sierra Club v Village of Painted Post*, 26 NY3d 301 [2015] [holding plaintiff had standing to challenge governmental land use decision]; *Matter of Colella v Board of Assessors of County of Nassau*, 95 NY2d 401 [2000] [concluding that taxpayers lack standing to challenge tax exemption granted to a temple]). “Standing is a threshold determination, resting in part on policy considerations, that a person should be allowed access to the courts to adjudicate the merits of a particular dispute that satisfies the other justiciability criteria” (*Society of Plastics Indus.*, 77 NY2d at 769). Needless to say, when someone purporting to be a party to a contract sues to enforce that contract, no issue of standing is involved. You’re either a party to the contract or not.

Standing has increasingly been misapplied in cases where private rather than public rights are at issue (*see* 13A Charles Alan Wright et al., *Federal Practice and Procedure—Jurisdiction and Related Matters* § 3531 [Oct. 2020 update] [“The fascination of complex standing doctrine and the concern to observe constitutional limits on the judicial power occasionally lead courts to invoke public-law concepts to resolve concerns that are better addressed through private-law concepts. . . . It would be better to rely directly on cause-of-action, real-party-in-interest, capacity, intervention, and like concepts”]). The U.S. Supreme Court likewise cautioned against confusing standing with the existence of a cause of action:

“[T]he distinct concepts [of standing and cause of action] can be difficult to keep separate. If, for instance, the person alleging injury is remote from the zone of interests a statute protects, whether there is a legal injury at all and whether the particular litigant is one who may assert it can involve similar inquiries . . .

“Still, the question whether a plaintiff states a claim for relief ‘goes to the merits’ in the typical case, not the justiciability of a dispute, and conflation of the two concepts can cause confusion” (*Bond v United States*, 564 US 211, 218-219 [2011] [citation omitted]).

Substituting standing for the proper inquiry confuses the legal principle at issue. This is such a case.

II.

The law of negotiable instruments has been four centuries in the making. The use of negotiable instruments, particularly the bill of exchange, became common in England following Parliament’s repeal of the ban on charging interest in 1623 (Ann M. Burkhart, *Lenders and Land*, 64 Mo L Rev 249, 261 [1999]). Easily transportable and readily exchangeable, the bill of exchange became a stand-in for currency (*id.*). By the close of the seventeenth century, common law had recognized the right of purchasers to enforce bills of exchange, laying the foundation for the doctrine of holder in due course (*id.*). In 1704, the Statute of Anne provided that promissory notes properly indorsed, like bills of exchange, could be enforced by bona fide purchasers, and 60 years later, in *Grant v Vaughan* ([1764] 97 Eng Rep 957, 3 Burr 1516), Lord Mansfield recognized promissory notes as negotiable instruments (Frederick K. Beutel, *The Development of Negotiable Instruments in Early English Law*, 51 Harv L Rev 813, 844 [1938]). The Statute of Anne was adopted by most American states, and when the term “bona fide purchaser” was replaced with “holder in due course” by the English Bills of Exchange Act in 1882, American law followed suit (Burkhart at 263).

Since their inception, negotiable instruments have been understood as contracts, a fact recognized by this Court (*Oddo Asset Mgt. v Barclays Bank PLC*, 19 NY3d 584, 593 [2012] [“A debtor and creditor have no special relationship of confidence and trust . . . and the relationship is generally controlled by

contract”]; *see also* NY UCC 3-119, Comment 3 [“As between the immediate parties a negotiable instrument is merely a contract”]). Holders of notes sue for breach of contract when the borrower fails to pay.

Negotiable instruments differ from other contracts in a way germane to this case: ordinarily, the parties to a contract remain static and are known to each other. Negotiable instruments by definition are meant to be bought, sold and traded, so that the “drawer” or “obligor” on the note (the person who promises to pay back the money) may not, down the road, have any idea who holds the note and, consequently, to whom the money is presently owed. When a negotiable instrument is an installment note, such as a typical home mortgage, the persons entitled to receive the payments may change over time, even repeatedly. For that reason, proof that the plaintiff is the current holder of the defendant’s note is much more frequently at issue in suits involving negotiable instruments than suits involving other types of contracts.

The law governing that determination is not our jurisprudence on standing but rather the law of negotiable instruments, codified in New York’s Uniform Commercial Code. NY UCC 3-301 makes it clear that the holder of the note is entitled to enforce it, and so courts must determine whether the plaintiff is in “possession of a negotiable instrument that is payable either to bearer or to an identified person that is the person in possession” (NY UCC 1-201 [b] [21] [A]). A purchaser of a note becomes the holder through negotiation (NY UCC 3-202). “If the instrument is payable to order it is negotiated by delivery with any necessary indorsement; if payable to bearer it is negotiated by delivery” (*id.* § 3-202 [1]). Therefore, the issue of what documentation is necessary to establish a plaintiff’s right to demand payment on a negotiable instrument is properly understood as a question of whether the note in question has been *negotiated* such that the plaintiff becomes the holder (*see* 80 NY Jur 2d, Negotiable Instruments and Other Commercial Paper § 269 [“The mere possession of a promissory note endorsed in blank, just like a check, provides presumptive ownership of that note by the current holder; such is the foundation of negotiable instruments law. Assuming that execution of a negotiable instrument if put in issue has been proved, its possession and production at the trial of the action to enforce it is sufficient *prima facie* proof of the plaintiff’s

ownership. This is the rule applicable to an instrument payable to bearer or indorsed in blank”)).¹⁰

Our seminal jurisprudence in this area does not reference standing, instead framing the question whether the plaintiff has produced proof that the negotiable instrument had been assigned to it (*Merritt v Bartholick*, 36 NY 44, 45 [1867] [holding that third-party assignee of mortgage “obtained no interest in the mortgage” in the absence of the assignment of the bond]; *Payne v Wilson*, 74 NY 348, 354-355 [1878] [reasoning that plaintiff who was not expressly assigned mortgage had right to foreclose because an “assignment of the debt transferred the interest of the owner of it in the land mortgaged”]; *Bergen v Urbahn*, 83 NY 49, 50 [1880] [concluding that plaintiff who failed to produce the note “was not entitled to recover”]). As recently as 1998, the Appellate Division affirmed the dismissal of a foreclosure action on the grounds that plaintiff “had no legal or equitable interest” in a mortgage that had been assigned to a third party; the Court did not mention standing (*Katz v East-Ville Realty Co.*, 249 AD2d 243 [1st Dept 1998]; see also *Kluge v Fugazy*, 145 AD2d 537, 538 [2d Dept 1988] [“The plaintiff’s first and second causes of action for foreclosure and a deficiency judgment, respectively, must fail since foreclosure of a mortgage may not be brought by one who has no title to it and absent transfer of the debt, the assignment of the mortgage is a nullity”]).

III.

Although New York courts occasionally used the term “standing” to refer to the question of whether a plaintiff is the holder of a note prior to the financial crisis of 2008,¹¹ the vast majority of such cases arose in its aftermath. Borrowers began to raise “standing” as a defense in part because the process of securitization, particularly the transfer of notes and mortgages to new entities, made it more difficult to ascertain the identity of the noteholder at the time of default (see e.g. *U.S. Bank, N.A. v Collymore*, 68 AD3d 752 [2d Dept 2009]; see also Adam J. Levi-

10. The key issue in *JPMorgan Chase Bank, N.A. v Caliguri* is described by the Court as whether the plaintiffs met their burden of showing they had standing to foreclose (36 NY3d 953 [2020] [decided today]). For the reasons set out herein, the issue in that case is also not one of standing, but whether JPMorgan Chase was the holder of the note in question and therefore had the right to enforce it.

11. See e.g. *Slutsky v Blooming Grove Inn*, 147 AD2d 208, 211-212 (2d Dept 1989).

tin, *The Paper Chase: Securitization, Foreclosure, and the Uncertainty of Mortgage Title*, 63 Duke LJ 637 [2013]; Mark C. Dillon, *Unsettled Times Make Well-Settled Law: Recent Developments in New York State's Residential Mortgage Foreclosure Statutes and Case Law*, 76 Alb L Rev 1085 [2013]).

The Nelsons' case is an archetypical illustration of the uncertainty generated by the securitization process. The Nelsons initially executed a note in favor of Knightsbridge Mortgage Bankers, and a mortgage in favor of the Mortgage Electronic Registration Systems (MERS). MERS is a private mortgage registry system created in the early 1990s to track ownership and servicing interests in mortgages, thereby reducing the transaction costs that arise from registering mortgages in public land records systems (Levitin at 649, 677-676).¹² The note changed hands at least twice, passing from Knightsbridge to Wells Fargo before it was indorsed in blank and sold, according to the plaintiffs, to the Deutsche Alt-A Securities Mortgage Loan Trust, of which US Bank is the trustee.

In the past decade, New York courts have firmly adopted the mistaken use of the word "standing" to refer to questions about whether the plaintiff in a foreclosure action holds the defendant's note. The consequence of that mislabeling has caused many courts to hold that the note's obligor (the homeowner, typically) must plead "lack of standing" as an affirmative defense (see e.g. *Security Pac. Natl. Bank v Evans*, 31 AD3d 278 [1st Dept 2006]; *Wells Fargo Bank Minn., N.A. v Mastropaolo*, 42 AD3d 239, 244 [2d Dept 2007]; *Nationstar Mtge., LLC v Alling*, 141 AD3d 916, 917 [3d Dept 2016]; *JPMorgan Chase Bank, N.A. v Kobee*, 140 AD3d 1622, 1623 [4th Dept 2016]), while others have held the contrary (*Nationstar Mtge., LLC v Wong*, 132 AD3d 825, 826 [2d Dept 2015]; *US Bank N.A. v Faruque*, 120 AD3d 575, 576 [2d Dept 2014]).

As to true, prudential standing, although some cases hold otherwise, the weight of the authority suggests that standing must be pleaded as an affirmative defense (see *Matter of Santoro v Schreiber*, 263 AD2d 953, 953 [4th Dept 1999] ["Respondents waived any objection to petitioner's standing because they did not raise the defense of lack of standing either in a preanswer motion or in their responsive pleadings"]; *Matter of*

12. See also *Matter of MERSCORP, Inc. v Romaine*, 8 NY3d 90, 104 (2006, Kaye, Ch. J., dissenting in part) (arguing MERS "may also function, perhaps unintentionally, to insulate a noteholder from liability, mask lender error and hide predatory lending practices").

Klein v Garfinkle, 12 AD3d 604, 605 [1st Dept 2004] [(A)s the issue of standing was not raised as an affirmative defense in an answer or in the pre-answer motions to dismiss the petition, the issue was waived”]; *see also* 3 Carmody-Wait 2d § 19:10 [Nov. 2020 update]).¹³ The prevailing view that true standing must be pleaded as an affirmative defense, when combined with the misuse of “standing” in mortgage foreclosure actions, has led courts to hold that the failure of a homeowner to plead affirmatively the plaintiff is not the noteholder waives any challenge on that issue. Courts now regularly and erroneously describe that issue as “standing,” when the question really is whether the plaintiff holds the note, and therefore possesses a cause of action.

CPLR 3018 (b), which governs affirmative defenses, reads:

“A party shall plead all matters which if not pleaded would be likely to take the adverse party by surprise or would raise issues of fact not appearing on the face of a prior pleading such as arbitration and award, collateral estoppel, culpable conduct claimed in diminution of damages as set forth in article fourteen-A, discharge in bankruptcy, facts showing illegality either by statute or common law, fraud, infancy or other disability of the party defending, payment, release, *res judicata*, statute of frauds, or statute of limitation. The application of this subdivision shall not be confined to the instances enumerated.”

A fundamental requirement of any breach-of-contract action is for the plaintiff to allege that it is a party to the contract (or has acquired the rights of a party). Moreover, whatever arguments might be made about whether CPLR 3018 (b) requires true standing to be pleaded as an affirmative defense, the chain

13. Our decisions in *Matter of Fossella v Dinkins* (66 NY2d 162 [1985]) and *Dougherty v City of Rye* (63 NY2d 989 [1984]) have been cited as holding that true standing must be pleaded as an affirmative defense (*see e.g.* David D. Siegel & Patrick M. Connors, *New York Practice* § 223 [6th ed 2018]). However, those decisions hold that review by our Court was “waived” by the failure to raise standing in either an affirmative defense or in a CPLR 3211 motion. Those decisions do not expressly hold that standing must be pleaded as an affirmative defense. Indeed, because the issue of standing was not raised in the court of instance in those cases, our preservation rules would prevent us from making any holding about the need to plead standing as an affirmative defense unless, of course, standing was jurisdictional, but in that case it could not have been waived. Those holdings do, however, confirm that our standing doctrine is prudential, not jurisdictional.

of indorsements on a note entitling the plaintiff to foreclose on a mortgage is nothing that would take the plaintiff by surprise—it is information principally in the possession of the plaintiff and often unknown to the defendant. CPLR 3012-b expressly recognizes that fact by requiring the noteholder to provide proof of ownership of the note at the time it commences an action.

In any event, given the holdings of numerous courts that the failure to plead lack of standing as an affirmative defense in mortgage foreclosure actions disabled borrowers from determining whether the plaintiff really was the present noteholder, the legislature modified the Real Property Actions and Proceedings Law. Adopting the “standing” language pervasive in recent judicial decisions, the RPAPL now provides that “any objection or defense based on the plaintiffs lack of standing in a foreclosure proceeding related to a home loan . . . shall not be waived if a defendant fails to raise the objection or defense in a responsive pleading or pre-answer motion to dismiss” (§ 1302-a). As warned by the Supreme Court in *Bond*, misapplication of the standing doctrine confuses a merits question—whether the plaintiff holds the note and, as such, has the right to enforce it—with a threshold determination of justiciability. Our legislature has intervened twice to undo that confusion.

IV.

Returning to the question at the crux of this case, US Bank affirmatively pleaded that a mortgage executed by the Nelsons as security for a \$660,000 loan had been assigned to it in its capacity as trustee for Deutsche Alt-A Securities Mortgage Loan Trust Series 2007-2 in August of 2009 and that it was the holder of the Nelsons’ note. Ordinary rules of pleading in contract actions required US Bank to do so. The Nelsons answered that they lacked “knowledge or information sufficient to form a belief as to the truth of the allegations” as to US Bank’s allegation that it held the note and mortgage. It is hardly surprising that the Nelsons did not know whether their note had been negotiated, and US Bank cannot possibly claim surprise that its ownership of the note and mortgage was put to proof (*see* 80 NY Jur 2d, Negotiable Instruments and Other Commercial Paper § 700 [“As in other actions, a general denial usually puts in issue every material allegation on the complaint on a negotiable instrument. It goes to the root of the cause of action and permits the introduction of any proper evidence tending to controvert the facts which the plaintiff must estab-

lish to sustain his or her case”]). Indeed, US Bank understood that its ownership of the note and mortgage was at issue, and tendered proof of such when it moved for summary judgment. Because the question of whether US Bank is the holder of a negotiable instrument has nothing to do with standing and is, instead, an essential element of the holder’s claim the Nelsons were not required to raise it as an affirmative defense.¹⁴ In this case, the issue of whether the plaintiff was the noteholder was properly before the court in exactly the way it should have been raised.

However, the Nelsons have an unrelated, dispositive problem. When US Bank moved for summary judgment, it attached the Nelsons’ note, indorsed in blank, the mortgage, and the assignment of the mortgage. Doing so established, *prima facie*, US Bank’s right to judgment as a matter of law. To defeat US Bank’s motion for summary judgment, the Nelsons were required to adduce admissible facts controverting US Bank’s proof of ownership (*see e.g. Deutsche Bank Natl. Trust Co. v Monica*, 131 AD3d 737, 740 [3d Dept 2015]). That they utterly failed even to attempt to do. US Bank, therefore, was entitled to summary judgment.

Although I can join neither the majority’s rationale nor the numerous courts’ mistaken treatment of negotiable instrument ownership as a question of standing, I concur in the result.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and FEINMAN concur; Judge WILSON concurs in result in an opinion.

Order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

14. Note that under NY UCC 3-505 (1), a party to whom presentment of a negotiable instrument is made “may without dishonor require (a) exhibition of the instrument; and (b) reasonable identification of the person making presentment and evidence of his authority to make it if made for another.” The UCC also provides that “[f]ailure to comply with any such requirement invalidates the presentment but the person presenting has a reasonable time in which to comply and the time for acceptance or payment runs from the time of compliance” (NY UCC 3-505 [2]).

[164 NE3d 239, 140 NYS3d 433]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE L. BISONO, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREVIS D. BAKER, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEFFREY R. MAGEE, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSHUA L. MILLER, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD DANIELS, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ZESTRA HARDIN, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NOLIS OGANDO, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSHUA D. BIASELLI, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISAIAS TORRES, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE RODRIGUEZ, Appellant.

Decided December 15, 2020

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 23, 2019. The Appellate Division affirmed a sentence of the Supreme Court, Queens County (Stephen A. Knopf, J.), imposed following defendant's conviction, upon his plea of guilty, of attempted burglary in the second degree.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered August 22, 2019. The Appellate Division affirmed a judgment of the Orleans County Court (James P. Punch, J.), which had convicted defendant, upon his plea of guilty, of attempted criminal sale of a controlled substance in the third degree.

APPEAL, in the third above-entitled action, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered September 27, 2019. The Appellate Division affirmed a judgment of the Orleans County Court (James P. Punch, J.), which had convicted defendant, upon his plea of guilty, of attempted criminal possession of a controlled substance in the third degree.

APPEAL, in the fourth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 15, 2019. The Appellate Division affirmed a judgment of the Orleans County Court (James P. Punch, J.), which had convicted defendant, upon his plea of guilty, of attempted criminal possession of a controlled substance in the second degree.

APPEAL, in the fifth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 25, 2019. The Appellate Division affirmed a sentence of the Supreme Court, Kings County (Vincent M. Del Giudice, J.), imposed following defendant's conviction, upon his plea of guilty, of criminal possession of a weapon in the second degree.

APPEAL, in the sixth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 27, 2019. The Appellate Division affirmed a sentence of the Supreme Court, Queens County (Gia L. Morris, J.), imposed following defendant's conviction, upon his plea of guilty, of attempted burglary in the second degree.

APPEAL, in the seventh above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 18, 2019. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Joseph A. Zayas, J.), which had convicted defendant, upon his plea of guilty, of gang assault in the first degree.

APPEAL, in the eighth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth

Judicial Department, entered January 31, 2020. The Appellate Division affirmed a judgment of the Orleans County Court (Sara Sheldon, J.), which had convicted defendant, upon his plea of guilty, of driving while intoxicated.

APPEAL, in the ninth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 29, 2020. The Appellate Division affirmed two judgments of the Supreme Court, Queens County (Gia L. Morris, J.), each of which had convicted defendant, upon his plea of guilty, of burglary in the third degree.

APPEAL, in the tenth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 23, 2019. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Joseph A. Zayas, J.), which had convicted defendant, upon his plea of guilty, of attempted criminal possession of a weapon in the second degree.

People v Bisoño, 176 AD3d 1092, reversed.

People v Baker, 175 AD3d 1113, reversed.

People v Magee, 175 AD3d 1824, reversed.

People v Miller, 177 AD3d 1397, reversed.

People v Daniels, 175 AD3d 1551, reversed.

People v Hardin, 177 AD3d 1001, reversed.

People v Ogando, 178 AD3d 955, reversed.

People v Biaselli, 179 AD3d 1533, reversed.

People v Torres, 179 AD3d 1102, reversed.

People v Rodriguez, 176 AD3d 1111, reversed.

HEADNOTE

Crimes — Appeal — Validity of Appeal Waiver

In 10 unrelated criminal prosecutions, in which each defendant pleaded guilty to a particular crime, the waivers of the right to appeal accompanying the guilty pleas were invalid and unenforceable pursuant to the analysis in *People v Thomas* (34 NY3d 545 [2019]). In each case the rights encompassed by an appeal waiver were mischaracterized during the oral colloquy and in written forms executed by defendants, which indicated the waiver was an absolute bar to direct appeal, failed to signal that any issues survived the waiver, and, in certain cases, advised that the waiver encompassed collateral relief on certain nonwaivable issues in both state and federal courts. Viewing the deficiencies in the context of the record in each case and considering the totality of the circumstances, including in several cases defendants' significant mental health issues, it could not be said that defendants comprehended

the nature and consequences of the waiver of appellate rights. Accordingly, each Appellate Division order was reversed and the cases remitted for consideration of issues raised but not decided on the appeal to that Court due to the enforcement of defendants' appeal waivers.

APPEARANCES OF COUNSEL

Paul Skip Laisure, Appellate Advocates, New York City (*A. Alexander Donn* of counsel), for appellant in the first above-entitled action.

Melinda Katz, District Attorney, Kew Gardens (*Christopher Blira-Koessler* of counsel), for respondent in the first above-entitled action.

Legal Aid Bureau of Buffalo, Inc., Buffalo (*James M. Specyall* of counsel), for appellant in the second above-entitled action.

Joseph V. Cardone, District Attorney, Albion (*Susan M. Howard* of counsel), for respondent in the second above-entitled action.

Legal Aid Bureau of Buffalo, Inc., Buffalo (*James M. Specyall* of counsel), for appellant in the third above-entitled action.

Joseph V. Cardone, District Attorney, Albion, for respondent in the third above-entitled action.

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Kaixi Xu* of counsel), for appellant in the fourth above-entitled action.

Joseph V. Cardone, District Attorney, Albion (*Susan M. Howard* of counsel), for respondent in the fourth above-entitled action.

Paul Skip Laisure, Appellate Advocates, New York City (*Benjamin Welikson* of counsel), for appellant in the fifth above-entitled action.

Eric Gonzalez, District Attorney, Brooklyn (*Denise Pavlides* of counsel), for respondent in the fifth above-entitled action.

The Legal Aid Society, New York City (*Simon Greenberg* of counsel), for appellant in the sixth above-entitled action.

Melinda Katz, District Attorney, Kew Gardens (*Danielle S. Fenn* of counsel), for respondent in the sixth above-entitled action.

Paul Skip Laisure, Appellate Advocates, New York City (*Alice R. B. Cullina* of counsel), for appellant in the seventh above-entitled action.

Melinda Katz, District Attorney, Kew Gardens (*Danielle S. Fenn* of counsel), for respondent in the seventh above-entitled action.

The Abbatoey Law Firm, PLLC, Rochester (*David M. Abbatoey, Jr.* of counsel), for New York State Association of Criminal Defense Lawyers and others, amici curiae in the seventh above-entitled action.

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Allyson Kehl-Wierzbowski* of counsel), for appellant in the eighth above-entitled action.

Respondent in the eighth above-entitled action, precluded.

The Legal Aid Society, New York City (*Dalourny Nemorin* of counsel), for appellant in the ninth above-entitled action.

Melinda Katz, District Attorney, Kew Gardens (*William H. Branigan* of counsel), for respondent in the ninth above-entitled action.

Paul Skip Laisure, Appellate Advocates, New York City (*Sean Nuttal* of counsel), for appellant in the tenth above-entitled action.

Melinda Katz, District Attorney, Kew Gardens (*Rachel N. Houle* of counsel), for respondent in the tenth above-entitled action.

The Abbatoey Law Firm, PLLC, Rochester (*David M. Abbatoey, Jr.* of counsel), for New York State Association of Criminal Defense Lawyers and others, amici curiae in the tenth above-entitled action.

OPINION OF THE COURT

MEMORANDUM.

In each appeal, the order of the Appellate Division should be reversed and the case remitted to that Court for further proceedings in accordance with this memorandum.

The waivers of the right to appeal were invalid and unenforceable pursuant to our analysis in *People v Thomas* (34 NY3d 545 [2019]). It is well-settled that “a waiver of the right to appeal is not an absolute bar to the taking of a first-tier direct appeal” (*id.* at 558, citing *People v Seaberg*, 74 NY2d 1, 11 [1989]; *People v Callahan*, 80 NY2d 273, 280 [1992]; *People v Hansen*, 95 NY2d 227, 230-231 [2000]). Nonetheless, in each case, among other infirmities, the rights encompassed by an appeal waiver were mischaracterized during the oral colloquy and in written forms executed by defendants, which indicated the waiver was an absolute bar to direct appeal, failed to signal that any issues survived the waiver and, in the Queens and Orleans Counties cases, advised that the waiver encompassed

“collateral relief on certain nonwaivable issues in both state and federal courts” (*Thomas*, 34 NY3d at 566), containing language similar to the waivers invalidated in the *Thomas* companion cases, *People v Lang* and *People v Green*. Viewing these deficiencies in the context of the record in each case and considering the totality of the circumstances, including in several cases defendants’ significant mental health issues (see *People v Bradshaw*, 18 NY3d 257, 262, 273 [2011]), we cannot say that “defendant[s] comprehended the nature [and consequences] of the waiver of appellate rights” (*Thomas* at 565-566, quoting *People v Lopez*, 6 NY3d 248, 256-257 [2006]).* Accordingly, we reverse and remit to the Appellate Division for consideration of issues raised but not decided on the appeal to that Court due to the enforcement of defendants’ appeal waivers.

In *People v Torres* and *People v Biaselli*, defendants’ challenges to the Appellate Division’s resolution of other issues (relating to an order of protection and a sentencing promise, respectively), which are not preserved, are beyond further review by this Court.

GARCIA, J. (dissenting in *People v Daniels* and otherwise concurring in result). In each of the 10 cases under review here, the Appellate Division upheld the validity of the defendant’s waiver of the right to appeal. Today, we reverse all 10 of those decisions. The rules changed. As the majority decision makes clear, the waivers in these cases are now “invalid and unenforceable pursuant to our analysis in *People v Thomas* (34

* In *People v Daniels*, we disagree with the dissent’s opinion that the oral colloquy “compares favorably” to that in *People v Ramos* (7 NY3d 737 [2006]) or that the court “acknowledged” that an unlawful sentence claim could be appealed (Garcia, J., partially dissenting op at 1025). While the written waiver contained no affirmative misstatements, the form cannot be viewed in isolation but is only one component to be considered in the totality of the circumstances, which, in this case, also included—not merely ambiguous statements or shorthand pronouncements—but clearly inaccurate advisements concerning (among other things) a purported waiver of the right to counsel and a vulnerable defendant with a serious mental health condition. It is the partial dissent that appears to have eschewed an “individual assessment of the voluntariness of . . . defendant’s waiver” (Garcia, J., partially dissenting op at 1019) by analyzing each component in a vacuum. While we express no view concerning whether our precedent was properly applied in the litany of Appellate Division cases cited by our colleague (which are not before us), even a cursory review of the landscape reveals that, in the wake of *Thomas*, the Appellate Division is upholding some appeal waivers and deeming others unenforceable based on the totality of the circumstances, an approach we reaffirmed in *Thomas* and follow in these cases.

NY3d 545 [2019])” (majority mem at 1017). *Thomas* did indeed drastically change New York’s approach to appeal waivers, for the most part making any individual assessment of the voluntariness of each defendant’s waiver irrelevant. While I continue to disagree with the majority’s reasoning in *Thomas*, I agree that it controls here in nine of the cases and, in those nine, I concur in result. In the tenth case, *People v Daniels*, the majority goes beyond what even *Thomas* requires, essentially closing off one of the few remaining avenues for appellate courts to uphold voluntary waivers of the right to appeal. In *Daniels*, therefore, I dissent.

I.

In *People v Thomas*, this Court wrote reassuringly that “[o]ur primary task is to determine whether, under the circumstances of each case, the mischaracterizations impacted the knowing and voluntary nature of the three appeal waivers” at issue (34 NY3d at 552). We maintained that we were simply “[a]dhering to our well-established precedent in reviewing the validity of appeal waivers” in upholding the waiver in one case and holding the waivers invalid in the other two (*id.*).¹ In dissent, I expressed concern that we were abandoning our “sensible standard” for evaluating appeal waivers and substituting an approach that “examines whether the trial court’s description of the waiver was ‘improper’ or somehow ‘irredeemable under the circumstances’ ” (*id.* at 573 [Garcia, J., dissenting]). I anticipated that “[a]ny waiver resembling those in *Green* and *Lang* [would be] prone to attack” (*id.* at 585; see majority mem at 1018 [waivers rejected in the 10 cases here “contain() language similar to the waivers invalidated in the *Thomas* companion cases, *People v Lang* and *People v Green*”]). This, in turn, would unravel defendants’ bargains, undermine the finality of their convictions, and enlarge the case load of our already burdened appellate courts (*Thomas*, 34 NY3d at 585-586 [Garcia, J., dissenting]). *Thomas* has taken the predictable toll.

1. Both convictions were affirmed after remittal to the Appellate Division (see *People v Lang*, 178 AD3d 1362, 1363 [4th Dept 2019] [holding that the defendant’s contention that he was improperly denied youthful offender status was unpreserved and, in any event, without merit]; *People v Green*, 178 AD3d 1354, 1355 [4th Dept 2019] [holding that the defendant’s sentence was not unduly harsh or severe]).

II.

In the year since the case was decided, appellate courts in New York, citing *Thomas*, have invalidated 90 appeal waivers.²

It is clear to the Appellate Division Departments that the rules have changed:

“We have previously held that an overbroad appeal waiver would remain knowing, intelligent and voluntary, but that any nonwaivable rights would be ‘excluded from [its] scope’ (*People v Gruber*, 108 AD3d 877, 878 [2013], *lv denied* 22 NY3d 956 [2013]; see *People v Norton*, 9 AD3d 741, 742 [2004]; *People v Wagoner*, 6 AD3d 985, 986 [2004]; *People v Umber*, 2 AD3d 1051, 1052 [2003], *lv denied* 2 NY3d 747 [2004]). The Court of Appeals has recently advised, however, that an appeal waiver is not ‘knowingly or voluntarily made in the face of erroneous advisements warning of absolute bars to the pursuit of all potential remedies, including those affording collateral relief on certain nonwaivable issues in both state and federal courts’ (*People v Thomas*, 34 NY3d 545, 566 [2019]). Accordingly, we are constrained to hold that defendant’s appeal waivers are invalid given the confusion as to their impact” (*People v Barrales*, 179 AD3d 1313, 1314-1315 [3d Dept 2020]).

In another example, the Appellate Division, having previously upheld an appeal waiver, vacated that order after *Thomas* was decided, and instead held that same appeal waiver invalid because the trial court “mischaracterized the appellate rights waived as encompassing an absolute bar to the taking of a direct appeal, and failed to inform the defendant that appellate review remained available for certain issues” (*People v Robinson*, 189 AD3d 893, 894 [2d Dept 2020], *vacating* 184 AD3d 779 [2d Dept 2020]).

The effect can also be seen in the general approach taken by appellate courts in finding waivers invalid. Rather than engage in an assessment of the voluntariness of the individual waiver, courts attempt to apply the “checklist of errors” identified in *Thomas*. Unfortunately, other than identifying “errors,” that case offers no guidance as to how to assess those misstatements in determining whether the waiver is somehow “ir-

2. Citations to those cases are set forth in an appendix to this writing.

redeemable” (see *Thomas*, 34 NY3d at 584 [Garcia, J., dissenting] [noting that the majority holding “leaves lower courts with an unfamiliar and undefined new framework”]). The list includes statements that “defendants’ waivers would (1) operate as ‘an absolute bar to the taking of a direct appeal,’ (2) result in a ‘loss of attendant rights to counsel and poor person relief,’ and (3) impact defendants’ ‘postconviction relief separate from the direct appeal’ ” (*id.* at 577, quoting *id.* at 565 [majority op]).

Appellate courts, without further guidance as to how to weigh these “misstatements,” have in many cases identified a single—now fatal—flaw in the waiver process with only a passing reference to our decision in *Thomas*. For example, in *People v Dixon* (184 AD3d 854, 855 [2d Dept 2020], *lv denied* 35 NY3d 1065 [2020]), the Court noted that,

“[w]hen explaining the waiver of the right to appeal, the Supreme Court stated to the defendant, ‘[s]o what this means is you’re not going to have any help or any lawyer to help you effect an appeal on the conviction or any lawful sentence that I impose [and] [n]obody is going to provide you with transcripts or any other help.’ ”

In invalidating the waiver, the Court held that “[t]hese statements ‘utterly mischaracterized the nature of the right a defendant was being asked to cede’ ” (*id.*, quoting *Thomas*, 34 NY3d at 565 [some internal quotation marks omitted]; see also *People v Brown*, 180 AD3d 1341, 1341 [4th Dept 2020] [finding the waiver “irredeemable” under *Thomas* because “the court erroneously informed defendant that, by waiving the right to appeal, he could obtain no further review of the conviction or sentence by a higher court—crucially omitting any mention of the several rights that survive the waiver of the right to appeal”], *lv denied* 35 NY3d 968 [2020]; *People v Sealey*, 187 AD3d 1067, 1067 [2d Dept 2020] [“The defendant’s purported waiver of his right to appeal was invalid because the County Court’s oral colloquy mischaracterized the appellate rights waived as encompassing a bar to filing an appellate brief and the loss of attendant rights to counsel and poor person relief”]; *People v Walder*, 186 AD3d 1272, 1272 [2d Dept 2020] [“The defendant’s purported waiver of his right to appeal was invalid because the County Court’s colloquy mischaracterized the appellate rights waived as encompassing a bar to filing an appellate brief and the loss of attendant rights to counsel and poor person relief”];

Robinson, 189 AD3d at 894 [similar]; *People v Thomas*, 189 AD3d 897, 898 [2d Dept 2020] [similar]; *People v Pellew*, 187 AD3d 1060, 1060 [2d Dept 2020] [similar]; *People v Leiva*, 184 AD3d 731, 731 [2d Dept 2020] [similar], *lv denied* 35 NY3d 1067 [2020]; *People v Baptiste*, 181 AD3d 696, 696 [2d Dept 2020] [similar], *lv denied* 35 NY3d 1092 [2020]; *People v Suarez-Montoya*, 183 AD3d 765, 765 [2d Dept 2020] [“The defendant’s waiver of the right to appeal was invalid, because the Supreme Court incorrectly stated during the discussion of the appeal waiver that the waiver encompassed post-conviction motions”]). In addition to these 90 cases, in another 20 cases, although the waiver was “upheld,” the Court nevertheless went on to consider the merits of the appeal—negating any benefit of the waiver (see e.g. *People v Sylvester*, 187 AD3d 522, 525 [1st Dept 2020]; *People v Edey*, 183 AD3d 430, 430 [1st Dept 2020], *lv denied* 35 NY3d 1044 [2020]; *People v Scott*, 180 AD3d 1345, 1345 [4th Dept 2020], *lv denied* 35 NY3d 995 [2020]).

In the majority of these cases, the defendant’s sole claim was that the bargained-for sentence was unduly harsh (see e.g. *Brown*, 180 AD3d at 1341; *Sealey*, 187 AD3d at 1067; *Robinson*, 189 AD3d at 894; *Pellew*, 187 AD3d at 1060; *Leiva*, 184 AD3d at 731; *Baptiste*, 181 AD3d at 696; *Suarez-Montoya*, 183 AD3d at 765; *Scott*, 180 AD3d at 1345). However, substantive issues, such as suppression, have also survived purported waiver (see e.g. *People v Chy*, 184 AD3d 664, 666-667 [2d Dept 2020] [invalidating waiver, granting suppression, and vacating plea]; *People v Weeks*, 182 AD3d 539, 540-542 [2d Dept 2020] [same]).

This account of the fallout from *Thomas* is not meant as criticism: Routine invalidation of plea waivers is unavoidable given the lack of any workable analytical framework.

III.

Here, too, *Thomas* compels us to summarily invalidate nine appeal waivers and remit for consideration of the merits by the Appellate Division. As with the scores of cases reversed by appellate courts, we do so with a nod to *Thomas* and a cite to mischaracterizations in the defendants’ waivers. The cases are representative of the practical considerations abandoned by *Thomas*.

In eight out of the nine cases, the defendant seeks to challenge his sentence as excessive (see *People v Bisoño*; *People v Baker*; *People v Magee*; *People v Miller*; *People v Hardin*; *People v Ogando*; *People v Biaselli*; *People v Torres*). In all eight of these cases, the defendant’s written waiver included the right

to challenge the sentence imposed—in six of the eight, the oral colloquy reinforced this specific waiver (see *Thomas*, 34 NY3d at 583 [Garcia, J., dissenting] [pointing out that defendant Green’s specific acknowledgment of her waiver of right to raise excessive sentence issue on appeal was not enough to prevent reversal and remand to Appellate Division for consideration of whether sentence was excessive]; see also *Barrales*, 179 AD3d at 1314). The record in each case demonstrates that the defendant had the opportunity to discuss the waiver with counsel, and each defendant acknowledged his understanding of the waiver of the appeal right. Each defendant received a sentence substantially less than the maximum he faced based on the charges (see e.g. *People v Ogando* [defendant, who was charged with second-degree murder, first-degree manslaughter, and first-degree gang assault, and faced a maximum sentence of life in prison without the possibility of parole, pleaded guilty to first-degree gang assault and seeks to challenge, among other things, the bargained-for sentence of eight years’ imprisonment]; *People v Hardin* [defendant, who was charged with second-degree burglary and faced a maximum sentence of 15 years’ imprisonment, pleaded guilty to attempted second-degree burglary and seeks to challenge the bargained-for sentence of two years’ imprisonment]; see generally *People v Callahan*, 80 NY2d 273, 280 [1992] [noting that “relevant factors” in assessing an appeal waiver include “the nature . . . of the agreement” and “the reasonableness of the bargain”]). Several defendants had extensive criminal histories (see e.g. *People v Baker* [second felony offender]; *People v Magee* [same]; *People v Hardin* [46 prior misdemeanor convictions in New York State]; see generally *People v Sanders*, 25 NY3d 337, 342 [2015] [considering the defendant’s background, including his “extensive experience with the criminal justice system,” in assessing voluntariness of appeal waiver]). Yet each waiver is deemed—for all purposes—invalid given the failure to specifically cure some unexplained combination of “infirmities” (see majority mem at 1017). Any lingering doubt that *Thomas* worked a sea change in our approach to appeal waivers has been dispelled.

IV.

Reinforcing the routine invalidation of appeal waivers that must necessarily result from our decision in *Thomas* is damaging enough. To make matters worse, the majority’s reversal in *People v Daniels* expands *Thomas*’s scope, making crystal clear

that a single error may be fatal to an appeal waiver regardless of the other circumstances demonstrating its voluntariness. It also casts further doubt on the continuing validity of this Court's pre-*Thomas* waiver precedent, particularly *People v Ramos* (7 NY3d 737 [2006]). Accordingly, I dissent and would affirm in *Daniels*.

Defendant Daniels was charged with one count of first-degree assault (class B felony), one count of first-degree reckless endangerment (class D felony), one count of first-degree criminal use of a firearm (class B felony), and three counts of second-degree criminal possession of a weapon (class C felony), and faced a maximum prison sentence of 25 years. He pleaded guilty to second-degree criminal possession of a weapon (class C felony) and executed a written and oral appeal waiver, in exchange for which he received the bargained-for prison sentence of five years. He had two prior convictions, including one felony conviction. Although he had a history of mental health problems, defendant and his counsel assured the court that he was lucid and understood the proceedings. It also appears that defendant submitted a memorandum to the court, prepared by a psychotherapist prior to his guilty plea, that found he was lucid, coherent, and compliant with his medications.

During the oral colloquy, the court informed defendant that he was being asked to "waive [his] right to appeal this judgment of conviction, and any lawful sentence I impose thereon" in order to "induce the District Attorney to reduce the severity of the charges." The court explained that waiving the right to appeal "means [that] nobody is going to provide you with an attorney, transcripts, any help whatsoever to appeal the sentence, or this conviction." Defendant agreed that he understood the court's explanation and confirmed that he understood "the rights [he was] waiving." He also signed and executed a written waiver, which he "read . . . over and discussed with [his] lawyer" and "signed in open court on advice of counsel." That written waiver provided:

"I have been advised of my right to appeal. I understand that after a conviction by a guilty plea, a defendant has the right to appeal and have the proceedings reviewed by an appellate court. I understand that the right to appeal includes a right

to have an attorney appointed, if I cannot afford one, and the right to submit a brief and argue before an appellate court issues relating to my sentence and conviction. I understand that pleading guilty does not waive the right to appeal, which is separate and distinct from my rights to trial, but that the waiver of the right to appeal is a condition of this particular plea agreement and I understand that my sentence and conviction will be final.”

On appeal, defendant seeks to challenge the excessiveness of his sentence.

The oral colloquy here compares favorably with that in *Ramos*. In *Ramos*, the court stated that defendant was “giving up any and all rights to appeal this conviction and sentence; in other words, this is now final.” The court further stated that “[o]nce you agree to do this, not only will there not be any trial but there won’t be any appeals; do you understand that this is final?” (*People v Bradshaw*, 18 NY3d 257, 269-270 [2011, Read, J., dissenting] [quoting the *Ramos* colloquy]). While the language in the *Ramos* colloquy unequivocally indicates an absolute bar to appellate review, the colloquy at issue here acknowledged that an unlawful sentence may be appealed. Although the court overstated the loss of the right to counsel and poor person relief, the court, unlike in *Ramos*, elicited defense counsel’s “professional opinion” that his client’s waiver was “knowing, intelligent and voluntary,” and confirmed that defendant “underst[ood] the rights [he was] waiving” (see *Thomas*, 34 NY3d at 564 [“The court’s oral colloquy, specifically its inquiry of Thomas and resulting assurances that he had ample opportunity to discuss with counsel the meaning of the waiver and appellate rights he was surrendering, was sufficient to support a knowing and voluntary waiver under the totality of the circumstances”]).

In *Ramos*, we held that, “[e]ven if there were any ambiguity in the sentencing court’s colloquy,” the waiver of the right to appeal was valid because “defendant executed a detailed written waiver . . . stat[ing] that defendant had the right to appeal, explain[ing] the appellate process and confirm[ing] that defense counsel fully advised him of the right to take an appeal under the laws of the State of New York” (7 NY3d at 738). Apart from confirming that defense counsel advised defendant of the right to appeal—which the court here orally confirmed—the waiver in *Daniels* is substantially similar to the one that the *Ramos* Court held was sufficient to cure any ambiguities in

the oral colloquy.³ Specifically, the written waiver in *Ramos* stated:

“I hereby waive my right to appeal. I execute this waiver after being advised by the court and my attorney of the nature of the rights I am giving up. I have been advised of my right to take an appeal (CPL 450.10), to prosecute the appeal as a poor person and to have an attorney assigned in the event that I am indigent, and to submit a brief and/or argue before an appellate court on any issues relating to my conviction and sentence.

“I make this waiver voluntarily, knowingly and of my own free will” (*Bradshaw*, 18 NY3d at 270 [2011, Read, J., dissenting] [quoting the *Ramos* written waiver]).

The *Ramos* waiver and Model Colloquy, like the written waiver here, all define the right to appeal in a similar manner, and explain the distinctness of the appeal right from the right to a trial (see *People v Lopez*, 6 NY3d 248, 256 [2006]; NY Model Colloquies, Waiver of Right to Appeal, <http://www.nycourts.gov/judges/cji/8-Colloquies/Waiver%20of%20Right%20to%20Appeal.pdf>). The present waiver does not contain any affirmative misstatements. Although it does not detail the rights that survive the appeal waiver, we have never required a written waiver to do so (see *Thomas*, 34 NY3d at 558 n 1 [“courts need ‘not include a specific enumeration of each of the rights being waived’ for a guilty plea” and there is no reason “for holding the enforceability of waivers of the statutory right to appeal to a standard more stringent”]; see also *Ramos*, 7 NY3d at 738).

The record here contains a single mischaracterization of the appeal right, namely the implication in the oral colloquy that

3. Not only is the written waiver language here similar to *Ramos*, but its description of the right to appeal also tracks a portion of the Model Colloquy, the use of which we expressly endorsed in *Thomas*. The version of the Model Colloquy commended in *Thomas* provides:

“‘An appeal is a proceeding before a higher court, an appellate court. If a defendant cannot afford the costs of an appeal or of a lawyer, the state will bear those costs. On an appeal, a defendant may, normally through his/her lawyer, argue that an error took place in this court which requires a modification or reversal of the conviction. A reversal would require either new proceedings in this court or a dismissal’ and provides that the court should instruct the defendant that, ‘as a condition of the plea agreement, [the defendant is being] asked to waive [the] right to appeal’” (34 NY3d at 567 n 7).

defendant was losing the attendant right to appellate counsel—an error that was not repeated in the written waiver. This single misstatement does not rise to the level of the “utter mischaracterizations” of the appeal right that resulted in reversals in *Lang* and *Green*, which involved multiple misstatements in the oral colloquy that were repeated in the written waivers (see *Thomas*, 34 NY3d at 565). On the contrary, here, the written waiver explained the distinct appeal right. Moreover, the oral colloquy implied that some rights, including the right to challenge an illegal sentence, were not waived, and the court assured that defendant was explained his right to appeal, understood that right, and was voluntarily waiving that right. The record further reflects that the plea deal that defendant received was extremely favorable and defendant had substantial prior experience with the criminal justice system—both “relevant factors surrounding the waiver” bearing on “the experience and background of the accused” (*Sanders*, 25 NY3d at 341; see *Thomas*, 34 NY3d at 563 [“Our requisite analysis for determining the validity of the waiver remains focused on whether all the relevant circumstances reveal a knowing and voluntary waiver”]). All of these circumstances, considered together, demonstrate that defendant’s waiver was knowingly, voluntarily, and intelligently made (see *Ramos*, 7 NY3d at 738 [waiver valid where the “defendant’s written waiver stated that defendant had the right to appeal, explained the appellate process and confirmed that defense counsel fully advised him of the right to take an appeal”]). Nevertheless, along with the nine other waivers, the majority finds the waiver in *Daniels* irredeemable, making clear that one misstatement from the checklist invalidates a voluntary waiver.

V.

Each of the waivers in the 10 cases we consider today was upheld by the Appellate Division prior to our decision in *Thomas*. We reverse in all of them. Each of those 10 defendants may now make substantive arguments to the Appellate Division, including that the bargained-for sentence is “unduly harsh,” while retaining the benefit of a plea to significantly reduced charges. Routine invalidation of appeal waivers will find not only renewed, but increased support from today’s majority decision, and will continue until trial courts fully adopt the appropriate catechism, namely the Model Colloquy (see *Thomas*, 34 NY3d at 567; see also *People v Cipolla*, 186 AD3d 1136, 1136 [4th Dept 2020] [noting that the “better practice”

would be for the court to use the Model Colloquy]; *People v Somers*, 186 AD3d 1111, 1112 [4th Dept 2020] [same]). The repercussions for an already overburdened appellate docket are self-evident.

Appendix*

1. *People v Soler*, 189 AD3d 1086 (2d Dept 2020)
2. *People v Robinson*, 189 AD3d 893 (2d Dept 2020), *vacating* 184 AD3d 779 (2d Dept 2020)
3. *People v Guevara-Lopez*, 189 AD3d 881 (2d Dept 2020)
4. *People v Garcia*, 189 AD3d 879 (2d Dept 2020)
5. *People v Perrella*, 188 AD3d 1263 (2d Dept 2020)
6. *People v Davis*, 188 AD3d 1731 (4th Dept 2020)
7. *People v Jones*, 188 AD3d 1682 (4th Dept 2020)
8. *People v Douglas*, 188 AD3d 1671 (4th Dept 2020)
9. *People v Murphy*, 188 AD3d 1668 (4th Dept 2020)
10. *People v Hunt*, 188 AD3d 1648 (4th Dept 2020)
11. *People v Fishbein*, 188 AD3d 909 (2d Dept 2020)
12. *People v Daniel*, 188 AD3d 908 (2d Dept 2020)
13. *People v Gaindarpersaud*, 188 AD3d 718 (2d Dept 2020)
14. *People v Brooks*, 187 AD3d 1587 (4th Dept 2020)
15. *People v Harlee*, 187 AD3d 1586 (4th Dept 2020)
16. *People v Vargas*, 187 AD3d 1222 (2d Dept 2020)
17. *People v Underwood*, 187 AD3d 1221 (2d Dept 2020)
18. *People v Platel*, 187 AD3d 1216 (2d Dept 2020)
19. *People v Adyl K.*, 187 AD3d 1208 (2d Dept 2020)
20. *People v Harris*, 187 AD3d 1207 (2d Dept 2020)
21. *People v Gudanowski*, 187 AD3d 1205 (2d Dept 2020)
22. *People v Wallace*, 187 AD3d 1071 (2d Dept 2020)
23. *People v Thomas*, 187 AD3d 1069 (2d Dept 2020)
24. *People v Sealey*, 187 AD3d 1067 (2d Dept 2020)
25. *People v Pellew*, 187 AD3d 1060 (2d Dept 2020)
26. *People v Long*, 187 AD3d 1055 (2d Dept 2020)
27. *People v Joseph*, 187 AD3d 1050 (2d Dept 2020)
28. *People v Gonzalez*, 186 AD3d 1832 (3d Dept 2020)
29. *People v Reynolds*, 186 AD3d 1535 (2d Dept 2020)
30. *People v Walder*, 186 AD3d 1272 (2d Dept 2020)

* As of December 9, 2020.

31. *People v Eduardo S.*, 186 AD3d 1265 (2d Dept 2020)
32. *People v Cipolla*, 186 AD3d 1136 (4th Dept 2020)
33. *People v Williams*, 186 AD3d 1112 (4th Dept 2020)
34. *People v Somers*, 186 AD3d 1111 (4th Dept 2020)
35. *People v Shantz*, 186 AD3d 1076 (4th Dept 2020)
36. *People v Wasyl*, 186 AD3d 1071 (4th Dept 2020)
37. *People v Jones*, 186 AD3d 1069 (4th Dept 2020)
38. *People v Habersham*, 186 AD3d 854 (2d Dept 2020), *lv denied* 35 NY3d 1113 (2020)
39. *People v Cobian*, 186 AD3d 851 (2d Dept 2020)
40. *People v Jeremiah*, 186 AD3d 740 (2d Dept 2020), *lv denied* 35 NY3d 1113 (2020)
41. *People v McMillian*, 185 AD3d 1420 (4th Dept 2020), *lv denied* 35 NY3d 1096 (2020)
42. *People v Jeffords*, 185 AD3d 1417 (4th Dept 2020), *lv denied* 35 NY3d 1095 (2020)
43. *People v Raghna*, 185 AD3d 1411 (4th Dept 2020), *lv denied* 35 NY3d 1115 (2020)
44. *People v Mitchell*, 185 AD3d 1410 (4th Dept 2020)
45. *People v Tomko*, 185 AD3d 1356 (3d Dept 2020), *lv denied* 35 NY3d 1116 (2020)
46. *People v Rodriguez*, 185 AD3d 1296 (3d Dept 2020)
47. *People v Marcus*, 184 AD3d 1143 (4th Dept 2020), *lv denied* 35 NY3d 1068 (2020)
48. *People v Anderson*, 184 AD3d 1020 (3d Dept 2020), *lv denied* 35 NY3d 1064 (2020)
49. *People v Brito*, 184 AD3d 900 (3d Dept 2020)
50. *People v Velez*, 184 AD3d 880 (2d Dept 2020)
51. *People v Mungin*, 184 AD3d 877 (2d Dept 2020)
52. *People v Moroch*, 184 AD3d 876 (2d Dept 2020), *lv denied* 35 NY3d 1096 (2020)
53. *People v Dixon*, 184 AD3d 854 (2d Dept 2020), *lv denied* 35 NY3d 1065 (2020)
54. *People v Leiva*, 184 AD3d 731 (2d Dept 2020), *lv denied* 35 NY3d 1067 (2020)
55. *People v Simpson*, 184 AD3d 677 (2d Dept 2020), *lv denied* 35 NY3d 1070 (2020)
56. *People v Chy*, 184 AD3d 664 (2d Dept 2020)
57. *People v Christopher B.*, 184 AD3d 657 (2d Dept 2020), *lv denied* 35 NY3d 1065 (2020)

58. *People v Aquino*, 184 AD3d 656 (2d Dept 2020), *lv denied* 35 NY3d 1042 (2020)
59. *People v Dubose*, 184 AD3d 584 (2d Dept 2020)
60. *People v Youngs*, 183 AD3d 1228 (4th Dept 2020)
61. *People v Wilson*, 183 AD3d 922 (2d Dept 2020), *lv denied* 35 NY3d 1050 (2020)
62. *People v Dixon*, 183 AD3d 837 (2d Dept 2020), *lv denied* 35 NY3d 1065 (2020)
63. *People v Suarez-Montoya*, 183 AD3d 765 (2d Dept 2020)
64. *People v Contreras*, 183 AD3d 759 (2d Dept 2020), *lv denied* 35 NY3d 1026 (2020)
65. *People v Howard*, 183 AD3d 640 (2d Dept 2020), *lv denied* 35 NY3d 1113 (2020)
66. *People v Kang*, 183 AD3d 640 (2d Dept 2020), *lv denied* 35 NY3d 1067 (2020)
67. *People v Johnson*, 182 AD3d 1036 (4th Dept 2020), *lv denied* 35 NY3d 1046 (2020)
68. *People v White*, 182 AD3d 612 (2d Dept 2020), *lv denied* 35 NY3d 1116 (2020)
69. *People v Devallon*, 182 AD3d 608 (2d Dept 2020), *lv denied* 35 NY3d 1026 (2020)
70. *People v Weeks*, 182 AD3d 539 (2d Dept 2020)
71. *People v Cole*, 181 AD3d 1329 (4th Dept 2020)
72. *People v Crogan*, 181 AD3d 1212 (4th Dept 2020), *lv denied* 35 NY3d 1026 (2020)
73. *People v Byrd*, 181 AD3d 1183 (4th Dept 2020), *lv denied* 35 NY3d 1025 (2020)
74. *People v Martz*, 181 AD3d 979 (3d Dept 2020), *lv denied* 35 NY3d 1047 (2020)
75. *People v Tellado*, 181 AD3d 830 (2d Dept 2020)
76. *People v Rivera*, 181 AD3d 825 (2d Dept 2020)
77. *People v Paulin*, 181 AD3d 824 (2d Dept 2020), *lv denied* 35 NY3d 1047 (2020)
78. *People v Brown*, 181 AD3d 819 (2d Dept 2020)
79. *People v Tayeh*, 181 AD3d 726 (2d Dept 2020), *lv denied* 35 NY3d 1029 (2020)
80. *People v McDowell*, 181 AD3d 716 (2d Dept 2020), *lv denied* 35 NY3d 1096 (2020)
81. *People v Baptiste*, 181 AD3d 696 (2d Dept 2020), *lv denied* 35 NY3d 1092 (2020)

82. *People v Brown*, 180 AD3d 1341 (4th Dept 2020), *lv denied* 35 NY3d 968 (2020)
83. *People v Kyra J.*, 180 AD3d 929 (2d Dept 2020), *lv denied* 35 NY3d 971 (2020)
84. *People v Christie*, 180 AD3d 802 (2d Dept 2020), *lv denied* 35 NY3d 968 (2020)
85. *People v Berry*, 180 AD3d 801 (2d Dept 2020)
86. *People v Frias*, 180 AD3d 704 (2d Dept 2020), *lv denied* 35 NY3d 970 (2020)
87. *People v Stenson*, 179 AD3d 1449 (4th Dept 2020), *lv denied* 35 NY3d 974 (2020)
88. *People v Dozier*, 179 AD3d 1447 (4th Dept 2020), *lv denied* 35 NY3d 941 (2020)
89. *People v Barrales*, 179 AD3d 1313 (3d Dept 2020)
90. *People v Ortega-Flores*, 70 Misc 3d 60 (App Term, 2d Dept, 9th & 10th Jud Dists 2020), *lv denied* 35 NY3d 1096 (2020)

STEIN, J. (dissenting in *People v Daniels* and otherwise concurring). I join the majority's memorandum decision reversing in the nine appeals before us other than *People v Daniels*. However, in *Daniels*, I am in agreement with Judge Garcia that the majority goes beyond what is required by *People v Thomas* (34 NY3d 545 [2019]) and effectively overrules our decision in *People v Ramos* (7 NY3d 737 [2006]). Therefore, I join part IV of Judge Garcia's dissent.

In *People v Bisoño*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Second Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Wilson and Feinman concur. Judge Garcia concurs in result in an opinion.

In *People v Baker*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Fourth Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Wilson and Feinman concur. Judge Garcia concurs in result in an opinion.

In *People v Magee*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order re-

versed and case remitted to the Appellate Division, Fourth Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN concur. Judge GARCIA concurs in result in an opinion.

In *People v Miller*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Fourth Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN concur. Judge GARCIA concurs in result in an opinion.

In *People v Daniels*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Second Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFIORE and Judges RIVERA, FAHEY, WILSON and FEINMAN concur. Judge GARCIA dissents and votes to affirm in an opinion, in which Judge STEIN concurs in part in a separate dissenting opinion.

In *People v Hardin*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Second Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN concur. Judge GARCIA concurs in result in an opinion.

In *People v Ogando*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Second Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN concur. Judge GARCIA concurs in result in an opinion.

In *People v Biaselli*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Fourth Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFiore and Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN concur. Judge GARCIA concurs in result in an opinion.

In *People v Torres*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Second Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFiore and Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN concur. Judge GARCIA concurs in result in an opinion.

In *People v Rodriguez*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals, order reversed and case remitted to the Appellate Division, Second Department, for further proceedings in accordance with the memorandum herein.

Chief Judge DiFiore and Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN concur. Judge GARCIA concurs in result in an opinion.

[164 NE3d 271, 140 NYS3d 465]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIELLE ALLEN, Appellant.

Decided February 11, 2021

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered May 1, 2020. The Appellate Division affirmed a judgment of the Livingston County Court (Robert B. Wiggins, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the second degree.

People v Allen, 183 AD3d 1284, affirmed.

HEADNOTE

Crimes — Justification — Sufficiency of Evidence

In a criminal prosecution in which defendant raised a defense of justification, the evidence against justification was legally sufficient. Viewing the evidence—including the testimony of a forensic consultant who was qualified, without objection, by the trial court as an expert in crime scene reconstruction and bloodstain pattern analysis—in the light most favorable to the prosecution, there was a valid line of reasoning and permissible inferences from which a rational jury could have found that the People disproved the defense of justification beyond a reasonable doubt.

APPEARANCES OF COUNSEL

Myers Buth Law Group PLLC, Orchard Park (*Cheryl Myers Bluth* of counsel), and *Joel L. Daniels*, Buffalo, for appellant.

Gregory J. McCaffrey, District Attorney, Geneseo (*Joshua J. Tonra* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Defendant raised a defense of justification and the People consequently had the burden of demonstrating “beyond a reasonable doubt that . . . defendant’s conduct was not justified” (*People v Umali*, 10 NY3d 417, 425 [2008], *rearg denied* 11 NY3d 744 [2008], *cert denied* 556 US 1110 [2009]). Defendant contends that the evidence against justification is legally insufficient. Legal sufficiency review requires that we view the evidence “in the light most favorable to the prosecution,” and, when deciding whether a jury could logically conclude that the prosecution sustained its burden of proof, “[w]e must assume that the jury credited the People’s witnesses and gave the prosecution’s evidence the full weight it might reasonably be accorded” (*People v Gordon*, 23 NY3d 643, 649 [2014] [internal quotation marks omitted]). Viewing the evidence—including the testimony of a forensic consultant who was qualified, without objection, by the trial court as an expert in crime scene reconstruction and bloodstain pattern analysis—in that light, we conclude that there is a valid line of reasoning and permissible inferences from which a rational jury could have found that the People disproved the defense of justification beyond a reasonable doubt.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

In the Matter of ANONYMOUS, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Decided February 11, 2021

Appeal dismissed without costs, by the Court of Appeals sua sponte, on the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

ESTATE OF MARGARET KAINER et al., Appellants, v UBS AG et al., Respondents, et al., Defendants.

Submitted January 25, 2021; decided February 11, 2021

Reported below, 175 AD3d 403.

Motion by Raoul Wallenberg Centre for Human Rights et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of ETHAN D. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; IVAN D. et al., Respondents. HOLGA T., Nonparty Appellant. (Proceeding No. 1.)

In the Matter of EVAN D. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; IVAN D. et al., Respondents. HOLGA T., Nonparty Appellant. (Proceeding No. 2.)

In the Matter of ERIK D. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; IVAN D. et al., Respondents. HOLGA T., Nonparty Appellant. (Proceeding No. 3.)

In the Matter of ELLIOT D. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; IVAN D. et al., Respondents. HOLGA T., Nonparty Appellant. (Proceeding No. 4.)

Submitted December 7, 2020; decided February 11, 2021

Reported below, 187 AD3d 902.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

GLENN FREELAND et al., as Administrators of the Estate of TREVELL WALKER, Deceased, Respondents, v ERIE COUNTY et al., Appellants.

Submitted November 16, 2020; decided February 11, 2021

Reported below, 185 AD3d 1490.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

HSBC BANK USA, N.A., Respondent, v JOAQUIN ARIAS et al.,
Defendants, and DAVID A. BYTHEWOOD, Appellant.

Decided February 11, 2021

Reported below, 187 AD3d 1158.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the Constitution.

ISLIP THEATERS, LLC, Respondent, v LANDMARK PLAZA PROPERTIES CORP. et al., Appellants, et al., Defendants. (Action No. 1.)

ISLIP THEATERS, LLC, Respondent, v LANDMARK PLAZA PROPERTIES CORP. Appellant. (Action No. 2.)

Submitted November 23, 2020; decided February 11, 2021

Reported below, 183 AD3d 872.

Motion by John Fickling for leave to appeal dismissed upon the ground that he is not a party aggrieved (*see* CPLR 5511). Motion by Landmark Plaza Properties Corp. for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

In the Matter of MARIANYS I. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; GABRIELLE I., Appellant. (Appeal No. 1.)

In the Matter of YANUEL D. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; GABRIELLE I., Appellant. (Appeal No. 2.)

Submitted November 23, 2020; decided February 11, 2021

Reported below, 187 AD3d 1570; 187 AD3d 1571.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceedings within the meaning of the Constitution.

In the Matter of NICHOLAS G. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; CANDACE G., Appellant, et al., Respondent. (Appeal No. 1.)

In the Matter of NICHOLAS G. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; CANDACE G., Appellant, et al., Respondent. (Appeal Nos. 2 and 3.)

Submitted November 30, 2020; decided February 11, 2021

Reported below, 185 AD3d 685.

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]; *see also* 5512 [a]). Motion for poor person relief dismissed as academic.

MICHAEL NINIVAGGI et al., Appellants, v COUNTY OF NASSAU, Defendant, and MERRICK UNION FREE SCHOOL DISTRICT, Respondent.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 177 AD3d 981.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DONOVAN BUYUND, Respondent.

Submitted February 1, 2021; decided February 11, 2021

Reported below, 179 AD3d 161.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PERRY
CAMPBELL, Appellant.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 69 Misc 3d 138(A), 2020 NY Slip Op 51319(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GLENN
E. CUMMINGS, Appellant.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 188 AD3d 1449.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN
DOGAN, Appellant.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 181 AD3d 1343.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 290 Main Street, Suite 350, Buffalo, NY 14202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
GUEVARA, Appellant.

Submitted January 25, 2021; decided February 11, 2021

Reported below, 189 AD3d 455.

Motion for assignment of counsel granted and Caprice R. Jenerson, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTON HILL, Appellant.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 157 AD3d 505.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD POWELL, Appellant.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 188 AD3d 734.

Motion by The Innocence Project for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD POWELL, Appellant.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 188 AD3d 734.

Motion by Center for Appellate Litigation et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID PUTLAND, Appellant.

Decided February 11, 2021

Reported below, 187 AD3d 1073.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon that ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v LUIS A.
RODRIGUEZ, Respondent.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 187 AD3d 1063.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

PROTECT THE ADIRONDACKS! INC., Respondent-Appellant, v NEW
YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVA-
TION et al., Appellants-Respondents.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 175 AD3d 24.

Motion by Adirondack Association of Towns and Villages et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

PROTECT THE ADIRONDACKS! INC., Respondent-Appellant, v NEW
YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVA-
TION et al., Appellants-Respondents.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 175 AD3d 24.

Motion by Empire State Forest Products Association, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

PROTECT THE ADIRONDACKS! INC., Respondent-Appellant, v NEW
YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVA-
TION et al., Appellants-Respondents.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 175 AD3d 24.

Motion by Open Space Institute, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

PROTECT THE ADIRONDACKS! INC., Respondent-Appellant, v NEW YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVATION et al., Appellants-Respondents.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 175 AD3d 24.

Motion by Adirondack Council, Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

PROTECT THE ADIRONDACKS! INC., Respondent-Appellant, v NEW YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVATION et al., Appellants-Respondents.

Submitted February 8, 2021; decided February 11, 2021

Reported below, 175 AD3d 24.

Motion by The Nature Conservancy for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of DAVID SEGAL, a Suspended Attorney, Appellant, v ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

In the Matter of DAVID SEGAL, Appellant, v OFFICE OF COURT ADMINISTRATION, UNIFIED COURT SYSTEM, Respondent.

Decided February 11, 2021

Appeal dismissed without costs, by the Court of Appeals *sua sponte*, upon the ground that no appeal lies to this Court from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

Chief Judge DiFiore and Judge Feinman taking no part.

In the Matter of DAVID SEGAL, a Suspended Attorney, Appellant, v ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

In the Matter of DAVID SEGAL, Appellant, v OFFICE OF COURT ADMINISTRATION, UNIFIED COURT SYSTEM, Respondent.

Decided February 11, 2021

Appeal dismissed without costs, by the Court of Appeals *sua sponte*, upon the ground that no appeal lies to this Court from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

Chief Judge DiFiore and Judge Feinman taking no part.

In the Matter of DAVID SEGAL, a Suspended Attorney, Appellant, v ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

In the Matter of DAVID SEGAL, Appellant, v OFFICE OF COURT ADMINISTRATION, UNIFIED COURT SYSTEM, Respondent.

Decided February 11, 2021

Appeal dismissed without costs, by the Court of Appeals *sua sponte*, upon the ground that no appeal lies to this Court from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

Chief Judge DiFiore and Judge Feinman taking no part.

In the Matter of SAMER Y. SIOUFFI, Appellant, v BETH A. SIOUFFI, Respondent. (Proceeding No. 1.)

In the Matter of BETH A. SIOUFFI, Respondent, v SAMER Y. SIOUFFI, Appellant. (Proceeding No. 2.)

In the Matter of BETH A. SIOUFFI, Respondent, v SAMER Y. SIOUFFI, Appellant. (Proceeding No. 3.)

Submitted November 16, 2020; decided February 11, 2021

Reported below, 186 AD3d 1789.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the October 2018 Family Court order, dismissed upon the ground that such portion of the order does not finally determine the proceedings within the meaning of the Constitution; motion for leave to appeal otherwise denied.

BURTON S. SULTAN, Appellant, v MICHAEL H. ZHU, Esq., et al.,
Respondents.

Submitted November 30, 2020; decided February 11, 2021

Reported below, 180 AD3d 585.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 35 NY3d 917 (2020)].

Judge FEINMAN taking no part.

GIOVANNI WHITE, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 126846.)

Submitted October 19, 2020; decided February 11, 2021

Reported below, 2020 NY Slip Op 68227(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

CNH DIVERSIFIED OPPORTUNITIES MASTER ACCOUNT, L.P., et al.,
Appellants, v CLEVELAND UNLIMITED, INC., et al., Respondents.

Submitted December 7, 2020; decided February 18, 2021

Reported below, 162 AD3d 573.

Motion for reargument denied [*see* 36 NY3d 1 (2020)].

In the Matter of CORNELL UNIVERSITY, Appellant, v BOARD OF
ASSESSMENT REVIEW et al., Respondents.

Submitted December 28, 2020; decided February 18, 2021

Reported below, 188 AD3d 1692; 186 AD3d 990.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as resolved the 2016 proceeding, denied; motion for leave to appeal otherwise dismissed upon the ground that the order sought to be appealed from does not finally determine the remaining proceedings within the meaning of the Constitution.

TZVI H. GOLDSTEIN, Appellant, v MUHAMMAD S. KHURSHID, Respondent.

Submitted November 16, 2020; decided February 18, 2021

Reported below, 180 AD3d 876; 2020 NY Slip Op 72558(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of KANYE KHALID GREEN, Respondent, v DUTCHESS COUNTY BOCES et al., Appellants. WORKERS' COMPENSATION BOARD, Appellant.

Submitted October 5, 2020; decided February 18, 2021

Reported below, 183 AD3d 23.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted November 30, 2020; decided February 18, 2021

Reported below, 2020 NY Slip Op 65624(U); 2020 NY Slip Op 65625(U); 2020 NY Slip Op 64874(U).

Motion for reconsideration of this Court's October 15, 2020 dismissal order denied [see 35 NY3d 1099 (2020)]. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted November 30, 2020; decided February 18, 2021

Reported below, 2020 NY Slip Op 60861(U).

Motion for reconsideration of this Court's October 15, 2020 dismissal order denied [*see* 35 NY3d 1099 (2020)]. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

In the Matter of NELLA MANKO, Appellant, v WILLIAM F. MASTRO et al., Respondents.

Submitted December 7, 2020; decided February 18, 2021

Reported below, 181 AD3d 504.

Motion for reconsideration of this Court's October 15, 2020 dismissal order denied [*see* 35 NY3d 1100 (2020)]. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

PAUL MARTELLONI, Appellant, v LISA MARTELLONI, Respondent.

Submitted December 21, 2020; decided February 18, 2021

Reported below, 186 AD3d 1663.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SETH MITCHELL, Appellant, v CIGNA CORPORATION et al., Respondents.

Submitted December 21, 2020; decided February 18, 2021

Reported below, 2020 NY Slip Op 74569(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that it does not lie. Motion for leave to appeal etc. dismissed upon the ground that it does not lie.

OCWEN LOAN SERVICING, LLC, Respondent, v RUHINA B. ALI,
Appellant, et al., Defendants.

Submitted November 16, 2020; decided February 18, 2021

Reported below, 180 AD3d 591.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

USMAN OYIBO, Appellant, v HUNTINGTON HOSPITAL MEDICAL
CENTER et al., Respondents.

Submitted December 14, 2020; decided February 18, 2021

Reported below, 2020 NY Slip Op 72058(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NEFTALI THOMAS DIAZ, Appellant.

Submitted December 7, 2020; decided February 18, 2021

Reported below, 69 Misc 3d 132(A), 2020 NY Slip Op 51210(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a] [1]).

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* PAMELA ROTH,
on behalf of ROY TAYLOR, Appellant, v CYNTHIA BRANN,
Commissioner, New York City Department of Correction,
Respondent.

Submitted November 30, 2020; decided February 18, 2021

Reported below, 2020 NY Slip Op 64918(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of GHEORGHE PETRE, Appellant, v JOSEPH LUCIA et al., Respondents.

Submitted December 14, 2020; decided February 18, 2021

Reported below, 188 AD3d 582.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of RAEYDAN D.E.C. and Another, Children Alleged to be Neglected. KEVIN C., Appellant; ST. DOMINIC'S FAMILY SERVICES et al., Respondents.

Submitted November 23, 2020; decided February 18, 2021

Reported below, 188 AD3d 406.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the July 2019 Family Court order, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

BHUPENDRA K. SHAH, Appellant, v STATE OF NEW YORK, Respondent.

Submitted November 30, 2020; decided February 18, 2021

Reported below, 178 AD3d 871.

Motion for reargument of motion for leave to appeal denied [*see* 35 NY3d 1107 (2020)].

SNC PROPERTIES, LLC, Respondent, v FRANK DeMARTINO et al., Appellants.

Submitted December 14, 2020; decided February 18, 2021

Reported below, 185 AD3d 750.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RICHARD STEATES, Appellant, v JUDY A. JOHNSON, Respondent.

Submitted December 21, 2020; decided February 18, 2021

Reported below, 188 AD3d 1689.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TARSHA M. WILLIAMS, Appellant, et al., Plaintiff, v MARIA GEORGOPOULOS et al., Respondents, et al., Defendants.

Submitted November 30, 2020; decided February 18, 2021

Reported below, 184 AD3d 608.

Motion for leave to appeal denied. Motion for additional relief granted only to the extent of sealing the motion submissions to this Court and motion otherwise denied.

GLASCO WRIGHT, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 21, 2020; decided February 18, 2021

Reported below, 185 AD3d 1482; 181 AD3d 1332.

Motion for reargument of motion for leave to appeal denied [*see* 35 NY3d 919 (2020)].

In the Matter of JEREMY ZIELINSKI, Appellant, v DONALD VENETTOZZI, as Acting Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted December 21, 2020; decided February 18, 2021

Reported below, 177 AD3d 1047.

Motion for reargument or, in the alternative, for amendment of the remittitur denied [*see* 35 NY3d 1082 (2020)]. Motion for poor person relief dismissed as academic.

PAUL ZIMMER, Appellant, v JAMES K. ZIMMER, as Executor of the Estate of ROBERTA JUNE ZIMMER, Deceased, Respondent.

Submitted November 30, 2020; decided February 18, 2021

Reported below, 187 AD3d 1605; 181 AD3d 1186.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of plaintiff's cross motion for disqualification of defendant's counsel, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2021 through January 31, 2021)

People v Adolph	1st Dept: 187 AD3d 588 (NY)	denied 1/6/21 (DiFiore, Ch. J.)
People v Alexander	App Term, 1st Dept: 69 Misc 3d 130(A) (NY)	denied 1/6/21 (Rivera, J.)
People v Arman	1st Dept: 189 AD3d 453 (Bronx)	denied 1/26/21 (DiFiore, Ch. J.)
People v Babb	4th Dept: 186 AD3d 1058 (Cattaraugus)	denied 1/6/21 (Rivera, J.)
People v Banyan	1st Dept: 187 AD3d 643 (NY)	denied 1/12/21 (Rivera, J.)
People v Barrow	2d Dept: 187 AD3d 1034 (Kings)	denied 1/27/21 (Feinman, J.)
People v Baugh	2d Dept: 188 AD3d 903 (Queens)	denied 1/28/21 (Garcia, J.)
People v Bell	2d Dept: 188 AD3d 904 (Kings)	denied 1/28/21 (Garcia, J.)
People v Bellamy	3d Dept: 187 AD3d 1421 (Albany)	denied 1/26/21 (Rivera, J.)
People v Benjamin	2d Dept: 188 AD3d 715 (Kings)	denied 1/31/21 (Wilson, J.)
People v Bernardez	2d Dept: 186 AD3d 1236 (Westchester)	denied 1/11/21 (Stein, J.)
People v Boyer (Daniel)	App Div, 3d Dept: 2020 NY Slip Op 73607(U) (Rensselaer)	dismissed 1/29/21 (DiFiore, Ch. J.)
People v Boyer (Daniel)	App Div, 3d Dept, 11/6/20 (Rensselaer)	dismissed 1/29/21 (DiFiore, Ch. J.)
People v Brooks	4th Dept: 187 AD3d 1587 (Erie)	denied 1/11/21 (Stein, J.)
People v Burton	2d Dept: 188 AD3d 1089 (Nassau)	denied 1/7/21 (Fahey, J.)

People v Cabassa	2d Dept: 188 AD3d 716 (Queens)	denied 1/28/21 (Garcia, J.)
People v Cabrera	App Term, 1st Dept: 69 Misc 3d 141(A) (NY)	denied 1/28/21 (DiFiore, Ch. J.)
People v Caden N.	3d Dept: 189 AD3d 84 (Chemung)	denied 1/28/21 (Garcia, J.)
People v Calkins	App Div, 4th Dept, 11/2/20 (Steuben)	dismissed 1/12/21 (Feinman, J.)
People v Cantu-Garcia	1st Dept: 188 AD3d 610 (Bronx)	denied 1/20/21 (DiFiore, Ch. J.)
People v Chambliss	1st Dept: 187 AD3d 412 (NY)	denied 1/4/21 (Feinman, J.)
People v Coleman	App Term, 1st Dept: 67 Misc 3d 133(A) (NY)	denied 1/10/21 (Wilson, J.)
People v Colon	App Term, 1st Dept: 69 Misc 3d 131(A) (NY)	denied 1/27/21 (Fahey, J.)
People v Correa	2d Dept: 187 AD3d 1038 (Kings)	denied 1/28/21 (Garcia, J.)
People v Craig	2d Dept: 187 AD3d 1039 (Queens)	denied 1/6/21 (Rivera, J.)
People v Credle	1st Dept: 187 AD3d 665 (NY)	denied 1/6/21 (Rivera, J.)
People v Cruz	1st Dept: 189 AD3d 414 (NY)	denied 1/26/21 (Rivera, J.)
People v Daniel	2d Dept: 188 AD3d 908 (Suffolk)	denied 1/26/21 (Rivera, J.)
People v Diaz	App Term, 1st Dept: 69 Misc 3d 141(A) (NY)	denied 1/19/21 (Fahey, J.)
People v Duncan	2d Dept: 188 AD3d 1249 (Kings)	denied 1/26/21 (Rivera, J.)
People v Fleming (Robert)	App Div, 1st Dept: 2020 NY Slip Op 61738(U) (Bronx)	denied 1/12/21 (Rivera, J.)
People v Fleming (Robert)	App Div, 1st Dept: 2019 NY Slip Op 85890(U) (Bronx)	dismissed 1/12/21 (Rivera, J.)
People v Gaidarpersaud	2d Dept: 188 AD3d 718 (Queens)	denied 1/6/21 (Rivera, J.)
People v Gallardo	1st Dept: 187 AD3d 420 (Bronx)	denied 1/6/21 (Rivera, J.)
People v Gillard	1st Dept: 188 AD3d 425 (NY)	denied 1/7/21 (DiFiore, Ch. J.)
People v Gillespie	2d Dept: 186 AD3d 853 (Queens)	denied 1/6/21 (DiFiore, Ch. J.)
People v Gonzalez (Everton)	2d Dept: 187 AD3d 1042 (Kings)	denied 1/26/21 (Rivera, J.)
People v Gonzalez (Jorge)	3d Dept: 184 AD3d 899 (Sullivan)	denied 1/27/21 (Feinman, J.)
People v Green	App Div, 2d Dept: 2020 NY Slip Op 72572(U) (Kings)	dismissed 1/27/21 (Stein, J.)
People v Griffin	4th Dept: 188 AD3d 1701 (Erie)	denied 1/26/21 (DiFiore, Ch. J.)

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People v Gutierrez (Joshua)	1st Dept: 188 AD3d 469 (NY)	denied 1/20/21 (DiFiore, Ch. J.)
People v Gutierrez (Ramon)	App Div, 3d Dept: 2020 NY Slip Op 73912(U) (Albany)	dismissed 1/29/21 (Garcia, J.)
People v Hall	3d Dept: 188 AD3d 1416 (Albany)	denied 1/27/21 (Fahey, J.)
People v Hart	3d Dept: 188 AD3d 1424 (Columbia)	denied 1/28/21 (DiFiore, Ch. J.)
People v Henson	App Term, 1st Dept: 68 Misc 3d 134(A) (NY)	denied 1/6/21 (Rivera, J.)
People v Herbin	1st Dept: 187 AD3d 520 (NY)	denied 1/17/21 (Wilson, J.)
People v Hernandez	App Term, 1st Dept: 69 Misc 3d 131(A) (NY)	denied 1/11/21 (Stein, J.)
People v Hobbs	1st Dept: 186 AD3d 1167 (NY)	denied 1/31/21 (Wilson, J.)
People v Hurlburt	App Div, 3d Dept: 2020 NY Slip Op 73914(U) (Chemung)	dismissed 1/8/21 (DiFiore, Ch. J.)
People v Iglesia	App Term, 1st Dept: 69 Misc 3d 133(A) (NY)	denied 1/28/21 (DiFiore, Ch. J.)
People v Iorio	3d Dept: 188 AD3d 1352 (Sullivan)	denied 1/28/21 (Garcia, J.)
People v Irvin	1st Dept: 187 AD3d 417 (NY)	denied 1/12/21 (Rivera, J.)
People v Jacaruso	2d Dept: 189 AD3d 1263 (Queens)	denied 1/27/21 (Fahey, J.)
People v Jacobs	2d Dept: 187 AD3d 786 (Richmond)	denied 1/27/21 (Fahey, J.)
People v Jhagroo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 127(A) (Queens)	denied 1/31/21 (Wilson, J.)
People v Johnson	2d Dept: 187 AD3d 1047 (Suffolk)	denied 1/28/21 (Garcia, J.)
People v Jones	2d Dept: 187 AD3d 934 (Queens)	denied 1/31/21 (Wilson, J.)
People v Keys	4th Dept: 188 AD3d 1675 (Monroe)	denied 1/27/21 (Feinman, J.)
People v Khudan	2d Dept: 187 AD3d 792 (Kings)	denied 1/6/21 (Rivera, J.)
People v Kimmy	4th Dept: 187 AD3d 1604 (Chautauqua)	denied 1/28/21 (Garcia, J.)
People v LaGrand	4th Dept: 188 AD3d 1685 (Wayne)	denied 1/28/21 (Garcia, J.)
People v Laramore	1st Dept: 187 AD3d 483 (Bronx)	denied 1/6/21 (Stein, J.)
People v Lithgow	App Div, 1st Dept: 2020 NY Slip Op 73331(U) (NY)	denied 1/6/21 (Rivera, J.)
People v Lovette (Raymond)	4th Dept: 188 AD3d 1726 (Monroe)	denied 1/31/21 (DiFiore, Ch. J.) (Appeal No. 1)

People v Lovette (Raymond)	4th Dept: 188 AD3d 1729 (Monroe)	denied 1/31/21 (DiFiore, Ch. J.) (Appeal No. 2)
People v Magliulo	2d Dept: 189 AD3d 1072 (Suffolk)	denied 1/6/21 (Stein, J.)
People v Mahon	2d Dept: 188 AD3d 915 (Kings)	denied 1/27/21 (Fahey, J.)
People v Maldonado	2d Dept: 188 AD3d 1257 (Kings)	denied 1/19/21 (Fahey, J.)
People v Mansilla	2d Dept: 187 AD3d 794 (Kings)	denied 1/6/21 (Rivera, J.)
People v Marone	2d Dept: 187 AD3d 1055 (Queens)	denied 1/6/21 (Rivera, J.)
People v Maslowski	2d Dept: 187 AD3d 1211 (Queens)	denied* 1/27/21 (Feinman, J.)
People v McCoy	2d Dept: 180 AD3d 715 (Suffolk)	denied reconsideration 1/6/21 (Rivera, J.)
People v Mena	2d Dept: 187 AD3d 1058 (Kings)	denied 1/31/21 (Wilson, J.)
People v Miles	2d Dept: 186 AD3d 860 (Kings)	denied 1/11/21 (Stein, J.)
People v Mineccia	4th Dept: 185 AD3d 1407 (Monroe)	denied 1/6/21 (Stein, J.) (Appeal No. 1)
People v Mitchell	App Term, 1st Dept: 69 Misc 3d 133(A) (NY)	granted 1/26/21 (Rivera, J.)
People v Moore	2d Dept: 183 AD3d 592 (Richmond)	denied 1/6/21 (Stein, J.)
People v Moreno	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 136(A) (Kings)	denied 1/6/21 (Stein, J.)
People v Muniz- Cayetano	1st Dept: 186 AD3d 1169 (NY)	denied 1/28/21 (Garcia, J.)
People v Muoio	County Ct, 10/16/20 (Monroe)	denied 1/27/21 (Feinman, J.)
People v Ndiongue	1st Dept: 187 AD3d 548 (NY)	denied 1/12/21 (Rivera, J.)
People v Nevins	App Term, 1st Dept: 69 Misc 3d 145(A) (Bronx)	denied 1/27/21 (Feinman, J.)
People v Norwell	1st Dept: 188 AD3d 468 (NY)	denied 1/28/21 (Garcia, J.)
People v Owens	1st Dept: 187 AD3d 614 (NY)	denied 1/6/21 (Stein, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Slade* (63 Misc 3d 161[A], 2019 NY Slip Op 50893[U] [App Term, 1st Dept 2019], *lv granted* 34 NY3d 984 [2019]), *People v Brooks* (63 Misc 3d 158[A], 2019 NY Slip Op 50859[U] [App Term, 1st Dept 2019], *lv granted* 34 NY3d 979 [2019]), and *People v Allen* (63 Misc 3d 159[A], 2019 NY Slip Op 50869[U] [App Term, 2d Dept, 9th & 10th Jud Dists 2019], *lv granted* 34 NY3d 978 [2019]).

MEMORANDA

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People v Paternostro	4th Dept: 188 AD3d 1675 (Erie)	denied 1/27/21 (Feinman, J.)
People v Patterson	4th Dept: 188 AD3d 1673 (Niagara)	denied 1/28/21 (Garcia, J.)
People v Perez	1st Dept: 187 AD3d 415 (NY)	denied 1/11/21 (Stein, J.)
People v Platel	2d Dept: 187 AD3d 1216 (Queens)	denied 1/27/21 (Feinman, J.)
People v Quick	4th Dept: 187 AD3d 1612 (Monroe)	denied 1/31/21 (Wilson, J.)
People v Quiros	4th Dept: 185 AD3d 1546 (Orleans)	denied 1/22/21 (Stein, J.)
People v Rice	1st Dept: 188 AD3d 578 (Bronx)	denied 1/26/21 (Rivera, J.)
People v Richardson	1st Dept: 188 AD3d 580 (Bronx)	denied 1/26/21 (Rivera, J.)
People v Ricks	App Div, 4th Dept, 10/14/20 (Erie)	dismissed 1/31/21 (Wilson, J.)
People v Riley	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 132(A) (Suffolk)	denied 1/12/21 (Rivera, J.)
People v Ringrose	4th Dept: 186 AD3d 1137 (Ontario)	denied 1/11/21 (Stein, J.)
People v Rivera	App Term, 1st Dept: 69 Misc 3d 130(A) (NY)	denied 1/28/21 (DiFiore, Ch. J.)
People v Roach	App Term, 1st Dept: 69 Misc 3d 141(A) (NY)	denied 1/31/21 (Wilson, J.)
People v Rodriguez	2d Dept: 187 AD3d 1063 (Kings)	denied 1/7/21 (Fahey, J.)
People v Rogers	App Div, 3d Dept: 2020 NY Slip Op 73578(U) (Broome)	denied 1/4/21 (Feinman, J.)
People v Rosa	1st Dept: 188 AD3d 427 (NY)	denied 1/6/21 (Stein, J.)
People v Rose	4th Dept: 186 AD3d 1137 (Ontario)	denied 1/11/21 (Stein, J.)
People v Rositas	1st Dept: 187 AD3d 608 (Bronx)	denied 1/27/21 (Feinman, J.)
People v Rowe	2d Dept: 189 AD3d 894 (Queens)	denied 1/15/21 (Stein, J.)
People v Ruiz-Solano	2d Dept: 188 AD3d 1267 (Suffolk)	denied 1/28/21 (DiFiore, Ch. J.)
People v Russell	County Ct, 11/4/20 (Erie)	denied 1/28/21 (Garcia, J.)
People v Ruvalcaba	4th Dept: 187 AD3d 1553 (Monroe)	denied 1/31/21 (Wilson, J.)
People v Sandy (Kester)	2d Dept: 178 AD3d 960 (Queens)	denied 1/31/21 (Wilson, J.)
People v Sandy (Kester)	App Div, 2d Dept: 2020 NY Slip Op 68646(U) (Queens)	dismissed 1/31/21 (Wilson, J.)
People v Shaland S.	4th Dept: 187 AD3d 1683 (Erie)	denied 1/26/21 (Rivera, J.)

People v Shane	2d Dept: 187 AD3d 1219 (Queens)	denied 1/27/21 (Fahey, J.)
People v Simon	1st Dept: 188 AD3d 471 (Bronx)	denied 1/19/21 (Fahey, J.)
People v Smith	4th Dept: 187 AD3d 1652 (Monroe)	denied 1/31/21 (Wilson, J.) (Appeal No. 1)
People v Sotomayor	App Term, 1st Dept: 69 Misc 3d 145(A) (NY)	denied 1/28/21 (Garcia, J.)
People v Stewart	2d Dept: 188 AD3d 932 (Kings)	denied 1/26/21 (Rivera, J.)
People v Stone	4th Dept: 175 AD3d 1850 (Erie)	denied 1/31/21 (Wilson, J.)
People v Tancredi	1st Dept: 188 AD3d 543 (NY)	denied 1/20/21 (DiFiore, Ch. J.)
People v Tatis	1st Dept: 187 AD3d 450 (Bronx)	denied 1/12/21 (Rivera, J.)
People v Thornhill	2d Dept: 187 AD3d 1220 (Queens)	denied 1/11/21 (Stein, J.)
People v Torres	2d Dept: 187 AD3d 802 (Suffolk)	denied 1/27/21 (Stein, J.)
People v Upson	2d Dept: 186 AD3d 1270 (Kings)	denied 1/28/21 (Garcia, J.)
People v Urrutia	4th Dept: 181 AD3d 1338 (Onondaga)	denied 1/10/21 (Wilson, J.)
People v Utley	2d Dept: 186 AD3d 1726 (Queens)	denied 1/7/21 (Fahey, J.)
People v Vancol	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 133(A) (Kings)	denied 1/6/21 (Stein, J.)
People v Vandenburg	3d Dept: 189 AD3d 1772 (Rensselaer)	denied 1/28/21 (Garcia, J.)
People v Vargas	2d Dept: 187 AD3d 1222 (Queens)	denied 1/6/21 (Rivera, J.)
People v Wagoner	App Div, 4th Dept: 2020 NY Slip Op 74429(U) (Cattaraugus)	dismissed 1/27/21 (Fahey, J.)
People v Watson	1st Dept: 187 AD3d 484 (NY)	denied 1/31/21 (Wilson, J.)
People v Williams	2d Dept: 188 AD3d 727 (Suffolk)	denied 1/28/21 (Garcia, J.)
People v Wills	2d Dept: 186 AD3d 1416 (Queens)	denied 1/27/21 (Feinman, J.)
People v Wilson	1st Dept: 186 AD3d 1166 (NY)	denied 1/6/21 (Rivera, J.)
People v Zelaya	2d Dept: 187 AD3d 1072 (Suffolk)	denied 1/6/21 (DiFiore, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2021 through February 28, 2021)

People v Abreu	1st Dept: 189 AD3d 419 (NY)	denied 2/26/21 (Garcia, J.)
People v Akino	1st Dept: 187 AD3d 645 (NY)	denied 2/16/21 (Fahey, J.)
People v Allen	1st Dept: 189 AD3d 463 (NY)	denied 2/23/21 (Garcia, J.)
People v Alston	2d Dept: 188 AD3d 1235 (Kings)	denied 2/10/21 (Wilson, J.)
People v Anderson	4th Dept: 188 AD3d 1699 (Monroe)	denied 2/25/21 (Rivera, J.)
People v Arjun	2d Dept: 188 AD3d 1235 (Queens)	denied 2/26/21 (DiFiore, Ch. J.)
People v Bell	1st Dept: 188 AD3d 427 (NY)	denied 2/25/21 (Rivera, J.)
People v Blanchard	3d Dept: 188 AD3d 1414 (Rensselaer)	denied 2/11/21 (Feinman, J.)
People v Brooks	4th Dept: 188 AD3d 1630 (Erie)	denied 2/21/21 (Wilson, J.)
People v Brownfield	2d Dept: 187 AD3d 1036 (Kings)	denied 2/25/21 (DiFiore, Ch. J.)
People v Bumpars	4th Dept: 178 AD3d 1379 (Jefferson)	denied 2/26/21 (DiFiore, Ch. J.)
People v Bumpers	4th Dept: 188 AD3d 1567 (Erie)	denied 2/11/21 (Feinman, J.)
People v Burns	3d Dept: 188 AD3d 1438 (Schenectady)	denied 2/23/21 (Garcia, J.)
People v Business Applications Outsourcing Tech. Inc.	2d Dept: 187 AD3d 1204 (Suffolk)	denied 2/16/21 (Fahey, J.)
People v Butkiewicz	App Div, 3d Dept: 2020 NY Slip Op 75575(U) (Warren)	denied 2/25/21 (DiFiore, Ch. J.)
People v Cabrera	1st Dept: 188 AD3d 612 (NY)	denied 2/23/21 (Garcia, J.)
People v Cardwell	2d Dept: 188 AD3d 718 (Queens)	denied 2/21/21 (Wilson, J.)
People v Chambers	3d Dept: 185 AD3d 1141 (Albany)	denied 2/9/21 (Fahey, J.)
People v Chavis	3d Dept: 188 AD3d 1438 (Schenectady)	denied 2/23/21 (Garcia, J.)
People v Ciccone	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 71 Misc 3d 5 (Kings)	denied 2/16/21 (Fahey, J.)
People v Cintron	App Term, 1st Dept: 69 Misc 3d 148(A) (NY)	denied 2/23/21 (Garcia, J.)
People v Cleveland	4th Dept: 188 AD3d 1686 (Erie)	denied 2/25/21 (Wilson, J.)
People v Clifford	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 135(A) (Nassau)	denied 2/23/21 (Stein, J.)

People v Colon	2d Dept: 188 AD3d 926 (Suffolk)	denied 2/25/21 (Wilson, J.)
People v Cordell	4th Dept: 188 AD3d 1620 (Monroe)	denied 2/22/21 (DiFiore, Ch. J.)
People v Crittenden	4th Dept: 188 AD3d 1739 (Monroe)	denied 2/25/21 (Wilson, J.)
People v Crowley	4th Dept: 188 AD3d 1665 (Erie)	denied 2/10/21 (Stein, J.)
People v Curry	App Term, 2d Dept, 9th & 10th Jud Dists: 70 Misc 3d 35 (Nassau)	denied 2/16/21 (Fahey, J.)
People v Dawson	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 146(A) (Suffolk)	denied 2/10/21 (Stein, J.)
People v Demello	2d Dept: 186 AD3d 1709 (Dutchess)	denied 2/21/21 (Wilson, J.)
People v Dirschberger	3d Dept: 185 AD3d 1224 (Albany)	denied 2/11/21 (Feinman, J.)
People v Dockery	2d Dept: 186 AD3d 1710 (Kings)	denied 2/11/21 (Feinman, J.)
People v Douglas	4th Dept: 188 AD3d 1671 (Onondaga)	denied 2/23/21 (Stein, J.)
People v Dunbar	2d Dept: 188 AD3d 1247 (Queens)	denied 2/26/21 (DiFiore, Ch. J.)
People v El-Amin	1st Dept: 187 AD3d 676 (NY)	denied 2/25/21 (Wilson, J.)
People v Encarnacion	1st Dept: 187 AD3d 647 (NY)	denied 2/4/21 (Fahey, J.)
People v Feliciano	1st Dept: 189 AD3d 416 (Bronx)	denied 2/23/21 (Garcia, J.)
People v Ferrigno	1st Dept: 188 AD3d 609 (NY)	denied 2/21/21 (Wilson, J.)
People v Finch	1st Dept: 189 AD3d 414 (Bronx)	denied 2/10/21 (Rivera, J.)
People v Fishbein	2d Dept: 188 AD3d 909 (Queens)	denied 2/4/21 (Fahey, J.)
People v Forbes	2d Dept: 187 AD3d 1042 (Queens)	denied 2/23/21 (Garcia, J.)
People v Francis	1st Dept: 187 AD3d 586 (Bronx)	denied 2/25/21 (Wilson, J.)
People v Franzese	2d Dept: 189 AD3d 1068 (Queens)	denied 2/28/21 (DiFiore, Ch. J.)
People v G	3d Dept: 185 AD3d 1141 (Albany)	denied 2/9/21 (Fahey, J.)
People v Galindo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 16 (Queens)	granted 2/28/21 (Wilson, J.)
People v Gant	1st Dept: 188 AD3d 538 (Bronx)	denied 2/10/21 (Rivera, J.)
People v Garcia	2d Dept: 189 AD3d 879 (Kings)	denied 2/24/21 (Fahey, J.)
People v Giles	1st Dept: 188 AD3d 579 (Bronx)	denied 2/11/21 (Feinman, J.)

MEMORANDA

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People v Grasso	2d Dept: 180 AD3d 705 (Richmond)	denied reconsideration 2/16/21 (Fahey, J.)
People v Green	4th Dept: 188 AD3d 1633 (Erie)	denied 2/25/21 (Rivera, J.)
People v Green-Faulkner	2d Dept: 189 AD3d 1070 (Kings)	denied 2/11/21 (Feinman, J.)
People v Hargrove	2d Dept: 186 AD3d 855 (Kings)	granted 2/25/21 (Wilson, J.)
People v Harnett	2d Dept: 189 AD3d 1261 (Queens)	denied 2/11/21 (Feinman, J.)
People v Heil	2d Dept: 188 AD3d 911 (Orange)	denied 2/11/21 (Feinman, J.)
People v Hernandez (Angel)	2d Dept: 189 AD3d 1263 (Queens)	denied 2/24/21 (Fahey, J.)
People v Hernandez (Ivan)	3d Dept: 188 AD3d 1357 (Broome)	denied 2/11/21 (Feinman, J.)
People v Hernandez (Jorge)	2d Dept: 188 AD3d 1253 (Orange)	denied 2/24/21 (Fahey, J.)
People v Hyer	App Term, 2d Dept, 9th & 10th Jud Dists: 70 Misc 3d 126(A) (Suffolk)	denied 2/27/21 (DiFiore, Ch. J.)
People v Ivanitsky	2d Dept: 188 AD3d 719 (Kings)	denied 2/28/21 (Wilson, J.)
People v Jolivert	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 141(A) (Nassau)	denied 2/16/21 (Fahey, J.)
People v Jones	4th Dept: 188 AD3d 1682 (Onondaga)	denied 2/10/21 (Stein, J.)
People v Kearse	2d Dept: 187 AD3d 1209 (Queens)	denied 2/23/21 (Stein, J.)
People v Khan	1st Dept: 189 AD3d 512 (Bronx)	denied 2/11/21 (Feinman, J.)
People v Labossiere	App Div, 2d Dept: 2020 NY Slip Op 70402(U) (Nassau)	denied reconsideration 2/28/21 (Wilson, J.)
People v Lafontant	1st Dept: 189 AD3d 461 (NY)	denied 2/26/21 (DiFiore, Ch. J.)
People v Lamb	1st Dept: 188 AD3d 470 (NY)	granted 2/28/21 (Wilson, J.)
People v Lao	1st Dept: 188 AD3d 540 (NY)	denied 2/26/21 (DiFiore, Ch. J.)
People v Lauriano	1st Dept: 189 AD3d 551 (NY)	denied 2/11/21 (Feinman, J.)
People v Lawrence	2d Dept: 188 AD3d 1095 (Kings)	denied 2/11/21 (Feinman, J.)
People v Lewis	2d Dept: 189 AD3d 1267 (Queens)	denied 2/21/21 (Wilson, J.)
People v MacLaren	County Ct, 11/20/20 (Delaware)	denied 2/23/21 (Garcia, J.)
People v Manafort	1st Dept: 187 AD3d 612 (NY)	denied 2/4/21 (DiFiore, Ch. J.)

People v Manyvanh	App Div, 3d Dept: 2020 NY Slip Op 74589(U) (Broome)	dismissed 2/23/21 (Garcia, J.)
People v Mapp	2d Dept: 188 AD3d 1260 (Queens)	denied 2/10/21 (Stein, J.)
People v Mays	2d Dept: 181 AD3d 874 (Orange)	denied 2/10/21 (Rivera, J.)
People v McClennon	2d Dept: 188 AD3d 918 (Dutchess)	denied 2/26/21 (DiFiore, Ch. J.)
People v McClinton	2d Dept: 187 AD3d 1056 (Suffolk)	denied 2/28/21 (Wilson, J.)
People v McCoy	2d Dept: 188 AD3d 1262 (Nassau)	denied 2/21/21 (Wilson, J.)
People v McLaurin	1st Dept: 187 AD3d 609 (NY)	denied 2/23/21 (Stein, J.)
People v McMullin	2d Dept: 186 AD3d 857 (Rockland)	denied 2/6/21 (Wilson, J.)
People v Mills	4th Dept: 188 AD3d 1655 (Onondaga)	denied 2/25/21 (Rivera, J.)
People v Mitchell	1st Dept: 188 AD3d 541 (Bronx)	denied 2/24/21 (Fahey, J.)
People v Molina	2d Dept: 188 AD3d 920 (Westchester)	denied 2/23/21 (Stein, J.)
People v Neal	App Term, 1st Dept: 69 Misc 3d 148(A) (NY)	denied 2/25/21 (Rivera, J.)
People v Neil	4th Dept: 188 AD3d 1765 (Onondaga)	denied 2/10/21 (Stein, J.)
People v Nellons	4th Dept: 187 AD3d 1574 (Onondaga)	denied 2/25/21 (Wilson, J.)
People v Nelson	3d Dept: 171 AD3d 1251 (Albany)	denied 2/10/21 (Stein, J.)
People v Nestman	App Div, 3d Dept: 2020 NY Slip Op 73953(U) (Ulster)	denied 2/4/21 (Fahey, J.)
People v Neverett	4th Dept: 189 AD3d 2156 (Livingston)	denied 2/24/21 (Fahey, J.)
People v Nieves	1st Dept: 189 AD3d 454 (Bronx)	denied 2/16/21 (DiFiore, Ch. J.)
People v Noel	County Ct, 5/27/20 (Monroe)	denied reconsideration 2/23/21 (Garcia, J.)
People v Oquendo	App Term, 1st Dept: 69 Misc 3d 141(A) (NY)	denied 2/10/21 (Stein, J.)
People v Ortiz	2d Dept: 189 AD3d 891 (Queens)	denied 2/11/21 (Feinman, J.)
People v Partridge	4th Dept: 188 AD3d 1692 (Onondaga)	denied 2/11/21 (Feinman, J.)
People v Perez	1st Dept: 190 AD3d 434 (NY)	denied 2/25/21 (Rivera, J.)
People v Perrella	2d Dept: 188 AD3d 1263 (Orange)	denied 2/10/21 (Rivera, J.)

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People v Petrino	2d Dept: 180 AD3d 705 (Richmond)	denied reconsideration 2/16/21 (Fahey, J.)
People v Pierre	2d Dept: 188 AD3d 924 (Queens)	denied 2/11/21 (Feinman, J.)
People v Polanco	1st Dept: 189 AD3d 453 (NY)	denied 2/23/21 (Stein, J.)
People v Rahaman	3d Dept: 189 AD3d 1709 (Saratoga)	denied 2/11/21 (Feinman, J.)
People v Ramirez (Justin)	1st Dept: 189 AD3d 463 (NY)	denied 2/21/21 (Wilson, J.)
People v Ramirez (Victor)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 147(A) (Queens)	denied 2/21/21 (Wilson, J.)
People v Ramos	1st Dept: 189 AD3d 586 (NY)	denied 2/26/21 (Garcia, J.)
People v Reano	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 128(A) (Queens)	denied 2/25/21 (Rivera, J.)
People v Redmon	2d Dept: 184 AD3d 775 (Kings)	denied reconsideration 2/10/21 (Stein, J.)
People v Reich	2d Dept: 186 AD3d 869 (Westchester)	denied 2/21/21 (Wilson, J.)
People v Reid	1st Dept: 188 AD3d 542 (NY)	denied 2/23/21 (Stein, J.)
People v Ricardo H.	2d Dept: 189 AD3d 1261 (Kings)	denied 2/23/21 (Garcia, J.)
People v Richardson	1st Dept: 189 AD3d 589 (NY)	dismissed 2/8/21 (Feinman, J.)
People v Rivera	2d Dept: 189 AD3d 1084 (Kings)	denied 2/8/21 (DiFiore, Ch. J.)
People v Robinson (Demort)	2d Dept: 189 AD3d 893 (Kings)	denied 2/23/21 (Garcia, J.)
People v Robinson (Nadell)	2d Dept: 189 AD3d 1269 (Queens)	denied 2/16/21 (DiFiore, Ch. J.)
People v Rodriguez	2d Dept: 189 AD3d 1085 (Kings)	denied 2/25/21 (Rivera, J.)
People v Romanelli	3d Dept: 188 AD3d 1354 (Cortland)	denied 2/10/21 (Rivera, J.)
People v Santini	2d Dept: 180 AD3d 705 (Richmond)	denied reconsideration 2/16/21 (Fahey, J.)
People v Shears	2d Dept: 187 AD3d 1220 (Nassau)	denied 2/11/21 (Feinman, J.)
People v Smith (Jermaine)	2d Dept: 187 AD3d 941 (Kings)	denied 2/11/21 (Feinman, J.)
People v Smith (Jerome)	2d Dept: 187 AD3d 944 (Queens)	denied 2/11/21 (Rivera, J.)
People v Sterling	App Term, 2d Dept, 9th & 10th Jud Dists: 70 Misc 3d 132(A) (Nassau)	denied 2/26/21 (DiFiore, Ch. J.)

People v Sullivan	4th Dept: 188 AD3d 1774 (Erie)	denied 2/23/21 (Garcia, J.)
People v Sylvester	1st Dept: 187 AD3d 522 (NY)	denied 2/21/21 (Wilson, J.)
People v Tactikos	2d Dept: 187 AD3d 800 (Kings)	dismissed 2/25/21 (Wilson, J.)
People v Trine	4th Dept: 188 AD3d 1624 (Wayne)	denied 2/25/21 (DiFiore, Ch. J.)
People v Tropnas	2d Dept: 189 AD3d 1272 (Kings)	denied 2/11/21 (Rivera, J.)
People v True	3d Dept: 188 AD3d 1438 (Schenectady)	denied 2/23/21 (Garcia, J.)
People v Truelane	3d Dept: 188 AD3d 1438 (Schenectady)	denied 2/23/21 (Garcia, J.)
People v Van Stuyvesant	App Div, 1st Dept: 2020 NY Slip Op 74291(U) (NY)	denied 2/4/21 (Fahey, J.)
People v Vasquez (Kedvin)	1st Dept: 188 AD3d 500 (Bronx)	denied 2/11/21 (Feinman, J.)
People v Vazquez (Kedvin)	1st Dept: 188 AD3d 499 (NY)	denied 2/11/21 (Feinman, J.)
People v Walder	2d Dept: 186 AD3d 1272 (Dutchess)	denied 2/26/21 (DiFiore, Ch. J.)
People v Walker	2d Dept: 188 AD3d 1274 (Kings)	denied 2/9/21 (Fahey, J.)
People v Watson	2d Dept: 188 AD3d 933 (Dutchess)	denied 2/11/21 (Rivera, J.)
People v Watts	App Div, 1st Dept: 2020 NY Slip Op 73747(U) (NY)	denied 2/11/21 (Rivera, J.)
People v Weeks	3d Dept: 188 AD3d 1420 (Sullivan)	denied 2/16/21 (Fahey, J.)
People v Whilby	1st Dept: 188 AD3d 425 (NY)	denied 2/4/21 (Fahey, J.)
People v Wicomb	1st Dept: 188 AD3d 609 (NY)	denied 2/21/21 (Wilson, J.)
People v Wiggins	App Div, 2d Dept: 2021 NY Slip Op 60109(U) (Orange)	dismissed 2/25/21 (Rivera, J.)
People v Williams (Jahmel)	2d Dept: 188 AD3d 1106 (Queens)	denied 2/11/21 (Feinman, J.)
People v Williams (Juanita)	App Term, 1st Dept: 70 Misc 3d 130(A) (Bronx)	denied 2/25/21 (Rivera, J.)
People v Wilson	2d Dept: 186 AD3d 628 (Queens)	denied reconsideration 2/23/21 (Garcia, J.)
People v Woodward (Robert)	4th Dept: 189 AD3d 2057 (Onondaga)	denied 2/25/21 (Rivera, J.) (Appeal No. 1)
People v Woodward (Robert)	4th Dept: 189 AD3d 2058 (Onondaga)	denied 2/25/21 (Rivera, J.) (Appeal No. 2)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(February 1, 2021 through February 28, 2021)

People v Jimenez	2d Dept: 189 AD3d 882 (Queens)	granted 2/17/21 (Hinds-Radiz, J.)
People v Murray	1st Dept: 189 AD3d 688 (NY)	granted: 2/1/21 (Renwick, J.)

[166 NE3d 1043, 142 NYS3d 865]

HERKIMER COUNTY INDUSTRIAL DEVELOPMENT AGENCY, Appellant, v VILLAGE OF HERKIMER, Respondent, et al., Defendant.

Argued February 10, 2021; decided March 25, 2021

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered August 22, 2019. The Appellate Division order, insofar as appealed from, modified, on the law, so much of the amended judgment (denominated amended order) of the Supreme Court, Herkimer County (Erin P. Gall, J.), as had, in the action for a declaratory judgment (action No. 1), (1) denied plaintiff's motion for a declaration on its complaint; (2) granted the motion by defendant Village of Herkimer for summary judgment dismissing the complaint; and (3) granted the motion by defendant Village of Herkimer for summary judgment on its counterclaim on the issue of liability. The modification consisted of granting declaratory relief in defendant Village of Herkimer's favor, as follows: "It is adjudged and declared that plaintiff is liable to defendant Village of Herkimer for the subject unpaid water rents." The following question was certified by the Appellate Division: "Was the Order of this Court entered August 22, 2019, with respect to action No. 1 properly made?"

Herkimer County Indus. Dev. Agency v Village of Herkimer, 175 AD3d 857, reversed.

HEADNOTE

Municipal Corporations — Water Supply — County Industrial Development Agency's Liability for Unpaid Water Rents

In plaintiff county industrial development agency's declaratory judgment action in which defendant Village of Herkimer, through a counterclaim,

* Includes only applications that were granted.

sought a judgment declaring that plaintiff was personally liable to defendant for unpaid water rents incurred by a manufacturer that was plaintiff's tenant pursuant to bond financing sale-and-leaseback transactions, judgment was granted in plaintiff's favor because plaintiff was not liable for the unpaid water rents. The Water Department Rules and Regulations of the Village of Herkimer do not authorize a claim against plaintiff for personal liability upon nonpayment of water rents. To the extent the Rules and Regulations determine defendant's remedies for unpaid water bills, they refer to "a lien on the premises where the water is used" (rule No. 8) and to shutting off water supply, upon notice. Rule No. 22, which is contained in a section regulating how water meters are used to register consumption, does not impose an additional remedy for nonpayment.

APPEARANCES OF COUNSEL

Hodgson Russ LLP, Buffalo (*Charles W. Malcomb* and *Joshua Feinstein* of counsel), for appellant.

Longstreet & Berry, LLP, Fayetteville (*Michael J. Longstreet* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, judgment granted in plaintiff's favor in accordance with this memorandum, and the certified question answered in the negative.

In this declaratory judgment action, brought by Herkimer County Industrial Development Agency (plaintiff), the Village of Herkimer, through a counterclaim, seeks a judgment declaring that plaintiff is personally liable to the Village for certain unpaid water rents. The bills were incurred by a manufacturer that was plaintiff's tenant pursuant to bond financing sale-and-leaseback transactions. Plaintiff seeks dismissal of the counterclaim and a declaration that it is not personally liable for the water rents. Judgment should be granted in plaintiff's favor.

The Water Department Rules and Regulations of the Village of Herkimer, on which the Village relies, do not authorize a claim against plaintiff for personal liability upon nonpayment of water rents. To the extent the Rules and Regulations determine the Village's remedies for unpaid water bills, they refer to "a lien on the premises where the water is used" (rule No. 8; *see also* Village Law § 11-1118 [providing that unpaid water rents constitute a lien on real property]) and to shutting off water supply, upon notice (*see* rule No. 9; *see also* Village Law § 11-1116 [providing that a village may enforce observance

of its water use rules and regulations by cutting off water supply]). The Village points in particular to rule No. 22, but that provision, which is contained in a section regulating how water meters are used to register consumption, does not impose an additional remedy for nonpayment.

The Village's reliance on *Dunbar v City of New York* (177 App Div 647 [1st Dept 1917], *affd* 223 NY 597 [1918], *affd* 251 US 516 [1920]) is misplaced. *Dunbar* held that a landowner's consent to the supply of water to a tenant "must be deemed to be made with a view to the existing law" (*id.* at 649). Here, the law applicable to the subject property provided for a lien upon the real property, and not personal liability by the owner. *Dunbar*, therefore, does not support the Village's assertion that plaintiff is personally liable.

For these reasons, we conclude that plaintiff is not liable for the unpaid water rents. We need not reach, and take no position on, plaintiff's alternative argument that it possessed only a nominal, non-beneficial ownership interest in the property that was so limited as to defeat any claim of personal liability for the water rents.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON concur.

Order insofar as appealed from reversed, with costs, judgment granted in plaintiff's favor in accordance with the memorandum herein and certified question answered in the negative.

[166 NE3d 1041, 142 NYS3d 863]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DARRIN
McGHEE, Respondent.

Decided March 25, 2021

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 19, 2019. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Laura A. Ward, J.), which had denied defendant's CPL 440.10 motion to vacate a judgment of that court convicting defendant, upon a jury verdict, of murder in

the second degree and criminal possession of a weapon in the second degree; (2) granted the motion; and (3) remanded the matter for a new trial.

People v McGhee, 180 AD3d 26, reversed.

HEADNOTE

Crimes — Disclosure — Failure to Disclose Exculpatory Material — Witness Statement Disclosed after Trial Not Material

The Appellate Division incorrectly determined that a witness statement that was disclosed by the People after defendant's trial was material for purposes of defendant's *Brady* claim, as an examination of the trial record and evaluation of the withheld evidence revealed there was no reasonable possibility that the People's failure to disclose the witness statement undermined the fairness of defendant's trial or impacted the verdict. The undisclosed witness's description of the shooter and his flight path did not differ in any material respect from that of the eyewitness who identified defendant in court as the perpetrator. Moreover, the jury's verdict was supported by considerable other evidence, including the testimony of a cooperating witness who planned the crime with defendant, provided a weapon and cellphone for defendant's use, observed defendant approach and leave the site of the shooting at the time it occurred, and described the manner in which the weapon was destroyed after the shooting; testimony by the spouse of the cooperating witness confirming defendant's involvement; the testimony of additional witnesses who described the perpetrator's clothing and his movements following the shooting; telephone records; and surveillance videos showing defendant's proximity, clothing, and behavior immediately after the crime. Considering the totality of the evidence, there was no reasonable possibility that the statement supported an alternative theory of defense, nor had defendant demonstrated any likelihood that the statement would have led to additional admissible evidence.

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (*Alexander Michaels* of counsel), for appellant.

Robert S. Dean, Center for Appellant Litigation, New York City (*Ben A. Schatz* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that Court for further proceedings in accordance with this memorandum.

The only issue properly before us on this appeal is whether the Appellate Division correctly determined that a witness statement that was disclosed by the People after defendant's trial was material for purposes of defendant's *Brady* claim (see *Brady v Maryland*, 373 US 83, 87 [1963]). "To make out a successful *Brady* claim, 'a defendant must show that (1) the evi-

dence is favorable to the defendant because it is either exculpatory or impeaching in nature; (2) the evidence was suppressed by the prosecution; and (3) prejudice arose because the suppressed evidence was material’ ” (*People v Garrett*, 23 NY3d 878, 885 [2014], quoting *People v Fuentes*, 12 NY3d 259, 263 [2009]). Where, as here, the defendant made a specific request for the evidence in question, “[w]e must examine the trial record, evaluat[e] the withheld evidence in the context of the entire record, and determine in light of that examination whether there is a reasonable possibility that the result of the trial would have been different if the evidence had been disclosed” (*People v Giuca*, 33 NY3d 462, 476 [2019] [internal quotation marks omitted]; see *Turner v United States*, 582 US —, —, 137 S Ct 1885, 1893 [2017]; *People v Ulett*, 33 NY3d 512, 520 [2019]; *People v Vilardi*, 76 NY2d 67, 77 [1990]).

Our examination of the trial record and evaluation of the withheld evidence reveals there is no reasonable possibility that the People’s failure to disclose the witness statement at issue undermined the fairness of defendant’s trial or impacted the verdict (see *Giuca*, 33 NY3d at 476). The undisclosed witness’s description of the shooter and his flight path did not differ in any material respect from that of the eyewitness who identified defendant in court as the perpetrator. Moreover, the jury’s verdict was supported by considerable other evidence, including the testimony of a cooperating witness who planned the crime with defendant, provided a weapon and cellphone for defendant’s use, observed defendant approach and leave the site of the shooting at the time it occurred, and described the manner in which the weapon was destroyed after the shooting; testimony by the spouse of the cooperating witness confirming defendant’s involvement; the testimony of additional witnesses who described the perpetrator’s clothing and his movements following the shooting; telephone records; and surveillance videos showing defendant’s proximity, clothing, and behavior immediately after the crime. Under these circumstances, the undisclosed witness statement lacked sufficient impeachment value to cast any doubt on the fairness of defendant’s trial (compare *People v Rong He*, 34 NY3d 956, 959 [2019]). Furthermore, considering the totality of the evidence, there is no reasonable possibility that the statement supported an alternative theory of defense, nor has defendant demonstrated any likelihood that the statement would have led to additional admissible evidence (compare *id.*; *Ulett*, 33 NY3d at 521; *cf.*

Turner, 582 US at —, 137 S Ct at 1887). Accordingly, defendant has failed to show that “‘prejudice arose because the suppressed evidence was material’” (*Garrett*, 23 NY3d at 885, quoting *Fuentes*, 12 NY3d at 263).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur.

On review of submissions pursuant to Rules of the Court of Appeals (22 NYCRR) § 500.11, order reversed and case remitted to the Appellate Division, First Department, for further proceedings in accordance with the memorandum herein.

[166 NE3d 1040, 142 NYS3d 862]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS VASQUEZ, Appellant.

Decided March 25, 2021

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 9, 2020. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Patricia M. DiMango and Patricia Anne Williams, JJ., at CPL art 730 proceedings; Thomas E. Moran, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts) and assault in the first degree.

People v Vasquez, 182 AD3d 438, affirmed.

HEADNOTES

Crimes — Fitness to Proceed to Trial — Right to Third Competency Examination

1. In a criminal prosecution, the record supported the lower courts' determination that defendant was not entitled to a third CPL article 730 examination to redetermine his competency to proceed.

Crimes — Harmless and Prejudicial Error — Questions and Summation Remarks by Prosecutor — Uncharged Crimes

2. In a criminal prosecution, the Appellate Division properly determined that the prosecutor's questioning of a defense witness and summation remarks improperly associated defendant with uncharged crimes but were harmless. The proof of defendant's guilt was overwhelming, with evidence demonstrating that there was no significant probability that the jury would have acquitted defendant but for the prosecutor's references to the uncharged crimes.

Crimes — Fair Trial — Denial of Request for Adjournment to Interview Witness

3. In a criminal prosecution, the Appellate Division did not err in holding that Supreme Court acted within its discretion in denying defense counsel's last-minute request for an adjournment to interview a defense witness before the witness testified. Under the circumstances, the denial of the adjournment request did not infringe defendant's rights to a fair trial, to prepare a defense, or to effective assistance of counsel.

APPEARANCES OF COUNSEL

Caprice R. Jenerson, Office of the Appellate Defender, New York City (Stephen R. Strother and Rosemary Herbert of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (Jennifer L. Watson of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

[1] The record supports the lower courts' determination that defendant was not entitled to a third CPL article 730 examination to redetermine his competency to proceed (*see People v Armlin*, 37 NY2d 167, 171 [1975]; *People v Morgan*, 87 NY2d 878, 880 [1995]).

[2] We agree with the Appellate Division's determination that the prosecutor's questioning of a defense witness and summation remarks improperly associated defendant with uncharged crimes but were harmless. The proof of defendant's guilt was overwhelming, and the trial evidence demonstrated that there is no "significant probability, rather than only a rational possibility," that the jury would have acquitted defendant but for the prosecutor's references to the uncharged crimes (*People v Crimmins*, 36 NY2d 230, 242 [1975]).

[3] The Appellate Division did not err in holding that Supreme Court acted within its discretion in denying defense counsel's last-minute request for an adjournment to interview a defense witness before the witness testified. Under the circumstances of this case, the denial of the adjournment request did not infringe defendant's rights to a fair trial, to prepare a defense, or to effective assistance of counsel (*cf. People v Spears*, 64 NY2d 698, 700 [1984]).

Defendant's remaining contentions are without merit.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

In the Matter of SALIM ABDUL-MALIK, Appellant, v LEONARD LIVOTE et al., Respondents.

Decided March 25, 2021

Reported below, 186 AD3d 1213; 2020 NY Slip Op 76814(U).

Appeal, insofar as taken from the September 2020 Appellate Division order, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question; appeal, insofar as taken from the December 2020 Appellate Division order, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

ANNA AYBAR et al., Appellants, v JOSE A. AYBAR, JR., et al., Defendants, and FORD MOTOR COMPANY et al., Respondents. U.S. TIRES AND WHEELS OF QUEENS, LLC, Nonparty Respondent.

Submitted March 8, 2021; decided March 25, 2021

Reported below, 169 AD3d 137.

Motion by New York State Bar Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

ANNA AYBAR et al., Appellants, v JOSE A. AYBAR, JR., et al., Defendants and FORD MOTOR COMPANY et al., Respondents. U.S. TIRES AND WHEELS OF QUEENS, LLC, Nonparty Respondent.

Submitted March 15, 2021; decided March 25, 2021

Reported below, 169 AD3d 137.

Motion by Alan B. Morrison et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

800 GRAND CONCOURSE OWNERS, INC., Respondent, v CHARLENE THOMPSON, Respondent, and JAMES PETTUS, Appellant.

Decided March 25, 2021

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Term, First Department, upon the ground that a direct appeal does not lie (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of PEDRO ENDARA-CAICEDO, Appellant, v NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES et al., Respondents.

Submitted March 8, 2021; decided March 25, 2021

Reported below, 180 AD3d 499.

Motion by Richard Solano for leave to file a brief amicus curiae on the appeal herein denied.

JESUS FERREIRA, Appellant, v CITY OF BINGHAMTON et al., Respondents.

Submitted March 22, 2021; decided March 25, 2021

See 975 F3d 255.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LARRY HALLOCK, an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

In the Matter of MARY SHEILA MALERBA, an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Submitted December 7, 2020; decided March 25, 2021

Reported below, 181 AD3d 125; 182 AD3d 91.

Motion to strike portions of appellants' records on appeal and reply briefs denied.

Judge RIVERA taking no part.

In the Matter of JOSEPH HAYON, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION et al., Respondents.

Submitted November 5, 2020; decided March 25, 2021

Reported below, 188 AD3d 1312.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

HIMMELSTEIN, McCONNELL, GRIBBEN, DONOGHUE & JOSEPH, LLP, et al., Appellants, v MATTHEW BENDER & COMPANY, INC., A MEMBER OF LEXISNEXIS GROUP, INC., Respondent.

Submitted March 22, 2021; decided March 25, 2021

Reported below, 172 AD3d 405.

Motion by New York State Office of the Attorney General for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

HOME EQUITY MORTGAGE TRUST SERIES 2006-1 et al., Respondents, v DLJ MORTGAGE CAPITAL, INC., Appellant, et al., Defendant.

HOME EQUITY MORTGAGE TRUST SERIES 2006-5, Respondent, v DLJ MORTGAGE CAPITAL, INC., Appellant, et al., Defendant.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v DLJ MORTGAGE CAPITAL, INC., Appellant.

Submitted March 22, 2021; decided March 25, 2021

Reported below, 175 AD3d 1175; 176 AD3d 466.

Motion by National Credit Union Administration Board et al. for leave to file a brief amici curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge WILSON taking no part.

HOME EQUITY MORTGAGE TRUST SERIES 2006-1 et al., Respondents, v DLJ MORTGAGE CAPITAL, INC., Appellant, et al., Defendant.

HOME EQUITY MORTGAGE TRUST SERIES 2006-5, Respondent, v DLJ MORTGAGE CAPITAL, INC., Appellant, et al., Defendant.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v DLJ MORTGAGE CAPITAL, INC., Appellant.

Submitted March 22, 2021; decided March 25, 2021

Reported below, 175 AD3d 1175; 176 AD3d 466.

Motion by David L. Ferstendig for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge WILSON taking no part.

HOME EQUITY MORTGAGE TRUST SERIES 2006-1 et al., Respondents, v DLJ MORTGAGE CAPITAL, INC., Appellant, et al., Defendant.

HOME EQUITY MORTGAGE TRUST SERIES 2006-5, Respondent, v DLJ MORTGAGE CAPITAL, INC., Appellant, et al., Defendant.

Submitted March 22, 2021; decided March 25, 2021

Reported below, 175 AD3d 1175.

Motion by Securities Industry and Financial Markets Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge WILSON taking no part.

In the Matter of JAYDA W. ONONDAGA COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES, Respondent; CHRISTINA W., Respondent. SANDY S., Appellant. BETHANIE H. et al., Intervenor-Respondents. (Appeal No. 1.)

In the Matter of SANDY L.S., Appellant, v ONONDAGA COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES et al., Respondents. BETHANIE H. et al., Intervenor-Respondents. (Appeal No. 2.)

Submitted January 11, 2021; decided March 25, 2021

Reported below, 188 AD3d 1750; 188 AD3d 1751.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that dismissed the appeal from the March 2019 Family Court order terminating the mother's parental rights, dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise denied.

In the Matter of DARYLL BOYD JONES, a Suspended Attorney, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH AND THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Decided March 25, 2021

Reported below, 2020 NY Slip Op 75932(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

SHLOMO KARPEN, Appellant, v JULIO ANDRADE, Respondent.

Decided March 25, 2021

Reported below, 66 Misc 3d 362.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it is untimely (*see* CPLR 5513 [a]).

SHLOMO KARPEN, Appellant, v JUAN PABLO AREVALO et al., Respondents.

Decided March 25, 2021

Reported below, 66 Misc 3d 362.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it is untimely (*see* CPLR 5513 [a]).

SHLOMO KARPEN, Appellant, v MANUEL CASTRO et al., Respondents.

Decided March 25, 2021

Reported below, 66 Misc 3d 362.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it is untimely (*see* CPLR 5513 [a]).

In the Matter of KAYLA C., a Child Alleged to be Neglected.
STEPHANIE C., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted November 30, 2020; decided March 25, 2021

Reported below, 187 AD3d 434.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of KRISTIN KEULEMAN, Respondent, v MICHAEL EARP, Appellant. (Proceeding No. 1.)

In the Matter of MICHAEL EARP, Respondent, v KRISTIN KEULEMAN, Appellant. (Proceeding No. 2.)

Submitted January 4, 2021; decided March 25, 2021

Reported below, 188 AD3d 1063.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed so much of the Family Court order as denied enforcement of a prior Family Court order, dismissed upon the ground that such portion of the order does not finally determine the proceedings within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents, et al., Defendants.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents, et al., Defendants.

Decided March 25, 2021

Reported below, 2019 NY Slip Op 84361(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the actions within the meaning of the Constitution.

Chief Judge DiFIORE taking no part.

In the Matter of MARVIN P., Appellant.

Submitted January 11, 2021; decided March 25, 2021

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTON HILL, Appellant.

Submitted March 15, 2021; decided March 25, 2021

Reported below, 157 AD3d 505.

Motion for reargument denied [*see* 36 NY3d 1039 (2021)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ORLANDO JOHNSON, Appellant.

Submitted March 1, 2021; decided March 25, 2021

Reported below, 179 AD3d 1097.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Chief Judge DiFIORE taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL LAMB, Appellant.

Submitted March 22, 2021; decided March 25, 2021

Reported below, 188 AD3d 470.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARC MITCHELL, Appellant.

Submitted March 1, 2021; decided March 25, 2021

Reported below, 69 Misc 3d 133(A), 2020 NY Slip Op 51240(U).

Motion for assignment of counsel granted and Janet E. Sabel, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HASAHN
D. MURRAY, Appellant.

Submitted March 1, 2021; decided March 25, 2021

Reported below, 189 AD3d 688.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HENRY
OBANDO, Appellant.

Submitted March 15, 2021; decided March 25, 2021

Reported below, 70 Misc 3d 130(A), 2020 NY Slip Op 51540(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH
SCHNEIDER, Appellant.

Submitted March 22, 2021; decided March 25, 2021

Reported below, 176 AD3d 979.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN
W. WALLS, Appellant.

Submitted March 15, 2021; decided March 25, 2021

Reported below, 187 AD3d 1527.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

PLYMOUTH VENTURE PARTNERS, II, L.P. et al., Appellants, v
GTR SOURCE, LLC et al., Respondents.

PLYMOUTH VENTURE PARTNERS, II, L.P. et al., Appellants, v
CAPITAL MERCHANT SERVICES, LLC, Respondent.

Decided March 25, 2021

See 988 F3d 634.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia and Wilson.

In the Matter of SANDRA R., Appellant, v MATTHEW R., Respondent. (Proceeding No. 1) (And Another Related Proceeding.)

In the Matter of SHARON S., Appellant, v MATTHEW R., Respondent, and SANDRA R., Appellant. (Proceeding No. 3.)

In the Matter of MATTHEW R., Appellant, v SANDRA R., Respondent, and SANDRA R., Appellant. (Proceeding No. 4.)

Submitted January 25, 2021; decided March 25, 2021

Reported below, 189 AD3d 1995.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed so much of the Family Court order as dismissed the petition for enforcement, dismissed upon the ground that such portion of the order does not finally determine a proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of DAVID SEGAL, Appellant, v ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

In the Matter of DAVID SEGAL, Appellant, v OFFICE OF COURT ADMINISTRATION, UNIFIED COURT SYSTEM, Respondent.

Submitted December 14, 2020; decided March 25, 2021

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies to this Court from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

Chief Judge DiFIORE taking no part.

In the Matter of DAVID SEGAL, Appellant, v OFFICE OF COURT ADMINISTRATION, et al., Respondents.

Decided March 25, 2021

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine an action or proceeding within the meaning of the Constitution. Motion to disqualify counsel denied.

Chief Judge DiFIORE taking no part.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v DLJ MORTGAGE CAPITAL, INC., Appellant.

Submitted March 22, 2021; decided March 25, 2021

Reported below, 176 AD3d 466.

Motion by Securities Industry and Financial Markets Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge WILSON taking no part.

In the Matter of WEST 58TH STREET COALITION, INC., et al., Respondents-Appellants, v CITY OF NEW YORK et al., Appellants-Respondents.

Submitted March 22, 2021; decided March 25, 2021

Reported below, 188 AD3d 1.

Motion by Coalition for the Homeless, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of IRMA ZELIG, Respondent, v STATE OF NEW YORK
DIVISION OF HOUSING AND COMMUNITY RENEWAL et al.,
Respondents. ASPENLY COMPANY LLC, Intervenor-
Appellant.

Decided March 25, 2021

Reported below, 189 AD3d 657.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

BENE LLC, Appellant, v NEW YORK SMSA LIMITED PARTNER-
SHIP, Respondent, et al., Defendants. LESLIE J. SNYDER,
Esq., Nonparty Respondent.

Submitted December 21, 2020; decided March 30, 2021

Reported below, 184 AD3d 538.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of COUNCIL OF THE CITY OF NEW YORK et al., Ap-
pellants, v DEPARTMENT OF CITY PLANNING OF THE CITY OF
NEW YORK et al., Respondents. TWO BRIDGES ASSOCIATES,
LP, et al., Intervenor-Respondents.

Submitted January 4, 2021; decided March 30, 2021

Reported below, 188 AD3d 18.

Motion by Municipal Art Society of New York for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of COUNCIL OF THE CITY OF NEW YORK et al., Appellants, v DEPARTMENT OF CITY PLANNING OF THE CITY OF NEW YORK et al., Respondents. TWO BRIDGES ASSOCIATES, LP, et al., Intervenors-Respondents.

Submitted March 15, 2021; decided March 30, 2021

Reported below, 188 AD3d 18.

Motion by Vision Urbana, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

PAMELA DELAP, Appellant, v MICHAELA M. SERSELOUDI et al., Defendants. JORDAN R. PINE, Respondent.

Submitted December 7, 2020; decided March 30, 2021

Reported below, 184 AD3d 992.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DEUTSCHE BANK NATIONAL TRUST COMPANY, Respondent, v FERN CIRAOLO et al., Appellants, et al., Defendants.

Submitted December 28, 2020; decided March 30, 2021

Reported below, 187 AD3d 1142.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

HELEN GARDNER, Appellant, v NEW YORK PRESBYTERIAN BROOKLYN METHODIST HOSPITAL, Respondent, et al., Defendants.

Submitted December 28, 2020; decided March 30, 2021

Reported below, 2020 NY Slip Op 73965(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge DiFiore taking no part.

In the Matter of the Claim of JACQUELINE GRABOIS, Respondent. A TAYLORED AFFAIR, LLC, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted December 21, 2020; decided March 30, 2021

Reported below, 187 AD3d 1261.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of KIM A. KIRSCH et al., Respondents, v BOARD OF EDUCATION OF WILLIAMSVILLE CENTRAL SCHOOL DISTRICT et al., Appellants.

Submitted December 14, 2020; decided March 30, 2021

Reported below, 184 AD3d 1085.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

L & L ASSOCIATES HOLDING CORP., Respondent, v SEVENTH DAY CHURCH OF GOD OF THE APOSTOLIC FAITH et al., Appellants, et al., Defendants.

Submitted December 21, 2020; decided March 30, 2021

Reported below, 188 AD3d 1180.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD ALVAREZ, Appellant.

Submitted December 28, 2020; decided March 30, 2021

Reported below, 181 AD3d 728.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v FERNANDO ROMUALDO, Respondent.

Submitted January 11, 2021; decided March 30, 2021

Reported below, 188 AD3d 928.

Motion to dismiss appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLEFRANTZ ROMULUS, Appellant.

Decided March 30, 2021

Reported below, 189 AD3d 553.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (*see* CPLR 5601 [a]).

In the Matter of the Claim of DEBORAH RZEZNIK, Claimant, v TOWN OF WARWICK et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Submitted December 14, 2020; decided March 30, 2021

Reported below, 183 AD3d 998.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ROBERT STEC, Appellant, v PASSPORT BRANDS, INC., et al., Respondents.

Submitted November 16, 2020; decided March 30, 2021

Reported below, 182 AD3d 434.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SUMMER ZERVOS, Respondent, v DONALD J. TRUMP, Appellant.

Submitted February 16, 2021; decided March 30, 2021

Reported below, 171 AD3d 110.

Motion to dismiss appeal granted and appeal dismissed, without costs, upon the ground that the issues presented have become moot.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted January 19, 2021; decided April 1, 2021

Reported below, 2014 NY Slip Op 73548(U); 2014 NY Slip Op 76248(U).

Motion, insofar as it seeks leave to appeal from the June 25, 2014 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (24 NY3d 934 [2014]) from the same Appellate Division order from which he currently seeks leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion otherwise dismissed upon the ground that the remaining order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of PRASAD CHALASANI, Appellant, v MARYELLEN ELIA, as Commissioner of Education, et al., Respondents.

Submitted January 25, 2021; decided April 1, 2021

Reported below, 181 AD3d 1066.

Motion for reargument of motion for leave to appeal denied [*see* 36 NY3d 901 (2020)].

In the Matter of RASHOD COSTON, Appellant, v STEPHEN J. DOUGHERTY, Respondent.

Submitted February 1, 2021; decided April 1, 2021

Reported below, 2020 NY Slip Op 76142(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MICHAEL CUTAIA, Respondent, v THE BOARD OF MANAGERS OF THE 160/170 VARICK STREET CONDOMINIUM et al., Defendants, and THE RECTOR, CHURCH WARDENS AND VESTRYMEN OF TRINITY CHURCH IN THE CITY OF NEW YORK, et al., Appellants. MICHILLI CONSTRUCTION, INC., et al., Third-Party Appellants, v A+ INSTALLATIONS CORP., Third-Party Defendant. (And Other Actions.)

Decided April 1, 2021

Reported below, 172 AD3d 424.

Reargument ordered for a future Court session.

Concur: Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON.

In the Matter of ELDERWOOD AT GRAND ISLAND, Appellant, v HOWARD A. ZUCKER, M.D., as Commissioner of New York State Department of Health, et al., Respondents.

Submitted March 1, 2021; decided April 1, 2021

Reported below, 188 AD3d 1580.

Motion by New York State Health Care Facilities Association, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

FEDERAL NATIONAL MORTGAGE ASSOCIATION, Respondent, v NANCY E. NUGENT, Appellant, et al., Defendants. CITIMORTGAGE, INC., Nonparty Respondent.

Submitted January 4, 2021; decided April 1, 2021

Reported below, 187 AD3d 716.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANTOINETTE GRAVAGNA, Respondent, v JOSEPH GRAVAGNA, Appellant.

In the Matter of ANTOINETTE GRAVAGNA, Respondent, v JOSEPH GRAVAGNA, Appellant.

Submitted December 28, 2020; decided April 1, 2021

Reported below, 186 AD3d 1333; 186 AD3d 1368.

Motion, insofar as it seeks leave to appeal from the Appellate Division order resolving the appeal in the first captioned action, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of RAWL A. JONES, Appellant, v New York City
TRANSIT AUTHORITY, Respondent.

Submitted January 19, 2021; decided April 1, 2021

Reported below, 178 AD3d 826.

Motion for reargument of motion for leave to appeal denied
[see 36 NY3d 901 (2020)].

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent, v
ROSS R. CALIGURI, Also Known as ROSS CALIGURI, Appel-
lant.

Submitted January 25, 2021; decided April 1, 2021

Reported below, 168 AD3d 819.

Motion for reargument denied [see 36 NY3d 953 (2020)].

CARLOS JULE, Appellant, v KIAMESHA SHORES PROPERTY OWN-
ERS ASSOCIATION INC. et al., Respondents.

Submitted January 11, 2021; decided April 1, 2021

Motion for leave to appeal dismissed upon the ground that it
does not lie (see CPLR 5602 [a]).

HAJA KAMARA, as Administratrix of the Estate of ABU KAMARA,
Deceased, Appellant, v 767 FIFTH PARTNERS, LLC, Respon-
dent.

Submitted January 11, 2021; decided April 1, 2021

Reported below, 188 AD3d 602.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

M&E 73-75, LLC, Appellant, v 57 FUSION LLC, Respondent.

Submitted December 28, 2020; decided April 1, 2021

Reported below, 189 AD3d 1.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted January 25, 2021; decided April 1, 2021

Reported below, 2020 NY Slip Op 60861(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

DAVID JAMES MURPHY, Appellant, v CITIGROUP GLOBAL MARKETS, INC., et al., Respondents.

Submitted February 1, 2021; decided April 1, 2021

Reported below, 185 AD3d 486.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [see 36 NY3d 903 (2020)].

189 SCHERMERHORN OWNERS COMPANY, LLC, Appellant, v BOARD OF MANAGERS OF THE BE@SCHERMERHORN CONDOMINIUM et al., Respondents.

Submitted January 25, 2021; decided April 1, 2021

Reported below, 186 AD3d 1467; 2020 NY Slip Op 76083(U).

Motion, insofar as it seeks leave to appeal from the December 2020 Appellate Division order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion, insofar as treated as also seeking leave to appeal (*see* CPLR 5512) from the September 2020 Appellate Division order, otherwise denied.

ONEWEST BANK, F.S.B., Respondent, v LYNN M. MAZZONE, Also Known as LYNN MAZZONE, et al., Appellants, et al., Defendant.

Submitted January 19, 2021; decided April 1, 2021

Reported below, 186 AD3d 1815.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD POWELL, Appellant.

Decided April 1, 2021

Reported below, 188 AD3d 734.

Reargument ordered for a future Court session.

Concur: Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANGEL ORTIZ, Appellant, v DENNIS BRESLIN et al., Respondents.

Submitted February 16, 2021; decided April 1, 2021

Reported below, 183 AD3d 577

Motion for reargument dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]).

LOGAN PEREZ-GURRI, Respondent, v CRAIG STEFFEN, Appellant, et al., Defendant.

Submitted February 1, 2021; decided April 1, 2021

Reported below, 189 AD3d 559.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

STEPHEN P. ROMINE, Appellant, v JAMES P. LAURITO et al.,
Respondents.

Submitted December 21, 2020; decided April 1, 2021

Reported below, 186 AD3d 913.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

CURBY TOUSSAINT, Respondent, v PORT AUTHORITY OF NEW
YORK AND NEW JERSEY, Appellant, et al., Defendants.

Decided April 1, 2021

Reported below, 174 AD3d 42.

Reargument ordered for a future Court session.

Concur: Chief Judge DiFiore and Judges RIVERA, STEIN,
FHEY, GARCIA and WILSON concur.

In the Matter of YU CHAN LI, Appellant, v NEW YORK CITY
LANDMARKS PRESERVATION COMMISSION, Respondent.

Submitted January 25, 2021; decided April 1, 2021

Reported below, 2020 NY Slip Op 69844(U).

Motion for reargument of motion for leave to appeal denied
[see 36 NY3d 927 (2020)].

[167 NE3d 497, 143 NYS3d 329]

In the Matter of PEOPLE CARE INCORPORATED, Doing Business
as ASSISTED CARE, Respondent, v CITY OF NEW YORK HU-
MAN RESOURCES ADMINISTRATION et al., Appellants.

Argued February 9, 2021; decided March 25, 2021

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 23, 2019. The Appellate Division, with two Justices dissenting, affirmed the order and judgment (one paper) of the Supreme Court, New York County (Eileen A. Rakower, J.), entered in a proceeding pursuant to CPLR article 78, which had (1) granted the petition seeking to annul respondents' October 20, 2008 audit which demanded recoupment of \$6,998,432 from petitioner; (2) enjoined respondents from recouping those funds; and (3) denied respondents' cross motion to dismiss the petition.

Matter of People Care Inc. v City of N.Y. Human Resources Admin., 175 AD3d 134, reversed.

HEADNOTE

Health — Medicaid Reimbursement Payments — Authority to Audit and Recover Overpayments of Funds Provided under Health Care Reform Act

In a CPLR article 78 proceeding, for the reasons stated in the dissenting opinion at the Appellate Division, the funds for personal care services paid to petitioner under the Health Care Reform Act (Public Health Law § 2807-v [1] [bb] [i], [iii]) were Medicaid funds subject to the audit and recoupment authority of respondent City of New York Human Resources Administration in accordance with the parties' contract.

APPEARANCES OF COUNSEL

James E. Johnson, Corporation Counsel, New York City (*Eric Lee, Devin Slack and Scott Shorr* of counsel), for appellants.

Olshan Frome Wolosky LLP, New York City (*Thomas J. Fleming and Kerrin T. Klein* of counsel), and *Todd V. Lamb*, New York City, for respondent.

Letitia James, Attorney General, New York City (*Matthew W. Grieco, Barbara D. Underwood, and Steven C. Wu* of counsel), for New York State Department of Health, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the matter remitted to the Appellate Division for consideration of issues raised but not determined on the appeal to that Court.

For the reasons stated in the dissenting opinion below (*Matter of People Care Inc. v City of N.Y. Human Resources Admin.*,

175 AD3d 134, 147-152 [1st Dept 2019, Richter, J.P., dissenting]), we conclude that the funds for personal care services paid to petitioner People Care Inc. under the Health Care Reform Act (Public Health Law § 2807-v [1] [bb] [i], [iii]) are Medicaid funds subject to the audit and recoupment authority of the City of New York Human Resources Administration (HRA) in accordance with the parties' 2001 contract. In light of our holding, we do not address HRA's contentions regarding whether petitioner must follow the contractual dispute resolution procedures or the merits of HRA's recoupment demand, issues that were not decided by the Appellate Division.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur.

Order reversed, with costs, and matter remitted to the Appellate Division, First Department, for consideration of issues raised but not determined on the appeal to that Court, in a memorandum.

[167 NE3d 919, 143 NYS3d 663]

In the Matter of STATE OF NEW YORK, Appellant, v DONALD G.,
Respondent.

Decided March 30, 2021

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered August 20, 2020. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, insofar as appealed from, an order of Supreme Court, Cayuga County (Mark H. Fandrich, A.J.), in a proceeding pursuant to Mental Hygiene Law article 10, which had granted petitioner's motion to set aside the jury verdict on the ground of juror misconduct and ordered a new trial; (2) denied the motion; and (3) reinstated the jury verdict.

Matter of State of New York v Donald G., 186 AD3d 1127, reversed.

HEADNOTE

Crimes — Sex Offenders — Civil Commitment or Supervision — Verdict Set Aside on Ground of Juror Misconduct

In a Mental Hygiene Law article 10 proceeding, under the circumstances, Supreme Court did not abuse its discretion as a matter of law in ordering a new trial in the interest of justice on the ground of juror misconduct.

APPEARANCES OF COUNSEL

Letitia James, Attorney General, Albany (Frederick A. Brodie, Barbara D. Underwood and Andrea Oser of counsel), for appellant.

Kaman, Berlove, Marafioti, Jacobstein & Goldman, LLP, Rochester (Gary Muldoon of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, without costs, and order of Supreme Court, Cayuga County, reinstated. Under these circumstances, Supreme Court did not abuse its discretion as a matter of law in ordering a new trial in the interest of justice on the ground of juror misconduct. Respondent's remaining contentions have been considered and are without merit.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson.

[167 NE3d 920, 143 NYS3d 664]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LESLIE K. OLDS, Appellant.

Argued February 11, 2021; decided April 1, 2021

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Niagara County Court (Matthew J. Murphy III, J.), dated July 31, 2018. The County Court affirmed a judgment of the Justice Court of the Town of Niagara, Niagara County (John P. Teixeira, J.), which had convicted defendant, upon a plea of guilty, of endangering the welfare of a child and sentenced defendant to a term of one year of incarceration.

HEADNOTE**Crimes — Appeal — Preservation of Issue for Review — Sentence Imposed after Retrial — Claim of Presumptive Vindictiveness**

Defendant, who entered a guilty plea to a different offense before a different judge after reversal on appeal of his conviction upon a nonjury verdict, failed to preserve his claim that the sentence imposed upon his guilty plea was presumptively vindictive and imposed without state due process protections. Defendant's arguments against imposition of the term of imprisonment, registered before the court imposed sentence, were consistent with arguments for leniency and made no specific reference to the principle of vindictiveness or any potential constitutional violation. Defendant also failed to either object to the sentence actually imposed or move to withdraw his plea. Nor did the record support a claim that the sentence, which was within the ambit of the range of sentences for the offense, was illegal in a respect that could readily be discerned from the record.

APPEARANCES OF COUNSEL

David C. Schopp, Legal Aid Bureau of Buffalo, Inc., Buffalo (*Michael S. Deal* and *Susan Ministero* of counsel), for appellant.

Brian D. Seaman, District Attorney, Lockport (*Laura T. Jordan* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the County Court should be affirmed.

After a successful appeal, resulting in the reversal of his conviction upon a nonjury verdict, defendant entered a guilty plea to a different offense before a different judge. The claim that the sentence imposed upon defendant's guilty plea was presumptively vindictive and imposed without state due process protections (*People v Van Pelt*, 76 NY2d 156 [1990]) is unpreserved. Defendant's arguments against imposition of the term of imprisonment, registered before the court imposed sentence, were consistent with arguments for leniency and made no specific reference to the principle of vindictiveness or any potential constitutional violation. Defendant also failed to either object to the sentence actually imposed or move to withdraw his guilty plea. Nor does this record support a claim that the sentence, which was within the ambit of the range of sentences for a class A misdemeanor, was illegal in a respect that "can readily be discerned from the . . . record" (see *People v Pena*, 28 NY3d 727, 730 [2017]; *People v Nieves*, 2 NY3d 310, 315 [2004]). As a result, defendant's arguments are unreviewable.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur.

Order affirmed, in a memorandum.

[167 NE3d 919, 143 NYS3d 663]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEX PEREZ, Appellant.

Decided March 30, 2021

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered May 7, 2020. The Appellate Division (1) affirmed a judgment of the Supreme Court, Albany County (Thomas A. Breslin, J.), which had convicted defendant of attempted assault in the first degree and assault in the second degree; and (2) remitted the matter to the Supreme Court for further proceedings pursuant to CPL 460.50 (5).

People v Perez, 183 AD3d 934, affirmed.

HEADNOTE

Crimes — Harmless and Prejudicial Error

In a criminal prosecution, any error was harmless because, in the circumstances presented, the proof of defendant's guilt was overwhelming, even after excising the disputed evidence. Further, no reasonable possibility existed that admission of that evidence contributed to defendant's conviction.

APPEARANCES OF COUNSEL

Hug Law PLLC, Albany (*Matthew C. Hug* of counsel), for appellant.

P. David Soares, District Attorney, Albany (*Emily Schultz* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Any error was harmless because, in the circumstances presented, the proof of defendant's guilt was overwhelming, even after excising the disputed evidence. Further, no reasonable possibility exists that admission of that evidence contributed to de-

defendant's conviction (*see People v Mairena*, 34 NY3d 473, 484-485 [2019]; *People v Crimmins*, 36 NY2d 230, 237, 241-242 [1975]). Defendant's arguments concerning the weight of the evidence and the harshness of his sentence are not reviewable, and his other assertions are unavailing.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**

(March 1, 2021 through March 31, 2021)

People ex rel. Hayon v Kickbush	App Div, 2d Dept, Dec. 2, 2020	3/26/21
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APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2021 through March 31, 2021)

Jean-Paul v 67-30 Dartmouth St. Owners Corp.	2d Dept: 174 AD3d 870	3/22/21
Jolley v Lando	4th Dept: 187 AD3d 1530 (Appeal No. 1)	3/3/21

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2021 through March 31, 2021)

People v Abodalo	2d Dept: 189 AD3d 1607 (Nassau)	denied 3/24/21 (Garcia, J.)
People v Acosta (Jose)	1st Dept: 189 AD3d 508 (NY)	denied 3/29/21 (Stein, J.)
People v Acosta (Kelvi)	1st Dept: 190 AD3d 532 (Bronx)	denied 3/24/21 (Garcia, J.)
People v Ambrosio	2d Dept: 189 AD3d 868 (Queens)	denied 3/2/21 (Feinman, J.)
People v Anderson	1st Dept: 189 AD3d 488 (NY)	denied 3/10/21 (Fahey, J.)
People v Baboo	4th Dept: 188 AD3d 1626 (Wayne)	denied 3/18/21 (Wilson, J.)
People v Baby Boy	3d Dept: 189 AD3d 1769 (Schenectady)	denied 3/10/21 (Fahey, J.)
People v Barzee	3d Dept: 190 AD3d 1016 (Clinton)	denied 3/25/21 (DiFiore, Ch. J.)

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People v Bass	3d Dept: 189 AD3d 1977 (Essex)	denied 3/24/21 (Garcia, J.)
People v Beard	4th Dept: 189 AD3d 2097 (Steuben)	denied 3/31/21 (DiFiore, Ch. J.)
People v Beasley	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 135(A) (Kings)	denied 3/29/21 (Rivera, J.)
People v Bernazard	2d Dept: 188 AD3d 1239 (Queens)	denied 3/18/21 (Wilson, J.)
People v Bickham	3d Dept: 189 AD3d 1972 (Broome)	denied 3/2/21 (Fahey, J.)
People v Blanding	App Div, 1st Dept: 2020 NY Slip Op 73471(U) (NY)	dismissed 3/29/21 (Fahey, J.)
People v Boogs	3d Dept: 190 AD3d 1022 (Schenectady)	denied 3/2/21 (Fahey, J.)
People v Borgella	2d Dept: 189 AD3d 872 (Kings)	denied 3/31/21 (Stein, J.)
People v Botts	3d Dept: 191 AD3d 1044 (Albany)	denied 3/29/21 (Rivera, J.)
People v Brewster	2d Dept: 188 AD3d 1246 (Dutchess)	denied 3/9/21 (Rivera, J.)
People v Brown (Christopher)	2d Dept: 181 AD3d 819 (Kings)	denied 3/26/21 (Wilson, J.)
People v Brown (Ikiko)	App Div, 4th Dept, 1/7/21 (Oneida)	dismissed 3/29/21 (Fahey, J.)
People v Brown (Robert)	App Div, 1st Dept: 2020 NY Slip Op 75562(U) (NY)	denied 3/25/21 (DiFiore, Ch. J.)
People v Brown (Triquawn)	2d Dept: 182 AD3d 607 (Kings)	denied 3/2/21 (Feinman, J.)
People v Brown (Warren)	1st Dept: 189 AD3d 701 (NY)	denied 3/31/21 (DiFiore, Ch. J.)
People v Burks	3d Dept: 187 AD3d 1405 (Broome)	denied 3/2/21 (Feinman, J.)
People v Burton	4th Dept: 191 AD3d 1311 (Onondaga)	denied 3/29/21 (Rivera, J.)
People v Busgith	1st Dept: 189 AD3d 453 (Bronx)	denied 3/17/21 (Stein, J.)
People v Butler	1st Dept: 190 AD3d 464 (NY)	denied 3/9/21 (Rivera, J.)
People v Cabrera	2d Dept: 189 AD3d 1609 (Orange)	withdrawn 3/31/21 (DiFiore, Ch. J.)
People v Calkins	App Div, 4th Dept, 11/2/20 (Steuben)	denied reconsideration 3/30/21 (DiFiore, Ch. J.)
People v Campbell	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 138(A) (Queens)	denied 3/18/21 (Fahey, J.)
People v Caraway	2d Dept: 188 AD3d 1246 (Suffolk)	denied 3/11/21 (Garcia, J.)
People v Carchi	2d Dept: 189 AD3d 1451 (Kings)	denied 3/14/21 (Wilson, J.)

People v Carlito M.	2d Dept: 183 AD3d 915 (Queens)	denied 3/2/21 (Feinman, J.)
People v Carlos D.G.	1st Dept: 190 AD3d 427 (NY)	denied 3/9/21 (Rivera, J.)
People v Carrino	2d Dept: 187 AD3d 932 (Dutchess)	denied 3/29/21 (Rivera, J.)
People v Carter	4th Dept: 188 AD3d 1674 (Oneida)	denied 3/15/21 (Garcia, J.)
People v Castro	4th Dept: 188 AD3d 1678 (Livingston)	denied 3/31/21 (Stein, J.)
People v Caswell	4th Dept: 189 AD3d 2153 (Monroe)	dismissed 3/23/21 (Stein, J.)
People v Chavies	2d Dept: 189 AD3d 1452 (Dutchess)	denied 3/2/21 (Feinman, J.)
People v Chuan Mu Fu	2d Dept: 186 AD3d 620 (Kings)	denied 3/17/21 (Stein, J.)
People v Clarke (Davia)	1st Dept: 188 AD3d 468 (NY)	denied 3/29/21 (DiFiore, Ch. J.)
People v Clarke (Keith)	App Term, 1st Dept: 70 Misc 3d 134(A) (NY)	denied 3/10/21 (Fahey, J.)
People v Cole	2d Dept: 186 AD3d 1529 (Kings)	denied 3/23/21 (DiFiore, Ch. J.)
People v Colon (Dennis)	2d Dept: 189 AD3d 873 (Kings)	denied 3/7/21 (Wilson, J.)
People v Colon (Randy)	1st Dept: 187 AD3d 647 (NY)	denied 3/2/21 (Stein, J.)
People v Conti	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 146(A) (Dutchess)	denied 3/2/21 (Fahey, J.)
People v Cotugno	1st Dept: 190 AD3d 428 (NY)	denied 3/18/21 (Fahey, J.)
People v Cristobal-Barrera	2d Dept: 189 AD3d 1611 (Rockland)	denied 3/2/21 (Feinman, J.)
People v Cummings	3d Dept: 188 AD3d 1449 (Tioga)	denied 3/31/21 (Garcia, J.)
People v Day	2d Dept: 181 AD3d 906 (Kings)	denied 3/2/21 (Fahey, J.)
People v DePalo	1st Dept: 187 AD3d 649 (NY)	denied 3/7/21 (Wilson, J.)
People v Desius	4th Dept: 188 AD3d 1626 (Wayne)	denied 3/18/21 (Wilson, J.)
People v Dilworth	1st Dept: 189 AD3d 636 (NY)	denied 3/18/21 (Wilson, J.)
People v Duarte	App Term, 1st Dept: 69 Misc 3d 148(A) (NY)	granted 3/3/21 (Rivera, J.)
People v Duggins	3d Dept: 192 AD3d 191 (Broome)	denied 3/29/21 (DiFiore, Ch. J.)
People v Faraone	2d Dept: 186 AD3d 1394 (Suffolk)	denied reconsideration 3/9/21 (Rivera, J.)

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People v Ferry	App Div, 3d Dept: 2020 NY Slip Op 76666(U) (Schenectady)	denied 3/29/21 (DiFiore, Ch. J.)
People v Francis	1st Dept: 190 AD3d 566 (NY)	denied 3/29/21 (Rivera, J.)
People v Gaffney	4th Dept: 189 AD3d 2170 (Onondaga)	denied 3/11/21 (Garcia, J.)
People v Galvez	2d Dept: 188 AD3d 1251 (Nassau)	denied 3/14/21 (Wilson, J.)
People v Gamble (Lamont)	3d Dept: 190 AD3d 1022 (Schenectady)	denied 3/2/21 (Fahey, J.)
People v Gamble (Shamrock)	2d Dept: 189 AD3d 1069 (Kings)	denied 3/15/21 (Garcia, J.)
People v Gamble (Sherman)	1st Dept: 187 AD3d 517 (NY)	denied 3/15/21 (Garcia, J.)
People v Gant	4th Dept: 189 AD3d 2160 (Erie)	denied 3/15/21 (Garcia, J.)
People v Gega	2d Dept: 189 AD3d 1458 (Westchester)	denied 3/15/21 (Rivera, J.)
People v Gilliam	2d Dept: 189 AD3d 1458 (Queens)	denied 3/17/21 (Stein, J.)
People v Goldman	1st Dept: 189 AD3d 698 (Bronx)	denied 3/2/21 (Fahey, J.)
People v Gordon	App Term, 1st Dept: 70 Misc 3d 131(A) (Bronx)	denied 3/18/21 (Fahey, J.)
People v Graham	1st Dept: 190 AD3d 657 (Bronx)	denied 3/29/21 (Fahey, J.)
People v Grant	App Div, 1st Dept: 2020 NY Slip Op 73471(U) (NY)	dismissed 3/29/21 (Fahey, J.)
People v Grasso	1st Dept: 189 AD3d 486 (NY)	denied 3/2/21 (Fahey, J.)
People v Green	3d Dept: 190 AD3d 1094 (Tompkins)	denied 3/11/21 (Garcia, J.)
People v Grosso	County Ct, 12/10/20 (Onondaga)	denied 3/26/21 (DiFiore, Ch. J.)
People v Hawley	County Ct, 12/2/20 (Yates)	dismissed 3/30/21 (DiFiore, Ch. J.)
People v Herring	2d Dept: 189 AD3d 1614 (Suffolk)	denied 3/29/21 (Stein, J.)
People v Hicks	2d Dept: 190 AD3d 766 (Kings)	denied 3/18/21 (Fahey, J.)
People v Hizbullah-Ankh-Amon	App Div, 1st Dept: 2020 NY Slip Op 74293(U) (Bronx)	dismissed 3/26/21 (Wilson, J.)
People v Hoffman	4th Dept: 191 AD3d 1262 (Genesee)	denied 3/29/21 (Fahey, J.)
People v Hunt	4th Dept: 188 AD3d 1648 (Ontario)	denied 3/10/21 (Fahey, J.)
People v Hunter	2d Dept: 183 AD3d 913 (Kings)	denied 3/24/21 (Garcia, J.)
People v Jackson (Anthony)	App Div, 2d Dept: 2020 NY Slip Op 75648(U) (Nassau)	dismissed 3/15/21 (Rivera, J.)

People v Jackson (Bobby)	3d Dept: 189 AD3d 1705 (Clinton)	denied 3/24/21 (DiFiore, Ch. J.)
People v Jackson (Tamiya)	4th Dept: 192 AD3d 15 (Monroe)	denied 3/29/21 (DiFiore, Ch. J.)
People v Johnson (Emmanuel)	4th Dept: 188 AD3d 1691 (Onondaga)	denied 3/15/21 (Rivera, J.)
People v Johnson (Kirk)	App Div, 1st Dept: 2020 NY Slip Op 74293(U) (Bronx)	dismissed 3/26/21 (Wilson, J.)
People v Johnson (Perry)	4th Dept: 189 AD3d 2145 (Monroe)	denied 3/29/21 (DiFiore, Ch. J.)
People v Jones	3d Dept: 190 AD3d 1013 (Albany)	denied 3/29/21 (Fahey, J.)
People v Kareem	1st Dept: 190 AD3d 563 (NY)	denied 3/10/21 (Fahey, J.)
People v Kaye	2d Dept: 190 AD3d 767 (Dutchess)	denied 3/18/21 (Fahey, J.)
People v King	4th Dept: 188 AD3d 1691 (Erie)	denied 3/31/21 (DiFiore, Ch. J.)
People v Kong	App Term, 1st Dept: 70 Misc 3d 136(A) (NY)	denied 3/17/21 (Rivera, J.)
People v Lane	2d Dept: 189 AD3d 1265 (Westchester)	denied 3/17/21 (Rivera, J.)
People v LaPierre	3d Dept: 189 AD3d 1813 (Washington)	denied 3/29/21 (DiFiore, Ch. J.)
People v Lara	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 129(A) (Kings)	denied 3/10/21 (Fahey, J.)
People v Laufer	2d Dept: 187 AD3d 1052 (Queens)	denied 3/5/21 (Garcia, J.)
People v L Boogie	3d Dept: 190 AD3d 1022 (Schenectady)	denied 3/2/21 (Fahey, J.)
People v L Boogs	3d Dept: 190 AD3d 1022 (Schenectady)	denied 3/2/21 (Fahey, J.)
People v Lee	4th Dept: 188 AD3d 1684 (Erie)	denied 3/10/21 (Rivera, J.)
People v Lewis	2d Dept: 190 AD3d 983 (Orange)	denied 3/29/21 (Rivera, J.)
People v Lopez	App Div, 1st Dept: 2020 NY Slip Op 74954(U) (NY)	denied 3/10/21 (Fahey, J.)
People v Lovell	2d Dept: 188 AD3d 1255 (Kings)	denied 3/31/21 (DiFiore, Ch. J.)
People v Luttrell	2d Dept: 189 AD3d 1615 (Dutchess)	denied 3/10/21 (Fahey, J.)
People v Maldonado	4th Dept: 189 AD3d 2083 (Monroe)	denied 3/16/21 (Garcia, J.)
People v Manley	1st Dept: 189 AD3d 549 (NY)	denied 3/10/21 (Fahey, J.)
People v Maschoun	2d Dept: 186 AD3d 1402 (Queens)	denied 3/15/21 (Garcia, J.)
People v McCurbin	2d Dept: 188 AD3d 1098 (Kings)	denied 3/7/21 (Wilson, J.)

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People v McDonald	4th Dept: 189 AD3d 2162 (Erie)	denied 3/9/21 (Rivera, J.)
People v McFadden	4th Dept: 189 AD3d 2086 (Onondaga)	denied 3/9/21 (Rivera, J.)
People v McKenzie-Smith	4th Dept: 187 AD3d 1668 (Monroe)	denied* 3/26/21 (Wilson, J.)
People v McPherson	App Div, 4th Dept, 11/16/20 (Oneida)	dismissed 3/19/21 (DiFiore, Ch. J.)
People v Mejia	4th Dept: 189 AD3d 2163 (Onondaga)	denied 3/9/21 (Rivera, J.)
People v Miles	2d Dept: 189 AD3d 890 (Dutchess)	denied 3/31/21 (Stein, J.)
People v Mitchell (Stephen)	2d Dept: 188 AD3d 1101 (Kings)	denied 3/31/21 (Stein, J.)
People v Mitchell (Stephen)	2d Dept: 188 AD3d 1103 (Kings)	denied 3/31/21 (Stein, J.)
People v Monnin	County Ct, 12/2/20 (Erie)	denied 3/29/21 (Stein, J.)
People v Morales	1st Dept: 190 AD3d 531 (Bronx)	denied 3/29/21 (Rivera, J.)
People v Munoz	1st Dept: 190 AD3d 466 (NY)	denied 3/22/21 (DiFiore, Ch. J.)
People v Murphy	4th Dept: 188 AD3d 1668 (Onondaga)	denied 3/14/21 (Wilson, J.)
People v Norris	1st Dept: 189 AD3d 462 (NY)	denied 3/19/21 (DiFiore, Ch. J.)
People v Payson	3d Dept: 189 AD3d 1820 (Franklin)	denied 3/16/21 (Garcia, J.)
People v Pelzer	2d Dept: 189 AD3d 1268 (Nassau)	denied 3/2/21 (Feinman, J.)
People v Perez	1st Dept: 190 AD3d 430 (NY)	denied 3/15/21 (Rivera, J.)
People v Perkins	4th Dept: 189 AD3d 2158 (Monroe)	denied 3/11/21 (Garcia, J.)
People v Persen	3d Dept: 185 AD3d 1288 (Fulton)	denied 3/19/21 (DiFiore, Ch. J.)
People v Phelps	App Div, 3d Dept: 2020 NY Slip Op 75582(U) (Montgomery)	dismissed 3/15/21 (Rivera, J.)
People v Phillips	2d Dept: 191 AD3d 805 (Kings)	denied 3/30/21 (DiFiore, Ch. J.)
People v Pierre	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 69 (Kings)	denied 3/9/21 (Rivera, J.)
People v Pruett	4th Dept: 191 AD3d 1423 (Oswego)	denied 3/29/21 (Rivera, J.)
People v Ramos-Perez	4th Dept: 188 AD3d 1741 (Oneida)	denied 3/7/21 (Wilson, J.)
People v Reed	1st Dept: 189 AD3d 486 (Bronx)	denied 3/26/21 (Wilson, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Wilkins* (175 AD3d 867 [4th Dept 2019]).

People v Reyes	1st Dept: 189 AD3d 454 (Bronx)	denied 3/2/21 (Stein, J.)
People v Rick	3d Dept: 190 AD3d 1087 (Schenectady)	denied 3/2/21 (Feinman, J.)
People v Rios	1st Dept: 190 AD3d 463 (NY)	denied 3/23/21 (DiFiore, Ch. J.)
People v Rivera	App Term, 1st Dept: 70 Misc 3d 136(A) (NY)	denied 3/29/21 (Fahey, J.)
People v Rodriguez (Eric)	1st Dept: 189 AD3d 505 (Bronx)	denied 3/9/21 (Rivera, J.)
People v Rodriguez (Gregory)	2d Dept: 191 AD3d 807 (Kings)	denied 3/29/21 (Rivera, J.)
People v Rodriguez (Joseph)	4th Dept: 189 AD3d 2122 (Monroe)	denied 3/9/21 (Rivera, J.)
People v Rosario	4th Dept: 188 AD3d 1678 (Livingston)	denied 3/31/21 (Stein, J.)
People v Santjer	2d Dept: 190 AD3d 983 (Suffolk)	denied 3/31/21 (DiFiore, Ch. J.)
People v Scott	4th Dept: 189 AD3d 2062 (Monroe)	denied 3/15/21 (Garcia, J.)
People v Seymore	4th Dept: 188 AD3d 1767 (Wyoming)	denied 3/2/21 (Feinman, J.)
People v Seymour	2d Dept: 189 AD3d 1269 (Kings)	denied 3/23/21 (DiFiore, Ch. J.)
People v Shanley	4th Dept: 189 AD3d 2108 (Livingston)	denied 3/18/21 (Wilson, J.)
People v Shannon (Kasean)	4th Dept: 189 AD3d 2165 (Genesee)	denied 3/16/21 (Garcia, J.) (Appeal No. 1)
People v Shannon (Kasean)	4th Dept: 189 AD3d 2166 (Genesee)	denied 3/16/21 (Garcia, J.) (Appeal No. 2)
People v Slick	3d Dept: 190 AD3d 1087 (Schenectady)	denied 3/2/21 (Feinman, J.)
People v Snyder	4th Dept: 188 AD3d 1762 (Genesee)	denied 3/15/21 (Garcia, J.)
People v Soler	2d Dept: 189 AD3d 1086 (Kings)	denied 3/15/21 (Garcia, J.)
People v Stephens	2d Dept: 189 AD3d 1270 (Kings)	denied 3/9/21 (Rivera, J.)
People v Stinson	2d Dept: 189 AD3d 1271 (Westchester)	denied 3/31/21 (Stein, J.)
People v Suarez-Santos	1st Dept: 189 AD3d 553 (Bronx)	denied 3/25/21 (DiFiore, Ch. J.)
People v Sweeper	App Div, 1st Dept: 2020 NY Slip Op 61024(U) (NY)	dismissed 3/24/21 (Garcia, J.)
People v Tanner	App Term, 1st Dept: 70 Misc 3d 134(A) (NY)	denied 3/16/21 (Garcia, J.)
People v Tengbeh	4th Dept: 189 AD3d 2151 (Wayne)	denied 3/25/21 (DiFiore, Ch. J.)

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People v Thomas (Keyshawn)	2d Dept: 181 AD3d 727 (Kings)	denied 3/16/21 (Garcia, J.)
People v Thomas (Mark)	2d Dept: 189 AD3d 897 (Dutchess)	denied 3/31/21 (Stein, J.)
People v Thompson (Benjamin)	App Div, 2d Dept: 2021 NY Slip Op 60108(U) (Suffolk)	dismissed 3/24/21 (Garcia, J.)
People v Thompson (Garnell)	App Div, 2d Dept: 2020 NY Slip Op 75490(U) (Kings)	dismissed 3/23/21 (Stein, J.)
People v Timko	App Term, 2d Dept, 9th & 10th Jud Dists: 70 Misc 3d 133(A) (Westchester)	granted 3/29/21 (Rivera, J.)
People v Tripathy	1st Dept: 187 AD3d 515 (NY)	denied 3/24/21 (Stein, J.)
People v Tucker	App Term, 1st Dept: 69 Misc 3d 134(A) (NY)	denied 3/17/21 (Stein, J.)
People v Turner	2d Dept: 186 AD3d 877 (Kings)	denied 3/29/21 (DiFiore, Ch. J.)
People v Vanderpool	App Term, 1st Dept: 70 Misc 3d 43 (Bronx)	denied 3/14/21 (Wilson, J.)
People v Vanwuyckhuysen	County Ct, 12/4/20 (Monroe)	denied 3/9/21 (Rivera, J.)
People v Vasquez	1st Dept: 189 AD3d 633 (NY)	denied 3/31/21 (Stein, J.)
People v Vassar	4th Dept: 189 AD3d 2170 (Onondaga)	denied 3/29/21 (Stein, J.)
People v Votaw	3d Dept: 190 AD3d 1162 (Albany)	denied 3/31/21 (DiFiore, Ch. J.)
People v Walker	2d Dept: 189 AD3d 1470 (Kings)	denied 3/29/21 (Stein, J.)
People v Walley	3d Dept: 190 AD3d 1153 (Schenectady)	denied 3/24/21 (Garcia, J.)
People v Walters	3d Dept: 189 AD3d 1769 (Schenectady)	denied 3/10/21 (Fahey, J.)
People v Webb	App Term, 2d Dept, 2d, 11th, & 13th Jud Dists: 70 Misc 3d 127(A) (Queens)	denied 3/29/21 (Fahey, J.)
People v Wheeler	2d Dept: 189 AD3d 1471 (Dutchess)	denied 3/2/21 (Feinman, J.)
People v White	1st Dept: 189 AD3d 634 (NY)	denied 3/17/21 (Rivera, J.)
People v Whitlock	2d Dept: 189 AD3d 1473 (Kings)	denied 3/29/21 (Rivera, J.)
People v Wilkinson	2d Dept: 185 AD3d 734 (Westchester)	denied 3/17/21 (Rivera, J.)
People v Williams (Derrick)	4th Dept: 189 AD3d 2157 (Oswego)	denied 3/29/21 (DiFiore, Ch. J.)
People v Williams (Dwight)	4th Dept: 191 AD3d 1248 (Cayuga)	denied 3/24/21 (Garcia, J.)
People v Wolfe	1st Dept: 189 AD3d 633 (NY)	denied 3/29/21 (DiFiore, Ch. J.)
People v Woodard	1st Dept: 188 AD3d 613 (NY)	denied 3/18/21 (Fahey, J.)

People v Young (Eric)	3d Dept: 190 AD3d 1087 (Schenectady)	denied 3/2/21 (Feinman, J.)
People v Young (Jerome)	3d Dept: 190 AD3d 1087 (Schenectady)	denied 3/2/21 (Feinman, J.)
People v Young (Sylvester)	3d Dept: 190 AD3d 1087 (Schenectady)	denied 3/2/21 (Feinman, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(March 1, 2021 through March 31, 2021)

People v Blandford	3d Dept: 190 AD3d 1033 (Chemung)	granted 3/5/21 (Clark, J.)
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[168 NE3d 389, 144 NYS3d 412]

NADEGE ODENA JACOB, as Administratrix of the Estate of
PIERRE E. JACOB, Appellant, v FRANKLIN HOSPITAL MEDICAL
CENTER et al., Respondents.

Decided April 29, 2021

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 12, 2020. The Appellate Division order, with two Justices dissenting, insofar as appealed from, affirmed a judgment of the Supreme Court, Nassau County (Karen V. Murphy, J.), which was in favor of defendant Franklin Hospital Medical Center, defendant Abdul Majeed, and defendant AM Pulmonary Care, P.C., and against plaintiff dismissing the complaint as against those defendants. The judgment was entered upon an order of that Supreme Court, which had granted the separate motions of defendant Franklin Hospital Medical Center and defendants Abdul Majeed and AM Pulmonary Care, P.C., for summary judgment dismissing the complaint insofar as asserted against each of them.

Jacob v Franklin Hosp. Med. Ctr., 188 AD3d 838, affirmed.

HEADNOTE

Physicians and Surgeons — Malpractice — Summary Judgment

In a medical malpractice action, the order of the Appellate Division, which had affirmed the dismissal of the action against defendants, was affirmed. In response to the prima facie showing of entitlement to summary judgment by defendants, plaintiff failed to raise a triable issue of fact.

* Includes only applications that were granted.

APPEARANCES OF COUNSEL

Tantleff & Kreinces, LLP, Mineola (*Edward D. Tantleff* of counsel), for appellant.

Heidell, Pittoni, Murphy & Back LLP, New York City (*Daniel S. Ratner* of counsel), for Franklin Hospital Medical Center, respondent.

Kutner Friedrich, LLP, New York City (*Tracy Solomon* of counsel), for Abdul Majeed and another, respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, affirmed, with costs. In response to the prima facie showing of entitlement to summary judgment by defendants Franklin Hospital Medical Center, Abdul Majeed and AM Pulmonary Care, P.C., plaintiff failed to raise a triable issue of fact (see *Mazella v Beals*, 27 NY3d 694 [2016]; *Alvarez v Prospect Hosp.*, 68 NY2d 320, 324-325 [1986]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson.

[168 NE3d 389, 144 NYS3d 412]

DAWN STEFANIAK, Plaintiff, v NFN ZULKHARNAIN, Appellant.

ROBERTA L. REEDY, as Administrator of the Estate of KEVIN M. REEDY, Deceased, Respondent.

Decided April 29, 2021

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 7, 2020. The Appellate Division order, insofar as appealed from, affirmed, as modified, an order and judgment (one paper) of the Supreme Court, Erie County (John F. O'Donnell, J.), which had awarded Roberta L. Reedy, as administrator of the estate of Kevin M. Reedy, a money judgment against defendant. The appeal brings up for review a prior nonfinal order of that Appellate Division (119 AD3d 1418 [2014]), entered July 11, 2014. The Appellate Division, with two Justices dissenting, had (1) modified, on the law, an order of that Supreme Court, which had denied the motion of Kevin M. Reedy, Esq. for an award of attorney's fees from defendant; and (2) remit-

ted the matter to Supreme Court, Erie County, to determine the amount of attorney's fees to be awarded. The modification consisted of (1) granting the motion in part; (2) appointing Kevin M. Reedy, Esq. nunc pro tunc as the Attorney for the Children pursuant to 22 NYCRR part 36; and (3) directing defendant to pay attorney's fees to plaintiff. The Appellate Division affirmed the order as modified.

Stefaniak v Zulkharnain, 180 AD3d 1366, reversed.

HEADNOTE

Guardian and Ward — Attorney for Child — Appointment Nunc Pro Tunc

Under the circumstances here, the attorney's motion to be appointed, nunc pro tunc, pursuant to 22 NYCRR 36.2 (b) (2), should have been denied.

APPEARANCES OF COUNSEL

Michael A. Rosenhouse, Rochester, for appellant.

Respondent precluded.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), February 2020 order of the Appellate Division insofar as appealed from and July 2014 order of the same Court insofar as brought up for review, reversed, with costs, and motion for an award of attorney's fees against defendant denied. Under the circumstances here, the attorney's motion to be appointed, nunc pro tunc, pursuant to 22 NYCRR 36.2 (b) (2), should have been denied (*see generally Gletzer v Harris*, 12 NY3d 468, 476 [2009]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Garcia and Wilson concur. Judge Fahey took no part.

In the Matter of THOMAS ADAMS, Appellant, v DEBORAH ADAMS,
Respondent.

Decided April 29, 2021

Reported below, 188 AD3d 1185.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ANGELINA M. DEBRA PAGANO COHEN, Respondent; MARK M., Appellant.

Submitted March 1, 2021; decided April 29, 2021

Reported below, 191 AD3d 740.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

AURORA ASSOCIATES LLC, Respondent, v RAFFAELLO LOCATELLI, Appellant, CLEANTECH STRATEGIES LLC, et al., Respondents.

Submitted April 26, 2021; decided April 29, 2021

Reported below, 184 AD3d 436.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE CHURCH OF JESUS CHRIST OF LATTER-DAY SAINTS, Plaintiff, and SERVANT: XIU JIAN SUN, THE SPIRITUAL ADAM, Appellant, v NORTHWELL HEALTH et al., Respondents.

Decided April 29, 2021

Reported below, 2021 NY Slip Op 61140(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CITY OF LONG BEACH, Respondent, v NEW YORK STATE PUBLIC EMPLOYMENT RELATIONS BOARD et al., Appellants.

Submitted January 25, 2021; decided April 29, 2021

Reported below, 187 AD3d 745.

Motion by New York State Professional Fire Fighters Association for leave to appear amicus curiae on the motion for leave to appeal by New York State Public Employment Relations Board herein granted and the memorandum of law is accepted as filed.

Judge FAHEY took no part.

MICHAEL A. DEEM, Appellant, v LORNA M. DiMELLA-DEEM, Respondent.

Decided April 29, 2021

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ANDREW DeWOLF, Appellant, v JAMIE SYRETT, Wayne County ALS Medical Director, et al., Respondents.

Decided April 29, 2021

Reported below, 191 AD3d 1265.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ANDREW DeWOLF, Appellant, v WAYNE COUNTY, NEW YORK, Respondent.

Decided April 29, 2021

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

4ALEXF JY L.P., Respondent, v AZIZ UDDIN BILAL et al., Defendants, and DERRICK M. JOHNSON, Appellant.

Decided April 29, 2021

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

In the Matter of IRELYNN S. ONONDAGA COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES, Respondent; MAURICE S., Appellant.

Submitted December 28, 2020; decided April 29, 2021

Reported below, 188 AD3d 1744.

Motion for leave to appeal granted. Motion for poor person relief granted.

In the Matter of the Claim of THOMAS JOHNSON, Appellant, v CITY OF NEW YORK, Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted April 19, 2021; decided April 29, 2021

Reported below, 180 AD3d 1134.

Motion by Injured Workers' Bar Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of KATHARINE B., Respondent, v THOMAS L., Appellant.

Submitted February 1, 2021; decided April 29, 2021

Reported below, 189 AD3d 474.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v PHYLIP DERIVAL, Respondent.

Decided April 29, 2021

Reported below, 181 AD3d 918.

Appeal dismissed, by the Court of Appeals sua sponte, upon the ground that the reversal by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VLADIMIR DUARTE, Appellant.

Submitted March 29, 2021; decided April 29, 2021

Reported below, 69 Misc 3d 148(A), 2020 NY Slip Op 51435(U).

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL HALL, Appellant.

Submitted March 29, 2021; decided April 29, 2021

Reported below, 187 AD3d 520.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYJHE HARGROVE, Appellant.

Submitted March 29, 2021; decided April 29, 2021

Reported below, 186 AD3d 855.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v LUIS A. RODRIGUEZ, Respondent.

Submitted February 8, 2021; decided April 29, 2021

Reported below, 187 AD3d 1063.

Motion to dismiss appeal denied.

OLABISI SALIS, Respondent, v OWOLABI MOHAMMED SALIS, Appellant.

Decided April 29, 2021

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies to this Court from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

TRENTON BUSINESS ASSISTANCE CORPORATION, Appellant, v MAUREEN O'CONNELL et al., Defendants, and NONIE MANION et al., Respondents.

Decided April 29, 2021

Reported below, 191 AD3d 817.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v PAMELA DONOVAN, Appellant, et al., Defendants.

Submitted February 1, 2021; decided April 29, 2021

Reported below, 189 AD3d 918.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[168 NE3d 851, 144 NYS3d 678]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KATHON ANDERSON, Appellant.

Argued March 23, 2021; decided May 4, 2021

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 19, 2020. The Appellate Division affirmed a judg-

ment of the Supreme Court, Kings County (Dineen A. Riviezzo, J), which had convicted defendant, upon a jury verdict, of murder in the second degree and attempted murder in the second degree.

People v Anderson, 180 AD3d 923, affirmed.

HEADNOTE

Crimes — Witnesses — Expert Witness — Testimony Concerning Science of Adolescent Brain Development and Behavior

In the murder prosecution of defendant, who was 14 years old at the time of the crime and asserted a justification defense, the trial court did not abuse its discretion in denying defendant's request to introduce testimony by an expert witness, concerning the science of adolescent brain development and behavior, to assist the jury in determining whether the People had met their burden of disproving justification. The admissibility and limits of expert testimony lie primarily in the sound discretion of the trial court, and the criterion to be applied is whether the proffered expert testimony would aid a lay jury in reaching a verdict. Under the particular facts of this case, the trial court, which did not conduct a *Frye* hearing, did not abuse its discretion in denying defendant's request.

APPEARANCES OF COUNSEL

Paul Skip Laisure, Appellate Advocates, New York City (*Cynthia Colt* of counsel), for appellant.

Eric Gonzalez, District Attorney, Brooklyn (*Solomon Neubort* and *Leonard Joblove* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was 14 years old when he fired a revolver in the direction of rival gang members on a public bus and killed a bystander. He then pursued the rivals on the street, continuing to shoot at them. At his jury trial on charges that included murder in the second degree, the defense was justification (*see* Penal Law § 35.15). A defendant is justified in using deadly physical force upon another person only if the defendant “reasonably believes that [the] other person is using or about to use deadly physical force” (Penal Law § 35.15 [2] [a]), and only “when and to the extent [the defendant] reasonably believes such [force] to be necessary to defend himself, herself or a third person” (Penal Law § 35.15 [1]; *see People v Goetz*, 68 NY2d 96, 106 n 5 [1986]).

Defendant sought to introduce testimony by an expert witness, concerning the science of adolescent brain development

and behavior, to assist the jury in determining whether the People had met their burden of disproving justification. The trial court denied defendant's request, without conducting a *Frye* hearing (see *Frye v United States*, 293 F 1013 [DC Cir 1923]; *People v Wesley*, 83 NY2d 417, 423-429 [1994]).

"[T]he admissibility and limits of expert testimony lie primarily in the sound discretion of the trial court" (*People v Lee*, 96 NY2d 157, 162 [2001]). The criterion to be applied is "whether the proffered expert testimony would aid a lay jury in reaching a verdict" (*id.* [internal quotation marks omitted]). Under the particular facts of this case, the trial court did not abuse its discretion in denying defendant's request to permit the proposed expert witness testimony.

Defendant's remaining contentions lack merit.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON concur.

Order affirmed, in a memorandum.

In the Matter of AHMAD AWAD et al., Appellants, v FORDHAM UNIVERSITY, Respondent.

Submitted March 1, 2021; decided May 4, 2021

Reported below, 189 AD3d 605.

Motion by Foundation for Individual Rights in Education for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

JAIRO MAZO, Respondent, v DCBE CONTRACTING, INC., Appellant, and ICONIC MECHANICAL LLC, Respondent. (And a Third-Party Action.)

Submitted February 1, 2021; decided May 4, 2021

Reported below, 185 AD3d 530.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NONHUMAN RIGHTS PROJECT, INC., on Behalf of
HAPPY, Appellant, v JAMES J. BREHENY et al., Respondents.

Submitted February 16, 2021; decided May 4, 2021

Reported below, 189 AD3d 583.

Motion by John Berkman et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of NONHUMAN RIGHTS PROJECT, INC., on Behalf of
HAPPY, Appellant, v JAMES J. BREHENY et al., Respondents.

Submitted February 22, 2021; decided May 4, 2021

Reported below, 189 AD3d 583.

Motion to strike portions of respondents' affirmation in opposition to the motion for leave to appeal denied.

In the Matter of NONHUMAN RIGHTS PROJECT, INC., on Behalf of
HAPPY, Appellant, v JAMES J. BREHENY et al., Respondents.

Submitted March 22, 2021; decided May 4, 2021

Reported below, 189 AD3d 583.

Motion by Matthew Liebman et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

ROBERT TOUSSIE, Appellant, v SFIV SS-1, LLC, et al., Respondents.

In the Matter of ROBERT TOUSSIE, Appellant, et al., Petitioner,
v COASTAL DEVELOPMENT, LLC, et al., Respondents. STABILIS FUND IV, LP, et al., Nonparty Respondents.

Submitted December 21, 2020; decided May 4, 2021

Reported below, 188 AD3d 433.

Motion for leave to appeal from so much of the Appellate Division order as affirmed the July 2020 Supreme Court order entered in the second-captioned proceeding dismissed upon the ground that it does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of SHERRY WIGGS, Respondent, v CHRISTOPHER BASILE, Appellant.

Submitted January 25, 2021; decided May 4, 2021

Reported below, 188 AD3d 900.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted April 19, 2021; decided May 6, 2021

Reported below, 2014 NY Slip Op 73548(U); 2014 NY Slip Op 76248(U).

Motion for reargument of motion for leave to appeal denied [*see* 36 NY3d 1083 (2021)].

MICHAEL R. DESROCHES, Respondent, v HERITAGE BUILDERS GROUP, LLC, et al., Appellants.

Submitted February 16, 2021; decided May 6, 2021

Reported below, 187 AD3d 1369.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JESUS FERREIRA, Appellant, v CITY OF BINGHAMTON et al., Respondents.

Submitted May 3, 2021; decided May 6, 2021

See 975 F3d 255.

Motion by New York State Academy of Trial Lawyers for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within seven days.

SHELDON LAMAR HUNT, Appellant, v NEW YORK CITY DEPARTMENT OF EDUCATION, Respondent.

Submitted February 8, 2021; decided May 6, 2021

Reported below, 2020 NY Slip Op 72294(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

GEORGIY KOYKO, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted February 8, 2021; decided May 6, 2021

Reported below, 189 AD3d 811.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

In the Matter of WARREN McDOWELL, Appellant, v BLUE POINT FIRE DEPARTMENT, Respondent.

Submitted March 8, 2021; decided May 6, 2021

Reported below, 188 AD3d 1069.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion to expand the record dismissed as academic.

METROPOLITAN LOFTS OF NY, LLC, Appellant, v METROEB REALTY 1, LLC, Defendant, and REDSKY CAPITAL, LLC, Respondent.

Submitted March 15, 2021; decided May 6, 2021

Reported below, 189 AD3d 1024; 2021 NY Slip Op 62182(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of the Arbitration between NEW YORK SCHOOLS INSURANCE RECIPROCAL, Appellant and DEBORAH KALBFLEISH, Respondent.

Submitted February 22, 2021; decided May 6, 2021

Reported below, 186 AD3d 1026.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

PENTHOUSE GLOBAL MEDIA, INC., Appellant, v THE EXECUTIVE CLUB LLC, Respondent.

Submitted February 16, 2021; decided May 6, 2021

Reported below, 187 AD3d 410.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CESAR GARCIA, Appellant.

Decided May 6, 2021

Reported below, 63 Misc 3d 158(A), 2019 NY Slip Op 50861(U).

Reargument ordered for a future Court session.

Concur: Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM A. WILKINS, Also Known as MUGSY, Appellant.

Decided May 6, 2021

Reported below, 175 AD3d 867.

Reargument ordered for a future Court session.

Concur: Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON.

ELIZABETH PRENDERGAST, Respondent, v MARIA SWIENCICKY, Appellant, et al., Defendant.

Submitted March 1, 2021; decided May 6, 2021

Reported below, 183 AD3d 945.

Motion for reargument of motion denied [*see* 36 NY3d 944 (2020)]. Motion for other relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of RIFENBURG CONSTRUCTION, INC., Appellant, v TOWN OF SAND LAKE et al., Respondents.

Submitted February 1, 2021; decided May 6, 2021

Reported below, 185 AD3d 1306.

Motion by New York Construction Materials Association, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

ANN TARZIA et al., Appellants, v BROOKHAVEN NATIONAL LABORATORY et al., Respondents.

Submitted February 22, 2021; decided May 6, 2021

Reported below, 186 AD3d 1557.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

MEMORANDA

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U.S. BANK NATIONAL ASSOCIATION, Respondent, v DLJ MORTGAGE CAPITAL, INC., Appellant.

Decided May 6, 2021

Reported below, 176 AD3d 466.

Reargument ordered for a future Court session.

Concur: Chief Judge DiFiore and Judges RIVERA, STEIN, FAHEY and GARCIA. Judge WILSON took no part.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(April 1, 2021 through April 30, 2021)

People ex rel. Moore v Superintendent of Mohawk Corr. Facility	App Div, 4th Dept, 2/9/21	4/23/21
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APPEALS WITHDRAWN AND DISCONTINUED

(April 1, 2021 through April 30, 2021)

Home Equity Mtge. Trust Series 2006-I v DLJ Mtge. Capital, Inc.	1st Dept: 175 AD3d 1175	4/23/21
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2021 through April 30, 2021)

People v Abdullah	App Div, 4th Dept, 12/15/20 (Onondaga)	dismissed 4/13/21 (Fahey, J.)
People v Abreu-Lugo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 135(A) (Kings)	denied 4/27/21 (Stein, J.)
People v Abundis	App Term, 1st Dept: 70 Misc 3d 136(A) (NY)	denied 4/20/21 (Rivera, J.)
People v Acevedo	2d Dept: 187 AD3d 1030 (Kings)	applications denied 4/21/21 (Stein, J.)
People v Aguilar	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 71 Misc 3d 126(A) (Richmond)	denied 4/22/21 (Garcia, J.)
People v Ahmed	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 135(A) (Queens)	denied 4/28/21 (Stein, J.)
People v Allen	4th Dept: 188 AD3d 1595 (Erie)	denied 4/16/21 (DiFiore, Ch. J.)
People v Anonymous	1st Dept: 191 AD3d 482 (Bronx)	denied 4/18/21 (Wilson, J.)

People v Anonymous	1st Dept: 191 AD3d 537 (Bronx)	denied 4/20/21 (Rivera, J.)
People v Arana	2d Dept: 187 AD3d 1033 (Queens)	denied 4/13/21 (Fahey, J.)
People v Barksdale	4th Dept: 191 AD3d 1370 (Ontario)	denied 4/15/21 (Fahey, J.)
People v Bennett	App Term, 1st Dept: 70 Misc 3d 134(A) (Bronx)	denied 4/2/21 (Rivera, J.)
People v Bethea	4th Dept: 191 AD3d 1487 (Onondaga)	denied 4/28/21 (DiFiore, Ch. J.)
People v Bishop	4th Dept: 192 AD3d 1504 (Genesee)	denied 4/30/21 (Fahey, J.)
People v Bonton	App Div, 2d Dept: 2021 NY Slip Op 60908(U) (Kings)	dismissed 4/16/21 (DiFiore, Ch. J.)
People v Boyd	4th Dept: 188 AD3d 1691 (Oneida)	denied 4/30/21 (DiFiore, Ch. J.)
People v Brickhouse	2d Dept: 189 AD3d 1451 (Westchester)	denied 4/26/21 (Stein, J.)
People v Brown (Charles)	2d Dept: 191 AD3d 896 (Queens)	denied 4/23/21 (Garcia, J.)
People v Brown (Charles)	2d Dept: 191 AD3d 896 (Queens)	denied 4/23/21 (Garcia, J.)
People v Brown (Tasheem)	1st Dept: 192 AD3d 435 (NY)	denied 4/29/21 (DiFiore, Ch. J.)
People v Burroughs	1st Dept: 191 AD3d 444 (Bronx)	denied 4/28/21 (Stein, J.)
People v Bushell	2d Dept: 191 AD3d 897 (Kings)	denied 4/23/21 (Garcia, J.)
People v Butcher	3d Dept: 192 AD3d 1196 (Chemung)	denied 4/22/21 (DiFiore, Ch. J.)
People v Calderon	App Term, 1st Dept: 70 Misc 3d 130(A) (Bronx)	denied 4/18/21 (Wilson, J.)
People v Carter	1st Dept: 191 AD3d 543 (Bronx)	denied 4/19/21 (DiFiore, Ch. J.)
People v Chernyaev	App Div, 2d Dept: 2021 NY Slip Op 62125(U) (Kings)	dismissed 4/23/21 (DiFiore, Ch. J.)
People v Clark	4th Dept: 191 AD3d 1471 (Monroe)	denied 4/13/21 (Fahey, J.)
People v Collins	4th Dept: 191 AD3d 1469 (Monroe)	denied 4/16/21 (DiFiore, Ch. J.)
People v Colon	2d Dept: 189 AD3d 875 (Westchester)	denied 4/20/21 (Rivera, J.)
People v Dalrymple	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 140(A) (Queens)	denied 4/30/21 (Fahey, J.)
People v Daniels	App Div, 1st Dept: 2020 NY Slip Op 76715(U) (Bronx)	denied 4/23/21 (DiFiore, Ch. J.)
People v Davis (Billy)	4th Dept: 189 AD3d 2159 (Monroe)	denied 4/11/21 (Wilson, J.)
People v Davis (Rodney)	4th Dept: 189 AD3d 2156 (Niagara)	denied 4/25/21 (Wilson, J.)

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People v Davon S.	4th Dept: 191 AD3d 1408 (Genesee)	denied 4/22/21 (Garcia, J.) (Appeal No. 1)
People v Davon S.	4th Dept: 191 AD3d 1409 (Genesee)	denied 4/22/21 (Garcia, J.) (Appeal No. 2)
People v DeMarco	4th Dept: 191 AD3d 1428 (Ontario)	denied 4/28/21 (Stein, J.)
People v Deming	3d Dept: 190 AD3d 1193 (Saratoga)	denied 4/23/21 (Garcia, J.)
People v Deowasarran	2d Dept: 186 AD3d 1710 (Suffolk)	denied reconsideration 4/11/21 (Wilson, J.)
People v DeRobertis	2d Dept: 191 AD3d 898 (Kings)	denied 4/22/21 (Garcia, J.)
People v Dexter	4th Dept: 191 AD3d 1246 (Onondaga)	denied 4/20/21 (Rivera, J.)
People v Dillard	4th Dept: 189 AD3d 2137 (Monroe)	denied 4/5/21 (DiFiore, Ch. J.)
People v DiValentino	2d Dept: 189 AD3d 1612 (Orange)	denied 4/26/21 (DiFiore, Ch. J.)
People v Dolison	3d Dept: 189 AD3d 1779 (Albany)	denied 4/18/21 (Wilson, J.)
People v Dozier	4th Dept: 191 AD3d 1492 (Erie)	denied 4/26/21 (DiFiore, Ch. J.)
People v Drayton	3d Dept: 189 AD3d 1888 (Sullivan)	denied 4/11/21 (Wilson, J.)
People v Edmondson	2d Dept: 191 AD3d 1015 (Westchester)	denied 4/20/21 (Rivera, J.)
People v Edwards	4th Dept: 191 AD3d 1377 (Monroe)	denied 4/8/21 (Garcia, J.)
People v Elie	3d Dept: 190 AD3d 1191 (Saratoga)	denied 4/23/21 (DiFiore, Ch. J.)
People v Elting	2d Dept: 191 AD3d 899 (Suffolk)	denied 4/13/21 (Fahey, J.)
People v Esposito	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 74 (Richmond)	denied 4/5/21 (DiFiore, Ch. J.)
People v Ferguson	4th Dept: 191 AD3d 1243 (Oneida)	denied 4/8/21 (Rivera, J.)
People v Fernandez	1st Dept: 191 AD3d 585 (NY)	denied 4/22/21 (Fahey, J.)
People v Filan	2d Dept: 189 AD3d 1612 (Nassau)	denied 4/25/21 (Wilson, J.)
People v Fiore	App Term, 2d Dept, 9th & 10th Jud Dists: 70 Misc 3d 132(A) (Nassau)	denied 4/11/21 (Wilson, J.)
People v Flournoy	4th Dept: 191 AD3d 1258 (Niagara)	denied 4/29/21 (DiFiore, Ch. J.)
People v Ford	2d Dept: 191 AD3d 800 (Kings)	denied 4/14/21 (Stein, J.)
People v Fox	App Term, 2d Dept, 9th & 10th Jud Dists: 70 Misc 3d 139(A) (Nassau)	denied 4/20/21 (Rivera, J.)

People v Gabor	2d Dept: 192 AD3d 824 (Queens)	denied 4/27/21 (DiFiore, Ch. J.)
People v Galan	2d Dept: 181 AD3d 708 (Queens)	denied 4/23/21 (DiFiore, Ch. J.)
People v Garrand	3d Dept: 189 AD3d 1763 (Albany)	denied 4/11/21 (Wilson, J.)
People v Goins	4th Dept: 191 AD3d 1399 (Erie)	denied 4/20/21 (Rivera, J.)
People v Gordon	4th Dept: 191 AD3d 1367 (Erie)	denied 4/25/21 (DiFiore, Ch. J.)
People v Grace	App Div, 1st Dept: 2020 NY Slip Op 73470(U) (NY)	dismissed 4/11/21 (Wilson, J.)
People v Gray (Jerry)	4th Dept: 189 AD3d 2135 (Orleans)	denied 4/13/21 (DiFiore, Ch. J.)
People v Gray (Roderick)	App Term, 1st Dept: 70 Misc 3d 139(A) (NY)	denied 4/30/21 (DiFiore, Ch. J.)
People v Hardin	2d Dept: 191 AD3d 800 (Queens)	denied 4/14/21 (Stein, J.)
People v Hare	1st Dept: 191 AD3d 539 (NY)	denied 4/29/21 (DiFiore, Ch. J.)
People v Harris (Coreen)	3d Dept: 186 AD3d 907 (Albany)	denied 4/8/21 (Garcia, J.)
People v Harris (Varner)	App Div, 4th Dept, 3/8/21 (Erie)	dismissed 4/30/21 (Fahey, J.)
People v Hibbert	4th Dept: 189 AD3d 2170 (Monroe)	denied 4/13/21 (DiFiore, Ch. J.)
People v Hiedeman	3d Dept: 189 AD3d 1902 (Warren)	denied 4/22/21 (DiFiore, Ch. J.)
People v Hollingsworth	4th Dept: 191 AD3d 1412 (Erie)	denied 4/16/21 (DiFiore, Ch. J.)
People v Holmes	2d Dept: 191 AD3d 801 (Kings)	denied 4/18/21 (Wilson, J.)
People v Jean	App Div, 2d Dept: 2020 NY Slip Op 66036(U) (Rockland)	dismissed 4/8/21 (Garcia, J.)
People v Johnson (Chevas)	4th Dept: 189 AD3d 2117 (Monroe)	denied 4/30/21 (DiFiore, Ch. J.)
People v Johnson (Juan)	2d Dept: 185 AD3d 838 (Kings)	granted 4/19/21 (Wilson, J.)
People v Johnson (Marvin)	4th Dept: 191 AD3d 1379 (Onondaga)	denied 4/20/21 (Rivera, J.)
People v Jonathan (Ra)	4th Dept: 192 AD3d 1496 (Genesee)	denied 4/30/21 (Fahey, J.) (Appeal No. 1)
People v Jonathan (Ra)	4th Dept: 192 AD3d 1496 (Genesee)	denied 4/30/21 (Fahey, J.) (Appeal No. 2)
People v Jones (Derrell)	2d Dept: 181 AD3d 714 (Queens)	denied 4/8/21 (Garcia, J.)
People v Jones (Jetone)	App Div, 4th Dept, 1/6/21 (Erie)	dismissed 4/28/21 (Stein, J.)

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People v Jones (Tony)	1st Dept: 189 AD3d 488 (NY)	denied 4/11/21 (Wilson, J.)
People v Joseph	1st Dept: 191 AD3d 148 (NY)	denied 4/2/21 (Stein, J.)
People v Judy	4th Dept: 191 AD3d 1454 (Monroe)	denied 4/22/21 (Garcia, J.)
People v Justin C.	App Term, 1st Dept: 70 Misc 3d 135(A) (NY)	denied 4/8/21 (Garcia, J.)
People v Keppen	4th Dept: 188 AD3d 1691 (Monroe)	denied 4/11/21 (Wilson, J.)
People v Kinsman	1st Dept: 191 AD3d 539 (NY)	denied 4/29/21 (DiFiore, Ch. J.)
People v Kourouma	1st Dept: 191 AD3d 542 (NY)	denied 4/15/21 (Fahey, J.)
People v LaFond	3d Dept: 189 AD3d 1824 (Rensselaer)	denied 4/5/21 (DiFiore, Ch. J.)
People v Lee	4th Dept: 189 AD3d 2164 (Ontario)	denied 4/18/21 (Wilson, J.)
People v Lende	3d Dept: 190 AD3d 1110 (Schoharie)	denied 4/25/21 (Wilson, J.)
People v Letizia	4th Dept: 191 AD3d 1241 (Erie)	denied 4/13/21 (Fahey, J.)
People v Lowe	2d Dept: 189 AD3d 1461 (Queens)	denied 4/13/21 (DiFiore, Ch. J.)
People v Lugo	1st Dept: 190 AD3d 434 (NY)	denied 4/18/21 (Wilson, J.)
People v MacLaren	County Ct, 11/20/20 (Delaware)	denied reconsideration 4/23/21 (Garcia, J.)
People v Maddison	4th Dept: 191 AD3d 1393 (Onondaga)	denied 4/16/21 (DiFiore, Ch. J.)
People v Massey	4th Dept: 191 AD3d 1488 (Erie)	denied 4/22/21 (Garcia, J.)
People v Mathews	1st Dept: 189 AD3d 507 (Bronx)	denied 4/30/21 (Stein, J.)
People v Mazyck	App Term, 1st Dept: 70 Misc 3d 141(A) (NY)	denied 4/23/21 (Garcia, J.)
People v Mazzeo	3d Dept: 191 AD3d 1171 (Albany)	denied 4/20/21 (Rivera, J.)
People v McCray	App Div, 1st Dept: 2020 NY Slip Op 61637(U) (Bronx)	denied reconsideration 4/20/21 (Rivera, J.)
People v McKenny	1st Dept: 191 AD3d 510 (NY)	denied 4/8/21 (Rivera, J.)
People v McKiernan	App Term, 2d Dept, 9th & 10th Jud Dists: 70 Misc 3d 79 (Westchester)	denied 4/20/21 (Rivera, J.)
People v Mendoza	2d Dept: 177 AD3d 773 (Queens)	granted 4/13/21 (Fahey, J.)
People v Miller (Joshua)	4th Dept: 191 AD3d 1373 (Orleans)	denied 4/18/21 (Wilson, J.)

People v Miller (Steven)	2d Dept: 187 AD3d 1059 (Kings)	denied 4/23/21 (Garcia, J.)
People v Milton	App Div, 2d Dept: 2020 NY Slip Op 72667(U) (Queens)	dismissed 4/18/21 (Wilson, J.)
People v Montgomery	4th Dept: 191 AD3d 1418 (Monroe)	denied 4/28/21 (Stein, J.)
People v Moore (Andre)	2d Dept: 189 AD3d 1697 (Kings)	denied 4/18/21 (Wilson, J.)
People v Moore (Nissar)	4th Dept: 191 AD3d 1415 (Onondaga)	denied 4/23/21 (DiFiore, Ch. J.)
People v Moore (Ricky)	1st Dept: 190 AD3d 500 (NY)	denied 4/22/21 (Fahey, J.)
People v Morris	2d Dept: 189 AD3d 1077 (Queens)	denied 4/14/21 (DiFiore, Ch. J.)
People v Nelson	2d Dept: 189 AD3d 1080 (Kings)	denied 4/11/21 (Wilson, J.)
People v Nestman	App Div, 3d Dept: 2020 NY Slip Op 73953(U) (Ulster)	denied reconsideration 4/13/21 (Fahey, J.)
People v Nicholson	2d Dept: 190 AD3d 768 (Kings)	denied 4/23/21 (Garcia, J.)
People v Nicoletti	2d Dept: 189 AD3d 1082 (Richmond)	denied 4/18/21 (Wilson, J.)
People v Norales	1st Dept: 191 AD3d 443 (Bronx)	denied 4/22/21 (Garcia, J.)
People v Nunez	App Term, 1st Dept: 70 Misc 3d 142(A) (NY)	denied 4/19/21 (DiFiore, Ch. J.)
People v Ogundiran	2d Dept: 191 AD3d 902 (Kings)	denied 4/13/21 (Fahey, J.)
People v Ortiz (Fabian)	App Term, 1st Dept: 70 Misc 3d 141(A) (NY)	denied 4/30/21 (Fahey, J.)
People v Ortiz (Justin)	1st Dept: 190 AD3d 499 (NY)	denied 4/18/21 (Wilson, J.)
People v Osorio	App Term, 1st Dept: 70 Misc 3d 141(A) (NY)	denied 4/8/21 (Rivera, J.)
People v Owens	4th Dept: 191 AD3d 1424 (Erie)	denied 4/28/21 (Stein, J.)
People v Parker (Sharif)	4th Dept: 189 AD3d 2065 (Ontario)	denied 4/13/21 (DiFiore, Ch. J.) (Appeal No. 1)
People v Parker (Sharif)	4th Dept: 189 AD3d 2068 (Ontario)	denied 4/13/21 (DiFiore, Ch. J.) (Appeal No. 2)
People v Parker (Sharif)	4th Dept: 189 AD3d 2068 (Ontario)	denied 4/13/21 (DiFiore, Ch. J.) (Appeal No. 3)
People v Pass	1st Dept: 191 AD3d 562 (NY)	denied 4/23/21 (DiFiore, Ch. J.)
People v Patterson	4th Dept: 191 AD3d 1500 (Herkimer)	denied 4/26/21 (Stein, J.)

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People v Paulino	App Div, 1st Dept: 2021 NY Slip Op 60828(U) (NY)	denied 4/26/21 (DiFiore, Ch. J.)
People v Payne	1st Dept: 191 AD3d 415 (NY)	denied 4/23/21 (DiFiore, Ch. J.)
People v Pendarvis	2d Dept: 191 AD3d 805 (Kings)	denied 4/25/21 (Wilson, J.)
People v Petersen	2d Dept: 190 AD3d 769 (Queens)	denied 4/20/21 (Rivera, J.)
People v Pinkard	4th Dept: 191 AD3d 1333 (Wayne)	denied 4/25/21 (Wilson, J.)
People v Plowden	2d Dept: 188 AD3d 1264 (Nassau)	denied 4/18/21 (Wilson, J.)
People v Powell	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 69 Misc 3d 128(A) (Kings)	denied 4/13/21 (DiFiore, Ch. J.)
People v Ramirez	App Term, 1st Dept: 70 Misc 3d 139(A) (NY)	denied 4/15/21 (Fahey, J.)
People v Ramos	2d Dept: 191 AD3d 806 (Kings)	denied 4/23/21 (DiFiore, Ch. J.)
People v Raphael	2d Dept: 186 AD3d 1262 (Queens)	denied 4/23/21 (DiFiore, Ch. J.)
People v Reyes	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 133(A) (Queens)	denied 4/18/21 (Wilson, J.)
People v Roberts	2d Dept: 191 AD3d 807 (Kings)	denied 4/23/21 (Garcia, J.)
People v Rock	1st Dept: 191 AD3d 482 (NY)	denied 4/11/21 (Wilson, J.)
People v Rodriguez	1st Dept: 189 AD3d 552 (NY)	denied 4/8/21 (Garcia, J.)
People v Rose	2d Dept: 191 AD3d 697 (Kings)	denied 4/30/21 (Fahey, J.)
People v Rudebush	County Ct, 1/11/21 (Albany)	denied 4/18/21 (Wilson, J.)
People v Sales	2d Dept: 189 AD3d 1617 (Kings)	denied 4/18/21 (Wilson, J.)
People v Sammeth	3d Dept: 190 AD3d 1112 (Ulster)	denied 4/22/21 (DiFiore, Ch. J.)
People v Sanchez-Ponce	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 67 Misc 3d 135(A) (Richmond)	denied 4/29/21 (DiFiore, Ch. J.)
People v Sandy	2d Dept: 178 AD3d 960 (Queens)	denied reconsideration 4/18/21 (Wilson, J.)
People v Santana	App Term, 1st Dept: 70 Misc 3d 130(A) (Bronx)	denied 4/29/21 (DiFiore, Ch. J.)
People v Scott	4th Dept: 189 AD3d 2110 (Monroe)	denied 4/25/21 (Wilson, J.)
People v Slattery	4th Dept: 191 AD3d 1361 (Onondaga)	denied 4/13/21 (DiFiore, Ch. J.)
People v Sloley	App Div, 3d Dept: 2020 NY Slip Op 75576(U) (Greene)	denied 4/25/21 (Wilson, J.)

People v Smalls	4th Dept: 191 AD3d 1258 (Onondaga)	denied 4/14/21 (DiFiore, Ch. J.)
People v Smallwood	4th Dept: 191 AD3d 1396 (Wayne)	denied 4/8/21 (Garcia, J.)
People v Smith	App Term, 1st Dept: 70 Misc 3d 134(A) (Bronx)	denied 4/22/21 (Garcia, J.)
People v Soloman	App Term, 1st Dept: 69 Misc 3d 134(A) (Bronx)	dismissed 4/18/21 (Wilson, J.)
People v Streety	App Term, 1st Dept: 70 Misc 3d 134(A) (NY)	denied 4/23/21 (DiFiore, Ch. J.)
People v Stroud	1st Dept: 190 AD3d 592 (NY)	denied 4/2/21 (DiFiore, Ch. J.)
People v Stuart	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 138(A) (Richmond)	denied 4/15/21 (Fahey, J.)
People v Sykes	1st Dept: 191 AD3d 414 (NY)	denied 4/28/21 (DiFiore, Ch. J.)
People v Tenesaca	App Term, 1st Dept: 70 Misc 3d 136(A) (NY)	denied 4/29/21 (DiFiore, Ch. J.)
People v Tennant	2d Dept: 191 AD3d 906 (Dutchess)	denied 4/29/21 (DiFiore, Ch. J.)
People v Terrero	App Term, 1st Dept: 70 Misc 3d 139(A) (NY)	denied 4/2/21 (Rivera, J.)
People v Thomas	App Div, 4th Dept, 12/23/20 (Erie)	dismissed 4/16/21 (DiFiore, Ch. J.)
People v Tucker	App Div, 3d Dept: 2019 NY Slip Op 81563(U) (Schenectady)	denied 4/13/21 (DiFiore, Ch. J.)
People v Vasquez	2d Dept: 189 AD3d 1618 (Kings)	denied 4/28/21 (Stein, J.)
People v Velazquez	2d Dept: 189 AD3d 1618 (Kings)	denied 4/28/21 (Stein, J.)
People v Vega	1st Dept: 191 AD3d 509 (NY)	denied 4/13/21 (Fahey, J.)
People v Wang	1st Dept: 191 AD3d 485 (NY)	denied 4/22/21 (Fahey, J.)
People v Washington (Dasheem)	2d Dept: 191 AD3d 810 (Kings)	denied 4/15/21 (DiFiore, Ch. J.)
People v Washington (Kyan)	2d Dept: 189 AD3d 1470 (Kings)	denied 4/5/21 (DiFiore, Ch. J.)
People v Wayman	1st Dept: 188 AD3d 538 (Bronx)	denied 4/13/21 (Fahey, J.)
People v Wentland	2d Dept: 191 AD3d 704 (Orange)	denied 4/30/21 (DiFiore, Ch. J.)
People v West	2d Dept: 188 AD3d 1277 (Westchester)	denied 4/13/21 (Wilson, J.)
People v Williams (Glenn)	1st Dept: 190 AD3d 498 (NY)	denied 4/23/21 (DiFiore, Ch. J.)
People v Williams (Jesse)	1st Dept: 187 AD3d 414 (NY)	denied 4/22/21 (Fahey, J.)
People v Williams (Marquise)	2d Dept: 191 AD3d 811 (Queens)	denied 4/8/21 (Garcia, J.)

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People v Wilson	2d Dept: 191 AD3d 708 (Kings)	denied 4/27/21 (DiFiore, Ch. J.)
People v Wisniewski	4th Dept: 191 AD3d 1435 (Erie)	denied 4/20/21 (Rivera, J.)
People v Woods	App Div, 3d Dept: 2021 NY Slip Op 62073(U) (Albany)	dismissed 4/2/21 (Rivera, J.)
People v Xajapajcuc	2d Dept: 191 AD3d 811 (Suffolk)	denied 4/15/21 (Fahey, J.)
People v Yanes-Santos	2d Dept: 189 AD3d 1621 (Nassau)	denied 4/19/21 (DiFiore, Ch. J.)
People v Zapata	App Term, 1st Dept, 9th & 10th Jud Dists: 70 Misc 3d 132(A) (Orange)	denied 4/13/21 (DiFiore, Ch. J.)

In the Matter of AUGUSTINE MORALES, Appellant, v CARLOS M.
BURGOS, JR., Respondent, and WESTCHESTER COUNTY
BOARD OF ELECTIONS et al., Appellants.

Submitted May 18, 2021; decided May 18, 2021

Reported below, 194 AD3d 888.

Motion by Augustine Morales for leave to appeal denied. Motion by Westchester County Board of Elections et al. for leave to appeal dismissed upon the ground that they are not aggrieved parties (*see* CPLR 5511).

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles

ADMINISTRATIVE LAW.

RULEMAKING.

1. Regulations Limiting Counsel Fee Awards to Crime Victims.—The amended regulations of respondent New York State Office of Victim Services limiting attorneys’ fee awards for crime victim claimants to the costs incurred on applications for administrative reconsideration or appeal and on judicial review are consistent with Executive Law article 22 and rationally implement the statutory limitation that only attorneys’ fees that are “reasonable” and “reasonably incurred” may qualify for reimbursement (Executive Law § 626 [1]). The statute, when read as a whole, grants respondent the authority to determine whether attorneys’ fees are “reasonable.” The legislature directed respondent to adopt rules for the approval of attorneys’ fees for representation before it and the Appellate Division. However, the statutory language also expressly states that reimbursable out-of-pocket loss “shall also include . . . the cost of reasonable attorneys’ fees for representation before [respondent] and/or before the [A]ppellate [D]ivision upon judicial review” (Executive Law § 626 [1]). Because Executive Law article 22 permits respondent to reimburse only fees that are “reasonable,” but is silent with regard to the parameters of what is reasonable, the legislature necessarily granted respondent the authority to determine the scope of that term. Inasmuch as the legislature left the definition of the term “reasonable” to respondent, the statute is silent as to how respondent is to address fees for the various stages of a claim, and nothing in the statutory scheme prohibits respondent from deeming certain categories of fees unreasonable, the regulation does not conflict with the statute. *Matter of Juarez v New York State Off. of Victim Servs.*, 36 NY3d 485.

2. Regulations Limiting Counsel Fee Awards to Crime Victims — Fees for Tasks in Early Stages of Claim.—In promulgating new regulations limiting attorneys’ fees awards for crime victim claimants to costs incurred in connection with administrative or judicial review, respondent New York State Office of Victim Services’s determination that fees for tasks occurring in the early stages of a claim are not reasonable expenses qualified for reimbursement was rational and not in conflict with preexisting regulations providing for counsel fee awards based on case-specific factors set forth in 9 NYCRR 525.9 (d). One of the factors is “the skill requisite to perform the legal service properly” (9 NYCRR 525.9 [d] [1]). The new regulations act to clarify this factor by making explicit that reimbursement of attorneys’ fees is not available for the initial filing of a claim because it is a relatively simple task, and Victim Assistance Programs (VAPs) are available to assist claimants in any instance in which the initial claim process is more complicated. The questions of whether reimbursement for attorneys’ fees is reasonable for the types of tasks involved in those stages of the process and whether VAPs are capa-

ADMINISTRATIVE LAW—Cont'd

ble of adequately assisting claimants with such tasks are matters involving respondent's expertise and experience with the process, and respondent rationally relied on that experience in determining that requests for attorneys' fees in connection with those tasks are not "reasonable" within the meaning of Executive Law § 626. Moreover, respondent's regulations defining "reasonable" attorneys' fees represent an attempt to conserve its resources for use in the compensation of losses suffered by crime victims, rather than for attorneys' fee awards it deemed unreasonable, consistent with the fundamental purpose of the statute to provide "aid, care and support . . ., as a matter of grace, for . . . victims of crime" and their dependents (Executive Law § 620). *Matter of Juarez v New York State Off. of Victim Servs.*, 36 NY3d 485.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS

ADOPTION.**ADOPTION OF ADULT.**

1. Adoptee Lacking Capacity to Consent — Best Interests.—The Appellate Division properly affirmed an order approving a petition for the adoption of a 66-year-old woman who had resided with petitioners, operators of a licensed family care home, for approximately 15 years and who, due to her profound intellectual disability that resulted in significant developmental delays and limited verbal ability, lacked capacity to consent to the adoption. For an adult adoption to proceed, the adoptee must consent, the adoption must be in the best interests of the adoptee, and the relevant familial, social, religious, emotional, and financial circumstances of the adoptive parents must be investigated. However, Domestic Relations Law § 111 (1) (a), which requires consent of any adoptee over the age of 14, authorizes a court to exercise its discretion in appropriate circumstances to dispense with the consent of an adoptee who is over the age of 18. Here, the Appellate Division did not abuse its discretion in determining it was appropriate to dispense with the adoptee's consent where the adoptee was given notice of the petition, and significant efforts, including psychological evaluations, an in camera interview, and appointment of a guardian ad litem, were employed to explore the adoptee's capacity, feelings and desires and ensure that her rights and interests were protected. The record also supported the affirmed finding that the adoption was in the adoptee's best interests, with evidence of petitioners' strong filial affection for the adoptee and her love for them, and that she was safe, cared-for and thrived in petitioner's home setting. Further evidence established that the adoption would leave the adoptee in a comparable financial position as before, without significantly altering her eligibility for critical services. *Matter of Marian T. (Lauren R.)*, 36 NY3d 44.

2. Discretion of Court to Dispense with Consent Requirement.—Domestic Relations Law § 111 (1) (a) authorizes a court to exercise its discretion in appropriate circumstances to dispense with the consent of an adoptee who is over the age of 18. The language of section 111 (1) (a) provides that, for an adoption to proceed, consent is required "[o]f the adoptive child, if over fourteen years of age, unless the judge or surrogate in his discretion dispenses with such consent." An "adoptive child" is a term of art defined as "a person adopted" (Domestic Relations Law § 109 [1]), which contains no age restriction and thereby encompasses both minors and adults. Although in other contexts the term "child" may refer to an individual under the age of majority, it is evident that in section 111 (1) (a) it refers not to the age of the adoptee but the nature of the filial relationship between the parties to the adoption. That the adoptee is an adult does not significantly alter or "dilute" the legislative purpose underlying the statutes or the standards that must be met to grant an adoption. Thus, it is clear from the text that the statute requires the consent of any adoptee over the age of 14 but gives courts the discretion to dispense with that consent in appropriate circumstances. While statements in the legislative history in support of the amendment adding the discretion language noted that it would permit courts to grant adoption petitions without consent when ap-

ADOPTION—Cont'd

propriate to avoid psychological harm to a child who was unaware of the adoption proceedings, the statutory language does not restrict the scope of the court's discretion or reflect an intent to limit the exercise of such discretion to that particular circumstance. Moreover, such an interpretation would categorically preclude the adoption of adults who lack the capacity to consent, without any basis to conclude that the legislature intended to deny any group the emotional, legal and stability benefits of adoption. *Matter of Marian T. (Lauren R.)*, 36 NY3d 44.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT

ALIMONY.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

ANNULMENT OF MARRIAGE.

See MARRIAGE

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

MATTERS REVIEWABLE.

1. Exception to Mootness Doctrine — Temporary Confinement of Level Three Sex Offenders in Correctional Facilities while Awaiting SARA-Compliant Shelter Housing.—Two CPLR article 70 proceedings brought by petitioner sex offenders challenging their confinements in correctional facilities, after the time they would have otherwise been released to parole or postrelease supervision, while on waiting lists for accommodation at shelters compliant with the Sexual Assault Reform Act's mandatory school grounds restriction, were converted to declaratory judgment actions by the Court of Appeals because petitioners had since been released. Although petitioners no longer sought habeas corpus relief, the matters raised in their appeals fell within the exception to the mootness doctrine allowing courts to consider substantial and novel issues that are likely to be repeated and will typically evade review. *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187.

ARBITRATION.

See, also, INSURANCE

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER

BANKS AND BANKING.

See, also, BILLS, NOTES AND CHECKS

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING

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See PROCEEDING AGAINST BODY OR OFFICER

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

CITIES.

See MUNICIPAL CORPORATIONS

CIVIL RIGHTS.

NEW YORK CITY HUMAN RIGHTS LAW.

1. Discrimination in Employment — Vicarious Liability of Individual Owner or Officer of Corporate Employer.—In plaintiff employee's action alleging discrimination, sexual harassment, and sexual abuse by her supervisor, defendant owner and officer of the company was not an "employer" within the meaning of the New York City Human Rights Law (Administrative Code of City of NY, title 8 [City HRL]) and could not be held vicariously liable under Administrative Code of City of NY § 8-107 (13) (b) for the supervisor's offending conduct. Where a plaintiff's employer is a business entity, the shareholders, agents, limited partners, and employees of that entity are not employers within the meaning of the City HRL. The City HRL specifically imposes primary liability on employees and agents for some discriminatory acts but conspicuously does not impose vicarious liability on those individuals under section 8-107 (13) (b). Furthermore, the vicarious liability provision itself applies when "[t]he employee or agent exercised managerial or supervisory responsibility" (Administrative Code of City of NY § 8-107 [13] [b] [1]), differentiating between the liable party (employer) and the party committing the offending conduct (employee or agent with managerial or supervisory responsibility). The difference demonstrates that employees, agents and others with an ownership stake are not employers within the meaning of the City HRL. Moreover, at common law, shareholders are not subject to vicarious liability for the torts of a corporation's agents or employees, and the text of the City HRL demonstrates no intent to displace those settled principles. Plaintiff's allegations that defendant owner fostered a culture of discrimination and sexual harassment at the company, based primarily on news articles and reports of a deposition in an unrelated case, did not transform him into an employer for purposes of vicarious liability for the supervisor's discriminatory conduct. *Doe v Bloomberg L.P.*, 36 NY3d 450.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles

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See ASSOCIATIONS

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See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles

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See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles

CRIMES—Cont'd**APPEAL.**

1. Dismissal — Mootness.—In a criminal prosecution, defendant's appeal from the Appellate Division order affirming the sentence imposed following his conviction was dismissed, where the issues presented on appeal had become moot. *People v Robinson*, 36 NY3d 945.

2. Preservation of Issue for Review — Sentence Imposed after Retrial — Claim of Presumptive Vindictiveness.—Defendant, who entered a guilty plea to a different offense before a different judge after reversal on appeal of his conviction upon a nonjury verdict, failed to preserve his claim that the sentence imposed upon his guilty plea was presumptively vindictive and imposed without state due process protections. Defendant's arguments against imposition of the term of imprisonment, registered before the court imposed sentence, were consistent with arguments for leniency and made no specific reference to the principle of vindictiveness or any potential constitutional violation. Defendant also failed to either object to the sentence actually imposed or move to withdraw his plea. Nor did the record support a claim that the sentence, which was within the ambit of the range of sentences for the offense, was illegal in a respect that could readily be discerned from the record. *People v Olds*, 36 NY3d 1091.

3. Preservation of Issue for Review — State Constitutional Claim — Search of Vehicles Pursuant to Search Warrant.—Defendant properly preserved for review the issue of whether, under state constitutional standards, the police had probable cause to search two vehicles that were on site at a residence at which they were executing a search warrant that authorized the search of defendant's "person" and the "entire premises." The debate in the lower courts focused on the merits of adopting the People's interpretation of the federal standard in light of Court of Appeals prior precedent. Before Supreme Court, defendant cited New York case law that had adhered to the position that a search warrant must specify the area to be searched, resting on both the New York and U.S. Constitutions and the Criminal Procedure Law to require a greater degree of protection for searches of vehicles than required under the federal law cited by the People. The issue of whether New York courts should hew closely to Court of Appeals prior precedent or adopt, as a matter of state law, an emerging rule of federal constitutional law had been consistently litigated by both parties throughout the case. While the prior New York decisions on which defendant relied may not have conducted an extensive analysis of whether state constitutional protections deviate from federal constitutional protections in this context, that did not render their repeated citations to the State Constitution meaningless; those cases accurately set forth state constitutional law. To avoid answering the state constitutional component of defendant's argument on preservation grounds would require distorting the preservation rule by overruling the prior New York cases as a matter of federal and state constitutional law, while maintaining that defendant failed to preserve a state constitutional claim. *People v Gordon*, 36 NY3d 420.

4. Validity of Appeal Waiver.—In 10 unrelated criminal prosecutions, in which each defendant pleaded guilty to a particular crime, the waivers of the right to appeal accompanying the guilty pleas were invalid and unenforceable pursuant to the analysis in *People v Thomas* (34 NY3d 545 [2019]). In each case the rights encompassed by an appeal waiver were mischaracterized during the oral colloquy and in written forms executed by defendants, which indicated the waiver was an absolute bar to direct appeal, failed to signal that any issues survived the waiver, and, in certain cases, advised that the waiver encompassed collateral relief on certain nonwaivable issues in both state and federal courts. Viewing the deficiencies in the context of the record in each case and considering the totality of the circumstances, including in several cases defendants' significant mental health issues, it could not be said that defendants comprehended the nature and consequences of the waiver of appellate rights. Accordingly, each Appellate Division order was reversed and the cases remitted for consideration of issues raised but not decided on the appeal to that Court due to the enforcement of defendants' appeal waivers. *People v Bisano*, 36 NY3d 1013.

CRIMES—Cont'd**ASSAULT.**

5. Depraved Indifference — Sufficiency of Evidence.—The evidence presented to the grand jury was legally sufficient to demonstrate that defendant acted with depraved indifference when, in order to evade the police, defendant, who was legally intoxicated, fled down a local road with two passengers at a speed of at least 119 miles per hour—more than three times the speed limit. Defendant then abruptly swerved across the lanes of oncoming traffic into a parking lot and crashed into a wall. Viewing this evidence, the grand jury could rationally have found that defendant recklessly engaged in conduct that created a grave risk of death to his passengers, with an utter disregard for whether any harm came to them. That other, innocent inferences could possibly be drawn from the evidence presented to the grand jury was irrelevant to the sufficiency inquiry as the grand jury could rationally have drawn the guilty inference. *People v Edwards*, 36 NY3d 946.

DISCLOSURE.

6. Failure to Disclose Exculpatory Material — Witness Statement Disclosed after Trial Not Material.—The Appellate Division incorrectly determined that a witness statement that was disclosed by the People after defendant's trial was material for purposes of defendant's *Brady* claim, as an examination of the trial record and evaluation of the withheld evidence revealed there was no reasonable possibility that the People's failure to disclose the witness statement undermined the fairness of defendant's trial or impacted the verdict. The undisclosed witness's description of the shooter and his flight path did not differ in any material respect from that of the eyewitness who identified defendant in court as the perpetrator. Moreover, the jury's verdict was supported by considerable other evidence, including the testimony of a cooperating witness who planned the crime with defendant, provided a weapon and cellphone for defendant's use, observed defendant approach and leave the site of the shooting at the time it occurred, and described the manner in which the weapon was destroyed after the shooting; testimony by the spouse of the cooperating witness confirming defendant's involvement; the testimony of additional witnesses who described the perpetrator's clothing and his movements following the shooting; telephone records; and surveillance videos showing defendant's proximity, clothing, and behavior immediately after the crime. Considering the totality of the evidence, there was no reasonable possibility that the statement supported an alternative theory of defense, nor had defendant demonstrated any likelihood that the statement would have led to additional admissible evidence. *People v McGhee*, 36 NY3d 1063.

FAIR TRIAL.

7. Denial of Request for Adjournment to Interview Witness.—In a criminal prosecution, the Appellate Division did not err in holding that Supreme Court acted within its discretion in denying defense counsel's last-minute request for an adjournment to interview a defense witness before the witness testified. Under the circumstances, the denial of the adjournment request did not infringe defendant's rights to a fair trial, to prepare a defense, or to effective assistance of counsel. *People v Vasquez*, 36 NY3d 1066.

FITNESS TO PROCEED TO TRIAL.

8. Right to Third Competency Examination.—In a criminal prosecution, the record supported the lower courts' determination that defendant was not entitled to a third CPL article 730 examination to redetermine his competency to proceed. *People v Vasquez*, 36 NY3d 1066.

HARMLESS AND PREJUDICIAL ERROR.

9. In a criminal prosecution, any error was harmless because, in the circumstances presented, the proof of defendant's guilt was overwhelming, even after excising the disputed evidence. Further, no reasonable possibility existed that admission of that evidence contributed to defendant's conviction. *People v Perez*, 36 NY3d 1093.

10. Questions and Summation Remarks by Prosecutor — Uncharged Crimes.—In a criminal prosecution, the Appellate Division properly determined

CRIMES—Cont'd

that the prosecutor's questioning of a defense witness and summation remarks improperly associated defendant with uncharged crimes but were harmless. The proof of defendant's guilt was overwhelming, with evidence demonstrating that there was no significant probability that the jury would have acquitted defendant but for the prosecutor's references to the uncharged crimes. *People v Vasquez*, 36 NY3d 1066.

INDICTMENT.

11. Validity of Waiver — Failure to Include Time of Crime Charged.—An omission from the indictment waiver form of non-elemental factual information that is not necessary for a jurisdictionally-sound indictment is forfeited by a guilty plea and must be raised in the trial court. Defendant's waiver of indictment form was not defective for failure to include the approximate time of the crime charged as the time of incident is not an element of second-degree criminal possession of a weapon (Penal Law § 265.03 [2]), and defendant was on notice of the crime charged. *People v Walley*, 36 NY3d 967.

JUSTIFICATION.

12. Sufficiency of Evidence.—In a criminal prosecution in which defendant raised a defense of justification, the evidence against justification was legally sufficient. Viewing the evidence—including the testimony of a forensic consultant who was qualified, without objection, by the trial court as an expert in crime scene reconstruction and bloodstain pattern analysis—in the light most favorable to the prosecution, there was a valid line of reasoning and permissible inferences from which a rational jury could have found that the People disproved the defense of justification beyond a reasonable doubt. *People v Allen*, 36 NY3d 1033.

LARCENY.

13. Grand Larceny Involving Credit Card Theft — Use of Credit Card Account Number without Proof of Physical Possession of Tangible Credit Card.—The definition of credit card in General Business Law § 511 (1), as supplemented by General Business Law § 511-a to include “any number assigned to a credit card,” is the controlling definition for purposes of Penal Law § 155.00 (7) such that the People need not prove that a defendant physically possessed the tangible credit card in order to support a conviction of grand larceny based upon credit card theft. Accordingly, in defendant's prosecution for making unauthorized purchases using the victim's corporate credit card accounts, the evidence was legally sufficient to support defendant's grand larceny conviction despite the absence of proof that he was in physical possession of the credit card. For purposes of title J of the Penal Law, offenses involving theft, a “[c]redit card” means any instrument or article defined as a credit card in General Business Law § 511 (Penal Law § 155.00 [7]), which was expanded to include “any number assigned to a credit card” (General Business Law § 511-a). Thus, the language of the relevant statutes unambiguously provides that a credit card number is incorporated within the section 511 definition of “credit card” for purposes of General Business Law article 29-A. The only definition of credit card applicable to grand larceny is, by legislative dictate of Penal Law § 155.00 (7), the one contained in section 511. The inclusion of a credit card number in the definition of credit card under section 511-a necessarily applies to the definition in section 511, which is likewise contained in General Business Law article 29-A. The most reasonable reading of the plain language of the statutes is that section 511-a supplements the definition of section 511 for all provisions to which article 29-A is applicable, including the Penal Law. *People v Badji*, 36 NY3d 393.

MURDER.

14. Attempt — Sufficiency of Evidence — Conduct Not Dangerously Close to Commission of Intended Crime.—The evidence at trial was legally insufficient to support defendant's convictions for attempted murder in the first and second degrees (Penal Law §§ 110.00, 125.27 [1] [a] [vi]; 125.25 [1]) because it failed to prove that defendant and his feigned confederate took any actual step toward ac-

CRIMES—Cont'd

completing defendant's plan to kill his wife and mother-in-law beyond mere conversations and planning. A person is guilty of an attempt to commit a crime if the person's conduct comes "dangerously close" to committing the intended crime, past the stage of mere intent or preparation. Here, only defendant's own acts were considered because his purported accomplice, an inmate in an adjacent cell at the jail where defendant was being held on domestic violence charges, was working with the authorities and did not take steps toward furthering the plan other than listening to defendant's scheme. The evidence established that defendant promised to provide a house to the accomplice, gave him the purported address of the targets, instructed him when to carry out the murders, provided him with a hand-drawn map of the location to drop off defendant's children afterward, handed him a detailed plan of how to carry out the murders, told him the location of the keys to the house, called the accomplice's girlfriend to arrange for him to visit the jail after he was released, wrote a fake suicide note and showed it to the accomplice, and prearranged a code to discuss the postmortem over the recorded jail phone. Those acts were limited to the planning stages of committing the offense, specifying the who, what, where, when, and how of defendant's murder plans. Defendant's promise of a house did not advance the scheme's chance of success. He did not make a cash payment, provide means to purchase drugs for the murders, or provide a murder weapon. Nothing in the record established that the targets lived or could be found at the provided location or that defendant provided other information to track them down. Despite a specific intent to kill, an agreement with a confederate to commit the crimes, and acts corroborating that agreement, there was no evidence of acts that carried the plot forward within dangerous proximity to the criminal end to be attained. *People v Lendof-Gonzalez*, 36 NY3d 87.

POSSESSION OF WEAPON.

15. Involuntary Possession.—In defendant's prosecution for criminally possessing a gun found in a dresser drawer in a bedroom where he was temporarily staying, the trial court's denial of defendant's request for a jury instruction on voluntary possession constituted reversible error, where a reasonable view of the evidence supported his defense that, to the extent he possessed the weapon at all, such possession was not voluntary, and the evidence of defendant's guilt was not overwhelming. A jury charge must be given if there is evidence reasonably supportive of the defense, even if there is other evidence which, if credited, would negate it. The charge given to the jury, when read in its totality, was inadequate because it failed to explain that, if the jury found that defendant's possession—physical or constructive—was so fleeting that he did not have time to affirmatively end the possession, then the possession was involuntary. While the court defined possession that is "knowing," it did not define possession that is "voluntary," and the charge on constructive possession and awareness did not address the temporal aspect of voluntary possession. A reasonable juror could have found that defendant had constructive possession of the gun—by virtue of his access to and control over the room where it was found—and that the possession was knowing once he became aware of the presence of the gun, but also that his possession was not voluntary, given that it lasted for only the brief period between when he ran into the bedroom after being shot and saw the gun in the dresser and when he left the bedroom to get assistance. *People v J.L.*, 36 NY3d 112.

16. Temporary Lawful Possession.—In defendant's prosecution for criminally possessing, and ultimately firing, a gun he had accepted from a friend while exiting the friend's apartment building after seeing an acquaintance with whom he had a history of violent confrontations standing outside the building, defendant was not entitled to a jury charge on the defense of temporary and lawful possession because there was no reasonable view of the evidence presented at trial upon which a jury could find that defendant's initial possession of the gun was innocent or excusable. In order to trigger the right to a jury charge concerning the defense of temporary and lawful possession, there must be proof in the record showing a legal excuse for possession as well as facts tending to establish that, once possession has been obtained, the weapon had not been used in a dangerous manner. Defendant's possession did not result temporarily and incidentally from the perfor-

CRIMES—Cont'd

mance of some lawful act, such as disarming a wrongful possessor or unexpected discovery. There was no evidence suggesting that the acquaintance chased after defendant when he reentered the building, or that the acquaintance had any awareness of defendant's location in the building. Further, defendant admitted that he accepted possession of the firearm in a stairwell, at a time when he was unaware of the acquaintance's whereabouts and was not facing any imminent threat to his safety. Defendant then chose to retain possession of the firearm and to enter the lobby with the weapon in his hand. Under those circumstances, the only reasonable conclusion to be drawn from the evidence was that defendant armed himself in anticipation of a potential confrontation. *People v Williams*, 36 NY3d 156.

SEARCH WARRANT.

17. Authorization to Search "Entire Premises" — No Probable Cause to Search Vehicles Located Outside Residence.—Physical evidence seized from two vehicles located outside defendant's residence by police officers executing a search warrant authorizing a search of defendant's "person" and the "entire premises" from which defendant was seen emerging to engage in drug transactions was properly suppressed as the warrant contained no reference to the vehicles and the record supported the finding of Supreme Court that the search warrant materials failed to provide probable cause to search the vehicles. The search warrant application alleged that undercover detectives and a confidential informant had engaged in a total of three controlled purchases from defendant, that the detectives had observed several more likely narcotics sales, and that all alleged sales followed the same pattern whereby a car would pull up outside the residence and defendant or another person would emerge from the residence, approach the buyer, and return to the residence. No observation was reported as to any movement of persons between the residence and the vehicles searched that would substantiate a belief that those vehicles were utilized in the alleged activity. The mere presence of a vehicle seen at the site of premises wherein the police suspect criminal activity to be occurring does not by itself provide probable cause to search the vehicle. In requiring, under CPL 690.15 (1), that a search warrant direct a search of "one or more" of three separately listed categories, i.e., a designated or described premises; a designated or described vehicle; or a designated or described person, the legislature strongly suggested that the search of only one category (e.g. a premises) does not impliedly encompass the others. In the case of automobiles, unlike desks, closets or trunks, the risks of innocent invasions of privacy are substantially higher, given the commonplace occurrence of traveling by car to visit other places and people. Moreover, automobiles are typically titled and registered, and are more often in public view, providing police with means to establish connections between a vehicle and the target of a search. *People v Gordon*, 36 NY3d 420.

SEX OFFENDERS.

18. Civil Commitment or Supervision — Verdict Set Aside on Ground of Juror Misconduct.—In a Mental Hygiene Law article 10 proceeding, under the circumstances, Supreme Court did not abuse its discretion as a matter of law in ordering a new trial in the interest of justice on the ground of juror misconduct. *Matter of State of New York v Donald G.*, 36 NY3d 1090.

19. Postrelease Supervision — Placement in Residential Treatment Facility Housing.—Correction Law § 73 (10) authorizes the New York State Department of Corrections and Community Supervision (DOCCS) to provide temporary housing in a residential treatment facility (RTF) to sex offenders subject to the school grounds restriction set forth in the Sexual Assault Reform Act (SARA) (*see* Executive Law § 259-c [14]) after the six-month period specified in Penal Law § 70.45 (3) has expired but before the offender on postrelease supervision (PRS) has located compliant housing. Accordingly, in petitioner sex offender's proceeding challenging DOCCS's determination to place him in an RTF pursuant to Penal Law § 70.45 (3) because he was unable to identify SARA-compliant housing following expiration of his prison sentence, the Appellate Division properly rejected petitioner's argument that Correction Law § 73 (10) conflicts with Penal Law § 70.45 (3) by permitting

CRIMES—Cont'd

DOCCS to confine a person on PRS in the custodial setting of a correctional facility for as long as that person is unable to obtain SARA-compliant housing. The two provisions serve entirely different purposes and, thus, are not in tension with each other. Penal Law § 70.45 (3) permits DOCCS to hold a sex offender in an RTF for up to six months and require participation in RTF programming. On the other hand, Correction Law § 73 (10) authorizes DOCCS to provide an offender with temporary housing so that the offender can avoid violating a PRS term mandated by the legislature and having delinquency time imposed. So read, the statutes are not in conflict because they involve different types of authority that the legislature has granted to DOCCS—a mandatory, fixed term in an RTF versus temporary housing in an RTF that ends when a SARA-compliant residence is located. *People ex rel. McCurdy v Warden, Westchester County Corr. Facility*, 36 NY3d 251.

20. Sex Offender Registration Act — Upward Departure from Presumptive Risk Level.—The Appellate Division did not abuse its discretion in sustaining the upward departure from defendant sex offender's presumptive risk level based on the People's proof that defendant raped the victim in order to take revenge upon someone other than the victim, a risk factor not adequately captured by the Sex Offender Registration Act: Risk Assessment Guidelines and Commentary. *People v Del Rosario*, 36 NY3d 964.

21. Sexual Assault Reform Act — Applicability of School Grounds Restriction.—The provision of the Sexual Assault Reform Act mandating that the Board of Parole impose a condition restricting entry upon school grounds on certain offenders (*see* Executive Law § 259-c [14]) was mandatory only for those level three sex offenders serving a sentence for an offense enumerated in the statute. Petitioner, who had previously been designated a level three sex offender, but had not been serving a sentence for an enumerated offense under the statute at the time he was granted parole, was not subject to the mandatory condition. The phrase “such person” in Executive Law § 259-c (14), which provides “where a person serving a sentence for an [enumerated offense] and the victim of such offense was under the age of eighteen at the time of such offense or such person has been designated a level three sex offender,” refers to the particularized antecedent “a person serving a sentence for an [enumerated offense].” The natural reading of the text is consistent with the purpose of the statute, namely, to identify those offenders who pose the highest risk to children among the population of offenders being released from sentences resulting from sex crime convictions. The legislature's addition of the language “such person has been designated a level three sex offender” to the statute in 2005 expanded the group subject to the school grounds condition to include all level three sex offenders serving a sentence for one of the enumerated crimes because the legislature determined that these offenders, like those who committed an enumerated offense against a minor, present a higher risk upon first being released into the community. The amendment is properly read as making level three sex offender status, like an underage victim, an aggravating factor warranting mandatory imposition of the school grounds condition only where someone is released on parole from a sentence for one of the enumerated offenses. *People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32.

22. Sexual Assault Reform Act — School Grounds Restriction.—In a CPLR article 78 proceeding, the Appellate Division order granting the petition to the extent of annulling the determination of the Board of Parole which found that petitioner was subject to the school grounds restriction set forth in Executive Law § 259-c (14) was affirmed. *Matter of Green v LaClair*, 36 NY3d 957.

23. Sexual Assault Reform Act — Substantive Due Process Challenge to Incarceration Past Open Parole Date while on Waiting List for SARA-Compliant Housing.—In a CPLR article 70 proceeding, petitioner sex offender's substantive due process challenge to his continued incarceration past his “open parole date” while on a waiting list for shelter housing compliant with the Sexual Assault Reform Act's mandatory school grounds restriction was subject to the rational basis test rather than strict scrutiny. Not every intrusion on an individual's liberty constitutes a violation of a fundamental right. If no fundamental right is infringed

CRIMES—Cont'd

legislation or other government action is valid if it is rationally related to legitimate government interest. Petitioner's interest in being released to parole, after his open parole date had been announced, did not constitute a fundamental liberty interest. There is no constitutional or inherent right of a convicted person to be conditionally released before the expiration of a valid sentence; the conviction, with all its procedural safeguards, has extinguished that liberty right. When a state adopts a sentencing scheme which creates a legitimate expectation of early release from prison, there then exists a liberty interest deserving of constitutional protection. Rather than a fundamental right, such a liberty interest is grounded in New York's regulatory scheme and is a restricted form of liberty, not subject to strict scrutiny. *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187.

24. Sexual Assault Reform Act — Substantive Due Process Challenge to Placement in Residential Treatment Facility.—In a CPLR article 70 proceeding, petitioner sex offender's substantive due process challenge to his transfer by the Department of Corrections and Community Supervision (DOCCS) to a residential treatment facility (RTF) to begin the postrelease supervision (PRS) portion of his sentence while on a waiting list for shelter housing compliant with the Sexual Assault Reform Act's (SARA) mandatory school grounds restriction was subject to rational basis review rather than strict scrutiny. Petitioner was subject to the SARA residency requirement and therefore his assignment to an RTF was based on a mandatory condition of his PRS—a condition that DOCCS could require him to satisfy while he was under its supervision. Moreover, the law unquestionably provides that a defendant sentenced to PRS who violates “any condition of supervision . . . at any time during [PRS]” may be reincarcerated (Penal Law § 70.45 [1]). Thus, requiring an individual who has not satisfied SARA's housing restrictions to remain in an RTF until SARA-compliant housing is identified does not violate a fundamental liberty interest. Petitioner's claimed right to be free from continued confinement in the RTF, or to treat the RTF as he would a shelter from which he could depart at his convenience during daylight hours, was equivalent either to a claimed right to be free of PRS conditions or to an alleged right that his PRS conditions may not be equivalent to an extended incarceratory sentence. Neither was a fundamental due process right. *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187.

25. Sexual Assault Reform Act — Temporary Confinement of Level Three Sex Offenders in Correctional Facilities while Awaiting SARA-Compliant Shelter Housing — Cruel and Unusual Punishment.—Petitioner sex offender's transfer by the Department of Corrections and Community Supervision (DOCCS) to a residential treatment facility (RTF) to begin the postrelease supervision portion of his sentence while on a waiting list for shelter housing compliant with the Sexual Assault Reform Act's (SARA) mandatory school grounds restriction did not constitute cruel and unusual punishment in violation of the Eighth Amendment. In general, punishments imposed on persons for their status, rather than their conduct, are invalid under the Eighth Amendment. Petitioner's confinement in an RTF did not constitute punishment for a universal and unavoidable consequence of his status as an indigent level three sex offender. Instead, it reflected a broader set of social circumstances in which sex offender and society alike prefer that the offender remain in his or her city of longtime prior residence, especially if he or she must rely on local social services departments for shelter housing, and not relocate simply because SARA-compliant housing is plentiful elsewhere. Nor did DOCCS's conduct with respect to petitioner constitute deliberate indifference to his liberty interest as a matter of law. A sex offender cannot be released to any homeless shelter; the legislature has imposed a duty on the parole officer to actually supervise the parolee, which requires knowledge that the parolee's residence is not in violation of the conditions of release. Petitioner offered no evidence that DOCCS ever precluded him from accessing a SARA-compliant shelter bed, nor did he dispute that DOCCS released him to a SARA-compliant shelter as soon as one became available for him. *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187.

CRIMES—Cont'd

26. Sexual Assault Reform Act — Temporary Confinement of Level Three Sex Offenders in Correctional Facilities while Awaiting SARA-Compliant Shelter Housing — Rational Basis Review.—The temporary confinement of sex offenders in correctional facilities, after the time they would otherwise be released to parole or postrelease supervision, while on a waiting list for accommodation at a shelter compliant with the Sexual Assault Reform Act's (SARA) mandatory school grounds restriction, is rationally related to a conceivable, legitimate government purpose of keeping level three sex offenders more than 1,000 feet away from schools. Under the rational basis test, the challenged confinements of petitioner level three sex offenders were required to be evaluated by means of the most relaxed and tolerant form of judicial scrutiny, and the confinements were justifiable if rationally related to any conceivable legitimate state purpose. The Court does not evaluate whether the government purpose is a vital or compelling one. Moreover, the challenged detentions were rationally related to the purpose of SARA in that they ensured that petitioners—who, as level three sex offenders, were considered to pose a high risk of recidivism—had no contact with minors while awaiting confirmation of appropriate residence. The existence of less restrictive methods of monitoring petitioners during that period did not invalidate the use of correctional facilities. Confining level three sex offenders who are on a waiting list for SARA-compliant shelter housing is not so unrelated to the achievement of any combination of legitimate purposes as to be irrational. *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187.

UNLAWFUL SEARCH AND SEIZURE.

27. Suppression Motion.—In a criminal prosecution, the courts below erred as a matter of law in granting defendant's suppression motion. *People v Pena*, 36 NY3d 978.

VERDICT.

28. Setting Verdict Aside — Juror's Allegations of Threats Discredited.—In a criminal prosecution, defendant's challenge to the trial court's denial of his motion to set aside the verdict based on a juror's claim that she had been threatened in connection with the trial prior to deliberations was beyond the scope of review of the Court of Appeals, insofar as the trial court's credibility determination was supported by the record. The hearing court had the opportunity to evaluate the juror's demeanor and credibility, and the court thoroughly explained its bases for discrediting the juror's allegations, including the location at which the threat was purportedly made, the nature of the threat, the manner in which the allegations were reported, as well as the juror's refusal to cooperate with authorities attempting to investigate the alleged threat. *People v Williams*, 36 NY3d 156.

WITNESSES.

29. Expert Witness — Testimony Concerning Science of Adolescent Brain Development and Behavior.—In the murder prosecution of defendant, who was 14 years old at the time of the crime and asserted a justification defense, the trial court did not abuse its discretion in denying defendant's request to introduce testimony by an expert witness, concerning the science of adolescent brain development and behavior, to assist the jury in determining whether the People had met their burden of disproving justification. The admissibility and limits of expert testimony lie primarily in the sound discretion of the trial court, and the criterion to be applied is whether the proffered expert testimony would aid a lay jury in reaching a verdict. Under the particular facts of this case, the trial court, which did not conduct a *Frye* hearing, did not abuse its discretion in denying defendant's request. *People v Anderson*, 36 NY3d 1109.

DAMAGES.**LIQUIDATED DAMAGES.**

1. Unenforceable Penalty — Grossly Disproportionate to Amount Due upon Full Performance of Agreement.—In plaintiff landlord's action arising from defend-

DAMAGES—Cont'd

ant tenant's failure to timely pay surrender payments called for in the parties' surrender agreement terminating defendant's lease, the courts below properly struck the liquidated damages provision of the agreement as an unenforceable penalty in contravention of public policy because it was grossly disproportionate to the amount due upon defendant's full performance of the surrender agreement. The surrender agreement constituted a new contract between the parties that terminated the lease and all prospective obligations flowing from the tenancy. A liquidated damages provision has its basis in the principle of just compensation for loss. Liquidated damages that constitute a penalty, however, violate public policy, and are unenforceable. The damages provision effectively reinstated defendant's future rent liabilities under the terminated lease, plus interest and other prospective taxes and costs due under the lease, even though those damages did not flow from a breach of the surrender agreement. Those damages were 7½ times what plaintiff would have received if defendant had fully complied with the surrender agreement. While plaintiff did not receive six payments on time, that was the risk that it accepted by entering the surrender agreement; the existence of that risk did not and could not justify exaction of a penalty. *Trustees of Columbia Univ. in the City of N.Y. v D'Agostino Supermarkets, Inc.*, 36 NY3d 69.

MENTAL ANGUISH.

2. Recovery by Persons within Zone of Danger — Grandchild is Immediate Family of Grandparent.—A grandchild is the immediate family of a grandparent for the purpose of applying the zone of danger rule, which allows one who is threatened with bodily harm in consequence of the defendant's negligence to recover for emotional distress flowing only from the viewing of the death or serious physical injury of a member of that person's immediate family. Accordingly, plaintiffs' motion for leave to file and serve a second amended complaint asserting a cause of action on behalf of plaintiff grandmother for negligent infliction of emotional distress under the zone of danger theory based upon the emotional harm stemming from witnessing at close proximity an incident in which her granddaughter was killed should have been granted. Given the recognition by the Court of Appeals and the legislature that the relationship of grandparent and grandchild enjoys a special status among familial relationships, inclusion of grandparents in the common-law term "immediate family" as that phrase is used in zone of danger jurisprudence is warranted. Blending the historically circumspect approach to expanding liability for emotional damages within zone of danger jurisprudence with recognition of reshaped societal norms and everyday common sense leads to the conclusion that a grandparent is within the discrete, limited class of persons that enjoys a special status under modern New York family law and comes within the narrow avenue to bystander recovery. *Greene v Esplanade Venture Partnership*, 36 NY3d 513.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles

DECLARATORY JUDGMENTS.**WHEN REMEDY APPROPRIATE.**

1. In a combined CPLR article 78 proceeding and declaratory judgment action in which petitioner-plaintiff Towns sought to annul respondent-defendant County's determination that it had no legal basis to guarantee and provide a credit for unpaid property maintenance and demolition charges and requested certain

DECLARATORY JUDGMENTS—Cont'd

declaratory and injunctive relief, it could not be said that, to the extent challenged, the Appellate Division abused its discretion in refusing to grant declaratory relief. *Matter of Town of Irondequoit v County of Monroe*, 36 NY3d 177.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS

DEPOSITIONS.

See DISCLOSURE

DISCONTINUANCE.

See DISMISSAL AND NONSUIT

DISCOVERY AND INSPECTION.

See DISCLOSURE

DISTRICT AND PROSECUTING ATTORNEYS.**SPECIAL PROSECUTOR.**

1. Protection of People with Special Needs Act — Constitutionality.—Executive Law § 552, which, as part of the Protection of People with Special Needs Act, created a special prosecutor appointed by the Governor empowered to investigate and prosecute crimes of abuse or neglect of vulnerable victims in facilities operated, licensed, or certified by the State, is unconstitutional to the extent it grants the special prosecutor concurrent prosecutorial authority with county district attorneys. Where the Constitution establishes a specified office, or recognizes its existence, and prescribes the manner in which it shall be filled, the legislature may not transfer any essential function of the office to a different officer chosen in a different manner. Although the Constitution establishes the elected office of the district attorney, it leaves the allocation of prosecutorial authority to the legislature. That task is accomplished in County Law § 700 (1), which provides that it is the “duty of every district attorney to conduct all prosecutions for crimes and offenses cognizable by the courts of the county for which [such district attorney] shall have been elected or appointed.” Executive Law § 552 deprives the elected district attorneys of an essential function of their constitutional office—namely, the discretionary power to determine whom, whether and how to prosecute in a criminal matter. Moreover, although a statute ought normally to be saved by construing it in accord with constitutional requirements, the very language of the statute must be fairly susceptible of such an interpretation. The proposed requirement that the local district attorney retain ultimate responsibility for the prosecution lacked statutory support and would instead need to be imported from language found in Court of Appeals decisions. The Court of Appeals is not at liberty to save a statute by, in effect, rewriting it in a manner that contravenes its unambiguously articulated legislative purpose. *People v Viviani*, 36 NY3d 564.

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

DOUBLE JEOPARDY.

See CRIMES

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles

EXAMINATION BEFORE TRIAL.

See DISCLOSURE

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

FORMER ADJUDICATION.

See JUDGMENTS

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY)

FRATERNAL ORDERS.

See ASSOCIATIONS

GAS AND OIL.

See, also, PUBLIC UTILITIES

GUARANTEE.

See SURETYSHIP AND GUARANTEE

GUARDIAN AND WARD.

ATTORNEY FOR CHILD.

1. Appointment Nunc Pro Tunc.—Under the circumstances here, the attorney's motion to be appointed, nunc pro tunc, pursuant to 22 NYCRR 36.2 (b) (2), should have been denied. *Stefaniak v Zulkharnain*, 36 NY3d 1103.

HEALTH.

MEDICAID REIMBURSEMENT PAYMENTS.

1. Authority to Audit and Recover Overpayments of Funds Provided under Health Care Reform Act.—In a CPLR article 78 proceeding, for the reasons stated in the dissenting opinion at the Appellate Division, the funds for personal care services paid to petitioner under the Health Care Reform Act (Public Health Law § 2807-v [1] [bb] [i], [iii]) were Medicaid funds subject to the audit and recoupment authority of respondent City of New York Human Resources Administration in accordance with the parties' contract. *Matter of People Care Inc. v City of N.Y. Human Resources Admin.*, 36 NY3d 1088.

HOTELS.

See INNKEEPERS

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles

IMMIGRATION.

See ALIENS

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

EXCESS COVERAGE.

1. Obligation to Pay Interest Agreed to be Paid by Primary Insurer.—In an action arising out of injuries sustained by plaintiff at a construction site, defendant, the general contractor's excess insurer, was not obligated to pay interest on the underlying personal injury judgment after the general contractor's primary insurance policy was voided, where the primary insurer had agreed to pay pre- and postjudgment interest as supplementary payments. Based on the unambiguous language of the primary and excess policies, defendant's policy covered only losses in excess of those that would have been paid by the primary insurer under its policy. It was undisputed that the primary policy had a liability limit of \$1 million per occurrence and, in addition, provided supplementary payments coverage that included pre- and postjudgment interest. The policy expressly stated that those supplementary payments would not reduce the liability limit. Based on the coverage and ultimate net loss provisions of defendant's policy, the excess policy covered only losses in excess of those that would have been paid by the primary insurer under the primary insurance policy. Treating interest payments on the underlying award as falling within or reducing the primary policy's liability limit would be inconsistent with the language chosen by the parties to the insurance contracts, rendering several clauses forceless. The primary insurer agreed to expand its coverage of pre- and postjudgment interest beyond its liability limits, and defendant agreed to provide coverage only for losses in excess of the primary coverage. *Jin Ming Chen v Insurance Co. of the State of Pa.*, 36 NY3d 133.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION

INTERVENTION.

See PARTIES

JUDGMENTS.

See, also, EXECUTION, and other specific titles

JUDICIAL NOTICE.

See EVIDENCE

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES)

RENT REGULATION.

1. Individual Apartment Improvements — Useful Life.—The Appellate Division order reversing the judgment in plaintiff tenant's favor based on Supreme Court's finding that defendants failed to meet their burden to prove that the improvements made to plaintiff's apartment immediately prior to her tenancy satisfied the useful life requirement set forth in Rent Stabilization Code (9 NYCRR) § 2522.4 (a) (11) and Rent Stabilization Law of 1969 (Administrative Code of City of NY) § 26-511 (c) (13), justifying a rent increase sufficient to exempt plaintiff's apartment from rent stabilization pursuant to the luxury decontrol provision found in former Administrative Code of City of NY § 26-504.2, was reversed. To the extent the Appellate Division's contrary conclusion was based upon new factual findings, the trial court's findings more nearly comported with the weight of the evidence. *DiLorenzo v Windermere Owners LLC*, 36 NY3d 965.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS

MEDICAL REPORTS.

See DISCLOSURE

MORTGAGES.**FORECLOSURE.**

1. Presumption of Mailing and Receipt of RPAPL 1304 Notice — Rebuttal.—In residential mortgage foreclosure actions, to rebut the presumption of mailing and receipt of a RPAPL 1304 notice created through proof of a standard office mailing procedure, there must be proof of a material deviation from an aspect of the office procedure that would call into doubt whether the notice was properly mailed, impacting the likelihood of delivery to the intended recipient. In addition to a claim of no receipt, there must be a showing that the routine office practice was not followed or was so careless that it would be unreasonable to assume that the notice was mailed. The crux of the inquiry is whether the evidence of a defect casts doubt on the reliability of a key aspect of the process such that the inference that the notice was properly prepared and mailed is significantly undermined. Minor deviations of little consequence are insufficient. This is a workable rule that balances the practical considerations underpinning the presumption against the need to ensure the reliability of a routine office practice with respect to the creation and mailing of notices. *CIT Bank N.A. v Schiffman*, 36 NY3d 550.

2. RPAPL 1306 Filing Requirement — Multi-Borrower Loan.—In residential mortgage foreclosure actions, inclusion of information about only one borrower on a multi-borrower loan is sufficient to satisfy RPAPL 1306's electronic filing requirement. Although the statute does not specify whether information must be supplied concerning each party when there are multiple individuals or entities on a single loan, a plain reading indicates that RPAPL 1306 is satisfied as long as one borrower is listed. The statute states that the filing must contain information about "the borrower," referring to the party in singular form—unlike RPAPL 1304, which references the "borrower, or borrowers." Despite using the singular and plural form in section 1304, the legislature chose to reference only the singular "borrower" in RPAPL 1306, a closely related statute. The principal objective of the filings is to provide statistical data permitting accurate tracking and analyzing of loans at risk of foreclosure and proper allocation of foreclosure counseling resources statewide in order to combat the mortgage crisis—an aim also reflected in the legislative history. This objective is fulfilled by a filing that references at least one borrower. *CIT Bank N.A. v Schiffman*, 36 NY3d 550.

3. Standing.—In a mortgage foreclosure action, plaintiff satisfied its burden to demonstrate its standing to foreclose through evidence that it possessed the note when it commenced the action, including a copy of the original note endorsed in blank, and other supporting material, including an affidavit of possession based on an employee's review of plaintiff's business records. In response, defendant failed

MORTGAGES—Cont'd

to raise any factual issue as to plaintiff's standing or the authenticity of the note. Under the circumstances, Supreme Court did not err in denying defendant's request for inspection of the original note. *JPMorgan Chase Bank, N.A. v Caliguri*, 36 NY3d 953.

4. Standing — Request to Inspect Original Note.—There is no per se rule in a mortgage foreclosure action requiring the court to grant a request for inspection of the original note prior to awarding summary judgment. To the extent that cases have held or suggested otherwise, they should not be followed (*see e.g. JP Morgan Chase Bank, N.A. v Hill*, 133 AD3d 1057, 1058-1059 [3d Dept 2015]). *JPMorgan Chase Bank, N.A. v Caliguri*, 36 NY3d 953.

MOTELS.

See INNKEEPERS

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles

WATER SUPPLY.

1. County Industrial Development Agency's Liability for Unpaid Water Rents.—In plaintiff county industrial development agency's declaratory judgment action in which defendant Village of Herkimer, through a counterclaim, sought a judgment declaring that plaintiff was personally liable to defendant for unpaid water rents incurred by a manufacturer that was plaintiff's tenant pursuant to bond financing sale-and-leaseback transactions, judgment was granted in plaintiff's favor because plaintiff was not liable for the unpaid water rents. The Water Department Rules and Regulations of the Village of Herkimer do not authorize a claim against plaintiff for personal liability upon nonpayment of water rents. To the extent the Rules and Regulations determine defendant's remedies for unpaid water bills, they refer to "a lien on the premises where the water is used" (rule No. 8) and to shutting off water supply, upon notice. Rule No. 22, which is contained in a section regulating how water meters are used to register consumption, does not impose an additional remedy for nonpayment. *Herkimer County Indus. Dev. Agency v Village of Herkimer*, 36 NY3d 1061.

ZONING.

2. Open Space on Multi-Owner Zoning Lot.—The determination of respondent Board of Standards and Appeals of the City of New York (BSA) interpreting "open space" within the meaning of the New York City Zoning Resolution to encompass rooftop gardens accessible to the residents of a single building on a multi-owner zoning lot as long as the residents of each building on the zoning lot receive at least a proportionate share of open space was rational and not arbitrary, capricious, or contrary to law. "Open space" is defined as "that part of a zoning lot, including courts or yards, which . . . is accessible to and usable by all persons occupying a dwelling unit or a rooming unit on the zoning lot" (ZR § 12-10). Respondents explained that the terms "dwelling unit" and "rooming unit" could not be ignored and are defined by reference to a residential building. By focusing on accessibility to residents of a residential building, as opposed to residents of a zoning lot generally, respondent BSA's interpretation gave salience to a concept that is cross-referenced in the definition of open space, thereby better comporting with the principle that a statute must be construed as a whole and that its various sections must be considered together and with reference to each other. Moreover, respondent's interpretation met the Zoning Resolution's minimum open space requirement by ensuring that the residents of each building on a multi-owner zoning lot have access to at least the amount of open space that would be required if the building were on a separate zoning lot. By allocating open space in that way, respondent's interpretation fulfilled the purpose of the open space requirement "to

MUNICIPAL CORPORATIONS—Cont'd

open up residential areas to light and air, to provide open areas for rest and recreation, and to break the monotony of continuous building bulk" (ZR § 21-00 [d]). *Matter of Peyton v New York City Bd. of Stds. & Appeals*, 36 NY3d 271.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles

NEGOTIABLE INSTRUMENTS.

See BILLS, NOTES AND CHECKS

NEWSPAPERS.

See, also, LIBEL AND SLANDER, and other specific titles

OPTICIANS.

See LICENSES; PHYSICIANS AND SURGEONS

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PARENT, CHILD AND FAMILY.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles

PARTIES.

STANDING.

1. Waiver of Objections.—In an action to foreclose a mortgage, defendant mortgagors failed to raise standing in their answers or in pre-answer motions as required by CPLR 3211 (e) and accordingly, under the law in effect at the time of the orders appealed from, the defense was waived. Under the circumstances, Supreme Court did not err in granting plaintiff's motions for summary judgment and for a judgment of foreclosure and sale. *US Bank N.A. v Nelson*, 36 NY3d 998.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

PHYSICAL EXAMINATIONS.

See DISCLOSURE

PHYSICIANS AND SURGEONS.

MALPRACTICE.

1. Summary Judgment.—In a medical malpractice action, the order of the Appellate Division, which had affirmed the dismissal of the action against defendants, was affirmed. In response to the prima facie showing of entitlement to summary judgment by defendants, plaintiff failed to raise a triable issue of fact. *Jacob v Franklin Hosp. Med. Ctr.*, 36 NY3d 1102.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

POLITICAL PARTIES.

See ELECTIONS

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles

RAILROADS.

See, also, CARRIERS

REAL ESTATE BROKERS.

See BROKERS

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles

RES JUDICATA.

See JUDGMENTS

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles

RESIDENCE.

See DOMICILE

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles

SECURED TRANSACTIONS.

SECURITY AGREEMENTS.

1. Impact of Strict Foreclosure on Minority Noteholders' Right to Sue for Payment.—Plaintiff minority noteholders were entitled to summary judgment in their action against defendant issuer and its guarantors to recover payment of principal and interest following defendant issuer's default, as plaintiffs' right to sue for pay-

SECURED TRANSACTIONS—Cont'd

ment on the notes survived a strict foreclosure undertaken by the trustee at the direction of the majority bondholders without plaintiffs' consent. Sections 6.05 and 6.07 of the indenture agreement incorporated language from subsections (a) and (b) of section 316 of the Trust Indenture Act of 1939 (15 USC § 77ppp [a], [b] [TIA]), respectively. Majority actions permitted by subsection (a), namely the authority to excuse a default and to direct trustee action in the event of a default, are constrained by subsection (b). Majority action with respect to remedies must be similarly constrained. The structure of the TIA demonstrates an intent to protect bondholders' legal rights to payment and to bring suit from the effects of collective action. The majority noteholders were empowered to act, without the consent of all noteholders, in directing a specific remedy and the trustee was authorized to follow that directive. However, the purported cancellation of the notes could not extinguish the rights protected by section 6.07 of the indenture. Because section 6.07 applied "[n]otwithstanding any other provision of th[e] [i]ndenture," the powers conferred upon the majority noteholders by section 6.05 were subject to the limitations in section 6.07. Therefore, the powers granted to the majority noteholders in section 6.05 could not be used to extinguish the legal right to sue or the legal right to payment of non-consenting noteholders protected in section 6.07. Thus, the purported cancellation of the notes without plaintiffs' consent violated section 6.07 of the indenture agreement. *CNH Diversified Opportunities Master Account, L.P. v Cleveland Unlimited, Inc.*, 36 NY3d 1.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

SLANDER.

See LIBEL AND SLANDER

SPORTING EVENTS.

See THEATRES AND SHOWS

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS

STATUTES.

FEDERAL PREEMPTION.

1. Conflict Preemption of State Tort Law Claims.—Plaintiff's state law claims alleging that defendants tortiously interfered with loan agreements between plaintiff and nonparty borrowers, who defaulted and filed for bankruptcy, were not precluded by the doctrine of conflict, or obstacle, preemption based on federal bankruptcy regulations, as plaintiff's claims did not require the adjudication of rights and duties of creditors and debtors under the Bankruptcy Code, and therefore would not encroach upon the province of the Bankruptcy Court. Federal law does not preempt state law under obstacle preemption analysis unless the repugnance or conflict is so direct and positive that the two acts cannot be reconciled or consistently stand together. While state courts are not authorized to determine whether a person's claim for relief under a federal law, in a federal court, and within that court's exclusive jurisdiction, is an appropriate one, there was no question raised as to the propriety of the bankruptcy proceedings. Plaintiff's tortious interference claims, asserted against defendants who were not debtors in the bankruptcy proceedings and which were premised upon conduct that occurred prior to those proceedings, were peripheral to, and did not impugn, the bankruptcy process. Resolution of plaintiff's claims in state court did not risk interference with the Bankruptcy Court's control over, or disposition of, the bankruptcy estate insofar as plaintiff's suit did not impair the debtors' estates. The debtors in the bank-

STATUTES—Cont'd

ruptcy proceedings were unaffected by whether plaintiff prevailed on its tort claims against defendants, and the state action had no impact on the borrowers' ability to obtain a fresh start. *Sutton 58 Assoc. LLC v Pilevsky*, 36 NY3d 297.

2. Field Preemption of State Tort Law Claims.—Plaintiff's state law claims alleging that defendants tortiously interfered with loan agreements between plaintiff and nonparty borrowers, who defaulted and filed for bankruptcy, were not precluded by the doctrine of field preemption based on federal bankruptcy regulations, where plaintiff's claims did not implicate debtor-creditor disputes relating to the bankruptcy estate. The Bankruptcy Code thoroughly governs the litigation and settlement of controversies between debtors and creditors in connection with the bankruptcy estate. However, defendants cited no provision of the Bankruptcy Code that suggested a congressional intent to interfere with the authority of state courts to provide traditional tort remedies for claims brought by a nondebtor against alleged nondebtor tortfeasors for interference with contractual agreements that exist independently of a bankruptcy proceeding. Moreover, defendants pointed to nothing in the language, structure, or history of the Bankruptcy Code to support their contention that, in addition to occupying the field of bankruptcy adjudication as between debtors and creditors, Congress clearly and manifestly expressed an intent to encroach upon the State's dominion by foreclosing tort remedies for claims that are not asserted by or against a debtor and do not affect the bankruptcy estate, thereby removing all available judicial recourse for plaintiffs injured by tortious conduct of nondebtors if there is any tangential connection to a bankruptcy proceeding. *Sutton 58 Assoc. LLC v Pilevsky*, 36 NY3d 297.

VALIDITY OF STATUTE.

3. Severance of Unconstitutional Subdivisions from Valid Portions of Statute — Protection of People with Special Needs Act.—Although Executive Law § 552, as part of the Protection of People with Special Needs Act, is unconstitutional to the extent it empowers a special prosecutor to investigate and prosecute crimes of abuse or neglect of vulnerable victims in facilities operated, licensed, or certified by the State, the remainder of the statute is valid and preserved. Whether unconstitutional subdivisions may be severed from the valid and the remainder of a statute preserved is question of legislative intent, namely whether the legislature, if partial invalidity of the statute had been foreseen, would have wished the statute to be enforced with the valid part excised, or rejected altogether. Given that the purpose of the Special Needs Act was to bolster the ability of the State to respond more effectively to abuse and neglect of vulnerable persons, it is apparent that the legislature would wish that as much of Executive Law § 552 aimed at protecting that class of victims as can be preserved remain in effect. Nor would excising the offending provisions leave the remainder without any beneficial impact. Therefore, the portion of Executive Law § 552 (1) that provides the special prosecutor with non-prosecutorial functions should remain in force. Likewise, Executive Law § 552 (2) (a) (ii), which empowers the special prosecutor "to cooperate with and assist district attorneys and other local law enforcement officials in their efforts against . . . abuse or neglect of vulnerable persons," without interfering with those efforts, was left intact. Cooperation with the local district attorney furthers the overarching goal of the legislature to provide resources to address crimes of abuse and neglect committed against vulnerable persons without infringing on that constitutional officer's essential authority. *People v Viviani*, 36 NY3d 564.

SUBPOENA.

See WITNESSES

SUMMONS.

See PROCESS

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

TAXATION.**REAL PROPERTY TAX.**

1. Credit for Unpaid Delinquent Taxes — Property Maintenance and Demolition Charges.—In a proceeding in which petitioner Towns sought to annul respondent County's determination to no longer guarantee and provide a credit for unpaid property maintenance and demolition charges that petitioners had incurred and levied against real property as permitted by state statute and local town code provisions, the Appellate Division erred in concluding that those charges were "special assessments" not subject to the RPTL 936 (1) requirement that counties guarantee and credit towns in connection with certain "unpaid delinquent taxes." Under RPTL 102 (20), the term "tax" as used in RPTL articles 5, 9, 10 and 11 includes a "special ad valorem levy," but excludes "a special assessment." However, section 102 provides that its definitions apply "unless otherwise expressly stated or unless the context otherwise requires" and the term "tax" is defined multiple times within the complex statutory scheme. The definition of "delinquent tax" in RPTL 1102 (2), contained in the article setting forth procedures for enforcement of collection of delinquent taxes and specifically referencing section 936, was the controlling definition for interpretation of the phrase "delinquent taxes." As defined in section 1102 (2), a "delinquent tax" embraces not only taxes or special assessments, but also "other charge[s] imposed upon real property," and thus encompassed the unpaid property maintenance and demolition charges here. Moreover, requiring counties to credit unpaid property maintenance and demolition charges accorded with the overall structure for enforcement of property tax liens, including the legislative grant of exclusive authority to counties in RPTL 1123 to commence in rem proceedings to foreclose on real property. Town Law § 64 (5-a) directs that those charges "levied" on "real property" are to "be collected in the same manner and at the same time as other town charges" by virtue of the normal process of levying and collecting town property taxes, in which towns make the first attempt at collection and after which enforcement shifts to the county. *Matter of Town of Irondequoit v County of Monroe*, 36 NY3d 177.

TOWNS.

See MUNICIPAL CORPORATIONS

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION

VILLAGES.

See MUNICIPAL CORPORATIONS

WELFARE.

See SOCIAL SERVICES

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles

WORKERS' COMPENSATION.**AWARD.**

1. Claimant Estate's Entitlement to Decedent's Schedule Loss of Use Award.—A claimant's estate is not entitled to recover the full value of a posthumous schedule

WORKERS' COMPENSATION—Cont'd

loss of use (SLU) award given Workers' Compensation Law § 15 (4) (d)'s limitation to "an amount not exceeding reasonable funeral expenses" when a claimant found entitled to permanent partial disability benefits dies of causes unrelated to the work injuries without a surviving spouse, child under the age of 18, or qualifying dependent, notwithstanding amendments to the Workers' Compensation Law permitting payment of SLU benefits through lump-sum awards. Accordingly, in the workers' compensation proceeding continued by decedent's estate following his death from circumstances unassociated with his work injuries, recovery was properly limited to that portion of the SLU award that would have been due to claimant for the period prior to his death (Workers' Compensation Law § 33), plus "reasonable funeral expenses" (Workers' Compensation Law § 15 [4] [d]). The legislature did not amend Workers' Compensation Law § 15 (4) (d) when it authorized lump-sum payments. If a claimant so elects, payment of an SLU award may be directed in a lump-sum fashion; however, in the event a claimant dies from causes unrelated to the work injury, any yet unpaid amounts that would have become periodically due after the claimant's death are "payable to and for the benefit of . . . the estate of such deceased in an amount not exceeding reasonable funeral expenses" (Workers' Compensation Law § 15 [4] [d]). The legislature unmistakably provided a claimant's estate with only a limited right to a discrete portion of the remaining SLU award upon the claimant's death if the claimant has no qualifying survivors. There is no support for the position that the legislature, by authorizing lump-sum payments, intended to alter, not only the methods of payment available, but also the amount of an SLU award that may be paid to an estate under those circumstances. *Matter of Estate of Youngjohn v Berry Plastics Corp.*, 36 NY3d 595.

ZONING.

See MUNICIPAL CORPORATIONS

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|--|---|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change appellant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change constructive to constructive. |
| 5. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 6. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 7. 64 NY2d 966 (Slatt v Slatt) | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufactur-ers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 8. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 9. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |

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| 10. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 11. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 12. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 13. 85 NY2d 139 (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led. |
| 14. 88 NY2d 41 (Town of Orangetown v Magee) | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733. |
| 15. 88 NY2d 400 (People v Huston) | At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c]. |
| 16. 90 NY2d 717 (Panepinto v New York Life Ins. Co.) | At 90 NY2d 720, line 1, change date of October 28, 1996 to October 28, 1986 and at 90 NY2d 720, line 5, change date of October 28, 1996 to October 28, 1986. |
| 17. 93 NY2d 382 (BDO Seidman v Hirshberg) | At 93 NY2d 391, line 25, change former employer to former employee. |
| 18. 94 NY2d 759 (Phillips-Smith Specialty Retail Group II, L.P. v Parker Chapin Flattau & Klimpl, L.L.P.) | Change the page number of the reported below citation from 209 to 208. |
| 19. 97 NY2d 709 | In Criminal Leave Table, first 13 entries on this page (from <i>People v Santos</i> through and including <i>People v Stallone</i>), change the year within the decision date from “/01” to “/02.” |
| 20. 100 NY2d 960 (Vernon v Vernon) | At 100 NY2d 967, line 7 of second paragraph, change degree to decree. |

Errata

1153

21. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
22. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
23. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
24. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
25. **4 NY3d 884** (People v Bronson) Change the title entry from Bronson to M.B.
26. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
27. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.
28. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.
29. **8 NY3d 944** (People v Charriez) In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).
30. **9 NY3d 923** (People v Jacobs) In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.
31. **11 NY3d 875** (People v Ford) On line 5 of the Summary, change Bronx County to New York County.

32. **13 NY3d 511** (Matter of Goldstein v New York Urban Dev. Corp.) At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].
33. **18 NY3d 667** (People v Rodriguez) At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.
34. **19 NY3d 1058** (Matter of 677 New Loudon Corp. v State of N.Y. Tax Appeals Trib.) At 19 NY3d 1058, line 4 of the headnote, and at page 1159, third paragraph, line 4 of the Memorandum, change 10% to 10¢.
35. **21 NY3d 1043** (People v Mackey-Meggs) Change defendant's name in title from Mackey-Meggs to Marquan M.
36. **22 NY3d 648** (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.
37. **23 NY3d 455** (People v Golb) At 23 NY3d 461, in second full paragraph the email address "newsmedia.ucla.edu" should read "newsmedia@ucla.edu"
At 23 NY3d 461, in third full paragraph the email address "steve.goransongmail.com" should read "steve.goranson@gmail.com"
At 23 NY3d 462, in the first paragraph the email address "frank.cross2gmail.com" should read "frank.cross2@gmail.com"
At 23 NY3d 462, in the second full paragraph the email address "larry.schiffmangmail.com" should read "larry.schiffman@gmail.com"
At 23 NY3d 463, in the second full paragraph the email address "seidel.jonathangmail.com" should read "seidel.jonathan@gmail.com"
38. **23 NY3d 665** (Norex Petroleum Ltd. v Blavatnik) At 23 NY3d 668, footnote 3, last sentence on page should read For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex's federal action was not

terminated on the merits, and Norex's state court action alleges claims "upon the same transaction or occurrence" as its federal predecessor

39. **24 NY3d 294** (People v Silva) At 24 NY3d 296, change attorney's name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard.
40. **25 NY3d 906** (Richard H. v State of New York) Change 1324 to 1306 in the middle column of the motion for leave to appeal table.
41. **26 NY3d - 28 NY3d** Change the spelling of "irrevelant" to "irrelevant" throughout.
42. **26 NY3d 903** (McMillin v Grimditch) Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
43. **26 NY3d 903** (Town of N. Elba v Grimditch) Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
44. **27 NY3d 1079** (People ex rel. Monte v Mingo) Change respondents' name in title from *Warden* to *Warden Maxsolaine Mingo*.
45. **28 NY3d 1123** (People v Faeth) In Criminal Leave Table, middle column, change App Div, 4th Dept: 2016 NY Slip Op 68866(U) (Wayne) to App Div, 4th Dept, 9/6/16 (Wayne).
46. **32 NY3d 1222** (People v Javon Loney) Change appellant's name in title from Javon Loney to J.L.
47. **33 NY3d 950** (People v Loney) Change appellant's name in title from Loney to J.L.